BEFORE THE PUBLIC UTILITIES COMMISSION OF NEVADA

Joint Application of Nevada Power Company d/b/a NV Energy and Sierra Pacific Power Company d/b/a NV Energy for approval of their 2027-2046 integrated resource plan, 2027-2029 Action Plan and 2027-2029 Energy Supply Plan.	Docket No. 26-05___

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APPLICATION

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JOINT APPLICATION TO APPROVE THE 2026 TRIENNIAL INTEGRATED RESOURCE PLAN

Nevada Power Company d/b/a NV Energy ("Nevada Power") and Sierra Pacific Power Company d/b/a NV Energy ("Sierra" and, together with Nevada Power, the "Companies") make this joint Application, pursuant to Nevada Revised Statute ("NRS") § 704.741 *et seq*. and Nevada Administrative Code ("NAC") § 704.9005 *et seq*. The Joint Application requests approval by the Public Utilities Commission of Nevada ("Commission") of the Companies' 2027-2046 joint triennial integrated resource plan ("2026 Joint IRP"), including the plan of action ("Action Plan") and energy supply plan for the three-year period 2027-2029 ("2026 ESP"). NRS § 704.751(1) requires that a triennial IRP must be processed within 210 days and an ESP within 135 days.

I.

SUMMARY AND INTRODUCTION

NV Energy makes this 2026 Joint IRP filing at a pivotal time. According to the North American Electric Reliability Corporation ("NERC"), the industry is "entering a period of load growth unprecedented in recent memory, driven by data centers [(*e.g.,* artificial intelligence and computational load)] that support" daily life and "advance North America's leadership in the deployment of artificial intelligence."[1] Nevada is experiencing this same data-center-driven load growth dynamic.

[1] Correspondence from NERC, dated March 20, 2026, to the Federal Energy Regulatory Commission ("FERC"), available at https://www.nerc.com/globalassets/who-we-are/legal--regulatory/filings--orders/nerc-filings-to-ferc/2026/nerc_accelerated-ll-action-plan_rm26-4_signed.pdf.

Nevada—and northern Nevada in particular—is a sought-after location for data centers due to the expanse of developable land, a favorable climate for efficient cooling, and robust fiber connectivity. NV Energy has received approximately 22,000 megawatts ("MW") or 22 gigawatts ("GW") of interest inquiries from data centers and has executed approximately 6 GW of signed Rule 9 agreements (generally consisting of master planned community ("MPC") umbrella agreements, substation high voltage distribution ("SHVD") agreements, and high voltage distribution ("HVD") agreements) to facilitate the transmission, substation, and high voltage distribution infrastructure needed to interconnect these large loads. These agreements do not address generation and electric supply. As interconnecting load is typically heavily discounted in IRP load forecasts, the Companies must plan prudently for the potential that these loads materialize. This planning is particularly critical given that approximately 84 percent (almost 5 GW) of the signed agreements are with large-load customers in northern Nevada—Sierra's load forecast projects kilowatt-hour ("kWh") sales will double by 2029. Putting it in perspective, Nevada Power's peak load for 2025 was 6,168 MW and Sierra's peak load for 2025 was 2,073 MW.

Projected load growth represents a step-change with unique risks and opportunities. On the risk side of the scale, growth is concentrated in large loads, with individual load interconnection requests commonly in the hundreds of MW. Utilities responding to this step-change in load need to make significant investment in generation and transmission infrastructure to meet rapidly evolving energy needs. On the opportunity side of the scale, large load additions have exhibited high load factors. Stated differently, data centers have historically used energy consistently from hour-to-hour, with minimal variation between low-load and high-load hours. This "flatter" load improves system utilization, potentially allowing fixed costs to be spread across more sales.

NV Energy responded to these planning challenges through a deliberate, risk-aware planning framework anchored by the Large Load Electric Service Agreement ("LLESA") and a flexibility-focused Preferred Plan. The Companies employ resource planning analysis for both a Base Load Forecast and a reduced Base Minus Load Forecast to isolate the incremental generation and transmission needs—and associated costs—that NV Energy would not incur but for large-load

service requests. The LLESA contains several risk mitigation provisions designed to ensure that large load additions pay for the infrastructure needed to meet their service requests. These include customer specific charges that operate as contributions in aid of construction to reduce the Companies' investment in generation and transmission additions, minimum demand and energy charges, security requirements, and termination payments. This approach, coupled with similar provisions in Rule 9 agreements, provides a transparent, fact-based foundation for aligning cost responsibility with cost causation and ensures that households, small businesses, and existing commercial and industrial customers are not asked to bear costs driven primarily by new large-load service.

In parallel, the Companies' Preferred Plan—Obsidian—reflects a deliberate emphasis on flexibility and executability. NV Energy developed the renewable energy expansion plan, which seeks approval of 23 third-party power purchase agreements ("PPAs") adding approximately 4,550 MW of renewable generation and 5,405 MW of BESS output capacity across the Nevada Power and Sierra systems to support Renewable Portfolio Standard ("RPS") compliance, load growth, and reliability needs. The plan was developed through the 2024 All-Source Request for Proposals ("RFP") using selection criteria recalibrated to emphasize deliverability and executability—prioritizing projects with lower federal permitting exposure, stronger tax-credit "safe harbor" positioning, and near-term commercial online date ("COD") potential—while targeting resources that can help relieve emerging energy and capacity constraints in northern Nevada (including Sierra's import-constrained system).

Likewise, the thermal additions in the Obsidian Plan include 802 MW of aeroderivative peaking turbines (centered around 2030–2031) and 421 MW of frame peaking turbines in the early-2030s, providing fast-start, flexible capacity to support resource adequacy. They were selected because they minimize execution and supply-chain risk—particularly by avoiding heavy reliance on multiple frame combustion turbines with 2031 commercial operation dates—while also limiting near-term capital exposure and preserving planning flexibility amid large-load

uncertainty. This design directly addresses uncertainty around the timing, magnitude, and geographic concentration of large-load growth, while preserving optionality.

Taken together, the LLESA approach, the load-scenario framework, and the flexible resource portfolio translate emerging national reliability guidance and empirical load trends into concrete planning and contracting tools. This integrated approach reduces stranded-asset risk, supports timely and reliable service to new customers, and protects affordability and reliability for existing customers as Nevada's future load trajectory takes shape.

In conclusion, NV Energy's policy position is clear: the Companies plan to support data center development in Nevada, but only with prudent guardrails that protect reliability and ensure that costs caused by large-load additions are borne by those loads, not shifted to existing customers. Accordingly, NV Energy's planning and service framework prioritizes deliverable, flexible resources and infrastructure that can be timed and scaled to actual load realization, while preserving optionality under evolving federal policy, permitting, and supply-chain conditions. Consistent with these principles, a primary objective of this 2026 Joint IRP filing is to establish clear, durable planning and service rules to address step-change load growth that are just, reasonable, and in the public interest.

The Companies seek approval of the Preferred Plan resources; however, the need for these resources is premised on the Base Load Forecast and the large new loads that underpin it. By expeditiously reviewing and approving the LLESA framework, the Commission will give much needed certainty to the Companies and the development community around the cost responsibility for the new generation and transmission needed to serve the large new loads. This certainty, in turn, would allow the Companies to firm up the load forecast and align with the necessary resources needed to support the approved load forecast.

NRS § 704.751(1)(a) requires that the Commission issue an order accepting or modifying the IRP or specifying any portions of the Joint Application it deems to be inadequate, within 210 days after its filing. The statutory period within which this matter must be resolved, therefore, runs on Wednesdays, December 2, 2026. To gain certainty around the LLESA framework, the

Companies request an expedited ruling on the form LLESA.[2] The Commission ruling will allow large load customers the opportunity to determine if they want to move forward with execution of their respective LLESAs, which will have an impact on the resources needed to serve such load. Accordingly, the Companies request that the form contract approval of the LLESA proceed on the same timeline as the concurrently filed ESP, which would set a deemed approved date of Friday, September 18, 2026.

II.

THE APPLICANTS

Nevada Power and Sierra are Nevada corporations and wholly owned subsidiaries of NV Energy, Inc. Nevada Power and Sierra are public utilities as defined in NRS § 704.020 and are subject to the jurisdiction of the Commission. Nevada Power is engaged in providing electric service to the public in portions of Clark and Nye counties, Nevada pursuant to a certificate of public convenience and necessity issued by this Commission. Sierra provides electric service to the public in portions of fourteen northern Nevada counties, including the communities of Carson City, Minden, Gardnerville, Reno, Sparks, and Elko. Sierra owns and operates a certificated local distribution company engaged in the retail sale of natural gas to customers in the Reno-Sparks metropolitan area.

Sierra's primary business office is located at 6100 Neil Road in Reno, Nevada, and Nevada Power's primary business office is located at 6226 West Sahara Avenue in Las Vegas, Nevada. All correspondence related to this Joint Application should be transmitted to the Companies' counsel ***and*** to the Director of Regulatory Services, as set forth below:

[2] The LLESA form is presented as Exhibit Wells-Direct-2.

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III.

APPLICATION EXHIBITS

Included with this Joint Application and incorporated herein by reference are the following exhibits:

- **Application Exhibit A** lists all the projects requested for approval as part of the Preferred Plan.
- **Application Exhibit B** is the three-year Action Plan for the period January 1, 2027, through December 31, 2029. This exhibit is required by NAC § 704.9489.
- **Application Exhibit C** is a roadmap of applicable statutes and regulations and the location of the required information within the filing. This exhibit is not described in or mandated by the Commission's IRP regulations or prior IRP orders but is provided to assist those performing an evaluation of the technical aspects of the filing.
- **Application Exhibit D** is a proposed draft notice of the Application as required by NAC § 703.162.

In addition, as required by NAC § 704.9215, the 2026 Joint IRP contains a stand-alone Summary Volume. Section I of that document contains a short, executive summary of the 2026 Joint IRP. The remainder of the Summary Volume addresses each of the items required by NAC § 704.9215, is written in plain language and includes easily interpretable tables, graphs and maps.

IV.

ADDITIONAL SUPPORTING MATERIAL

Section 704.9321 of the NAC provides that a utility's resource plan must be based on substantially accurate data, adequately demonstrated and defended, and adequately documented and defended. As is set forth below, included in this 2026 Joint IRP, and incorporated herein by reference, the reader will find all material required to adequately demonstrate and defend the substantially accurate data supporting the analysis and the requests for affirmative relief set forth herein. **Shawn Elicegui**, Senior Vice President, Regulatory and Resource Planning, provides support for the overall policy of the 2026 IRP. **Janet Wells,** Vice President, Integrated Resource Planning, identifies the sponsors of each of the substantive portions of the 2026 Joint IRP. A summary of this information, which includes narrative, technical appendices,[3] and supporting prepared direct testimony,[4] is set forth by general topic below.

A. Load, Fuel and Purchased Power Forecasts. The first narrative in the 2026 Joint IRP filing addresses load forecasts, includes a comprehensive discussion of market fundamentals that impact long-term fuel and purchased power pricing, and describes and supports the long-term price forecasts for fuel and purchased power that underlie the analysis in the 2026 Joint IRP.

1. Load Forecasting. The narrative addressing the load forecast is supported by the prepared direct testimony of **Tim Pollard,** Director of Load Forecasting, Research and Analytics, as well as the following technical appendices:

- LF-1 - 2026 Joint IRP Load Forecast Technical Appendix;
- LF-2 - State Demographer Long-Term Population Projections, 2024-2043;
- LF-3 - State Demographer Annual Report on Estimated Population through July 1,

[3] NAC § 704.922 requires that a utility's resource plan include technical appendices that contain sufficient detail to enable a technically proficient reader to understand how the resource plan and its forecasts were prepared and to evaluate the validity of the assumptions and the accuracy of the data used, including, without limitation, a list of the major assumptions used, a description of the forecasting methods employed and a description of the software utilized.

[4] NAC § 704.9321(4) requires that all testimony offered in support of a utility's resource plan be filed with the resource plan.

2024, Including 2023 Governor Certified Series – Population Estimates of Nevada's Counties

- LF-4 - Las Vegas Convention and Visitors Year to Date Available Room Count 2024-2025
- LF-5 - 2025 CBER Clark County Population Forecast, May 2025
- LF-6 - S&P Global IHS Economics 2025 (CONFIDENTIAL)
- LF-7 - Itron, Inc. Statistically adjusted end-use ("SAE") model overview

In addition, Mr. Pollard supports the Companies' proposed annual limits for eligible customers to apply for and take service from a provider of new electric resources pursuant to NRS Chapter 704B and the proposed transition rates.

2. Market Fundamentals and Fuel and Purchased Power Forecasting. The narrative addressing market fundamentals and the fuel and purchased power forecasts is supported by the prepared direct testimony of **Zeljko Vukanovic**, Market Fundamentals Lead. **Vincent Vitiello,** Gas Supply Planning Lead, sponsors the gas transportation strategies, including a discussion of the development of new gas transportation infrastructure necessary to supply the proposed Fort Churchill thermal unit additions. The narrative addressing market fundamentals and the fuel and purchased power forecasts is supported by the following technical appendix.

- FPP-1 - Fuel and Purchased Power (Confidential)

B. Demand-Side Resources. This narrative in the 2026 Joint IRP addresses the Companies' demand-side management ("DSM") and planning processes, the performance of the Companies' existing DSM programs, as well as their current and proposed portfolio of demand-side resources and programs. The narrative addressing demand-side resources is supported by the following technical appendices:[5]

- DSM-1 - DSMore user manual

[5] In addition, consistent with the Companies' commitment in prior DSM plan proceedings, a set of electronic workpapers supporting the analysis and selection of the programs and measures discussed in the narrative have been developed. The electronic workpapers are not a part of the filing but have been provided to Staff and BCP.

- DSM-2 - Demand Response Energy Savings Curves
- DSM-3 - 2025 DSMore Input/Output
- DSM-4 - 2027-2029 DSMore Input/Output Sheets
- DSM-5 - 2027-2029 DR Scenarios Whitepaper
- DSM-6 - DSM Collaborative Meeting slides
- DSM-7 - M&V Process
- DSM-8 - Technical Appendix to the M&V
- DSM-9 - 2025 Energy Education M&V
- DSM-10 - 2025 Energy Reports M&V
- DSM-11 - 2025 Energy Assessments M&V
- DSM-12 - 2025 Home Energy Saver M&V
- DSM-13 - 2025 Res Codes Construct M&V
- DSM-14 - 2025 QAR Low Income M&V
- DSM-15 - 2025 Direct Install M&V
- DSM-16 - 2025 Res DR M&V
- DSM-17 - 2025 Energy Smart Schools M&V
- DSM-18 - 2025 Business Energy Services M&V
- DSM-19 - 2025 Commercial DR M&V
- DSM-20 - 2025 Program Development Field Trials
- DSM-21 - 2025 Low Income Expenditure Tracking
- DSM-22 - Added Insurance Value of Energy Efficiency in Extreme Weather Conditions

The demand-side resources narrative and the technical appendices supporting the narrative are sponsored by the prepared direct testimony of the following demand-side planning, implementation and evaluation experts:

Patricia Rodriguez, Director, Energy Services Optimization, sponsors and co-sponsors all portions of the DSM plan.

Adam Grant, Director of Integrated Energy Services Operations, sponsors or co-sponsors all portions of the DSM plan.

Yvette Sanders, Energy Services Specialist, supports portion of the Demand Side Plan, and co-sponsors the Measurement and Verification ("M&V") reports presented as part of the Demand Side Plan contained in Technical Appendices DSM-9 through DSM-19.

Christopher Belcher, Integrated Energy Services Policy and Compliance Manager, Integrated Energy Services Operations, supports portions of the Demand Side Plan, including aspects of the Demand Side Plan rate impacts.

Robert Oliver, Principal at Qualus LLC, sponsors Technical Appendices DSM-8 and DSM-9, and co-sponsors the M&V reports contained in Technical Appendices DSM-9 through DSM-19.

Michael Brown, Integrated Energy Services Director, sponsors the Grid Services Compensation Overview section of the DSM Plan.

C. Distributed Resources Plan. The narrative in the 2026 Joint IRP filing addresses the Companies' Distributed Resources Plan ("DRP"). The narrative addressing distributed resources is supported by the following technical appendices:

- DRP-1 - NV Energy's Net Energy Metering Reliability Impact Thresholds
- DRP-2 - Nevada Power Sierra Past Peaks 012326
- DRP-3 - Nevada Power Sierra Forecast Peaks 021726
- DRP-4 - NV Energy Hosting Capacity Analysis Monthly Update Internal Process Flowchart
- DRP-5 - NV Energy Distributed Resources Plan Web Portal User Guide 3-2 051023

The DRP narrative, and the technical appendices supporting the narrative, are sponsored by the prepared direct testimony of the following planning, implementation and evaluation experts:

Janet Wells, Vice President, Integrated Resource Planning, sponsors the Distributed Resources Plan as a policy witness.

Joseph Sinobio, Director of Integrated Grid Planning, sponsors the Distributed Resources Plan as the key technical expert.

Ms. Rodriguez, Director of Energy Services Optimization, sponsors Section 5.B of the Distributed Resources Plan.

Mr. Brown, Integrated Energy Services Director, sponsors sections 7.A, 7.B, 8.A.2, 8.B, and 8.C of the Distributed Resources Plan.

Kurtis Giubbini, Transmission Planning Engineer, sponsors Section 3.B of the Distributed Resources Plan, Distributed Resources Plan Analyses: Transmission Planning.

Kimberly Williams, Director of Resource Planning and Analysis, supports Section 5.A of the DRP, incorporation of the DRP in the integrated planning process.

The Companies present the Transportation Electrification Plan ("TEP") as part of the DRP. The narrative addressing distributed resources is supported by the following technical appendices:

- TEP-1 - Stakeholder Meetings
- TEP-2 - Benefit Cost Analysis
- TEP-3 - Rate Impact

The following witnesses sponsor key aspects of the TEP:

Adam Grant, Director of Integrated Energy Services Operations, sponsors the proposed Transportation Electrification Plan.

D. Supply Plan Resources. This narrative in the 2026 Joint IRP filing addresses the Companies' Supply Plan (including the generation, renewable energy, and transmission plans). Each element of the Supply Plan is addressed in turn below:

1. Conventional Generation. This portion of the Supply Plan is supported by the following technical appendices:

- GEN-1 - Unit Characteristics Table (Confidential)
- GEN-2 - Emissions Rates - Generation
- GEN-3 - Technical Appendix GEN-3 - Generation Study Report April 11 2025 - Confidential

- GEN-4 - Hydrogen and CCS Technology Assessment

The conventional Generation of the Supply Plan narrative, as well as the technical appendices supporting it, is sponsored by the prepared direct testimony of the following supply-side resource planning and implementation experts.

John Lescenski, Manager, Plant Engineering and Technical Services, sponsors the Supply Plan for the Companies' thermal generation.

Mathew Johns, Vice President, Environmental Services and Land Management, supports the environmental regulatory discussion in the Generation section of the Supply Plan.

Fady Atala, Senior Director of Major Projects, supports the Supply Plan for the Companies' thermal generation related to the proposed Fort Churchill Projects included in the Preferred Plan.

2. Current Renewable Portfolio, Compliance with Renewable Portfolio Plan and New Renewable Resources. This section of the narrative is supported by the following technical appendices:

- REN-1 - Proposed Projects 12x24 Supply tables
- REN-2 - Renewable Portfolio Standard Buildout Scenarios
- REN-3-AEC(a)(1) - Amargosa Energy Center (Phase 1) PPA (Confidential)
- REN-3-AEC(a)(1) - Amargosa Energy Center (Phase 1) PPA (Redacted)
- REN-3-AEC(a)(2) - Amargosa Energy Center (Phase 2) PPA (Confidential)
- REN-3-AEC(a)(2) - Amargosa Energy Center (Phase 2) PPA (Redacted)
- REN-3-AEC(b) - Amargosa Energy Center Due Diligence
- REN-3-AEC(c) - Amargosa Energy Center NAC-NRS Compliance
- REN-3-AEC(d)(1) - Amargosa Energy Center (Phase 1) Key Provisions
- REN-3-AEC(d)(2) - Amargosa Energy Center (Phase 2) Key Provisions
- REN-4-BS3(a) - Boulder Solar III PPA (Confidential)
- REN-4-BS3(a) - Boulder Solar III PPA (Redacted)
- REN-4-BS3(b) - Boulder Solar III Due Diligence

- REN-4-BS3(c) - Boulder Solar III NAC-NRS Compliance
- REN-4-BS3(d) - Boulder Solar III Key Provisions
- REN-5-CS(a) - Castor Storage PPA
- REN-5-CS(b) - Castor Storage Due Diligence
- REN-5-CS(c) - Castor Storage NAC-NRS Compliance
- REN-5-CS(d) - Castor Storage Key Provisions
- REN-6-CSB(a) - Commerce Station Energy Storage PPA (Confidential)
- REN-6-CSB(a) - Commerce Station Energy Storage PPA (Redacted)
- REN-6-CSB(b) - Commerce Station Energy Storage Due Diligence
- REN-6-CSB(c) - Commerce Station Energy Storage NAC-NRS Compliance
- REN-6-CSB(d) - Commerce Station Energy Storage Key Provisions
- REN-7-CE1(a) - Coyote Energy 1 PPA
- REN-7-CE1(b) - Coyote Energy 1 Due Diligence
- REN-7-CE1(c) - Coyote Energy 1 NAC-NRS Compliance
- REN-7-CE1(d) - Coyote Energy 1 Key Provisions
- REN-8-DLE2(a) - Dry Lake East Energy Storage II PPA (Confidential)
- REN-8-DLE2(a) - Dry Lake East Energy Storage II PPA (Redacted)
- REN-8-DLE2(b) - Dry Lake East Energy Storage II Due Diligence
- REN-8-DLE2(c) - Dry Lake East Energy Storage II NAC-NRS Compliance
- REN-8-DLE2(d) - Dry Lake East Energy Storage II Key Provisions
- REN-9-FSR(a) - Fish Springs Ranch Energy Storage PPA (Confidential)
- REN-9-FSR(a) - Fish Springs Ranch Energy Storage PPA (Redacted)
- REN-9-FSR(b) - Fish Springs Ranch Energy Storage Due Diligence
- REN-9-FSR(c) - Fish Springs Ranch Energy Storage NAC-NRS Compliance
- REN-9-FSR(d) - Fish Springs Ranch Energy Storage Key Provisions
- REN-10-HPE(a) - Hot Pot Energy Center PPA (Confidential)
- REN-10-HPE(a) - Hot Pot Energy Center PPA (Redacted)

- REN-10-HPE(b) - Hot Pot Energy Center Due Diligence
- REN-10-HPE(c) - Hot Pot Energy Center NAC-NRS Compliance
- REN-10-HPE(d) - Hot Pot Energy Center Key Provisions
- REN-11-IPE(a) - Iron Point Energy Center PPA (Confidential)
- REN-11-IPE(a) - Iron Point Energy Center PPA (Redacted)
- REN-11-IPE(b) - Iron Point Energy Center Due Diligence
- REN-11-IPE(c) - Iron Point Energy Center NAC-NRS Compliance
- REN-11-IPE(d) - Iron Point Energy Center Key Provisions
- REN-12-JVS(a) - Jersey Valley Solar and Storage PPA
- REN-12-JVS(b) - Jersey Valley Solar and Storage Due Diligence
- REN-12-JVS(c) - Jersey Valley Solar and Storage NAC-NRS Compliance
- REN-12-JVS(d) - Jersey Valley Solar and Storage Key Provisions
- REN-13-LSA(a) - Libra Solar & Storage Project Third Amendment PPA (Confidential)
- REN-13-LSA(a) - Libra Solar & Storage Project Third Amendment PPA (Redacted)
- REN-13-LSA(b) - Libra Solar & Storage Project Third Amendment Due Diligence
- REN-13-LSA(c) - Libra Solar & Storage Project Third Amendment NAC-NRS Compliance
- REN-13-LSA(d) - Libra Solar & Storage Project Third Amendment Key Provisions
- REN-14-LSC(a) - Lux Solar Center PPA (Confidential)
- REN-14-LSC(a) - Lux Solar Center PPA (Redacted)
- REN-14-LSC(b) - Lux Solar Center Due Diligence
- REN-14-LSC(c) - Lux Solar Center NAC-NRS Compliance
- REN-14-LSC(d) - Lux Solar Center Key Provisions
- REN-15-NGP(a) - Nevada Geothermal Portfolio (OKGP) PPA (Confidential)
- REN-15-NGP(a) - Nevada Geothermal Portfolio (OKGP) PPA (Redacted)
- REN-15-NGP(b) - Nevada Geothermal Portfolio (OKGP) Due Diligence
- REN-15-NGP(c) - Nevada Geothermal Portfolio (OKGP) NAC-NRS Compliance

- REN-15-NGP(d) - Nevada Geothermal Portfolio (OKGP) Key Provisions
- REN-16-NBM(a) - NGP Blue Mountain Third Amendment PPA
- REN-16-NBM(b) - NGP Blue Mountain Third Amendment Due Diligence
- REN-16-NBM(c) - NGP Blue Mountain Third Amendment NAC-NRS Compliance
- REN-16-NBM(d) - NGP Blue Mountain Third Amendment Key Provisions
- REN-17-NNGP(a) - North Nevada Geothermal Portfolio PPA (Confidential)
- REN-17-NNGP(a) - North Nevada Geothermal Portfolio PPA (Redacted)
- REN-17-NNGP(b) - North Nevada Geothermal Portfolio Due Diligence
- REN-17-NNGP(c) - North Nevada Geothermal Portfolio NAC-NRS Compliance
- REN-17-NNGP(d) - North Nevada Geothermal Portfolio Key Provisions
- REN-18-SOS(a) - Sleepy Orange PPA
- REN-18-SOS(b) - Sleepy Orange Due Diligence
- REN-18-SOS(c) - Sleepy Orange NAC-NRS Compliance
- REN-18-SOS(d) - Sleepy Orange Key Provisions
- REN-19-SBS(a)(1) - Southern Bighorn 1 PPA (Confidential)
- REN-19-SBS(a)(1) - Southern Bighorn 1 PPA (Redacted)
- REN-19-SBS(a)(2) - Southern Bighorn 2 PPA (Confidential)
- REN-19-SBS(a)(2) - Southern Bighorn 2 PPA (Redacted)
- REN-19-SBS(b) - Southern Bighorn 1 and 2 Due Diligence
- REN-19-SBS(c) - Southern Bighorn 1 and 2 NAC-NRS Compliance
- REN-19-SBS(d)(1) - Southern Bighorn 1 Key Provisions
- REN-19-SBS(d)(2) - Southern Bighorn 2 Key Provisions
- REN-20-TG(a) - Trego Grid PPA (Confidential)
- REN-20-TG(a) - Trego Grid PPA (Redacted)
- REN-20-TG(b) - Trego Grid Due Diligence
- REN-20-TG(c) - Trego Grid NAC-NRS Compliance
- REN-20-TG(d) - Trego Grid Key Provisions

- REN-21-WPS(a) - White Pine Solar PPA (Confidential)
- REN-21-WPS(a) - White Pine Solar PPA (Redacted)
- REN-21-WPS(b) - White Pine Solar Due Diligence
- REN-21-WPS(c) - White Pine Solar NAC-NRS Compliance
- REN-21-WPS(d) - White Pine Solar Key Provisions
- REN-22-WS(a)(1) - Winston Solar (LG Facility) PPA (Confidential)
- REN-22-WS(a)(1) - Winston Solar (LG Facility) PPA (Redacted)
- REN-22-WS(a)(2) - Winston Solar (MK Facility) PPA (Confidential)
- REN-22-WS(a)(2) - Winston Solar (MK Facility) PPA (Redacted)
- REN-22-WS(b) - Winston Solar Due Diligence
- REN-22-WS(c) - Winston Solar NAC-NRS Compliance
- REN-22-WS(d)(1) - Winston Solar (LG Facility) Key Provisions
- REN-22-WS(d)(2) - Winston Solar (MK Facility) Key Provisions
- REN-23 - Standalone BESS LCOS Comparison Summary
- REN-24 - Paired Solar and BESS LCOE Comparison Summary (Confidential)
- REN-25 - Economic Benefits Table
- REN-26 - Bid Scores Summary - 2024 RFP (Confidential)

The Renewables section of the Supply Plan narrative and the technical appendices supporting this narrative section are sponsored by the prepared direct testimony of the following witnesses:

Michael Holland, Vice President, Resource Optimization, describes the renewable energy landscape in Nevada, the status of the Companies' named placeholders, market design efforts, and the open position limits and provides status updates on the Companies' renewable initiatives.

Sean Spitzer, Director, Renewable Energy & Origination, sponsors the Companies' renewable energy projects to support the Renewables Section of the Supply Plan and provides an update on the Valmy geothermal resources.

Ms. Wells, Vice President of Integrated Resource Planning, supports the Companies Renewable Portfolio Standard outlook. In addition, **Ms. Wells** sponsors the form LLESA and Clean Transition Tariff Exemplar Pricing Models for Sierra and Nevada Power.

3. Transmission Plan. The following technical appendices support this section of the narrative:

- TRAN-1: Confidential Agreement Petroglyph - HVD 25-00058
- TRAN-2: Confidential TRIC to WR Transmission Master Plan Map
- TRAN-3: Confidential Agreement - Basin ph1 & Sapphire ph3
- TRAN-4: Confidential Agreement - Sapphire ph2
- TRAN-5: Confidential Agreement Sand Dune – HVD
- TRAN-6: Confidential Agreement Sand Dune ph2
- TRAN-7: Confidential Agreement Chukar - 23-00052 HVD
- TRAN-8: Confidential Agreement Viking - HVD 24-00020-RNO
- TRAN-9: Confidential Agreement Spring Canyon MPU 3010833586-MPU
- TRAN-10: Confidential Agreement Spring Canyon - LNV4 - Apparatus Procurement
- TRAN-11: Ft Sage - PSREC TIA for Ft. Sage Interconnection 11-3-24 EXECUTED
- TRAN-12: Northwest - GridLiance West TIA at Northwest RS 169 EXECUTED
- TRAN-13: Northwest #7 - NITSA 17-00004 btw NPC and Switch South - 14th AR - 09-19-2025
- TRAN-14: TPL-001 2025 Appendix A - Corrective Action Plans

The Transmission Plan narrative, as well as the technical appendices supporting the narrative, are sponsored by the prepared direct testimony of the following witnesses:

Charles Pottey, Director of Transmission Planning, sponsors the Transmission Plan section of the Supply Plan, except for transmission additions required for large customer load

additions, and supports the Companies' requests to construct transmission system network upgrades.

Layne Maxfield, Manager, Transmission System Planning, supports the Companies' requests for compliance driven projects, transmission interconnection projects, projects that are required per executed Rule 9 agreements and distribution load growth projects.

E. Economic Analysis. The Economic Analysis narrative follows the Supply Plan narrative and discusses the methodologies and analytical tools used to perform the integrated economic analysis that underlies the Companies' selection of the Preferred Plan and Alternate Plan. This section also describes the calculation of environmental externalities for the Preferred and Alternate Plans. The economic analysis narrative is supported by the following technical appendices:

- ECON-1 - Notice of Stakeholder Briefing
- ECON-2 - Description of Modeling Software
- ECON-3 - Average Generation Costs for Preferred Plan
- ECON-4 - Production Cost Summaries
- ECON-5 - Loads and Resources Tables
- ECON-6 - Capital Projects
- ECON-7 - Present Worth of Revenue Requirement Summaries
- ECON-8 - Area Diagram
- ECON-9 - NERA Report
- ECON-10 - Candidate Resources
- ECON-11 - Average Marginal Energy Costs for Preferred Plan
- ECON-12 - ELCC Update for Solar and Storage (E3)
- ECON-13 - Additional Studies

The Economic Analysis narrative, as well as the technical appendices supporting the narrative, is sponsored by the prepared direct testimony of the following witnesses:

- **Ms. Williams**, Director of Resource Planning and Analysis, sponsors the economic analysis, the evaluation of the alternative supply plans, and the selection of the Preferred and Alternate Plans.
- **Nicolai Schlag**, Partner at Energy and Environmental Economics, supports three studies conducted by E3, each completed at the request of the Companies: (1) An updated ELCC analysis; (2) A supplemental resource adequacy analysis of the Sierra subsystem; (3) A technology assessment for hydrogen and carbon capture and sequestration resources.
- **Dr. David Harrison, Jr**., Affiliated Consultant at NERA Economic Consulting, supports the environmental cost and economic impacts analyses.
- **Brandon Heath**, Resource Planning Specialist, sponsors the economic analysis used in the evaluation of the supply plans.

F. Financial Plan. The 2026 Joint IRP narrative includes a discussion of the Financial Plan following the Economic Analysis narrative. This section of the narrative discusses the methodologies and analytical tools used to evaluate the impact of the Preferred and Alternate Plans on the Companies' financial metrics. The Financial Plan narrative is sponsored by the prepared direct testimony of the following witnesses:

- **Michael Behrens**, Chief Financial Officer, sponsors the Financial Plan for the 2026 Joint IRP.
- **Christopher Sarda**, Financial Planning & Analysis Capital Services Director, sponsors the financial forecast modeling and analysis used to support the Financial Plan as well as the alternative plans rate impact analyses.

G. Day-Ahead Markets and Regional Transmission Organization. The Day-Ahead Markets and Regional Transmission Organization narrative discusses the Companies' assessments of and effort to join a day-ahead market and the status of SB 448 compliance. The Day-Ahead Markets and Regional Transmission Organization narrative is sponsored by **Mr. Holland**, Vice President, Resource Optimization.

H. Energy Supply Plan. The 2026 Joint IRP includes an ESP. Because the IRP statute requires that an ESP be processed in 135 days, while the full IRP is to be processed in 210 days, the Companies have segregated the ESP narrative, testimony and technical appendices into stand-alone volumes filed as part of the 2026 Joint IRP. Together the 2026 ESP narrative, prepared direct testimony and technical appendices provide the Companies' recommended power procurement plans, fuel procurement plans, and risk management strategies based on current market conditions during the 2026 ESP period. The 2026 ESP narrative is supported by the following technical appendices and prepared direct testimony.

1. Policy. **Ms. Wells**, introduced above, is the overall policy witness for the 2026 ESP and sponsors Section 1 (Executive Summary), 8 (Commission Directives) of the ESP narrative. **Mr. Holland**, introduced above, sponsors Technical Appendix GAS-1.

2. Power and Fuel Requirements. **Mr. Pollard**, introduced above, sponsors the 2026 ESP load forecast, which is described in Section 2.A of the ESP narrative. Technical Appendix LF-1 is identical as between the ESP and IRP, and thus is included only once, with the 2026 Joint IRP. **Charles McCutchen**, Production Cost Modeling Lead, sponsors Section 2.B (Capacity Requirements), Section 2.E ("Gas Transportation Requirements"), Section 2.F (Physical Gas Requirements), and co-sponsors Section 2.C (Energy Requirements). He also sponsors Technical Appendix ECON-1. **Mr. Holland**, introduced above, co-sponsors Section 2.C (Energy Requirements) and Section 2.G (Financial Gas Requirements). **Ms. Wells**, introduced above, sponsors Section 2.D (Renewable Energy Planning). **Mr. Schlag**, introduced above, sponsors Technical Appendix ECON-2.

***3. Markets and Price Forecasts*. Mr. Vukanovic**, introduced above, sponsors Sections 3.A (Market Fundamentals) and 3.C (Fuel and Purchase Power Price Forecasts) in the 2026 ESP narrative, as well as Technical Appendix FPP-1 – Fuel and Purchased Power

(Confidential).[6] **Mr. Holland**, introduced above, sponsors Section 3.B (Regional Market Development).

***4. Power Procurement Plan*. Mr. Holland**, introduced above, sponsors Section 4 of the 2026 ESP narrative. sponsor portions of the power procurement plan.

5. Gas Procurement Plan. **Mr. Holland**, introduced above, sponsors Section 5.A (Physical Gas Procurement Plan) and Section 5.C (Recommended Gas Hedging Plan) of 2026 ESP narrative. **Mr. Vitello**, introduced above, sponsors Section 5.B (Gas Transportation Plan).

***6. Risk Management Strategy*. Adrian Cacuci**, Treasurer, sponsors Section 6 (Risk Management Strategy) of the 2026 Joint ESP, and sponsors the following Technical Appendices:

- RM-1 Risk Management and Control Policy
- RM-2 Energy Risk Management and Control Policy
- RM-3 Credit Risk Management and Control Policy

***7. Determination of Prudence.* Ms. Wells**, introduced above, sponsors Section 7 of the 2026 Joint ESP. **Mr. Cacuci**, introduced above, co-sponsors portions of Section 7. **Matthew Valentic,** Regulatory Accounting Manager**,** sponsors Technical Appendix GAS-2

***8. Commission Directives*. Ms. Wells,** introduced above, sponsors Section 8 of the 2026 Joint ESP. **Mr. Holland**, introduced above, sponsors Technical Appendix GAS-1.

V.

CONFIDENTIALITY

Certain information set forth in the narrative, supporting testimony and Technical Appendices is commercially sensitive and/or trade secret information subject to protection pursuant to NRS § 703.190. Specifically, the confidential information in this filing, along with the basis for the assertion of confidentiality, is set forth below.

[6] The fuel and purchased power price forecast for the ESP period from 2027 through 2029 is identical to the IRP forecast contained in IRP Technical Appendix FPP-1.

Load Forecast. Technical Appendix LF-6 contains third-party proprietary information and is being provided confidentially. Exhibit Pollard-Direct-2 contains confidential customer-specific information.

Fuel and Purchased Power Price Forecasts. The Companies prepared price forecasts for fuel and purchased power for the 2026 Joint IRP and the 2026 ESP. In the 2026 Joint IRP, Technical Appendix FPP-1 as well as Figures FPP-3 through FPP-8 in the Fuel and Purchased Power Price Forecasts section of the narrative contain commercially sensitive and/or trade secret information that derives independent economic value from not being generally known and are derived using proprietary information of third parties. In the 2026 ESP, Technical Appendix FPP-1 as well as Figures ESP-33 through ESP-36 contain commercially sensitive and/or trade secret information that derives independent economic value from not being generally known and are derived using proprietary information of third parties. This confidential information is obtained from Argus Media ("Argus") and Wood Mackenzie Limited ("WoodMac"), fee subscription services and recognized providers and consultants for the energy industry and cannot be publicly disclosed. This information is protected by confidential provisions between the Companies and these providers and contains essential qualitative descriptions of the assumptions and methodologies used to develop the price projections. Similarly, the Companies purchase and sell energy and capacity in the wholesale market. In seeking or responding to requests for proposals ("RFPs"), the confidentiality of the Companies' price forecasts is key to the competitive process. Therefore, it is fundamentally contrary to the interests of customers to provide public access to Companies' confidential price forecasts for market energy and fuels.

Generation. Technical Appendices GEN-1 and GEN-3 are marked as confidential. Technical Appendix GEN-1 includes the Generating Unit Characteristics Table that provides characteristics used in the dispatch of the Companies' generating units. Technical Appendix GEN-3 is a generation brownfield study containing cost estimates and terms and conditions still under negotiation. Public release of this information would allow parties bidding energy to the Companies to price their units based on NV Energy's costs, which would adversely affect NV

Energy's customers. Table GEN-3 of the narrative contains costs information related to the Fort Churchill Additions 1 project. Table GEN-6 of the narrative contains costs information for the Fort Churchill Additions 2 project. Table GEN-9 of the narrative contains costs information for the Fort Churchill Additions 3 project. Table GEN-12 of the narrative contains costs forecasts for future thermal projects. Disclosure of this confidential information would reveal the Companies' cost expectations for equipment and installation allowing future bidders to submit less competitive offers, which will in turn result in higher costs for NV Energy's customers.

Fuel Supply Plan. Exhibit Vitiello-Direct-2 contains commercially sensitive fuel supply pricing information and is marked as confidential. In addition, portions of the Fuel Supply narrative contain confidential information regarding gas price premium caps. This confidential information is commercially sensitive and/or trade secret information that derives independent economic value from not being generally known. Disclosure of this confidential information to any third party would adversely affect the Companies' ability to obtain favorable terms from its gas suppliers.

Renewables. Technical Appendices REN-3 through REN-22, REN-24, and REN-26 contain confidential information. The power purchase agreements provided in Technical Appendices REN-3 through REN-22 contain redacted approved vendors lists. This information is commercially sensitive and its disclosure can result in harm to the Companies, the Companies' contractual counterparties, and the vendors either included or excluded from the list. The due diligence documents provided in Technical Appendices REN-3 through REN-22 are marked as confidential because, if publicly disclosed, could provide an unfair market advantage to competitors and future bidders by showing the Companies' internal analysis on projects. Technical Appendix REN-24 contains confidential pricing information from project bids as well as the Companies' internal pricing analysis. Technical Appendix REN-26 contains RFP bid information from non-winning bids submitted to the Companies under confidentiality agreements. Table REN-2 in the Renewables narrative contains redacted bid pricing information related to the Amargosa project. Disclosure of confidential cost and bid information contained in Technical Appendices

REN-24 and REN-26 as well as Table REN-2 could negatively impact the Companies' ability to obtain competitive offers from bidders in the future and deliver the best value to the Companies' customers.

Transmission. Technical Appendix TRAN-2 contains confidential information regarding transmission line routes. Disclosure of such information could put the Companies at a competitive disadvantage during land and right-of-way negotiations. Technical Appendices TRAN-1 and TRAN-3 through TRAN-10 contain confidential customer information.

Economic Analysis. Technical Appendices ECON-3, ECON-4, ECON-6, ECON-10 and ECON-13 contain confidential information. Technical Appendix ECON-3 contains unit-specific cost data, which is market sensitive data, of each of the Companies' generators. Costs specific to each generator are commercially sensitive information. Disclosure of such information could put the Companies at a competitive disadvantage. Technical Appendices ECON-4 and ECON-13 contains proprietary forecast price data obtained from a third party. Technical Appendices ECON-6 and ECON-10 contain sensitive projected capital cost information related to future resources. Confidential projected capital cost information related to future resources is included in the Economic Analysis narrative and is redacted. Public disclosure could harm the Companies' ability to negotiate the best priced contracts moving forward and would put the Companies at a competitive disadvantage. Technical Appendices ECON-1 and ECON-2 in the 2026 ESP, as well as portions of Mr. Schlag's testimony supporting both the 2026 Joint IRP and the 2026 ESP, contain critical system information that bad actors could use to materially affect system reliability or economic dispatch.

Financial Plan. Certain figures in the Financial Plan of the narrative are confidential. Specifically, Figures FP-3 and FP-4 in the External Financing Requirements section of the Financial Plan and Figures FP-11 through FP-18 in the Credit Quality section of the Financial Plan should be treated as confidential. Sierra's and Nevada Power's debt is publicly traded, and the information identified in the figures above has not been previously disclosed to the public. Public

disclosure of this information could influence investor's view of the underlying credit quality of and debt pricing for the Companies.

Pursuant to NAC § 703.5274(1), one unredacted copy of the confidential information will be filed with the Commission's Secretary in a separate envelope stamped "confidential." Redacted versions of confidential information will be submitted for processing and posting onto the Commission's public website.

Pursuant to NAC § 703.5274(2), the Companies hereby request that the above-described information not be disclosed to the public. The Companies request that this information remain confidential for a period of five years after which the information may be destroyed or returned. Confidential treatment of the above-described information will not impair the ability of Staff or BCP to fully investigate the Companies' proposals.

VI.

REQUEST FOR DEVIATION

NAC § 704.0097 provides that the Commission may allow deviation from any provision of NAC Chapter 704 if:

(1) Good cause for the deviation appears;

(2) The person requesting the deviation provides a specific reference to each provision of the chapter from which the deviation is requested; and

(3) The Commission finds that the deviation is in the public interest and is not contrary to statute.

NAC § 704.9237(2)(f) states that the DRP must:

> Be developed by a utility using a forecast of net distribution system load and distributed resources. The forecast must be for a period of not less than 6 years, beginning with the year after the distributed resources plan is filed. The net distribution system load and distributed resources forecast will include system, substation and feeder level net load projections and energy and demand characteristics for all distributed resource types.

The Companies utilized net distribution feeder, substation transformer, and transmission forecasts to determine the constraints on the transmission and distribution systems. System-level

forecasts for certain distributed resource types are filed with the Commission in the Load Forecast and Technical Appendix LF-1 of this 2024 Joint IRP filing and the DRP does not alter those forecasts in any way. However, all distributed resource types as defined in NAC § 704.90583 are not yet represented in those forecasts. Also of note is that the Companies have disaggregated system-level private solar photovoltaic ("PV"), energy efficiency, and demand response forecasts down to the substation and feeder levels, as noted in the DRP. As a result, NV Energy requests a waiver of NAC § 704.9237(2)(f) as it continues to investigate alternative methods for developing substation and feeder level DER forecasts. The Companies' request to deviate is in the public interest because it does not impact the analysis or conclusion of the DRP and recognizes the DRP is an evolving process that requires some flexibility.

In addition, NAC § 704.9237(3)(b) states that the DRP must include a hosting capacity analysis of the distribution system evaluated "under normal conditions and planned and unplanned contingency conditions." The Companies completed the hosting capacity analysis ("HCA") for the DRP under normal system operating conditions, but not under planned or unplanned contingency conditions. The Companies discussed the issue of performing HCA under contingency conditions internally and initially concluded that any contingencies analyzed would need to be limited in scope to ensure that the number of cases analyzed do not create an untenable situation in terms of being able to complete the analysis. After investigation with stakeholders, the Companies identified no other jurisdictions or utilities that perform HCA under contingency conditions and no generally known or accepted industry technique for doing so. NV Energy will continue to monitor this issue to ascertain whether there are any techniques that can be applied to ensure that the analytical process would not be made impractical by the addition of contingency conditions. The Companies request a waiver from NAC § 704.9237(3)(b). The Companies' request to deviate is in the public interest because it does not impact the analysis or conclusion of the DRP and recognizes the DRP is an evolving process that requires flexibility.

VII.

PRAYER

NAC § 704.9516(1)(a) requires that an amendment to an Action Plan include a section that identifies the items for which the applicant is requesting specific approval. In compliance with this provision of the IRP regulations, Sierra and Nevada Power are making the following specific requests:

(1) Regarding the 2026 ESP, accept the Action Plan and issue an order:

a) Approving the three-year base load forecast presented in the 2026 ESP as being based on substantially accurate data, adequately demonstrated and defended and adequately documented and justified for the Action Plan period;

b) Approving the base three-year fuel and purchased power price forecasts presented in the 2026 ESP as being based on substantially accurate data, adequately demonstrated and defended and adequately documented and justified for the Action Plan period;

c) Approving the power procurement plan and finding, consistent with NAC § 704.9494(3), that the power procurement strategy is prudent;

d) Approving the physical gas procurement plan and finding, consistent with NAC § 704.9494(3), that the physical gas procurement strategy is prudent;

e) Removing the physical premium cap from the gas procurement plan's four season laddering strategy;

f) Approving the gas transportation plan, and finding, consistent with NAC § 704.9494(3), that the gas transportation strategy is prudent;

g) Approving the gas hedging plan, and finding, consistent with NAC § 704.9494(3), that the gas hedging plan is prudent;

h) Approving the risk management strategy, and finding, consistent with NAC § 704.9494(3), that the risk management strategy is prudent;

i) Approving the plan to close the open capacity position in the evening and overnight hours;

j) Finding that the Companies have satisfied the Commission directive requiring they continue conducting quarterly gas hedging workshops with Staff and BCP to review the implementation of the elements of the ESP and the approved hedging strategy;

k) Determining that the elements of the ESP are prudent and making the following findings:

i. That the ESP balances the objectives of minimizing the cost of supply, minimizing retail price volatility and maximizing the reliability of supply over the term of the plan; and

ii. That the ESP optimizes the value of the overall supply portfolio of the utility for the benefit of its bundled retail customers; and

iii. That the ESP does not contain any feature or mechanism that would impair the restoration of the creditworthiness of the utility or would lead to a deterioration of the creditworthiness of the utility;

(2) Regarding the 2026 Joint IRP, accept the Action Plan as set forth in this Application, and issue an order:

a) Approving, by September 18 2026, the Companies' Large Load Electric Service Agreement form contract;[7]

b) Finding the long-term base load forecast presented in the Load Forecast and Market Fundamentals volume of this filing is based on substantially accurate data, adequately demonstrated and defended and adequately documented and justified by, among other things, Large Load Electric Service Agreements;

[7] Determining the applicability of the Large Load Electric Service Agreement and the terms of such agreement within 135 days of the filing, and setting a deadline of customers and the Companies to accept any modifications to the agreement, will reduce uncertainty associated with the Companies' load forecast.

c) Finding the base long-term fuel and purchased power price forecasts presented in FPP-1 are based on substantially accurate data, adequately demonstrated and defended and adequately documented and justified;

d) Approving the Companies' recommended annual limits on the total amount of energy and capacity that eligible NRS Chapter 704B customers may be authorized to purchase from providers of new electric resources during the Action Plan period, and the Net Differential Energy Rate of $0.03711 per kWh, and the Variable O&M Credit (Charge) of $-0.00001 per kWh Nevada Power customers choosing to exit the system will pay for the Action Plan period;

e) Listing any current or ongoing legislatively mandated public policy programs for which eligible customers are required to pay costs, fees, charges or rates pursuant to subsection 8 of NRS 704B.310;

f) Accepting the Companies' Supply Plan Preferred Plan described and incorporated by reference in Exhibit A;

g) Approving the third amendment to the Libra Solar and Storage power purchase agreement providing for an additional 200 MW BESS capacity in contract years 21 through 25 to begin on January 1, 2048;

h) Approve Sierra and Nevada Power's respective Exemplar Clean Transition Tariffs pricing models;

i) Approving the expenditures of $13.041 million for early development funding to support preliminary design engineering and project development activities for a future combustion turbine resource in 2034;

j) Approving the Companies' proposed long-term avoided costs;

k) Approving the Companies' proposed qualified facility limits;

l) Approving the proposed DSM Plan with the following budgets for the Action Plan: (1) Nevada Power at $183.2 million and (2) Sierra at $55.1 million;

i. Nevada Power with budgets of $56.0 million, $60.8 million, and $66.4 million in 2027, 2028, and 2029, respectively; Sierra $15.7 million, $18.6 million, and $20.9 million in 2027, 2028, and 2029 respectively; and NV Energy combined $71.7 million, $79.4 million, and $87.2 million in 2027, 2028, and 2029, respectively;

m) Accepting the energy savings goal that proposes a combination of energy savings, in kWh and incremental demand reduction capacity, in kilowatts, during the Action Plan period. The proposed DSM Plan implements a demand savings target reduction of 171 MW of new dispatchable capacity and an energy savings target of 687,755,000 kWh savings over the three-year period;

n) Finding the Companies have complied with all relevant statutory, regulatory, and Commission directive requirements that are listed in Table DSM-2 of the DSM Plan;

o) Accepting the measurement and verification reports for program year 2025 provided in Technical Appendices DSM-9 through DSM-19;

p) Approving the DRP, which includes:

i. A finding that the DRP meets the requirements in NRS § 704.741(5) and NAC § 704.9237; and

ii. A request for $2.8 million for the Non-Wires Alternative Tariffed-On-Bill Pilot;

q) Approving the TEP, as part of the DRP, which includes:

i. A finding that the TEP meets the requirements in NRS §§ 704.741(5)(f) and 704.7867;

ii. Approval of the TEP with the following budgets: $4.3 million, $5.6 million, $7.1 million for the Companies in 2027, 2028, and 2029, respectively;

r) Approving a regulatory asset, with carrying charges, only for costs of the incentives and rebates paid to customers in the TEP incurred before and between future rate cases;

s) Approving the Companies' request to expand the requirements for commercial customers who install electric vehicle charging infrastructure to receive 100 percent of the Rule 9 allowance up front.

t) Approving the Companies' request to extend the date of the Nevada Power and Sierra Schedule No. ESB-V2G tariff to December 31, 2029.

(3) Approval of the Companies' request to deviate from NAC 704.9237(2)(f) and NAC 704.9237(3)(b);

(4) Find that the Companies have satisfied the directives items from Docket Nos. 21-06001, 22-03024, 22-09006, 23-08015, 24-05041, 25-02033, 25-08029 and 25-10028;

(5) Granting the Companies' request to maintain the confidentiality of the information as provided above; and

(6) Granting such additional other relief as the Commission may deem appropriate and necessary.

Dated this 6th day of May, 2026.

Respectfully submitted,

NEVADA POWER COMPANY
SIERRA PACIFIC POWER COMPANY

/s/ Roman Borisov

Roman Borisov
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APPLICATION EXHIBIT A

Exhibit A - Preferred Plan

Renewable and Storage Projects										
Project Name	**In-Service Date**	**Asset Type**	**Paired or Standalone**	**PPA Term**	**Nameplate Capacity (MW)**	**Storage Duration (Hours)**	**Utility**	**Location**	**PPA Cost**	**Units**
Commerce Station Energy Storage	5/29/2028	BESS	Standalone	20	100	4	Nevada Power	City of North Las Vegas, NV	$ 13,950.00	$/MW-month
White Pine Solar	12/31/2028	PV	Paired	25	350	N/A	Sierra	White Pine County, NV	$ 28.20	$/MWh
	12/31/2028	BESS		20	350	4		White Pine County, NV	$ 11,350.00	$/MW-month
Southern Bighorn 1 & 2	7/15/2028	PV	Paired	25	400	N/A	Nevada Power	Moapa River Indian Reservation	$ 47.23	$/MWh
	7/15/2028	BESS		20	400	4		Moapa River Indian Reservation	$ 15,500.00	$/MW-month
Trego Grid	6/30/2028	BESS	Standalone	20	200	4	Sierra	Reno, NV	$ 15,070.00	$/MW-month
NGP Blue Mountain Third Amendment	3/31/2027	Geo	Standalone	20	30	N/A	Sierra	Winnemucca, NV	$ 105.00	$/MWh
Winston Solar	10/1/2029	PV	Paired	25	400	N/A	Sierra	Lyon, County	$ 39.60	$/MWh
	10/1/2029	BESS		20	400	4		Lyon, County	$ 14,220.00	$/MW-month
Coyote Energy 1	12/31/2030	PV	Paired	25	600	N/A	Nevada Power	Lincoln, County	$ 42.99	$/MWh
	12/31/2030	BESS		20	600	4		Lincoln, County	$ 14,930.00	$/MW-month
Amargosa Energy Center	12/31/2030	PV	Paired	25	1200	N/A	Nevada Power	Nye County, NV	$ 68.47	$/MWh
	12/31/2030	BESS		20	1200	4		Nye County, NV	$ 12,340.00	$/MW-month
Boulder Solar III	6/1/2028	PV	Paired	25	128	N/A	Nevada Power	Boulder City, NV	$ 49.95	$/MWh
	6/1/2028	BESS[1]		25	128	4		Boulder City, NV	$ 15,460.00	$/MW-month
Dry Lake East Energy Storage II	12/31/2027	BESS	Standalone	20	150	4	Nevada Power	Las Vegas, NV	$ 13,930.00	$/MW-month
Fish Springs Ranch Energy Storage	12/31/2027	BESS	Paired-Existing	20	75	4	Sierra	Reno, NV	$ 16,550.00	$/MW-month
Jersey Valley Solar and Storage	11/29/2027	PV	Paired	25	67	N/A	Sierra	Battle Mountain, NV	$ 34.65	$/MWh
	11/29/2027	BESS		20	67	4		Battle Mountain, NV	$ 13,950.00	$/MW-month
Lux Solar Center	7/1/2028	PV	Paired	25	125	N/A	Sierra	Lyon County, NV	$ 55.95	$/MWh
	7/1/2028	BESS		20	125	4		Lyon County, NV	$ 18,090.00	$/MW-month

Sleepy Orange	5/31/2030	PV	Paired	25	500	N/A	Sierra	Yerington, NV	$ 30.90	$/MWh
	5/31/2030	BESS		20	500	4		Yerington, NV	$ 12,750.00	$/MW-month
Castor Storage	5/31/2029	BESS	Paired-Existing	20	310	8	Nevada Power	Las Vegas, NV	$ 18,950.00	$/MW-month

Customer Agreement Resources

Project Name	In-Service Date	Asset Type	Paired or Standalone	PPA Term	Nameplate Capacity (MW)	Storage Duration (Hours)	Utility	Project Location	PPA Cost	Units
Nevada Geothermal Portfolio	12/31/2030	Geo	Standalone	15	50	N/A	Sierra	Nevada	$ 107.00	$/MWh
North Nevada Geothermal Portfolio	12/31/2030	Geo	Standalone	20	100	N/A	Sierra	Nevada	$ 105.00	$/MWh
Iron Point Energy Center	12/31/2029	PV	Paired	20	250	N/A	Sierra	Humboldt County, NV	$ 36.00	$/MWh
	12/31/2029	BESS		20	250	4		Humboldt County, NV	$ 13,250.00	$/MW-month
Hot Pot Energy Center	10/31/2029	PV	Paired	20	350	N/A	Sierra	Humboldt County, NV	$ 36.00	$/MWh
	10/31/2029	BESS		20	350	4		Humboldt County, NV	$ 13,250.00	$/MW-month

Thermal Generation

Project Name	In-Service Date	Asset Type	Nameplate Capacity (MW)	Utility	Location	Project Cost (Budgeted $ Thousands)
Fort Churchill Additions 1 Project	6/1/2030	CT	401	Sierra	Fort Churchill	$ 2,006,583
Fort Churchill Additions 2 Project	6/1/2031	CT	401	Sierra	Fort Churchill	$ 2,048,267
Fort Churchill Additions 3 Project	6/1/2032	CT	421	Sierra	Fort Churchill	$ 978,229

Early Investment for Future Thermal Projects	
Topic	**Project Cost (Budgeted $ Thousands)**
Frame Combustion Turbines	$ 13,041

Transmission					
Project Name	**In-Service Date**	**Project Region**	**Location**	**Project Cost (Budgeted $ Thousands)**	**Description**
Sapphire phase 1	2028	Nevada Power	Apex	$ 25,340	New Sapphire 230/120 kV substaiton
Sapphire phase 2	2028	Nevada Power	Apex	$ 10,370	Add 230 kV HVD lines at Sapphire substation
Sapphire phase 3	2031	Nevada Power	Apex	$ 3,700	Connect Sapphire to Basin 230 kV line
Sapphire phase 4	2031	Nevada Power	Apex	$ 9,400	Add two (2) 230 kV HVD lines at Sapphire substation
Sapphire phase 5	2031	Nevada Power	Apex	$ 4,700	Connect Sapphire to Opal 230 kV line
Basin phase 1	2031	Nevada Power	Apex	$ 114,500	Basin 525/230 kV 1500 MVA transformer substation
Basin phase 2	2031	Nevada Power	Apex	$ 49,100	Basin second 525/230 kV 1500 MVA tranformer
Sand Dune phase 1	2029	Nevada Power	Apex adjacent	$ 38,500	Sand Dune 230 kV switching station with 230 kV HVD lines
Sand Dune phase 2	2029	Nevada Power	Apex adjacent	$ 32,000	Add 230 kV HVD lines at Sand Dune
Sand Dune phase 3	2031	Nevada Power	Apex adjacent	$ 4,700	Connect Sand Dune to Navigator 230 kV line
Opal	2031	Nevada Power	Apex	$ 61,800	New Opal 230 kV switching station with 230 kV HVD lines, 230 kV line to Sapphire and HGIII
Navigator	2031	Nevada Power	Apex	$ 36,500	New Navigator switching staiton with 230 kV HVD lines, 230 kV line to HGIII and Sand Dune

HGIII phase 1	2031	Nevada Power	Apex	$ 65,000	Connect HGIII to Opal, 230 kV line
HGIII phase 2	2031	Nevada Power	Apex	$ 65,000	Connect HGIII to Navigator 230 kV line terminal and add 525/230 kV 600 MVA transformer at HGIII
Chukar 345/120 kV transformers	2029	Sierra	TRIC	$ 83,900	Add two (2) Chukar 3455/120 kV transformers to serve existing and new 120 kV Rule 9 customers and DNR requests, connects to Lantern-Comstock 345 kV line
Viking	2030	Sierra	TRIC	$ 16,800	New Viking switching staiton to connect 345 kV HVD lines, connects to Lantern-Comstock 345 kV line
Vaquero	2031	Sierra	Fernley	$ 62,000	New Vaquero switching staiton to connect 345 kV HVD lines, add two (2) 345/120 kV 280 MVA transformers initially, connects to Lantern-Comstock 345 kV line, with 120 kV HVD lines
East Tracy	2031	Sierra	Tracy	$ 4,300	New HVD line terminals for Rule 9 customer at East Tracy
Petroglyph	2029	Sierra	TRIC	$ 28,800	New Petroglyph switching staiton, connects to West Tracy - Comstock Meadows 345 kV line, with new 345 kV HVD lines
Mallard	2032	Sierra	TRIC	$ 270,000	New Mallard 525/345 kV substation, connects to Mackay-Goose 525 kV line, with HVD lines
Goose	2032	Sierra	TRIC	$ 210,000	New Goose 525/345 kV substation, add two (2) 525/345 kV 1500 MVA transformer banks, with new 345 HVD lines, connected to Walker River-Goose-Mackay-Walker River 525 kV line which is a separate request
Mackay 525/345 kV transformer	2032	Sierra	TRIC	$ 170,000	Add three (3) 525/345 kV 600 MVA transformers to Mackay substation (Mackay 345 kV switching station was previously approved for HVD lines to Rule 9 customer (called customers phase 1)), connected to Walker River-Goose-Mackay-Walker River 525 kV line which is a separate request
Walker River-Goose-Mackay-Walker River 525 kV transmission lines	2032	Sierra	multiple	$ 405,000	New Walker River-Goos-Mackay-Walker River 525 kV lines to serve Rule 9 customers (transmission loop between TRIC and Walker River resources)
Spring Canyon	2028	Nevada Power	ElDorado Valley	$ 49,600	New Spring Canyon 230/12 kV substation with three (3) 37 MVA transformers, connects to Greenway-Mead 230 kV line
Scorpion	2030	Nevada Power	ElDorado Valley	$ 43,000	New Scorpion 230 kV switching station, connects to Arden-Mead 230 kV line, with HVD lines

Ft Sage 345/69 kV transformer	2028	Sierra	Alturas	$ 6,900	Add 345/69 kV transfomer, connect new transmission customer 69 kV line
Northwest 230 kV line terminal	2028	Nevada Power	Las Vegas	$-	100 % Customer funded 230 kV line terminal addition at Northwest 525/230/138 kV substation
NSO-Magnolia 230 kV line	2035	Nevada Power	ElDorado Valley	$ 67,990	New NSO-Magnolia 230 kV line addition, NERC TPL-001-5.1 reliability requirement standard violation corrective action plan (CAP)
Onyx 230/69 kV substation	2032	Nevada Power	Las Vegas	$ 50,000	New Onyx 230/69 kV substation, connects to Prospector-HGIII 230 kV line and Sheep Mountain 69 kV lines, with Speedway 69 kV line reconductor
Harry Allen reactors	2028	Nevada Power	Las Vegas	$ 10,870	Add reactors to Harry Allen bus and Harry Allen-Pecos line terminal
Coyote Creek 345 kV breakers	2031	Sierrra	Battle Mountain	$ 3,400	Add two (2) 345 kV breakers at Coyote Creek substation
Equestrian 230 kV breaker	2030	Nevada Power	Las Vegas	$ 6,940	Add a 230 kV breaker at Equestrian
Northwest 525/230 kV transformer #7	2030	Nevada Power	Las Vegas	$ 63,500	Add second 525/230 kV 1500 MVA transformer bank at Northwest substation
East Tracy-West Tracy 345 kV #2	2029	Sierra	Tracy	$ 15,980	Construct new second East Tracy-West Tracy 345 kV line #2
East Tracy-West Tracy 345 kV #1 reconductor	2029	Sierra	Tracy	$ 2,000	Reconductor existing East Tracy-West Tracy 345 kV line #1
East Tracy transformer #1 replacement with 400 MVA	2029	Sierra	Tracy	$ 20,000	Replace East Tracy 345/120 kV transformer #1 with 400 MVA
Replace switch #1101 and #1113	2029	Sierra	Reno	$ 200	Replace switch #1101 and #1113
Reconductor 120 kV line #103	2029	Sierra	Reno	$ 5,000	Reconductor 120 kV line #103
Frontier-Lander 230 kV line	2030	Sierra	Austin	$ 30,000	Construct new Fontier-Lander 230 kV line, 12 miles
Brooks 230/138 kV substation	2030	Nevada Power	Las Vegas	$ 76,000	New Brooks 230/138 kV substation with two (2) 400 MVA transformers, connect multiple existing adjacent 138 kV lines, cutover existing Pecos line from 138 kV to 230 kV

Brooks 138/12 kV transformer	2030	Nevada Power	Las Vegas	$ 25,000	Add 138/12 kV 33 MVA transformers, construct 12 kV get aways
Coyote Creek-Falcon 345 kV line	2030	Sierra	Valmy	$ 66,000	Construct new Coyote Creek - Falcon 345 kV line, reconfigure high and low side bus of Falcon substation
Olinghouse-Chukar 345 kV line	2030	Sierra	TRIC	$ 38,000	Construct new Olinghouse-Chukar 345 kV line
Robinson Summit third 345 kV PST and third 525/345 kV transformer	2030	Sierra	Ely	$ 55,000	Add third 345 kV PST and third 525/345 kV transformers at Robinson Summit substation
Esmeralda-Millers 230 kV line	2030	Sierra	Tonopah	$ 120,000	Construct new Esmeralda-Millers 230 kV line, reconstruct Millers to accommodate 230/120 kV 150 MVA transformer
Interconnection of Big Smokey lead line at Millers	2030	Sierra	Tonopah	$ 20,000	Reconstruct Millers to accommodate new generator lead line
Wassuk lead line for Mason	2030	Sierra	Yerington	$ 2,000	Add 120 kV line terminal at Wassuk substation
Candelaria 120 kV switching station	2030	Sierra	Yerington	$ 30,000	New Candeleria switching station with 120 kV lead lin position for Excelsior Geothermal project
#124 line clearance mitigations	2030	Sierra	Yerington	$ 500	Replace five (5) structures to increase line clearances
Walker River 120 kV line terminal	2030	Sierra	Yerington	$ 2,000	Construct 120 kV line terminal position for generator lead line
Walker River 345/230 kV transformer #3	2030	Sierra	Yerington	$ 25,000	Add third 345/120 kV transformer at Walker River
Walker River 230 kV line terminal	2030	Sierra	Yerington	$ 3,000	Construct 230 kV line terminal position for generator lead line
Walker River 345 kV line terminal	2030	Sierra	Yerington	$ 3,000	Construct 345 kV line terminal position for generator lead line
Miller 238 kV line terminal	2030	Nevada Power	Las Vegas	$ 600	Construct 138 kV line terminal position for generator lead line
Apex 525 kV line terminal	2030	Nevada Power	Las Vegas	$ 4,000	Construct 525 kV line terminal position for generator lead line
Gonder 230 kV line Terminal	2030	Sierra	Austin	$ 1,800	Construct 230 kV line terminal position for generator lead line
Gonder generator run back RAS	2030	Sierra	Austin	$ 1,100	Construct generator run back RAS, loss Gonder 345 kV connection to Robinson Summit

Mira Loma 120 kV line terminal	2030	Sierra	Reno	$ 4,200	Construct 120 kV line terminal position for generator lead line
Reconductor #129 120 kV line	2030	Sierra	Reno	$ 2,800	Reconductor #129 120 kV line five (5) miles, includes meter, breaker and relay upgrades
Uprate Iron Mountain-Lorenzi 138 kV line	2030	Nevada Power	Las Vegas	$ 300	Replace jumpers and switches
Resolve clearance on #3420 & change size of conductor Lantern-Comstock Meadows 345 kV line	2030	Sierra	Tracy	$ 5,800	Resolve clearance on #3420 & costs of changing size of conductor the future Lantern-Comstock Meadows 345 kV line
North Valmy 345 kV line terminal	2030	Sierra	Valmy	$ 2,600	Construct 345 kV line terminal position for generator lead line
Walker River-Grayskull 525 kV line	2030	Sierra	Yerington	$ 479,500	New Grayskull 525/345 kV substation, with two (2) 1500 MVA transformers, Grayskull-Walker River 525 kV line, connects to Lanter-Comstock Meadows 345 kV line, with two (2) 345 kV lines to Nighthawk, reconductor #109 six miles, replace five structures on the #124 line to increase clearances, reconductor Gosling - Goose 345 kV line
Walker River 345 kV line terminal	2030	Sierra	Yerington	$ 5,000	Construct 345 kV line terminal position for generator lead line
Valmy geothermal portfolio network upgrades	2030	Sierra	Winnemucca	$ 89,800	Rebuild #118 Eagle-NGPP, reconductor #3422 between East Tracy-Lantern, add PST at Oreanna
POI substation for Rose of Snowville	2030	Sierra	Valmy	$ 31,000	New 120 kV POI switching station for generator lead line
POI 120 kV line terminal	2030	Sierra	Valmy	$ 1,500	New 120 kV lead line terminal position for lead line
POI substation for Pumpernickel	2030	Sierra	Valmy	$ 22,800	New 120 kV POI switching station for generator lead line
Bald Mountain 120 kV line terminal	2030	Sierra	Valmy	$ 5,300	Construct 120 kV line terminal position for generator lead line

APPLICATION EXHIBIT B

ACTION PLAN

Nevada Power Company d/b/a NV Energy
Sierra Pacific Power Company d/b/a NV Energy

2026 Joint Integrated Resource Plan
Docket No. 26-05___

Action Plan Period January 1, 2027, to December 31, 2029

SECTION I
INTRODUCTION — NAC § 704.9489(1)(a)

Nevada Power Company ("Nevada Power") and Sierra Pacific Power Company ("Sierra" and, together with Nevada Power, the "Companies" or "NV Energy") are filing this joint integrated resource plan ("2026 Joint IRP"). The 2026 Joint IRP focuses on deliverability, reliability, flexibility, and affordability. The 2026 Joint IRP continues the Companies' commitment to meeting the energy needs and demands of their customers while also striving to meet the state's clean energy policies and goals. In determining their Preferred Plan and preparing the Action Plan, the Companies developed five long-term primary expansion plans for meeting customers' demands and tested them to determine how each performed across the range of potential load, fuel and purchased power prices, and federal climate policy scenarios. The Companies have selected as their Preferred Plan the Obsidian Plan, the centerpiece of which is:

- 4,370 MW of new paired solar PV PPA projects by 2031 as presented in the Renewables Section of the Supply Plan

- 5,405 MW of new paired and standalone BESS PPA projects by 2031 as presented in the Renewables Section of the Supply Plan

- 180 MW of new geothermal PPA projects by 2031 as presented in the Renewables Section of the Supply Plan

- The following new thermal resources as presented in the Generation Section of the Supply Plan, stated with nominal ratings:

    a) Fort Churchill Additions 1 Project – 401 MW new simple-cycle aeroderivative gas turbines at the Fort Churchill Generation Station with an in-service date of June 2030

b) Fort Churchill Additions 2 Project – 401 MW new simple-cycle aeroderivative gas turbines at the Fort Churchill Generation Station with an in-service date of June 2031
c) Fort Churchill Additions 3 Project – 421 MW new simple-cycle frame gas turbines at the Fort Churchill Generation Station with an in-service date of June 2032

- Transmission projects associated with the renewable, storage, and thermal projects and required to meet customers' needs as presented in the Transmission Plan.

The Demand Side Management ("DSM") programs proposed with this IRP provide grid value with new savings targets and utilization of evolving planning processes that seek to create foundational strategies to enable flexible load. Specifically, the proposed DSM Plan portfolio implements a demand savings target reduction of 171 incremental new dispatchable MW with an energy savings target of 687,755,000 kWh for the three-year period. The DSM Plan portfolio also allocates at least 10 percent of its total Action Plan budget on programs directed to low-income customers or those residing in historically underserved communities.

The 2026 Joint IRP also presents a Distributed Resources Plan ("DRP") that contains a Transportation Electrification Plan ("TEP"). The DRP meets the statutory and regulatory objectives and continues to evolve as the Companies, the Commission and stakeholders become more familiar with the technologies.

A complete list of all Action Plan items follows in Section II.

SECTION II
ACTION PLAN ITEMS — NAC § 704.9489(1)(b)

LOAD FORECAST – IRP & ESP

- Approval of the long-term base load forecast presented in the Load Forecast and Market Fundamentals volume of this filing as being the most accurate information upon which to base long-term planning decisions through the Action Plan period.
- Approval of the Companies' recommended annual limits on the total amount of energy and capacity that eligible NRS Chapter 704B customers may be authorized to purchase from providers of new electric resources during the Action Plan period, and the proposed Net Differential Energy Rate and the Variable O&M Credit (Charge) for the Action Plan period.
- Approval of the three-year base load forecast presented in the 2026 Energy Supply Plan ("2026 ESP") as being the most accurate information upon which to base near-term planning decisions through the Action Plan period.

FUEL AND PURCHASED POWER PRICE FORECASTS – IRP & ESP

- Approval of the base long-term fuel and purchased power forecasts presented in Technical Appendix FPP-1 as presenting the best and most accurate information upon which to base long-term planning decisions through the Action Plan period.
- Approval of the base three-year fuel and purchased power forecast presented in the 2026 ESP as presenting the best and most accurate information upon which to base near-term planning decisions through the Action Plan period.

GENERATION – IRP

- Approval of the construction by the Companies of the Fort Churchill Additions 1 Project – 401 MW new simple-cycle aeroderivative gas turbines at the Fort Churchill Generation Station with an in-service date of June 2030.
- Approval of the construction by the Companies of the Fort Churchill Additions 2 Project – 401 MW new simple-cycle aeroderivative gas turbines at the Fort Churchill Generation Station with an in-service date of June 2031.
- Approval of the construction by the Companies of the Fort Churchill Additions 3 Project – 421 MW new simple-cycle frame gas turbines at the Fort Churchill Generation Station with an in-service date of June 2032.

Approval of the Fort Churchill Additions 1, 2, and 3 Projects necessitates expansion of the gas transportation infrastructure by carriers and the Companies entering into transportation services agreements with gas pipeline companies.

RENEWABLES – IRP

- Approval of the Commerce Station Energy Storage – A 100 megawatt ("MW") standalone battery energy storage system ("BESS) in the south region with an in-service date in May 2028.
- Approval of the White Pine Solar – A 350 MW photovoltaic ("PV") system paired with 350 MW BESS in the north region with an in-service date in December 2028.
- Approval of the Southern Bighorn 1 and 2 – A 400 MW PV system paired with 400 MW BESS in the south region with an in-service date in July 2028.
- Approval of the Trego Grid – A 200 MW standalone BESS in the north region with an in-service date in June 2028.
- Approval of the NGP Blue Mountain Third Amendment – A 30 MW geothermal resource in the north region with an in-service date in March 2027.
- Approval of the Winston Solar – A 400 MW PV system paired with 400 MW BESS in the north region with an in-service date in October 2029.
- Approval of the Coyote Energy I – A 600 MW PV system paired with 600 MW BESS in the south region with an in-service date in December 2030.

- Approval of the Amargosa Energy Center – A 1,200 MW PV system paired with 1,200 MW BESS in the south region with an in-service date in December 2030.
- Approval of the Boulder Solar III – A 128 MW PV system paired with 128 MW BESS in the south region with an in-service date in June 2028.
- Approval of the Dry Lake East Energy Storage II – A 150 MW standalone BESS in the south region with an in-service date in December 2027.
- Approval of the Fish Springs Ranch Energy Storage – A 75 MW BESS paired with an existing resource in the north region with an in-service date in December 2027.
- Approval of the Jersey Valley Solar and Storage – A 67 MW PV system paired with 67 MW BESS in the north region with an in-service date in January 2028.
- Approval of the Lux Solar Center – A 125 MW PV system paired with 125 MW BESS in the north region with an in-service date in July 2028.
- Approval of the Sleepy Orange – A 500 MW PV system paired with 500 MW BESS in the north region with an in-service date in May 2030.
- Approval of the Castor Storage – A 310 MW eight-hour duration BESS paired with an existing resource in the south region with an in-service date in May 2029.
- Approval of the Nevada Geothermal Portfolio (OKGP) – A 50 MW geothermal project associated with a customer agreement in the north region with an in-service date in December 2030.
- Approval of the North Nevada Geothermal Portfolio – A 100 MW geothermal project associated with a customer agreement in the north region with an in-service date in December 2030.
- Approval of the Iron Point Energy Center – A 250 MW PV system paired with 250 MW BESS associated with an ESA in the north region with an in-service date in December 2029.
- Approval of the Hot Pot Energy Center – A 350 MW PV system paired with 350 MW BESS associated with an ESA in the north region with an in-service date in October 2029.
- Approval of the Libra Solar + Storage Project Third Amendment – a 200 MW 4-hour BESS in the north region with an in-service date in January 2048.

TRANSMISSION — IRP

- Approval of the construction of the Sapphire 230/120 kV substation with an in-service date of 2028 (Sapphire phase 1 project).
- Approval of the construction of the 230 kV HVD lines at Sapphire substation with an in-service date of 2028 (Sapphire phase 2 project).
- Approval of the construction of the Sapphire to Basin 230 kV line with an in-service date of 2031 (Sapphire phase 3 project).
- Approval of the construction of two 230 kV HVD lines at Sapphire substation with an in-service date of 2031 (Sapphire phase 4 project).

- Approval of the construction of the Sapphire to Opal 230 kV line with an in-service date of 2031 (Sapphire phase 5 project).
- Approval of the construction of the Basin 525/230 kV 1500 MVA transformer substation with an in-service date of 2031 (Basin phase 1 project).
- Approval of the construction of the Basin second 525/230 kV 1500 MVA transformer with an in-service date of 2031 (Basin phase 2 project).
- Approval of the construction of the Sand Dune 230 kV switching station with 230 kV HVD lines with an in-service date of 2029 (Sand Dune phase 1 project).
- Approval of the construction of 230 kV HVD lines at Sand Dune with an in-service date of 2029 (Sand Dune phase 2 project)..
- Approval of the construction of the Sand Dune to Navigator 230 kV line with an in-service date of 2031 (Sand Dune phase 3 project).
- Approval of the construction of the New Opal 230 kV switching station with 230 kV HVD lines and 230 kV line to Sapphire and HGIII with an in-service date of 2031 (Opal project).
- Approval of the construction of the New Navigator switching station with 230 kV HVD lines and 230 kV line to HGIII and Sand Dune with an in-service date of 2031 (Navigator project).
- Approval of the construction of the HGIII to Opal, 230 kV line with an in-service date of 2031 (HGIII phase 1 project).
- Approval of the construction of the Connect HGIII to Navigator 230 kV line terminal and add 525/230 kV 600 MVA transformer at HGIII with an in-service date of 2031 (HGIII phase 2 project).
- Approval of the construction of the Two Chukar 345/120 kV transformers with an in-service date of 2029 (Chukar 345/120 kV transformers project).
- Approval of the construction of the Viking switching station to connect 345 kV HVD lines, connects to Lantern-Comstock 345 kV line with an in-service date of 2030 (Viking project).
- Approval of the construction of the Vaquero switching station to connect 345 kV HVD lines and two (2) 345/120 kV 280 MVA transformers, connects to Lantern-Comstock 345 kV line, with 120 kV HVD lines with an in-service date of 2031 (Vaquero project).
- Approval of the construction of the HVD line terminals for a Rule 9 customer at East Tracy with an in-service date of 2031 (East Tracy project).
- Approval of the construction of the Petroglyph switching station, connects to West Tracy - Comstock Meadows 345 kV line, with new 345 kV HVD lines with an in-service date of 2029 (Petroglyph project).
- Approval of the construction of the Mallard 525/345 kV substation, connects to Mackay-Goose 525 kV line, with HVD lines with an in-service date of 2032 (Mallard project).
- Approval of the construction of the Goose 525/345 kV substation, with two (2) 525/345 kV 1500 MVA transformer banks, with new 345 HVD lines with an in-service date of 2032 (Goose project).

- Approval of the construction of the Three Mackay 525/345 kV 600 MVA transformers with an in-service date of 2032 (Mackay 525/345 kV transformer project).
- Approval of the construction of the Walker River-Goose-Mackay-Walker River 525 kV transmission lines with an in-service date of 2032 (Walker River-Goose-Mackay-Walker River 525 kV transmission lines project).
- Approval of the construction of the Spring Canyon 230/12 kV substation with three (3) 37 MVA transformers, connects to Greenway-Mead 230 kV line with an in-service date of 2028 (Spring Canyon project).
- Approval of the construction of the Scorpion 230 kV switching station, connects to Arden-Mead 230 kV line, with HVD lines with an in-service date of 2030 (Scorpion project).
- Approval of the construction of the Ft Sage 345/69 kV transformer with an in-service date of 2028 (Ft Sage 345/69 kV transformer project).
- Approval of the construction of the Northwest 230 kV line terminal with an in-service date of 2028 (Northwest 230 kV line terminal project).
- Approval of the construction of the NSO-Magnolia 230 kV line with an in-service date of 2035 (NSO-Magnolia 230 kV line project).
- Approval of the construction of the Onyx 230/69 kV substation with an in-service date of 2032 (Onyx 230/69 kV substation project).
- Approval of the construction of the Harry Allen reactors with an in-service date of 2028 (Harry Allen reactors project).
- Approval of the construction of the Coyote Creek 345 kV breakers with an in-service date of 2031 (Coyote Creek 345 kV breakers project).
- Approval of the construction of the Equestrian 230 kV breaker with an in-service date of 2030 (Equestrian 230 kV breaker project).
- Approval of the construction of the Northwest 525/230 kV transformer #7 with an in-service date of 2030 (Northwest 525/230 kV transformer #7 project).
- Approval of the construction of the East Tracy-West Tracy 345 kV #2 with an in-service date of 2029 (East Tracy-West Tracy 345 kV #2 project).
- Approval of the construction of the East Tracy-West Tracy 345 kV #1 reconductor with an in-service date of 2029 (East Tracy-West Tracy 345 kV #1 reconductor project).
- Approval of the construction of the East Tracy 345/120 kV replacement transformer #1 with 400 MVA with an in-service date of 2029 (East Tracy transformer #1 replacement with 400 MVA project).
- Approval of the construction of the Reno Substation replacement switch #1101 and #1113 with an in-service date of 2029 (Replace switch #1101 and #1113 project).
- Approval of the construction of the Reconductor 120 kV line #103 with an in-service date of 2029 (Reconductor 120 kV line #103 project).
- Approval of the construction of the Frontier-Lander 230 kV line with an in-service date of 2030 (Frontier-Lander 230 kV line project).

- Approval of the construction of the Brooks 230/138 kV substation with two (2) 400 MVA transformers with an in-service date of 2030 (Brooks 230/138 kV substation project).
- Approval of the construction of the Brooks 138/12 kV 33 MVA transformers, construct 12 kV get aways with an in-service date of 2030 (Brooks 138/12 kV transformer project).
- Approval of the construction of the Coyote Creek-Falcon 345 kV line with an in-service date of 2030 (Coyote Creek-Falcon 345 kV line project).
- Approval of the construction of the Olinghouse-Chukar 345 kV line with an in-service date of 2030 (Olinghouse-Chukar 345 kV line project).
- Approval of the construction of the third 345 kV PST and third 525/345 kV transformers at Robinson Summit substation with an in-service date of 2030 (Robinson Summit third 345 kV PST and third 525/345 kV transformer project).
- Approval of the construction of the Esmeralda-Millers 230 kV line with an in-service date of 2030 (Esmeralda-Millers 230 kV line project).
- Approval of the construction of the Interconnection of Big Smokey lead line at Millers with an in-service date of 2030 (Interconnection of Big Smokey lead line at Millers project).
- Approval of the construction of the 120 kV line terminal at Wassuk substation for lead line for Mason with an in-service date of 2030 (Wassuk lead line for Mason project).
- Approval of the construction of the Candeleria switching station with 120 kV lead line position for Excelsior Geothermal project with an in-service date of 2030 (Candelaria 120 kV switching station project).
- Approval of the construction of the #124 line clearance mitigations with an in-service date of 2030 (#124 line clearance mitigations project).
- Approval of the construction of the Walker River 120 kV line terminal with an in-service date of 2030 (Walker River 120 kV line terminal project).
- Approval of the construction of the Walker River 345/230 kV transformer #3 with an in-service date of 2030 (Walker River 345/230 kV transformer #3 project).
- Approval of the construction of the Walker River 230 kV line terminal with an in-service date of 2030 (Walker River 230 kV line terminal project).
- Approval of the construction of the Walker River 345 kV line terminal with an in-service date of 2030 (Walker River 345 kV line terminal project).
- Approval of the construction of the Miller 238 kV line terminal with an in-service date of 2030 (Miller 238 kV line terminal project).
- Approval of the construction of the Apex 525 kV line terminal with an in-service date of 2030 (Apex 525 kV line terminal project).
- Approval of the construction of the Gonder 230 kV line terminal with an in-service date of 2030 (Gonder 230 kV line terminal project).

- Approval of the construction of the Gonder generator run back remedial action scheme ("RAS") for loss of Gonder 345 kV connection to Robinson Summit with an in-service date of 2030 (Gonder generator run back RAS project).
- Approval of the construction of the Mira Loma 120 kV line terminal with an in-service date of 2030 (Mira Loma 120 kV line terminal project).
- Approval of the construction of the Reconductor #129 120 kV line with an in-service date of 2030 (Reconductor #129 120 kV line project).
- Approval of the construction of the Uprate Iron Mountain-Lorenzi 138 kV line with an in-service date of 2030 (Uprate Iron Mountain-Lorenzi 138 kV line project).
- Approval of the construction to resolve clearance on #3420 and change size of conductor on the Lantern-Comstock Meadows 345 kV line with an in-service date of 2030 (Resolve clearance on #3420 and change size of conductor Lantern-Comstock Meadows 345 kV line project).
- Approval of the construction of the North Valmy 345 kV line terminal with an in-service date of 2030 (North Valmy 345 kV line terminal project).
- Approval of the construction of the Grayskull 525/345 kV substation, with two (2) 1500 MVA transformers and the Grayskull-Walker River 525 kV line with an in-service date of 2030 (Walker River-Grayskull 525 kV line project).
- Approval of the construction of the Walker River 345 kV line terminal with an in-service date of 2030 (Walker River 345 kV line terminal project).
- Approval of the construction of the Valmy geothermal portfolio network upgrades, rebuilding #118 Eagle-NGPP, reconductoring #3422 between East Tracy-Lantern, and adding PST at Oreanna with an in-service date of 2030 (Valmy geothermal portfolio network upgrades project).
- Approval of the construction of the POI substation for Rose of Snowville with an in-service date of 2030 (POI substation for Rose of Snowville project).
- Approval of the construction of the POI 120 kV line terminal with an in-service date of 2030 (POI 120 kV line terminal project).
- Approval of the construction of the POI substation for Pumpernickel with an in-service date of 2030 (POI substation for Pumpernickel project).
- Approval of the construction of the Bald Mountain 120 kV line terminal with an in-service date of 2030 (Bald Mountain 120 kV line terminal project).

DEMAND SIDE PROGRAMS — IRP

- Approval of the budgets for the proposed portfolio for the 2027-2029 Action Plan period: Nevada Power with budgets of $56.0 million, $60.8 million, and $66.4 million in 2027, 2028, and 2029, respectively; Sierra with budgets of $15.7 million, $18.6 million, and $20.9 million in 2027, 2028, and 2029 respectively; and NV Energy with combined

budgets of $71.7 million, $79.4 million, and $87.2 million in 2027, 2028, and 2029, respectively.

- Accept the measurement and verification reports for program year 2025 provided in Technical Appendices DSM-9 through DSM-19.
- Review and acceptance of an energy savings goal that proposes a combination of energy savings, expressed in kWh, and incremental demand reduction capacity, in kilowatts, during the Action Plan period. The proposed DSM Portfolio implements a demand savings target reduction of 171 incremental new dispatchable MW with a kWh savings target of 687,755,000 for the three-year period.

DISTRIBUTED RESOURCES PLAN — IRP

- Approval of the request for $2.84 million for the years 2027 through 2029 to pursue a Non-Wires Alternative Tariffed-On-Bill Pilot Program that is related to two forecasted constraints on its distribution system that NV Energy has recommended pursuing non-wires solutions to alleviate.
- Approval of the TEP that covers transportation electrification programs and investments for the years 2027 to 2029, with a total budget of $17.0 million.

2026 JOINT ENERGY SUPPLY PLAN — ESP

Power Procurement Plan. Based on the 2026 ESP forecasts, Nevada Power has open power positions in 2027 and 2028. The Companies propose to close the respective anticipated 2027 and 2028 open positions with firm products.

The Companies propose to continue the four-season laddering strategy to fill the remaining open positions in 2027 and 2028 and begin filling subsequent years' open positions. This plan is consistent with the laddering strategy for closing the open power position, which was most recently approved in Docket No. 25-08027. The power procurement laddering strategy will be executed in coordination with the physical gas procurement plan in 2027-2029 with the procurement of physical power and/or capacity acquired through a competitive bidding process. The Companies propose to continue efforts to transact directly with counterparties as a supplement to the current request for proposal process to seek non-standard firm energy products in an effort to address short-term supply challenges during the evening and overnight net demand peak period when solar resources are largely unavailable, given that battery storage is energy-limited. Additional information regarding the closing of the open positions in the power procurement plan is provided in Section 4.C of the ESP narrative.

Additionally, the Companies are committed to continuously monitor the portfolio and seek to make short-term and forward purchases when economic or needed to serve native load. Any proposed purchases of greater than three years in duration will be submitted to the Commission for approval in accordance with NAC § § 704.9113 and 704.9512.

The Companies are obligated to monitor their renewable portfolios on a continuous basis to ensure that sufficient renewable energy and PCs are maintained to comply with RPS and undertake cost-effective opportunities to fill new needs that may arise.

Fuel Procurement Plan. The fuel procurement plan is made up of three components: (1) a physical gas procurement plan, (2) a gas transportation plan, and (3) a gas hedging plan.

1) ***Physical Gas Procurement Plan.*** The Companies plan to implement the four-season laddering strategy originally approved by the Commission in Docket No. 09-09001 to procure physical gas. Previously, the procurement of physical gas was subject to a cap on the premium, which could be exceeded with prior approval from the Companies' Risk Committee. Consistent with the Stipulation in Docket No. 09-09001, if the Companies exceeded the premium cap, and the procured gas that exceeded the premium cap was not the least cost supply alternative, they would provide written notice to the Regulatory Operations Staff of the Commission ("Staff") and the Bureau of Consumer Protection ("BCP"). The physical premium cap was originally approved in 2009 and has not been adjusted for inflation. The Companies propose that the physical premium cap be removed.

2) ***Gas Transportation Plan.*** Nevada Power is connected directly to the interstate pipeline systems with several major gas producing regions including the Permian, San Juan, and the Rocky Mountain supply basins, as well as California gas supply. The largest producing region with the best connectivity into and through Nevada Power's control area is the Rocky Mountain supply basin. The Kern River pipeline connects the Rocky Mountain basin through Nevada into southern California with a design capacity of 2,166,575 million British thermal units ("MMBtu") per day. This pipeline deliverability capacity is large in comparison to Nevada Power's daily needs.

   Sierra takes delivery of natural gas from three interstate pipelines, Great Basin, Tuscarora, and Ruby Pipeline (Ruby). Great Basin receives gas supplies upstream and downstream from Northwest Pipeline, which sources its gas supplies from British Columbia, the San Juan Basin, and the Rocky Mountain region of Wyoming, Utah and Colorado. Tuscarora receives gas supplies from GTN, near Malin, Oregon, which is connected to the gas producing regions of Western Canada Sedimentary Basin Alberta through TC Energy's pipeline system. The gas supply source for Malin gas is predominantly in the Province of Alberta, Canada. TC Energy's Alberta pipeline system carries the gas commodity from the

AECO producing areas of Canada to the Alberta/British Columbia border. There, TC Energy's Alberta system interconnects with TC Energy's Foothills system, which transports gas to TC Energy's GTN system at the U.S./Canadian border near Kingsgate, Idaho. GTN interconnects with Tuscarora near Malin. Sierra also takes natural gas delivery from Ruby to supply Valmy. The gas supply source for Ruby is the Rocky Mountain.

The Companies are seeking approval to maintain their current natural gas transportation portfolios. For Nevada Power, this requires authority to maintain seven existing gas transportation contracts with Kern River Pipeline and three with Southwest Gas Corporation. At Sierra, this requires authority to maintain a total of 37 existing gas transportation and storage contracts with TC Energy – Alberta, TC Energy – Foothills, TC Energy Gas Transmission Northwest ("GTN"), TC Energy Tuscarora Gas Transmission Company ("Tuscarora"), Great Basin Gas Transmission Company ("Great Basin"), Northwest Pipeline LLC ("NWPL"), Ruby Pipeline, and Pinyon Pipeline pursuant to rights of first refusal and evergreen rights. The total projected annual costs for firm transportation contracts at both Nevada Power and Sierra are approximately $128.1 million.
The contracts are listed in Figures ESP-43 and ESP-44. Additional information regarding the Companies' gas transportation plan is provided in Section 5.B of the ESP narrative.

The Companies seek acceptance and approval of the need for additional firm interstate natural gas transportation capacity to support the Companies' Preferred Plan.[1]

3) ***Gas Hedging Plan.*** The Companies are proposing to continue the current approved hedging strategy and acquire no natural gas hedges covering the ESP Action Plan period. The Companies will continue to monitor the natural gas market fundamentals and recommend changes to the hedging strategy in a future ESP update or ESP amendment as necessary. The Companies will also continue bi-annual workshops with Staff and BCP to review implementation for the approved no-hedge gas hedging strategy.

Risk Management Strategy. The Companies' risk management strategy includes:

- Detailed corporate governance and risk control policies and procedures,
- Compliance with approved supply plans,
- Reduced reliance on volatile wholesale markets,
- Use of competitive procurement processes,
- Gas hedging strategies, and
- Market monitoring.

For more detail on risk management strategy, see Section 6 of the ESP narrative.

[1] The ESP Gas Transportation Plan discusses a gas pipeline expansion for the three Fort Churchill Additions projects requested under the Preferred Plan.

Determination of Prudence. Pursuant to NAC §§ 704.9508(2) and 704.9494, the Commission can determine that the elements of an ESP are prudent if:

- The ESP balances the objectives of minimizing the cost of supply, minimizing retail price volatility, and maximizing the reliability of supply over the term of the plan.
- The ESP optimizes the value of the overall supply portfolio of the utility for the benefit of its bundled retail customers.
- The ESP does not contain any feature or mechanism that the Commission finds would impair the restoration of the creditworthiness of the utility or would lead to a deterioration of the creditworthiness of the utility.

This 2026 ESP satisfies the prudency requirements of NAC §§ 704.9508(2) and 704.9494 for each of the three elements, as discussed in detail in Section 7 of the ESP narrative. The Companies acknowledge that the prudence of their implementation of an approved 2026 ESP will be determined in a future deferred energy proceeding. In addition, pursuant to NAC § 704.9504, the Companies may deviate from an approved ESP or ESP update "to the extent necessary to respond adequately to any significant change in circumstances not contemplated by the energy supply plan."

Continue to Conduct Gas Hedging Workshops. The Companies continue to conduct workshops bi-annually with the Staff and BCP and provide updates in the form of presentations for the remaining two quarters. Several topics are addressed, including energy market fundamentals, a monitoring matrix for potential gas hedging strategies, forward sales activity, gas procurement, and the most recent management decision on hedging.

SECTION III
FORECASTING DATA -— NAC § 704.9489(1)(c)

The Companies will continue to pursue improvements to its forecast models including economic and price projections for all customer classes, end-use saturations, and efficiency trends.

SECTION IV
TIMETABLE AND BUDGET FOR PROGRAMS — NAC § 704.9489(1)(d), (3), (4)

The Action Plan timetable and budget by year is presented below. Further details regarding the project schedules and milestones for capital projects are set forth in the Supply Plan. Additional information regarding the Demand Side Management Plan budget can be found in the Demand Side volume. Further details regarding the Distributed Resources Plan budget can be found in the Distributed Resources Plan volume.

ACTION PLAN BUDGET

Action Plan Items	(Budgeted Dollars in Millions excluding AFUDC) 2027	2028	2029	3-Year Total
Energy Efficiency and Conservation				
Education Services	$ 2.5	$ 2.6	$ 2.8	$ 7.9
Nevada Power	$ 1.5	$ 1.6	$ 1.7	$ 4.8
Sierra Pacific	$ 1.0	$ 1.0	$ 1.1	$ 3.1
Residential Services	$ 13.2	$ 14.4	$ 15.9	$ 43.5
Nevada Power	$ 10.0	$ 11.0	$ 12.1	$ 33.1
Sierra Pacific	$ 3.2	$ 3.5	$ 3.8	$ 10.4
Non-Residential Services	$ 20.0	$ 22.2	$ 24.6	$ 66.9
Nevada Power	$ 14.8	$ 16.5	$ 18.3	$ 49.6
Sierra Pacific	$ 5.2	$ 5.7	$ 6.3	$ 17.2
Demand Response Services	$ 36.0	$ 40.1	$ 43.9	$ 120.0
Nevada Power	$ 29.7	$ 31.8	$ 34.2	$ 95.7
Sierra Pacific	$ 6.3	$ 8.3	$ 9.7	$ 24.3
Total Energy Efficiency and Conservation	$ 71.7	$ 79.4	$ 87.2	$ 238.3
Distributed Resources Plan				
Transportation Electrification Plan	$ 4.3	$ 5.6	$ 7.1	$ 16.9
Nevada Power	$ 3.0	$ 3.9	$ 5.0	$ 11.9
Sierra Pacific	$ 1.3	$ 1.7	$ 2.1	$ 5.1
Non Wires Alternative Tariffed-On-Bill Pilot Program	$ 0.9	$ 1.4	$ 0.6	$ 2.8
Nevada Power	$ 0.9	$ 1.4	$ 0.6	$ 2.8
Sierra Pacific	$ -	$ -	$ -	$ -
Total Distributed Resources	$ 5.1	$ 7.0	$ 7.7	$ 19.8
Plan for Supply				
Generation	$ 444.6	$ 691.4	$ 1,215.4	$ 2,351.4
Nevada Power	$ -	$ -	$ -	$ -
Sierra Pacific	$ 444.6	$ 691.4	$ 1,215.4	$ 2,351.4
Transmission Infrastructure	$ 211.7	$ 248.1	$ 585.5	$ 1,045.3
Nevada Power	$ 84.8	$ 76.4	$ 227.4	$ 391.7
Sierra Pacific	$ 125.8	$ 170.7	$ 357.1	$ 653.6
Total Plan for Supply	$ 644.3	$ 950.0	$ 1,801.8	$ 3,396.0
Totals	$ 721.1	$ 1,036.3	$ 1,896.7	$ 3,654.1

SECTION V
CHANGES IN METHODOLOGY — NAC § 704.9489(1)(e)
While some modeling techniques have been improved, especially in the areas of load forecasting and DSM planning, and updates are described in the economic analysis narrative, the Companies are not proposing any changes in basic planning methodologies.

SECTION VI
ACQUISITION OF NEW MODELING INSTRUMENTS — NAC § 704.9489(l)(f)
In Section 7.C. of the Distributed Resources Plan, the Companies discuss the DER Analytics Toolset and Potential Study that introduces the new modeling instruments, DSMore and LoadSEER$_{TM}$, their purpose and utilization within this IRP, and planned future use. While some other modeling techniques have been improved, the Companies are not proposing any other new modeling instruments.

SECTION VII
DEMAND SIDE PLAN PROGRAMS — NAC § 704.9489(1)(g)
A description of continued planning efforts and the plan to carry out and continue selected conservation and DSM measures is set forth in Section II. The Companies have not attempted to claim or calculate imputed debt associated with energy efficiency contracts in the Preferred Plan.

SECTION VIII
ACQUISITION OF RESOURCES — NAC § 704.9489(1)(h)
During the Action Plan period, the Companies plan to enter into 23 PPAs for renewable and storage resources totaling 4,550 MW of new renewable projects and 5,405 MW of new paired and standalone BESS projects and construct three natural gas combustion turbine projects totaling 1,223 MW at the Fort Churchill Generating Station.

SECTION IX
ASSET RETIREMENT PLAN — NAC 704.9489(6)
Nevada Power and Sierra hold ownership interests in two generation assets that meet the criteria of NAC § 704.9489(5), specifically:

- Mohave Generating Station – Nevada Power: The Mohave site is in Laughlin, Nevada, and is the previous site of a 1,500 MW coal-fired generating plant. Nevada Power is a 14 percent owner in the project. Southern California Edison (majority owner and operator) and Los Angeles Department of Water and Power (who has assumed Salt River Project's original ownership share) are the other project owners. Mohave ceased operations January 1, 2006, and has been decommissioned.[2] In 2015, the co-owners agreed to proceed with

[2] As defined in NRS § 704.7332.

selling most of the property through a public sale process. The project has been marketed for sale since 2016. If, and when, a transaction occurs and it is material, the net gains would be included in a future general rate case for the benefit of Nevada Power's customers. The owners will continue to retain approximately 500 acres of land and post-closure care associated with the closed onsite landfill.

- Navajo Generating Station – Nevada Power: The Navajo Generating Station is located near Page, Arizona, and is a previous site of a 2,250 MW total net capacity coal-fired facility. Nevada Power is a 11.3 percent participant in the Navajo Generating Station. Arizona Public Service, Los Angeles Department of Water and Power, Salt River Project, and Tucson Electric Power are other participants in the plant, with Salt River Project also holding an interest in Navajo on behalf of the United States. The coal-fired facility ceased operation in November 2019. Site decommissioning, demolition, pond, and landfill closure activities were completed in 2023. Site monitoring, post-closure care and groundwater monitoring activities, and extension lease payments will continue through the site remediation period ending December 22, 2054.

APPLICATION EXHIBIT C

The following is a list of the Integrated Resource Planning regulations and the document location where each regulation has been addressed.

Code	Sub-Section	Description	2026 IRP Location
NAC 704.9215		**NAC 704.9215 Summary of resource plan**. (NRS 703.025, 704.210, 704.741)	
NAC 704.9215	1	A utility's resource plan must be accompanied by a summary that is suitable for distribution to the pubic. The summary must contain easily interpretable tables, graphs and maps and must not contain any complex explanations or highly technical language. The summary must be approximately 40 pages in length.	Summary Volume
NAC 704.9215	2	The summary must include:	
NAC 704.9215	2(a)	A brief introduction, addressed to the public, describing the utility, its facilities and the purpose of the resource plan, and the relationship between the resource plan and the strategic plan of the utility for the duration of the period covered by the resource plan.	Summary Volume, Sections I and II (Executive Summary and Introduction to Companies)
NAC 704.9215	2(b)	The forecast of low growth, the forecast of high growth and the forecast of base growth of the peak demand for electric energy and of the annual electrical consumption, for the next 20 years, commencing with the year following the year in which the resource plan is filed, both with and without the impacts of programs for energy efficiency and conservation and an explanation of the economic and demographic assumptions associated with each forecast.	Summary Volume, Section III (Forecast of Growth)
NAC 704.9215	2(c)	A summary of the demand side plan listing each program and its effectiveness in terms of costs and showing the 20-year forecast of the reduction of demand and the contribution of each program to this forecast.	Summary Volume - Section IV (Demand Side Plan Summary)
NAC 704.9215	2(d)	A summary of the preferred plan:	
NAC 704.9215	2(d)(1)	Showing each planned addition to the system for the next 20 years, commencing with the year following the year in which the resource plan is filed, with its anticipated capacity, cost and date of beginning service; and	Summary Volume, Section V (Summary of the Preferred Plan)
NAC 704.9215	2(d)2	Explaining how the preferred plan reduces customer exposure to the price volatility of fossil fuels and the potential social cost of carbon as calculated pursuant to subsection 5 of NAC 704.937.	Summary Volume - Section V (Summary of the Preferred Plan)
NAC 704.9215	2(e)	A summary of renewable energy showing how the utility intends to comply with the portfolio standard and listing each existing contract for renewable energy and each existing contract for the purchase of renewable energy credits and the term and anticipated cost of each such contract.	Renewables Narrative Sections G & H, Technical Appendix REN-2
NAC 704.9215	2(f)	A summary of:	
NAC 704.9215	2(f)(1)	The energy supply plan for the next 3 years setting out the anticipated cost, price volatility and reliability risks of the energy supply plan;	Energy Supply Plan Volume
NAC 704.9215	2(f)(2)	The risk management strategy;	Energy Supply Plan Volume, Section 6 (Risk Management Strategy)
NAC 704.9215	2(f)(3)	The fuel procurement plan; and	Energy Supply Plan Volume, Section 5 (Gas Procurement Plan)
NAC 704.9215	2(f)(4)	The purchased power procurement plan.	Energy Supply Plan Volume, Section 4 (Power Procurement Plan)
NAC 704.9215	2(g)	A summary of the distributed resources plan for the next 3 years covered by the action plan of the utility setting out:	Summary Volume - Section VIII (Distributed Resources Plan)
NAC 704.9215	2(g)(1)	The locational benefits and costs of the distributed resources, which may include benefits and costs to the electric grid.	Summary Volume - Section VIII (Distributed Resources Plan)
NAC 704.9215	2(g)(2)	Identified barriers and recommendations to accept or overcome these barriers to the deployment of cost-effective distributed resources and proposed mechanisms pursuant to which cost-effective distributed resources will be deployed, in coordination with existing programs that have been approved by the Commission.	Summary Volume - Section VIII (Distributed Resources Plan)
NAC 704.9215	2(g)(3)	Incremental utility investment or expenditures to be funded for the next 3 years to identify, evaluate and integrate cost-effective distributed resources into the distribution planning process.	Summary Volume - Section VIII (Distributed Resources Plan)
NAC 704.9215	2(g)(4)	A summary of the methods and outcomes of the hosting capacity analysis described by paragraph (b) of subsection 3 of NAC 704.9237.	Summary Volume - Section VIII (Distributed Resources Plan)
NAC 704.9215	2(g)(5)	A summary of forecasted loads and the forecasted growth of distributed energy resources for the electric grid over a 6-year period, at minimum, beginning with the year after the distributed resources plan is filed.	Summary Volume - Section VIII (Distributed Resources Plan)
NAC 704.9215	2(h)	A summary of the activities, acquisitions and costs included in the action plan of the utility.	Summary Volume, Section IX (A Summary of the Activities, Acquisitions, and Costs Included in the Action Plan of the Utility); Exhibit A (Action Plan Budget)
NAC 704.9215	2(i)	An integrated evaluation of the components of the resource plan which relates the preferred plan to the objectives of the strategic plan of the utility, and any other information useful in presenting to the public a comprehensive summary of the utility and its expected development.	Summary Volume
NAC 704.922		**NAC 704.922 Technical appendix to resource plan.** (NRS 703.025, 704.210, 704.741)	
NAC 704.922	1	A utility's resource plan must include a technical appendix. The appendix must contain sufficient detail to enable a technically proficient reader to understand how the resource plan and its forecasts were prepared and to evaluate the validity of the assumptions and the accuracy of the data used, including, without limitation, a list of the major assumptions used, a description of the forecasting methods employed and a description of the software utilized.	The 2026 IRP includes a technical appendix with sufficient detail to enable a technically proficient individual to understand how the resource plan and its forecasts were prepared and to evaluate the validity of the assumptions and accuracy of the data used.

NAC 704.922	2	The appendix must contain sufficient information to enable a technically proficient reader to reproduce the results from the computations shown, including, without limitation:	
NAC 704.922	2(a)	Citations to the sources of all significant information used in the resource plan.	All Technical Appendix Items, including but not limited to MF; FPP; LF; DSM; DRP; TEP; GEN; REN; TRAN; ECON; FIN
NAC 704.922	2(b)	Descriptions of all data inputs to the models used in developing the resource plan accompanied by an explanation of any modifications made to the data.	All Technical Appendix Items, including but not limited to MF; FPP; LF; DSM; DRP; TEP; GEN; REN; TRAN; ECON; FIN
NAC 704.922	2(c)	Characteristics of the generation operation of the utility, including the:	
NAC 704.922	2(c)(1)	Rates of forced outages;	Technical Appendix Item GEN-1 (Unit Characteristics Table)
NAC 704.922	2(c)(2)	Rates of scheduled outages;	Technical Appendix Item GEN-1 (Unit Characteristics Table)
NAC 704.922	2(c)(3)	Heat rates;	Technical Appendix Item GEN-1 (Unit Characteristics Table)
NAC 704.922	2(c)(4)	Rates at which pollutants are emitted;	Technical Appendix Item GEN-2 (Emissions Rates - Generation)
NAC 704.922	2(c)(5)	Controls required to mitigate pollution at planned facilities and estimates of the costs of those controls; and	Supply Plan Narrative, Section 5.3 (Status of Previously Approved Projects) and Section 5.4 (New Generation Projects)
NAC 704.922	2(c)(6)	Projections for the availability and price of fuels.	Technical Appendix Item FPP-1
NAC 704.922	2(d)	Output characteristics or profiles of renewable resources for each type of renewable resource that is being considered as a resource option or that is currently owned or under contract with the utility.	Technical Appendix Items Table REN-1 and Figure REN -8
NAC 704.922	2(e)	A summary of the impact of intermittent energy resources on the electric system of the utility.	Technical Appendix ECON-5 (Loads and Resources Table)
NAC 704.922	2(f)	The final results derived from the models.	Technical Appendices: ECON-3 Average Generation Costs for Preferred Plan; ECON-4 Production Cost Summaries; ECON-6 Capital Projects; ECON-7 Present Worth of Revenue Requirement Summaries; ECON-11 Average Marginal Energy Costs for Preferred Plan; ECON-13 Additional Studies; LF-1 2026 IRP Load Forecast; REN-1 (Proposed Projects Supply Tables), REN-2 (Renewable Portfolio Standard Buildout Scenarios); FPP-1 Fuel and Purchased Power Price Forecasts
NAC 704.922	2(g)	Documentation of all models and formulas used consistent with any proprietary requirements imposed upon the utility by outside suppliers of the models.	Technical Appendices: ECON-2 Description of Modeling Software; ECON-9 NERA Report; LF-1 2026 IRP Load Forecast
NAC 704.922	2(h)	Such other information as is necessary to enable an informed reader to examine the resource plan and verify the adequacy and accuracy of the data, assumptions and methods used in developing the resource plan.	The Technical Appendix includes additional information that the Company believes will be useful in examining the resource plan.
NAC 704.9225		**NAC 704.9225 Forecasts of peak demand and annual energy consumption**: **General requirements.** (NRS 703.025, 704.210, 704.741)	
NAC 704.9225	1	A utility's resource plan must contain a series of forecasts of the peak demand and annual energy consumption that represent the range of future load which its system may be required to serve. The range of future peak demand and energy consumption must be based upon and consistent with the upper and lower limits of expected economic and demographic change in the utility's service territory in the next 20 years, commencing with the year following the year in which the resource plan is filed, as follows:	
NAC 704.9225	1(a)	A forecast of high growth;	LF-1 2026 IRP Load Forecast; LF Technical Appendix Section IV
NAC 704.9225	1(b)	A forecast of base growth; and	LF-1 2026 IRP Load Forecast; LF Technical Appendix Section IV
NAC 704.9225	1(c)	A forecast of low growth.	LF-1 2026 IRP Load Forecast; LF Technical Appendix Section IV
NAC 704.9225	2	In each of the forecasts described in subsection 1, the utility shall account for customer response to changes in the prices of electric energy and substitute energy sources and to the impacts of existing and proposed programs undertaken by the utility or required by governmental regulation to alter current energy use patterns.	LF-1 2026 IRP Load Forecast; LF Technical Appendix Section II
NAC 704.9225	3	To the extent data is available, peak demand must be forecasted before accounting for the effects of cogeneration.	LF-1 2026 IRP Load Forecast; LF Technical Appendix Section IV
NAC 704.9225	4	The utility shall maintain internal consistency among its forecasts. The forecast of peak demand must be consistent with the forecast of energy consumption and must be based on data which is normalized for weather pursuant to NAC 704.9245.	LF-1 2026 IRP Load Forecast; LF Technical Appendix Section III
NAC 704.923		**NAC 704.923 Periods to be covered by resource plan.** (NRS 703.025, 704.210, 704.741) The periods that must be covered by the utility's resource plan are as follows:	
NAC 704.923	1	For historical data, the 10-year period preceding the year in which the resource plan is filed. If estimated data are used, the utility shall identify such data and describe the procedure by which the estimates were made.	LF-1 2026 IRP Load Forecast; LF Technical Appendix Section II

NAC 704.923	2	For the forecasts of peak demand and energy consumption, the 20-year period beginning with the year in which the resource plan is filed.	LF-1 2026 IRP Load Forecast; LF Technical Appendix Section IV
NAC 704.9235		**NAC 704.9235 Formats for information included in resource plan.** (NRS 703.025, 704.210, 704.741)	
NAC 704.9235	1	A utility shall, in consultation with the staff and subject to the approval of the Commission, develop suitable formats to be used for all information required in the resource plan of the utility.	This filing is consistent with past filings in terms of formatting in accordance with Commission regulations. The Companies provide executable copies of non-confidential filing documents to Staff and BCP upon request.
NAC 704.9235	2	Graphical and tabular information must be accompanied by explanatory narratives.	All graphical and tabular information is accompanied by explanatory narratives.
NAC 704.9235	3	A resource plan may include text which is not specifically related to those formats but is of importance to the resource plan.	The Companies' Joint IRP filing includes text which is of importance to the proposed plan.
NAC 704.9237		**NAC 704.9237 Requirements and contents of distributed resources plan; identification and justification of certain changes of methodology; public posting of update to hosting capacity analysis.** (NRS 703.025, 704.210, 704.741)	
NAC 704.9237	1	The resource plan of a utility must contain a distributed resources plan for the 3 years covered by the action plan of the utility. The distributed resources plan of a utility must be consistent with the action plan of the utility.	The 2026 IRP includes a Distributed Resources Plan (DRP) for the 3 years covered by the IRP action plan, and the DRP is consistent with the IRP action plan.
NAC 704.9237	2	The distributed resources plan must:	
NAC 704.9237	2(a)	Identify and evaluate the locational benefits and costs of distributed resources. The evaluation must be based on:	DRP Narrative, Sections 3.A.3.b, 3.A.3.c, 3.B.3.b, 3.B.3.c
NAC 704.9237	2(a)(1)	Reductions or increases in local generation capacity needs;	DRP Narrative, Sections 3.A.3.b, 3.A.3.c, 3.B.3.b, 3.B.3.c
NAC 704.9237	2(a)(2)	Avoided or increased localized investments in distribution infrastructure;	DRP Narrative, Sections 3.A.3.b, 3.A.3.c, 3.B.3.b, 3.B.3.c
NAC 704.9237	2(a)(3)	Reductions or increases in safety benefits of the electric grid;	DRP Narrative, Sections 3.A.3.b, 3.A.3c, 3.B.3.b, 3.B.3.c
NAC 704.9237	2(a)(4)	Reductions or increases in the reliability benefits of the electric grid;	DRP Narrative, Sections 3.A.3.b, 3.A.3c, 3.B.3.b, 3.B.3.c
NAC 704.9237	2(a)(5)	Any other localized savings that the distributed resources provide to the electric grid; and	DRP Narrative, Sections 3.A.3.b, 3.A.3c, 3.B.3.b, 3.B.3.c
NAC 704.9237	2(a)(6)	Any other costs that distributed resources impose on customers of the electric utility or utilities.	DRP Narrative, Sections 3.A.3.b, 3.A.3c, 3.B.3.b, 3.B.3.c
NAC 704.9237	2(b)	As part of the distributed resources plan, the utility may propose tariffs, bilateral contracts, competitive solicitations or other mechanisms that it has identified and evaluated that maximize locational benefits and minimize the incremental cost of distributed resources.	DRP Narrative, Sections 5.B and 8.A.2
NAC 704.9237	2(c)	Identify existing programs approved by the Commission that address the deployment of distributed resources, including, without limitation, tariffs and incentives, and propose cost-effective methods of effectively coordinating the deployment of distributed resources with such existing programs to maximize the locational benefits and minimize the incremental costs of distributed resources.	DRP Narrative, Section 5.B
NAC 704.9237	2(d)	Identify and evaluate any incremental utility investment or expenditure necessary to integrate cost-effective distributed resources into the distribution planning process consistent with the goal of yielding a net benefit to the customers of the electric utility or utilities.	DRP Narrative, Section 7
NAC 704.9237	2(e)	Identify and evaluate potential barriers to the deployment of distributed resources, including, without limitation, safety standards related to technology or operation of the distribution system and make recommendations regarding accepting or overcoming identified potential barriers in a manner that will ensure the safety of the distribution grid and the reliability of service.	DRP Narrative, Section 4
NAC 704.9237	2(f)	Be developed by a utility using a forecast of net distribution system load and distributed resources. The forecast must be for a period of not less than 6 years, beginning with the year after the distributed resources plan is filed. The net distribution system load and distributed resources forecast will include system, substation and feeder level net load projections and energy and demand characteristics for all distributed resource types.	DRP Narrative, Sections 3.A.1 and 3.B.1
NAC 704.9237	3	The distributed resources plan must include:	
NAC 704.9237	3(a)	A grid needs assessment, which must be based on the net distribution system load, distributed resource forecast and the facilities capacity analysis. The grid needs assessment must include, without limitation:	DRP Narrative, Sections 3.A.3 and 3.B.3
NAC 704.9237	3(a)(1)	The hosting capacity analysis described by paragraph (b);	DRP Narrative, Section 3.A.2
NAC 704.9237	3(a)(2)	An analysis of the suitability of non-wires alternatives to mitigate identified transmission and distribution system constraints;	DRP Narrative, Sections 3.A.3.b and 3.B.3.b
NAC 704.9237	3(a)(3)	A locational net benefit analysis to compare utility infrastructure upgrade solutions and distributed resources solutions to forecasted transmission and distribution system constraints; and	DRP Narrative, Sections 3.A.3.c and 3.B.3.c
NAC 704.9237	3(a)(4)	Recommendations for the deployment of utility infrastructure upgrade solutions and non-wires alternative solutions to identified transmission and distribution system constraints.	DRP Narrative, Sections 3.A.3.d and 3.B.3.d

NAC 704.9237	3(b)	A hosting capacity analysis of the distribution system. The hosting capacity analysis shall be performed using a load flow analysis and forecasted distribution facilities and their capacity, configuration, loading and voltage data gathered at the substation, feeder and primary node levels. The utility shall perform scenario analyses to evaluate hosting capacity under normal conditions and planned and unplanned contingency conditions. The utility shall provide a detailed description of the methods and outcomes it used to perform the hosting capacity analysis. The utility shall also provide a detailed narrative describing the utility's progress towards providing publicly-available, real-time hosting capacity data.	DRP Narrative, Section 3.A.2
NAC 704.9237	3(c)	Recommendations for new cost-effective distributed resources, sourcing of distributed resource solutions and utility infrastructure upgrade solutions which have been determined to be the preferred solution to constraints on a utility's electric grid on the basis of the analysis in the grid needs assessment. Such recommendations must be based on the locational net benefit analysis of resource options to utility customers.	DRP Narrative, Sections 3.A.3.d and 3.B.3.d
NAC 704.9237	3(d)	A summary that explains how distributed resources have affected the need for supply side resources in the resource planning process. The summary shall include, without limitation, a description of the effect of distributed resources on the need for new generation and transmission resources and how distributed resources are integrated into the transmission planning and supply side planning portions of the resource planning process.	DRP Narrative
NAC 704.9237	3(e)	A summary that describes the results of an informal stakeholder process to discuss recommendations for improvements to the hosting capacity analysis. The informal stakeholder process shall occur not less than 120 days before the filing of a distributed resources plan and be organized by the utility.	DRP Narrative, Section 2.D
NAC 704.9237	3(f)	A technical appendix that conforms to the requirements of NAC 704.922.	Technical Appendices DRP-1 through DRP-5 and TEP-1 through TEP-3
NAC 704.9237	4	If the utility changes the methodology of forecasting or the methodology used to conduct the hosting capacity analysis or grid needs assessment from the methodology used in the previous resource plan filed by the utility, the utility shall identify and provide a justification for the change.	DRP Narrative, Sections 3.A.1, 3.A.2, and 3.B.1
NAC 704.9237	5	Unless otherwise ordered by the Commission, in addition to, and separately from, the updates required pursuant to NAC 704.9239, the utility shall, not less than once per year, post publicly on its Internet website an update to the hosting capacity analysis of the distribution system. The Internet website of the utility shall contain a portal that provides maps and accessible electronic data suitable for distribution to the public.	DRP Narrative, Sections 3.A.2 and 6
NAC 704.9238		**NAC 704.9238 Deviation from and amendment of distributed resources plan.** (NRS 703.025, 704.210, 704.741)	
NAC 704.9238	1	Notwithstanding the approval of the Commission of the distributed resources plan of a utility, the utility may deviate from the approved distributed resources plan to the extent necessary to respond adequately to any significant change in circumstances not contemplated by the distributed resources plan. A significant change in circumstances includes, without limitation:	No requirement in this filing
NAC 704.9238	1(a)	A material change in net system, feeder or nodal customer load or demand;	No requirement in this filing
NAC 704.9238	1(b)	A material difference between the estimated and actual locational net benefit results for any or all resources analyzed in the grid needs assessment;	No requirement in this filing
NAC 704.9238	1(c)	A material difference between estimated and actual in-service dates or performance of the distributed resources analyzed and selected pursuant to the distributed resources plan; and	No requirement in this filing
NAC 704.9238	1(d)	Any other circumstance that the utility demonstrates to the Commission warrants a deviation.	No requirement in this filing
NAC 704.9238	2	If the utility deviates from its approved distributed resources plan, the utility shall include in the rate proceeding in which costs associated with the deviation are first sought to be recovered a description and justification for the deviation.	No requirement in this filing
NAC 704.9238	3	The utility may seek authority from the Commission to deviate prospectively from the distributed resources plan in an update filed pursuant to NAC 704.9239, or by filing an amendment to the distributed resources plan in accordance with subsection 4	No requirement in this filing
NAC 704.9238	4	An amendment to the distributed resources plan of a utility must contain:	
NAC 704.9238	4(a)	A section that identifies the specific approvals requested by the utility in the amendment;	No requirement in this filing
NAC 704.9238	4(b)	A section that specifies any changes in assumptions or data that have occurred since the utility's last resource plan was filed; and	No requirement in this filing
NAC 704.9238	4(c)	As applicable, information required by NAC 704.9237.	No requirement in this filing
NAC 704.9238	5	The Commission shall conduct its evaluation of the amendment of the distributed resources plan in accordance with subsection 5 of NAC 704.9494 and issue an order approving the amendment as filed, modifying the amendment or specifying any portions of the amendment that the Commission deems to be inadequate.	
NAC 704.9239		**NAC 704.9239 Update of distributed resources plan: Filing; requirements.** (NRS 703.025, 704.210, 704.741)	
NAC 704.9239	1	Beginning in calendar year 2020, on or before September 1 of the first and second years after the action plan of a utility is filed, the utility shall file an update of the distributed resources plan that will be applicable for each year remaining in the period covered by the action plan.	No requirement in this filing
NAC 704.9239	2	The update of the distributed resources plan must comply with the requirements of NAC 704.9237.	No requirement in this filing

NAC 704.9241		**NAC 704.9241 Update of distributed resources plan: Action by Commission.** (NRS 703.025, 704.210, 704.741)	
NAC 704.9241	1	The Commission will conduct a hearing within 60 days after a utility files an update of its distributed resources plan pursuant to NAC 704.9239 and issue an order within 120 days after the filing of that update by the utility.	
NAC 704.9241	2	The Commission will conduct its evaluation of the update of the distributed resources plan in accordance with subsection 5 of NAC 704.9494 and issue an order approving the update as filed, modifying the update or specifying any portions of the update that the Commission deems to be inadequate.	
NAC 704.9245		**NAC 704.9245 Normalizing forecast values of peak demand and energy consumption to account for normal weather conditions.** (NRS 703.025, 704.210, 704.741) All forecast values of peak demand and energy consumption must be normalized to account for normal weather conditions within the service territory of the utility.	LF-1 2026 IRP Load Forecast; LF Technical Appendix Section II
NAC 704.925		**NAC 704.925 Resource plan: Inclusion, contents and evaluation of forecasts of energy consumption and peak demand; consideration of certain impacts; identification of change in methodology of forecasting.** (NRS 703.025, 704.210, 704.741)	
NAC 704.925	1	A utility's resource plan must include forecasts of energy consumption and the peak demand for summer and winter for the system, disaggregated by rate schedule, for the 20-year period beginning with the year following the year in which the resource plan is filed. The utility may combine rate schedules if necessary to protect the confidentiality of individual customers.	Technical Appendix LF-1, Section III
NAC 704.925	2	The utility shall identify components of residential and commercial energy and demand for which initiatives for energy efficiency and conservation are applicable. The utility shall include in its forecast an assessment of the impacts of such initiatives on the identified components and on overall levels of energy consumption and demand by residential and commercial customers.	Technical Appendix LF-1, Section IV
NAC 704.925	3	The utility's forecast must include:	
NAC 704.925	3(a)	Estimated annual losses of energy on the system for the 20-year period of the resource plan; and	Technical Appendix LF-1, Section II
NAC 704.925	3(b)	Estimated annual energy to be used by the utility for the 20-year period of the resource plan.	Technical Appendix LF-1, Section II
NAC 704.925	4	The utility shall consider the impact of applicable new technologies and the impact of applicable new governmental programs or regulations.	Technical Appendix LF-1, Section II
NAC 704.925	5	The utility shall consider the impact of distributed generation and customers who acquire energy pursuant to NRS 704.787 or chapter 704B of NRS.	Technical Appendix LF-1, Section V
NAC 704.925	6	The utility shall provide a reasonable estimate of the demand from interruptible loads and the total demand of each type of interruptible load.	Technical Appendix LF-1, Section III
NAC 704.925	7	The utility shall identify all standby loads and the total demand of each type of standby load and include an analysis of the likelihood and effect of incurring such demands at the time of the system peak of the utility.	Technical Appendix LF-1, Section III
NAC 704.925	8	All forecast values for the entire system of the utility must be reported. The utility shall separately estimate the contribution to peak demand and energy consumption for the components of the system located within the State of Nevada and for the components of the system located outside the State of Nevada.	Technical Appendix LF-1, Section III
NAC 704.925	9	A resource plan must contain a graphical representation of projected load duration curves for the year following the year in which the resource plan was filed and every fifth year thereafter for the remainder of the period covered by the resource plan.	Technical Appendix LF-1, Section III
NAC 704.925	10	To verify and complete the final forecasts, the utility may evaluate the forecasts with the results of alternative forecasting methods.	No alternative models were evaluated.
NAC 704.925	11	Any change in the methodology of forecasting used by the utility from that used in the utility's previous resource plan must be identified in the current resource plan of the utility.	Testimony of Tim Pollard
NAC 704.9281		**NAC 704.9281 Resource plan: Contents of data relating to peak demand and energy consumption.** (NRS 703.025, 704.210, 704.741)	
NAC 704.9281	1	The historical data relating to peak demand and energy consumption submitted in a utility's resource plan must contain:	
NAC 704.9281	1(a)	The recorded and coincident peak demand, normalized for weather, in the summer and winter for the total system for the 10-year period immediately preceding the year in which the resource plan is filed;	Technical Appendix LF-1, Section III
NAC 704.9281	1(b)	The recorded and annual sales of energy consumption, normalized for weather, for the total system for each year of the 10-year period immediately preceding the year in which the resource plan is filed;	Technical Appendix LF-1, Section II
NAC 704.9281	1(c)	The estimated losses of energy for the system for each year of the 10-year period immediately preceding the year in which the resource plan is filed; and	Technical Appendix LF-1, Section II
NAC 704.9281	1(d)	The estimated or actual amount of electric energy used by the utility in the operation of its business for each year of the 10-year period immediately preceding the year in which the resource plan is filed.	Technical Appendix LF-1, Section II
NAC 704.9281	2	The data on energy consumption and peak demands must include data on all consumption and demands of ultimate customers that reflect firm, contractual commitments.	Technical Appendix LF-1, Sections III and IV
NAC 704.9321		**NAC 704.9321 Resource plan: Reliability of assumptions, forecasts, conclusions and information; adjustments to forecasts; maps of covered areas; supportive testimony.** (NRS 703.025, 704.210, 704.741)	
NAC 704.9321	1	To the extent consistent with cost-effective procedures generally accepted by the industry, all assumptions, forecasts, conclusions and information used by a utility in its resource plan must be:	
NAC 704.9321	1(a)	Based on substantially accurate data;	The assumptions, forecasts, conclusions and information used in this filing meet these requirements.

NAC 704.9321	1(b)	Adequately demonstrated and defended; and	The assumptions, forecasts, conclusions and information used in this filing meet these requirements.
NAC 704.9321	1(c)	Adequately documented and justified.	The assumptions, forecasts, conclusions and information used in this filing meet these requirements.
NAC 704.9321	2	Adjustments to forecasts obtained from external or published sources that are made on the basis of factors specifically relating to the utility must be explained.	Load Forecast Appendices LF-1 through LF-8
NAC 704.9321	3	Each utility shall provide a suitable map or maps to show all areas covered by the resource plan. Each such map must show at least:	
NAC 704.9321	3(a)	The service territory covered by the resource plan;	Summary Volume, (NV Energy Service Territories)
NAC 704.9321	3(b)	The locations of the utility's facilities for generation of electric energy;	Supply Plan Narrative, Section 2.A.1 (Existing Generation)
NAC 704.9321	3(c)	The location of renewable resources, independent power producers and distributed generation that are located within the service territory of the utility and are under contract with the utility;	Renewables Narrative, Section H
NAC 704.9321	3(d)	The interconnections with other utilities and independent power producers; and	Transmission Narrative, Section B, Transmission Path Ratings and Transmission Service Obligations
NAC 704.9321	3(e)	The utility's facilities for transmission of electric energy.	Transmission Narrative, Section B, Overview of the Companies' Transmission System
NAC 704.9321	4	All testimony offered in support of the resource plan must be filed with the resource plan.	All of the testimony offered in support of the 2026 Joint IRP is filed with the 2026 Joint IRP Plan.
NAC 704.934		**NAC 704.934 Preparation, contents and submission of demand side plan; annual analyses regarding programs for energy efficiency and conservation.** (NRS 703.025, 704.210, 704.741, 704.7836)	
NAC 704.934	1	As part of its resource plan, a utility shall submit a demand side plan that is cost effective as a whole.	DSM Plan Narrative and Technical Appendices DSM-1 through DSM-24
NAC 704.934	2	The demand side plan must include:	
NAC 704.934	2(a)	An identification of end-uses for programs for energy efficiency and conservation.	DSM Narrative Sections 6-9
NAC 704.934	2(b)	An assessment of savings attributable to technically feasible programs for energy efficiency and conservation, as determined by the utility. The programs must be ranked in a list according to the level of savings in energy or reduction in demand, or both.	DSM Narrative Sections 3 and 6-9
NAC 704.934	2(c)	An assessment of technically feasible programs to determine which will produce benefits in peak demand or energy consumption. The utility shall estimate the cost of each such program. The methods used for the assessment must be stated in detail, specifically listing the data and assumptions considered in the assessment.	DSM Narrative Sections 3-4 and 6-9
NAC 704.934	2(d)	An energy efficiency plan which complies with the requirements of NRS 704.7836, and which includes any additional goals for energy savings established by the Commission.	DSM Narrative Section 1
NAC 704.934	3	In creating its demand side plan, a utility shall consider the impact of applicable new technologies on current and future energy efficiency and conservation options. The consideration of new technologies must include, without limitation, consideration of the potential impact of advances in digital technology and computer information systems.	DSM Narrative Section 3 and Section 4 "Program Development" Data Sheet
NAC 704.934	4	A utility shall include in its demand side plan an energy efficiency program for residential customers which reduces the consumption of electricity or any fossil fuel. The energy efficiency program must include, without limitation, the use of new solar thermal energy sources.	DSM Narrative Section 3 (Gas DSM programs moved to Natural Gas IRP)
NAC 704.934	5	The demand side plan must provide a list of the programs for which the utility is requesting the approval of the Commission. The list must include, without limitation:	
NAC 704.934	5(a)	An estimate of the reduction in the peak demand and energy consumption that would result from each proposed program, in kilowatt-hours and kilowatts saved. The programs must be listed according to their expected savings and their contribution to a reduction in peak demand and energy consumption based upon realistic estimates of the penetration of the market and the average life of the programs.	DSM Narrative Sections 2-3; Technical Appendices DSM-7 through DSM-19 (M&V Reports)
NAC 704.934	5(b)	An assessment of the costs of each proposed program and the savings produced by the program. If the program can be relied upon to reduce peak demand on a firm basis, the assessment must include the savings in the costs of transmission and distribution.	DSM Narrative Sections 1 and 6-9; Technical Appendices DSM-7 through DSM-19 (M&V Reports)
NAC 704.934	5(c)	An assessment of the impact on the utility's load shapes of each proposed and existing program for energy efficiency and conservation.	DSM Narrative Section 3; Technical Appendices DSM-7 through DSM-19 (M&V Reports)
NAC 704.934	5(d)	If a program is an educational program, the projected expenses of the utility for the educational program.	DSM Narrative Section 6 (Education Program)
NAC 704.934	6	For any energy efficiency or conservation program which reduces the consumption of electricity or any fossil fuel, a utility shall include in its demand side plan a complete life-cycle analysis of the costs and benefits of the program using at least one standard test of cost effectiveness that accounts for the nonenergy benefits of the program.	DSM Narrative Sections 6-9, DSM Technical Appendices DSM-3 and DSM-4 (DSMore Input/Output Sheets)
NAC 704.934	7	The utility shall include with its demand side plan a report on the status of all programs for energy efficiency and conservation that have been approved by the Commission. The report must include tables for each such program showing, for each year, the planned and achieved reduction in kilowatt-hours, the reduction in kilowatts and the cost of the program.	DSM Narrative Sections 2 and 6-9
NAC 704.934	8	Not less than 10 percent of the total expenditures related to energy efficiency and conservation programs in the demand side plan must be directed to energy efficiency and convservtion programs for low-income customers of the electric utility	DSM Narrative Sections 2-3; DSM Technical Appendix DSM-21 (Low Income Expenditure Tracker)

NAC 704.934	9	On or before July 1 of each year following the filing of its resource plan, the utility shall file with the Commission a copy of the complete analysis that the utility used in determining for the upcoming year which energy efficiency and conservation programs are to be continued and which programs are to be cancelled. Within 180 days after the analysis is filed, the Commission will accept the analysis as filed, accept the analysis with modification or reject the analysis.	Not Applicable at time of filing
NAC 704.934	10	As used in this section:	
NAC 704.934	10(a)	"Energy efficiency and conservation program" has the meaning ascribed to it in NRS 704.7366.	
NAC 704.934	10(b)	"Energy savings" has the meaning ascribed to it in NRS 704.7834.	
NAC 704.934	10(c)	"New solar thermal energy sources" means energy sources which are installed after the effective date of the utility's energy efficiency program and which reduce the consumption of electricity or any fossil fuel by using solar radiation to heat water or to provide space heatng or cooling.	
NAC 704.9355		**NAC 704.9355 Analyses of options for supply (**NRS 703.025, 704.210, 704.741)	
NAC 704.9355	1	A utility shall develop a set of analyses of its options for supply to be considered for meeting the expected future demand on its system. These analyses must include an examination of the environmental impact of each option, taking into account the best available technologies and the environmental benefit of renewable resources. The options to be analyzed must include:	
NAC 704.9355	1(a)	Construction of new generation facilities or upgrades to existing generation facilities, including retrofitting existing facilities with more efficient systems or converting to other fuels;	Supply Plan Narrative, Section 5.4 (Valmy Simple Cycle Plant)
NAC 704.9355	1(b)	Construction of new transmission facilities or upgrades to existing transmission facilities;	Transmission Narrative, Section C, Specific Requests for Commission Approval for New Transmission Projects
NAC 704.9355	1(c)	Purchase of long-term transmission rights on transmission facilities owned by other persons;	Transmission Plan Narrative, Section B, FIGURE TP-14 and FIGURE TP-15
NAC 704.9355	1(d)	Improvements in the efficiency of operations and scheduling, including, without limitation, improvements that are attributable to the proposed implementation of new digital and computer information system technologies;	Not Applicable
NAC 704.9355	1(e)	Options of low carbon intensity; and	Supply Plan Narrative, Section 3.E
NAC 704.9355	1(f)	Transactions with other utilities, independent producers and utility customers for:	
NAC 704.9355	1(f)(1)	Pooling of power;	Supply Plan Narrative, Sections 3.B and 3.E
NAC 704.9355	1(f)(2)	Purchases of power; or	Supply Plan Narrative, Sections 3.B and 3.E
NAC 704.9355	1(f)(3)	Exchanges of power.	Supply Plan Narrative, Sections 3.B and 3.E
NAC 704.9355	2	As used in this section:	
NAC 704.9355	2(a)	"Carbon intensity" has the meaning ascribed to it in NRS 704.741.	
NAC 704.9355	2(b)	"Environmental benefit of renewable resources" means the present worth over a 20-year period of the benefits associated with the generation and maintenance of renewable resources for supply of capacity or energy, or supply of both capacity and energy, that results in a reduction of harm to the environment.	
NAC 704.9357		**NAC 704.9357 Analysis of net economic benefits to State. (**NRS 703.025, 704.210, 704.741)	
NAC 704.9357	1	An analysis of the changes that result in net economic benefits to Nevada from electricity-producing or electricity-saving resources must be conducted by the utility in selecting a resource option. The net economic benefit to the State must be quantified to reflect both the positive and negative changes and must include the net economic impact of renewable resources. The projected present worth of societal cost of a competing resource plan must be within 10 percent of the lowest societal costs plan before proceeding with an analysis of the economic benefits to Nevada.	Supply Plan Narrative, Section 3.G (Environmental Externalities and Net Economic Benefits); Technical Appendix ECON-9 (NERA Report)
NAC 704.9357	2	The economic benefits analysis must be achieved by calculating the portion of the present worth of future requirements for revenue that is expended within the State, including the following for both the construction and operation phases of any project:	Supply Plan Narrative, Section 3.G (Environmental Externalities and Net Economic Benefits); Technical Appendix ECON-9 (NERA Report)
NAC 704.9357	2(a)	Capital expenditures for land and facilities located within the State or equipment manufactured in the State;	Supply Plan Narrative, Section 3.G (Environmental Externalities and Net Economic Benefits); Technical Appendix ECON-9 (NERA Report)
NAC 704.9357	2(b)	The portion of the cost of materials, supplies and fuel purchased in the State;	Supply Plan Narrative, Section 3.G (Environmental Externalities and Net Economic Benefits); Technical Appendix ECON-9 (NERA Report)
NAC 704.9357	2(c)	Wages paid for work done within the State;	Supply Plan Narrative, Section 3.G (Environmental Externalities and Net Economic Benefits); Technical Appendix ECON-9 (NERA Report)
NAC 704.9357	2(d)	Taxes and fees paid to the State or subdivisions thereof; and	Supply Plan Narrative, Section 3.G (Environmental Externalities and Net Economic Benefits); Technical Appendix ECON-9 (NERA Report)

NAC 704.9357	2(e)	Fees paid for services performed within the State.	Supply Plan Narrative, Section 3.G (Environmental Externalities and Net Economic Benefits); Technical Appendix ECON-9 (NERA Report)
NAC 704.9357	3	In the analysis, the utility shall consider only the net benefit added to the economy of the State of that portion of expenditures made within the State.	Supply Plan Narrative, Section 3.G (Environmental Externalities and Net Economic Benefits); Technical Appendix ECON-9 (NERA Report)
NAC 704.9357	4	The present worth of societal costs of the competing resources must then be adjusted by the Commission to take into consideration either all, or only a portion, of the calculated economic benefit.	Supply Plan Narrative, Section 3.G (Environmental Externalities and Net Economic Benefits); Technical Appendix ECON-9 (NERA Report)
NAC 704.9357	5	As used in this section, "net economic impact of a renewable resource" means the present worth of economic costs of a contract for a renewable resource minus the present worth of economic development benefits to the State over a 20-year period.	
NAC 704.9359		**NAC 704.9359 Determination of environmental costs to State.** (NRS 703.025, 704.210, 704.741) The environmental costs to the State associated with operating and maintaining a supply plan or demand side plan must be quantified for air emissions, water and land use and the social cost of carbon as calculated pursuant to subsection 5 of NAC 704.937. Environmental costs are those costs, wherever they may occur, that result from harm or risks of harm to the environment after the application of all mitigation measures required by existing environmental regulation or otherwise included in the resource plan.	Supply Plan Narrative, Section 3.G (Environmental Externalities and Net Economic Benefits); Technical Appendix ECON-9 (NERA Report)
NAC 704.9361		**NAC 704.9361 Elimination or modification of environmental factors, emission rates and environmental costs** (NRS 703.025, 704.210, 704.741) The emission rates and environmental costs set or otherwise authorized by the Commission may be subject to elimination or modification, and new factors may be added for consideration, as new scientific, engineering, economic or other technical information becomes available to the Commission. Information purporting to establish a need for the deletion or addition of any environmental factor or the revision of any authorized emission rates or environmental costs may be presented by any party at the time of a hearing on the utility's resource plan.	The Company is not claiming a need for the deletion or addition of any environmental factor or the revision of any authorized emission rates or environmental costs.
NAC 704.937		**NAC 704.937 Inclusion in supply plan of alternative plans and list of options for supply of capacity and electric energy; criteria for selection of options; comparison of and requirements for alternative plans; identification of preferred plan.** (NRS 703.025, 704.210, 704.741)	
NAC 704.937	1	A utility's supply plan must contain a diverse set of alternative plans which include a list of options for the supply of capacity and electric energy that includes a description of all existing and planned facilities for generation and transmission, existing and planned power purchases, and other resources available as options to the utility for the future supply of electric energy. The description must include the expected capacity of the facilities and resources for each year of the supply plan. At least one alternative plan must be of low carbon intensity and include:	Supply Plan Narrative, Section 3.E., (Plan Development); Technical Appendix Item ECON-5 (Loads and Resources Tables); Supply Plan Narrative Section 5.H, Technical Appendices REN-1 and REN-2; Supply Plan Narrative (Generation)
NAC 704.937	1(a)	The generation or acquisition of an amount of renewable energy greater than required by NRS 704.7821	Supply Section Narrative, Section 3.E. (Plan Development)
NAC 704.937	1(b)	Changes to the utility's existing fleet of resources for the generation of power;	Supply Plan Narrative (Generation) Supply Plan Narrative, Section 3.E., (Plan Development); Technical Appendix Item ECON-5 (Loads and Resources Tables)
NAC 704.937	1(c)	The application of technology that would significantly reduce emissions of carbon; or	Supply Section Narrative, Section 3.E. (Plan Development); Supply Plan Narrative (Generation); Technical Appendix GEN-4
NAC 704.937	1(d)	Any combination thereof.	Supply Section Narrative, Section 3.E. (Plan Development)
NAC 704.937	2	A utility shall identify the criteria it has used for the selection of its options for meeting the expected future demands for electric energy and shall explain how any conflicts among criteria are resolved.	Supply Plan Narrative, Section 3.A (Overview); Supply Plan Narrative, Section 3.D. (Assessment of Need); Supply Plan Narrative, Section 3.E. (Plan Development); Supply Plan Narrative, Section 3.H (Selection of Preferred Plan)
NAC 704.937	3	In comparing alternative plans containing different resource options, the utility shall calculate the present worth of future requirements for revenue for each alternative plan for the supply of power. A comparison of the present worth of future requirements for revenue for each alternative plan must be presented in the resource plan. As calculated pursuant to this subsection, the present worth of future requirements for revenue for each alternative plan must include, without limitation, a reasonable range of costs associated with emissions of carbon in the 20-year period of the resource plan as private costs to the utility.	Supply Plan Narrative, Section 3.F (Economic Analysis Results); Technical Appendix Item ECON-7 (Present Worth of Revenue Requiement Summaries)
NAC 704.937	4	The utility shall calculate the present worth of societal costs for each alternative plan for the supply of power. The present worth of societal costs of a particular alternative plan must be determined by adding the environmental costs that are not internalized as private costs to the utility pursuant to subsection 3 to the present worth of future requirements for revenue. In calculating the present worth of societal costs for each alternative plan pursuant to this subsection, the utility shall include as environmental costs the utility's estimate of the level of environmental costs resulting from carbon dioxide emissions for that year and the social cost of carbon.	Supply Plan Narrative, Section 3.G (Environmental Externalities and Net Economic Benefits); Technical Appendix ECON-9 (NERA Report)

NAC 704.937	5	For the purposes of subsection 4 and NAC 704.9215 and 704.9359, the social cost of carbon must be determined by subtracting the costs associated with emissions of carbon internalized as private costs to the utility pursuant to subsection 3 from the net present value of the future global economic costs resulting from the emission of each additional metric ton of carbon dioxide. The net present value of the future global economic costs resulting from the emission of an additional ton of carbon dioxide must be calculated using the best available science and economics such as the analysis set forth in the "Technical Support Document: Technical Update of the Social Cost of Carbon for Regulatory Impact Analysis" released by the Interagency Working Group on Social Cost of Greenhouse Gases in August 2016. This publication may be obtained, free of charge, at the Internet website https://obamawhitehouse.archives.gov/sites/default/files/omb/inforeg/scc_tsd_final_clean_8_26_16.pdf. The utility shall submit information supporting the method used by the utility to calculate the social cost of carbon.	Supply Plan Narrative, Section 3.G (Environmental Externalities and Net Economic Benefits); Technical Appendix ECON-9 (NERA Report)
NAC 704.937	6	The utility shall consider for each alternative plan the mitigation of risk by means of:	
NAC 704.937	6(a)	Flexibility;	Supply Plan Narrative, Section 3.F (Economic Analysis Results); Supply Plan Narrative, Section 3.H (Selection of Preferred Plan)
NAC 704.937	6(b)	Diversity;	Supply Plan Narrative, Section 3.F (Economic Analysis Results); Supply Plan Narrative, Section 3.H (Selection of Preferred Plan)
NAC 704.937	6(c)	Reduced size of commitments;	Supply Plan Narrative, Section 3.F (Economic Analysis Results); Supply Plan Narrative, Section 3.H (Selection of Preferred Plan)
NAC 704.937	6(d)	Choice of projects that can be completed in short periods;	Supply Plan Narrative, Section 3.F (Economic Analysis Results); Supply Plan Narrative, Section 3.H (Selection of Preferred Plan)
NAC 704.937	6(e)	Displacement of fuel;	Supply Plan Narrative, Section 3.F (Economic Analysis Results); Supply Plan Narrative, Section 3.H (Selection of Preferred Plan)
NAC 704.937	6(f)	Reliability;	Supply Plan Narrative, Section 3.F (Economic Analysis Results); Supply Plan Narrative, Section 3.H (Selection of Preferred Plan)
NAC 704.937	6(g)	Selection of fuel and energy supply portfolios; and	Supply Plan Narrative, Section 3.F (Economic Analysis Results); Supply Plan Narrative, Section 3.H (Selection of Preferred Plan)
NAC 704.937	6(h)	Financial instruments or electricity products.	Supply Plan Narrative, Section 3.F (Economic Analysis Results); Supply Plan Narrative, Section 3.H (Selection of Preferred Plan)
NAC 704.937	7	The alternative plans of the utility must:	
NAC 704.937	7(a)	Provide adequate reliability;	Supply Plan Narrative, Section 3.F (Economic Analysis Results); Supply Plan Narrative, Section 3.H (Selection of Preferred Plan)
NAC 704.937	7(b)	Be within regulatory and financial constraints;	Supply Plan Narrative, Section 3.F (Economic Analysis Results); Supply Plan Narrative, Section 3.H (Selection of Preferred Plan)
NAC 704.937	7(c)	Meet the portfolio standard; and	Supply Plan Narrative, Section 3.H (Selection of Preferred Plan); Supply Plan Narrative Section 5.H (Renewable Energy Planning: RPS Compliance)
NAC 704.937	7(d)	Meet the requirements for environmental protection.	Supply Plan Narrative, Section 5 (Generation) Economic Analysis Narrative, Section 3.H (Selection of Preferred Plan);
NAC 704.937	8	The utility shall identify its preferred plan and fully justify its choice by setting forth the criteria that influenced the utility's choice.	Supply Plan Narrative, Section 3.E (Plan Development); Supply Plan Narrative, Section 3.F (Economic Analysis Results); Supply Plan Narrative, Section 3.H (Selection of Preferred Plan)
NAC 704.9378		**NAC 704.9378 Supply plan: Time-line graphs for proposed resources for supply.** (NRS 703.025, 704.210, 704.741) The supply plan must contain time-line graphs for the utility's proposed resources for supply that include major activities, milestones and points of decision. The following subjects must be included in the time-line graphs for each proposed resource:	
NAC 704.9378	1	Preparation of any required environmental impact statements;	No environmental impact statements in this IRP filing.
NAC 704.9378	2	Applications for significant permits;	No permit applications planned for this IRP filing.
NAC 704.9378	3	Commitments of significant expenditures;	No commitment for significant expenditures in this filing
NAC 704.9378	4	Periods for construction; and	No periods of construction in this filing.
NAC 704.9378	5	The commercial operation date.	Renewables Narrative, Section D: Table REN-1

NAC 704.9385		**NAC 704.9385 Supply plan: Contents; tables; transmission plan; information regarding purchase of power; maps; conceptual renewable energy zone transmission plan; list of assets.** (NRS 703.025, 704.210, 704.741)	
NAC 704.9385	1	The supply plan of the utility must develop and document the origins of:	
NAC 704.9385	1(a)	The assumptions, data and projections used by the utility to calculate the costs and benefits of its options.	Technical Appendix Items: LF-1 2026 IRP Load Forecast; ECON-6 Capital Projects; ECON-10 Candidate Resources; FPP-1 Fuel and Purchased Power Price Forecasts; REN-23 through REN-26 GEN-1 Generating Unit Characteristics Table; GEN-2 Plant Emission Rates; ECON-6 Capital Projects; and ECON-10 Candidate Resources
NAC 704.9385	1(b)	The assessment of current and anticipated electric market conditions by the utility for the region in which the utility operates.	Load Forecast and Market Fundamentals Narrative, Section 2.A
NAC 704.9385	1(c)	The basic economic and financial limitations of the utility.	Supply Plan Volume, Section 4 (Financial Plan)
NAC 704.9385	1(d)	The assumptions used by the utility for developing the environmental costs and the net economic benefits to the State from each of the options of the utility for future supply.	Supply Plan Narrative, Section 3.G (Environmental Externalities and Net Economic Benefits); Technical Appendix Item ECON-9 (NERA Report)
NAC 704.9385	1(e)	The criteria used by the utility for determining the reserve margin.	Supply Plan Narrative, Section 3.C (Key Modeling Assumptions)
NAC 704.9385	1(f)	The assumptions used by the utility for renewable resources.	REN-1 (Proposed Projects Supply Tables), REN-2 Renewable Portfolio Standard Buildout Scenarios
NAC 704.9385	1(g)	The assumptions used by the utility for independent power producers.	Technical Appendix FPP-1
NAC 704.9385	1(h)	The assumptions used by the utility for the reduction in demand and energy requirements associated with customers exiting service from the utility and customers utilizing distributed generation resources.	Technical Appendix LF-1, Sections IV and V
NAC 704.9385	2	Regarding generation, a utility's supply plan must contain a table of all its existing and planned facilities for electric generation that it expects to be operating in each of the 20 years covered by its forecast. Each of the following items of information must be set forth in the table if applicable to a listed facility:	
NAC 704.9385	2(a)	The planned or actual commercial operation date of the facility;	Supply Plan Narrative (Generation); Supply Plan Narrative (Renewables)
NAC 704.9385	2(b)	The date of the planned retirement of the facility, including the criteria used to select that date;	Supply Plan Narrative (Generation); Supply Plan Narrative (Renewables)
NAC 704.9385	2(c)	The type of facility;	Supply Plan Narrative (Generation); Supply Plan Narrative (Renewables)
NAC 704.9385	2(d)	The rated generating capacity and net expected generating capacity of the facility;	Supply Plan Narrative (Generation); Supply Plan Narrative (Renewables)
NAC 704.9385	2(e)	The fuel used;	Supply Plan Narrative (Generation); Supply Plan Narrative (Renewables)
NAC 704.9385	2(f)	The capacity of the facility for storing fuel; and	Supply Plan Narrative (Generation); Supply Plan Narrative (Renewables)
NAC 704.9385	2(g)	The designation of the capacity type of the facility, such as base load, intermediate or peaking.	Supply Plan Narrative (Generation); Supply Plan Narrative (Renewables)
NAC 704.9385	3	The supply plan of a utility must include a transmission plan for the 20 years covered by the forecast in the supply plan. The transmission plan must include, without limitation:	
NAC 704.9385	3(a)	A summary of the capabilities of the transmission system, including import, export and the rating of significant transmission paths within the system of the utility, and of the existing and planned transmission system of the utility for each year in the period covered by the resource plan.	Transmission Plan Narrative, Section B
NAC 704.9385	3(b)	A description of the transmission projects the utility is considering for expanding or upgrading the capabilities of its transmission system, the anticipated timing of those projects and the impact of the projects on the transmission capabilities of the existing and planned transmission system of the utility.	Transmission Plan Narrative, Section C
NAC 704.9385	3(c)	Identification of the transmission capacity required to serve bundled retail transmission customers, unbundled retail transmission customers and those wholesale transmission customers for whom the utility has an obligation to provide transmission services, for annual and peaking periods throughout the period covered by the resource plan.	Transmission Plan Narrative, Section B
NAC 704.9385	3(d)	Identification of all existing and proposed transmission service agreements, and their expiration dates, with transmission customers for transmission service on the transmission system of the utility and the impact of these agreements on available capacity for bundled retail transmission customers on the proposed or existing transmission facilities.	Transmission Plan Narrative, Section B
NAC 704.9385	3(e)	A table identifying all the transmission capacity that the utility has secured for its bundled retail transmission customers on both its transmission system and the transmission systems of other entities.	Transmission Plan Narrative, Section B
NAC 704.9385	3(f)	A description of the participation of the utility in regional planning organizations and an explanation of the role of those organizations in the transmission planning process of the utility.	Transmission Plan Narrative, Section H
NAC 704.9385	3(g)	A summary of the impacts of relevant orders of the Federal Energy Regulatory Commission issued since the utility filed its last resource plan.	Transmission Plan Narrative, Section I
NAC 704.9385	3(h)	(h) A demonstration that the utility has attempted to reduce the impact of line losses upon its future resource requirements.	Transmission Plan Narrative, Section F

NAC 704.9385	4	Regarding the purchase of power, the supply plan must contain a list showing:	
NAC 704.9385	4(a)	All sources from which the utility has contracted to buy, or has plans or potential opportunities to buy, electric power during the 20 years covered by the supply plan; and	Supply Plan Narrative, Section 2.B Figure CON-1 and Figure CON-2; Renewables Narrative, Figure REN-1
NAC 704.9385	4(b)	The amount of electric power that the utility has contracted to buy, or has plans or potential opportunities to buy, from each source and the years for which delivery of the electric power is contracted or planned.	Long Term Power Purchase Agreements Narrative
NAC 704.9385	5	The utility shall include in its supply plan a map or maps that identify the location of each existing or planned generation or transmission facility, renewable energy system and independent power producer that are projected to be relied upon during the period covered by the action plan.	Renewables Narrative; Transmission Plan Narrative, Section B
NAC 704.9385	6	In addition to the transmission plan requred by subsection 3, the supply plan of a utility must include, as a discrete but integrated item in the supply plan, a conceptual renewable energy zone transmission plan for the 20 years covered by the forecast in the supply plan. The renewable energy zone transmission plan must include distinct conceptual transmission plans, which may include capacity for export to other states, for serving each of the renewable energy zones designated by the Commission pursuant to NAC 704.880. Each of the distinct conceptual transmission plans must include:	Transmission Plan Narrative, Section G
NAC 704.9385	6(a)	A description of the construction or expansion of transmission facilities required to be added to the utility's existing transmission system;	Transmission Plan Narrative, Section C
NAC 704.9385	6(b)	An estimate of cost at the planning level, including, without limitation, estimates for permitting and other expenses of transmission development and estimated development schedules for the transmission facilities included in the transmission plan, based on information known by the utility at the time the transmission plan is submitted to the Commission;	Transmission Plan Narrative, Section C
NAC 704.9385	6(c)	A description of any restrictions or limitations on the construction or expansion of transmission facilities, including, without limitation, generator tie-lines in the applicable transmission plan due to any local topographical, environmental, governmental, land use or other factors or limitations that are known by the utility at the time the transmission plan is submitted to the Commission; and	Transmission Plan Narrative, Section C
NAC 704.9385	6(d)	An estimate of the capacity of the renewable energy resources capable of being developed in the applicable zone, based on information that is known to the utility at the time the transmission plan is submitted to the Commission.	Transmission Plan Narrative, Section C
NAC 704.9385	7	The supply plan of a utility must include the list of all assets of the utility required by NRS 704.7338. If a utility owns only part of an asset included on the list, the identity of every other owner and the percentage of the asset owned by each owner must be set forth on the list.	Supply Side Narrative, Section 2.A and Technical Appendix GEN-1
NAC 704.9395		**NAC 704.9395 Resource plan: Information on financial and economic characteristics of planned facilities.** (NRS 703.025, 704.210, 704.741) A utility's resource plan must contain information on the financial and economic characteristics of planned facilities. The information must include:	
NAC 704.9395	1	The estimated costs of construction, including:	
NAC 704.9395	1(a)	Annual flows of expenditures with allowance for money expended during construction; and	Supply Plan Narrative (Generation)
NAC 704.9395	1(b)	Annual flows of expenditures without allowance for money expended during construction;	Supply Plan Narrative (Generation)
NAC 704.9395	2	The estimated costs of operation, including:	
NAC 704.9395	2(a)	Variable costs per kilowatt-hour, with expenses for fuel and other items indicated separately; and	Supply Side Narrative, Section 2.A and Technical Appendix GEN-1
NAC 704.9395	2(b)	Fixed costs per kilowatt-hour;	Supply Side Narrative, Section 2.A and Technical Appendix GEN-1
NAC 704.9395	3	Net environmental costs and net economic benefits to the State;	Supply Plan Narrative, Section 3.G (Environmental Externalities and Net Economic Benefits); Technical Appendix Item ECON-9 (NERA Report)
NAC 704.9395	4	The rates of escalation of cost, including:	
NAC 704.9395	4(a)	Capital costs;	Supply Side Narrative, Section 2.A and Technical Appendix GEN-1
NAC 704.9395	4(b)	Variable fuel costs;	Supply Side Narrative, Section 2.A and Technical Appendix GEN-1
NAC 704.9395	4(c)	Nonfuel operating costs;	Supply Side Narrative, Section 2.A and Technical Appendix GEN-1
NAC 704.9395	4(d)	Environmental costs; and	Supply Side Narrative, Section 2.A and Technical Appendix GEN-1
NAC 704.9395	4(e)	Fixed operating costs; and	Supply Side Narrative, Section 2.A and Technical Appendix GEN-1
NAC 704.9395	5	The average cost per kilowatt-hour at projected loads in current dollars for each year of the plan for each existing and planned facility.	Technical Appendix Item ECON-3 (Average Generation Costs for Preferred Plan)
NAC 704.9401		**NAC 704.9401 Financial information and assumptions used to develop financial plan.** (NRS 703.025, 704.210, 704.741)	
NAC 704.9401	1	The assumptions and methodologies for modeling used to develop the utility's financial plan must be described in the resource plan of the utility. The following estimated financial information for the preferred plan must be included in the financial plan:	
NAC 704.9401	1(a)	Present worth of revenue requirements;	Supply Plan Volume, Section 4 (Financial Plan)
NAC 704.9401	1(b)	Nominal revenue requirements by year;	Supply Plan Volume, Section 4 (Financial Plan)
NAC 704.9401	1(c)	Average system rates per kilowatt-hour by year;	Supply Plan Volume, Section 4 (Financial Plan)
NAC 704.9401	1(d)	Total rate base by year;	Supply Plan Volume, Section 4 (Financial Plan)
NAC 704.9401	1(e)	Financial results attributed to the risk management strategy of the utility.	Supply Plan Volume, Section 4 (Financial Plan)

NAC 704.9401	2	The financial assumptions used by the utility to develop its supply plan must be stated in the financial plan. The following items must be stated for each year in the financial plan:	
NAC 704.9401	2(a)	The general rate of inflation;	Supply Plan Volume, Section 4 (Financial Plan)
NAC 704.9401	2(b)	The AFUDC rates used in the supply plan;	Supply Plan Volume, Section 4 (Financial Plan)
NAC 704.9401	2(c)	The cost of capital rates used in the supply plan;	Supply Plan Volume, Section 4 (Financial Plan)
NAC 704.9401	2(d)	The discount rates used in the calculations to determine present worth;	Supply Plan Volume, Section 4 (Financial Plan)
NAC 704.9401	2(e)	The tax rates used in the supply plan;	Supply Plan Volume, Section 4 (Financial Plan)
NAC 704.9401	2(f)	Other assumptions used in the supply plan.	Supply Plan Volume, Section 4 (Financial Plan)
NAC 704.944		**NAC 704.944 Supply plan: Discussion of alternative strategies.** (NRS 703.025, 704.210, 704.741) A utility shall include in its supply plan a comprehensive discussion of the alternative strategies that the utility would pursue if any preferred resource or facility were not available as described in the supply plan.	Supply Plan Volume, Section 3 (Economic Analysis)
NAC 704.945		**NAC 704.945 Resource plan: Inclusion of certain tables and graphs.** (NRS 703.025, 704.210, 704.741)	
NAC 704.945	1	A utility shall include in its resource plan a table of loads and resources for each supply plan analyzed. The table must include the following data for each year of the resource plan:	
NAC 704.945	1(a)	The capacity provided by each supply resource;	Supply Plan Volume, Section 3.I (Loads and Resources Tables): Technical Appendix Item ECON-5
NAC 704.945	1(b)	The total expected capacity of all resources;	Supply Plan Volume, Section 3.I (Loads and Resources Tables): Technical Appendix Item ECON-5
NAC 704.945	1(c)	The forecasted peak demand;	Supply Plan Volume, Section 3.I (Loads and Resources Tables): Technical Appendix Item ECON-5
NAC 704.945	1(d)	The estimated impact of new programs for energy efficiency and conservation;	Supply Plan Volume, Section 3.I (Loads and Resources Tables): Technical Appendix Item ECON-5
NAC 704.945	1(e)	The expected capacity and energy provided by renewable resources, categorized by type;	Supply Plan Volume, Section 3.I (Loads and Resources Tables): Technical Appendix Items ECON-4 and ECON-5
NAC 704.945	1(f)	The required planning reserves;	Supply Plan Volume, Section 3.I (Loads and Resources Tables): Technical Appendix Item ECON-5
NAC 704.945	1(g)	The total capacity required;	Supply Plan Volume, Section 3.I (Loads and Resources Tables): Technical Appendix Item ECON-5
NAC 704.945	1(h)	The excess or deficiency of capacity without additional resources; and	Supply Plan Volume, Section 3.d (Assessment of Need); Section 3.I (Loads and Resources Tables): Technical Appendix Item ECON-5
NAC 704.945	1(i)	The excess or deficiency of capacity with additional planned resources.	Supply Plan Volume, Section 3.I (Loads and Resources Tables): Technical Appendix Item ECON-5
NAC 704.945	2	A graph must be included for the preferred plan of the utility showing, over the 20-year planning period:	
NAC 704.945	2(a)	The total resources requirements;	Supply Plan Volume, Section 3.D (Assessment of Need) Figure EA-4; Section 3.I (Loads and Resources Tables) Figure EA-51
NAC 704.945	2(b)	The total demand without new programs for energy efficiency and conservation;	Supply Plan Volume, Section 3.D Figure EA-4
NAC 704.945	2(c)	The total demand with new programs for energy efficiency and conservation;	Supply Plan Volume, Section 3.D Figure EA-51
NAC 704.945	2(d)	The total capacity with additional planned resources; and	Supply Plan Volume, Section 3.D Figure EA-51
NAC 704.945	2(e)	The total capacity without additional resources.	Supply Plan Volume, Section 3.D Figure EA-51
NAC 704.945	3	A graph must be included for the preferred plan that shows, for each year of the 20-year planning period, the excess or required capacity both with and without the additional planned resources.	Supply Plan Volume, Section 3.D Figure EA-4; Section 3.I Figure EA-51
NAC 704.945	4	A table must be included for each supply plan analyzed that shows, for each year of the resource plan:	
NAC 704.945	4(a)	The projected mix of generation by fuel type; and	Supply Plan Volume, Section 3.E Figure EA-42
NAC 704.945	4(b)	The projected total emissions of carbon dioxide.	Supply Plan Volume, Section 3.E Figure EA-39
NAC 704.945	5	A graph must be included for each supply plan analyzed that shows, for each year of the resource plan, the percentage change in the preferred plan's projected total emissions of carbon dioxide resulting from that supply plan.	Technical Appendix ECON-9
NAC 704.945	6	A graph or table must be provided that shows the allocation of the capacity of the transmission system of the utility between bundled retail transmission customers, unbundled retail transmission customers and wholesale transmission customers.	Transmission Plan Narrative, Section B
NAC 704.9465		**NAC 704.9465 Integrated analysis to establish priorities among options; consideration of results as basis for preferred plan.** (NRS 703.025, 704.210, 704.741)	
NAC 704.9465	1	The utility shall perform an analysis integrating:	

NAC 704.9465	1(a)	Planning based on demand;	Supply Plan Volume, Section 3.E (Plan Development) and Section 3.H (Selection of the Preferred Plan)
NAC 704.9465	1(b)	Planning based on supply;	Supply Plan Volume, Section 3.E (Plan Development) and Section 3.H (Selection of the Preferred Plan)
NAC 704.9465	1(c)	Financial planning; and	Supply Plan Volume, Section 3.E (Plan Development) and Section 3.H (Selection of the Preferred Plan)
NAC 704.9465	1(d)	Planning to meet other applicable regulatory constraints.	Supply Plan Volume, Section 3.E (Plan Development) and Section 3.H (Selection of the Preferred Plan)
NAC 704.9465	2	The primary function of the integrated analysis is to establish priorities among the utility's options for demand and supply so that the utility can demonstrate the minimum costs of providing electric energy to its customers.	Supply Plan Volume, Section 3.H (Selection of the Preferred Plan)
NAC 704.9465	3	The utility shall consider the results of the integrated analysis as a basis for its preferred plan along with the other selection criteria set forth in NAC 704.937.	Supply Plan Volume, Section 3.H (Selection of the Preferred Plan)
NAC 704.9475		**NAC 704.9475 Analysis of sensitivity for major assumptions and estimates used in resource plan.** (NRS 703.025, 704.210, 704.741)	
NAC 704.9475	1	A utility shall conduct an analysis of sensitivity for all major assumptions and estimates used in its resource plan. The analysis must include the:	
NAC 704.9475	1(a)	Forecast of peak demand and energy consumption;	Supply Plan Volume, Section 3.E (Plan Development) and Technical Appendix ECON-5
NAC 704.9475	1(b)	Dates when proposed acquisitions will be in service;	Supply Plan Volume, Section 3.E (Plan Development) and Technical Appendix ECON-5
NAC 704.9475	1(c)	Unit availability;	Supply Side Narrative, Section 2.A and Technical Appendix GEN-1
NAC 704.9475	1(d)	Costs of power plants;	Supply Plan Volume, Section 5.4 and Technical Appendix ECON-10
NAC 704.9475	1(e)	Prices of fuel;	Technical Appendix Item FPP-1
NAC 704.9475	1(f)	Amounts of purchased power and corresponding costs;	Supply Plan Volume, Section 3.F (Economic Analysis Results)
NAC 704.9475	1(g)	Schedule, impact and costs of programs for energy efficiency and conservation;	DSM Narrative and Technical Appendices; Technical Appendix Item LF-1
NAC 704.9475	1(h)	Capacity of plants in megawatts;	Technical Appendix Item GEN-1 (Unit Characteristics Table)
NAC 704.9475	1(i)	Discount rates;	Supply Plan Volume, Section 4.F (Common Methodologies/Assumptions)
NAC 704.9475	1(j)	Rate of inflation;	Supply Plan Volume, Section 4.F (Common Methodologies/Assumptions)
NAC 704.9475	1(k)	Cost of capital;	Supply Plan Volume, Section 4.F (Common Methodologies/Assumptions)
NAC 704.9475	1(l)	Environmental costs; and	Supply Plan Volume, Section 3.G (Environmental Externalities and Net Economic Benefit); Technical Appendix ECON-9 (NERA Report)
NAC 704.9475	1(m)	Economic benefit.	Supply Plan Volume, Section 3.G (Environmental Externalities and Net Economic Benefit); Technical Appendix ECON-9 (NERA Report)
NAC 704.9475	2	The utility shall state the ranges and consequences of uncertainty for each of the assumptions and describe methods of combining various uncertainties.	Supply Plan Volume, Section 3.F (Economic Analysis Results); Section 3.B (Economic Analysis Methodology)
NAC 704.948		**NAC 704.948 Analysis of decisions** (NRS 703.025, 704.210, 704.741)	
NAC 704.948	1	A utility shall analyze its decisions, taking into account its assessment of risk and identifying particular risks with respect to:	Supply Plan Volume, Section 3.H (Selection of the Preferred Plan) and Section 3.F (Economic Analysis Results)
NAC 704.948	1(a)	Costs;	Supply Plan Volume, Section 3.H (Selection of the Preferred Plan) and Section 3.F (Economic Analysis Results)
NAC 704.948	1(b)	Reliability;	Supply Plan Volume, Section 3.H (Selection of the Preferred Plan) and Section 3.F (Economic Analysis Results)
NAC 704.948	1(c)	Finances;	Supply Plan Volume, Section 3.H (Selection of the Preferred Plan) and Section 4 (Financial Plan)
NAC 704.948	1(d)	The volatility of the price of purchased power and fuel; and	Supply Plan Volume, Section 3.H (Selection of the Preferred Plan) and Section 3.F (Economic Analysis Results)
NAC 704.948	1(e)	Any other uncertainties the utility has identified.	Supply Plan Volume, Section 3.H (Selection of the Preferred Plan) and Section 3.F (Economic Analysis Results)
NAC 704.948	2	The utility's analysis must address the relationship among the factors used in making the utility's decision, including the relationship between mitigating risk, minimizing cost and volatility, and maximizing reliability.	Supply Plan Volume, Section 3.H (Selection of the Preferred Plan)
NAC 704.9482		**NAC 704.9482 Requirements for energy supply plan, purchased power procurement plan, fuel procurement plan and risk management strategy; consistency with action plan; annual filings.** (NRS 703.025, 704.210, 704.741)	
NAC 704.9482	1	The resource plan of a utility must contain an energy supply plan for the 3 years covered by the action plan of the utility. The resource plan of a utility must be consistent with the action plan of the utility.	Energy Supply Plan Volume

NAC 704.9482	2	An energy supply plan must be developed by a utility using its base forecast and target planning reserve margin.	Energy Supply Plan Volume, Section 2 (Power and Fuel Requirements)
NAC 704.9482	3	As part of its energy supply plan, a utility shall develop a purchased power procurement plan. The purchased power procurement plan of a utility must include, without limitation:	Energy Supply Plan Volume, Section 4 (Power Procurement Plan)
NAC 704.9482	3(a)	The proposed mix of purchased power products by:	Energy Supply Plan Volume, Section 4 (Power Procurement Plan)
NAC 704.9482	3(a)(1)	Type of resource;	Energy Supply Plan Volume, Section 4 (Power Procurement Plan)
NAC 704.9482	3(a)(2)	Delivery profile; and	Energy Supply Plan Volume, Section 4 (Power Procurement Plan)
NAC 704.9482	3(a)(3)	The term that the utility considers appropriate for the expected demand.	Energy Supply Plan Volume, Section 4 (Power Procurement Plan)
NAC 704.9482	3(b)	A description of the criteria used to determine the proposed mix of power products and the material factors influencing the selection of the criteria;	Energy Supply Plan Volume, Section 4 (Power Procurement Plan)
NAC 704.9482	3(c)	The proposed schedule for procuring the purchased power products, including a description of any competitive procurement processes to be undertaken;	Energy Supply Plan Volume, Section 4 (Power Procurement Plan)
NAC 704.9482	3(d)	A regional assessment of the availability of fuel and purchased power resources for the period covered by the energy supply plan;	Energy Supply Plan Volume, Section 3 (Market Fundamentals and Price Forecasts)
NAC 704.9482	3(e)	A projection of remaining capacity and energy requirements for each year of the period covered by the energy supply plan, after accounting for all existing resources and proposed long-term purchased power obligations;	Energy Supply Plan Volume, Section 2 (Power and Fuel Requirements)
NAC 704.9482	3(f)	A description, by type and term, of each existing purchased power contract with deliveries during the period covered by the energy supply plan;	Energy Supply Plan Volume, Section 4 (Power Procurement Plan)
NAC 704.9482	3(g)	A description, by type, delivery profile and term, of the purchased power products expected to be available to the utility during the period covered by the energy supply plan.	Energy Supply Plan Volume, Section 4 (Power Procurement Plan)
NAC 704.9482	4	As part of its energy supply plan, a utility shall develop a fuel procurement plan for each fuel that the utility uses to generate at least 5 percent of its annual energy requirements. The fuel procurement plan must include, without limitation:	Energy Supply Plan Volume, Section 5 (Gas Procurement Plan)
NAC 704.9482	4(a)	For each year of the energy supply plan, a projection of the quantity of each fuel the utility expects to use for each generating unit owned or controlled by the utility.	Energy Supply Plan Volume, Section 2 (Power and Fuel Requirements)
NAC 704.9482	4(b)	A description of each existing fuel contract with deliveries during the period covered by the energy supply plan, including the type of product, the quantity to be delivered, the delivery point and the term of the contract.	Energy Supply Plan Volume, Section 2 (Power and Fuel Requirements)
NAC 704.9482	4(c)	A description of the fuel products available to the utility during the period covered by the energy supply plan, including the type of product, the pricing method, the delivery point and the term of the availability of the fuel products.	Energy Supply Plan Volume, Section 3 (Market Fundamentals and Price Forecasts)
NAC 704.9482	4(d)	The proposed mix of fuel products.	Energy Supply Plan Volume, Section 5 (Gas Procurement Plan)
NAC 704.9482	4(e)	A description of the criteria used to determine the proposed mix of products and the material factors influencing the selection of the criteria.	Energy Supply Plan Volume, Section 5 (Gas Procurement Plan)
NAC 704.9482	4(f)	The proposed schedule for procurement of the fuel, including a description of any competitive procurement process to be undertaken.	Energy Supply Plan Volume, Section 5 (Gas Procurement Plan)
NAC 704.9482	5	As part of its energy supply plan, a utility shall include a risk management strategy that includes, without limitation:	Energy Supply Plan Volume, Section 6 (Risk Management Strategy)
NAC 704.9482	5(a)	A description of how the risk management strategy was reflected in the determination of the energy supply plan proposed by the utility.	Energy Supply Plan Volume, Section 6 (Risk Management Strategy)
NAC 704.9482	5(b)	A description of the criteria used to select the proposed risk management strategy and identification of the material factors that influenced the selection of the criteria by the utility.	Energy Supply Plan Volume, Section 6 (Risk Management Strategy)
NAC 704.9482	5(c)	A description of each technique for mitigating risk that was considered.	Energy Supply Plan Volume, Section 6 (Risk Management Strategy)
NAC 704.9482	5(d)	The criteria to be used to evaluate the effectiveness of the risk management strategy.	Energy Supply Plan Volume, Section 6 (Risk Management Strategy)
NAC 704.9482	6	A utility shall annually file with the Commission an evaluation of its purchased power procurement plan, its fuel procurement plan, its risk management strategy and, if applicable, the results of any performance-based methodology for the recovery of costs for natural gas for each year included in its deferred energy application filed pursuant to NAC 704.023 to 704.195, inclusive.	See Docket Nos. 26-02035 and 26-02036
NAC 704.9482	7	The energy supply plan of a utility must include a technical appendix that conforms to NAC 704.922.	Energy Supply Plan Volume, Technical Appendix
NAC 704.9484		**NAC 704.9484 Critical facility: Procedure and purpose for designation; financial incentives.** (NRS 703.025, 704.210, 704.741)	
NAC 704.9484	1	The Commission may, upon the request of a utility or an intervening party pursuant to subsection 2 or upon its own motion, make a determination as to whether to designate a facility of the utility as a critical facility. Such a determination may be made in conjunction with an order issued by the Commission pursuant to subsection 1 of NAC 704.9494 or in another proceeding on the matter.	
NAC 704.9484	2	A utility and any party granted intervener status may request that the Commission designate a facility of the utility as a critical facility for the purpose of:	
NAC 704.9484	2(a)	Protecting reliability;	The Companies are not requesting critical facility designation of any facility.
NAC 704.9484	2(b)	Promoting diversity of supply and demand side sources;	The Companies are not requesting critical facility designation of any facility.
NAC 704.9484	2(c)	Developing renewable energy resources;	The Companies are not requesting critical facility designation of any facility.
NAC 704.9484	2(d)	Fulfilling specific statutory mandates;	The Companies are not requesting critical facility designation of any facility.
NAC 704.9484	2(e)	Promoting retail price stability; or	The Companies are not requesting critical facility designation of any facility.
NAC 704.9484	2(f)	Any combination of paragraphs (a) to (e), inclusive.	The Companies are not requesting critical facility designation of any facility.

NAC 704.9484		Such a request must be accompanied by supporting analysis and documentation.	The Companies are not requesting critical facility designation of any facility.
NAC 704.9484	3	If the Commission designates a facility as a critical facility, the utility may request that incentives associated with that facility be included in rates in an application to change general rates filed pursuant to NAC 703.2201 to 703.2481, inclusive. The incentives may include, without limitation:	
NAC 704.9484	3(a)	Earning an enhanced return on equity on the designated critical facility over the life of the facility;	The Companies are not requesting critical facility designation of any facility.
NAC 704.9484	3(b)	The inclusion in the rates of construction work in progress associated with the designated facility; and	The Companies are not requesting critical facility designation of any facility.
NAC 704.9484	3(c)	Designating costs incurred to construct the designated critical facility in a regulatory asset account, to be recorded as a subaccount to Account 182.3 (Other Regulatory Assets). The utility may recover the regulatory asset pursuant to subsection 3 of NAC 704.9523.	The Companies are not requesting critical facility designation of any facility.
NAC 704.9486		**NAC 704.9486 Performance-based methodology for recovery of costs for natural gas used as fuel for generation: Proposal for establishment; report of results.** (NRS 703.025, 704.210, 704.741)	
NAC 704.9486	1	As part of its energy supply plan, a utility may propose the establishment of a performance-based methodology for the recovery of costs for natural gas used as a fuel for generation. Any proposed performance methodology must be based upon objective standards and criteria.	The Companies are not proposing the establishment of a performance-based methodology for the recovery of costs for natural gas used as a fuel for generation
NAC 704.9486	2	A proposal for the establishment of a performance-based methodology for the recovery of costs for natural gas must include information sufficient to enable the Commission to evaluate the proposal, including, without limitation:	
NAC 704.9486	2(a)	The criteria to be used in measuring the performance of the utility;	The Companies are not proposing the establishment of a performance-based methodology for the recovery of costs for natural gas used as a fuel for generation
NAC 704.9486	2(b)	The rationale for using the selected criteria;	The Companies are not proposing the establishment of a performance-based methodology for the recovery of costs for natural gas used as a fuel for generation
NAC 704.9486	2(c)	If appropriate, the proposed sharing allocation between the utility and its consumers;	The Companies are not proposing the establishment of a performance-based methodology for the recovery of costs for natural gas used as a fuel for generation
NAC 704.9486	2(d)	The duration of the program; and	The Companies are not proposing the establishment of a performance-based methodology for the recovery of costs for natural gas used as a fuel for generation
NAC 704.9486	2(e)	Supporting documentation.	The Companies are not proposing the establishment of a performance-based methodology for the recovery of costs for natural gas used as a fuel for generation
NAC 704.9486	3	If the Commission authorizes a performance-based methodology, the utility shall report the results of the methodology approved by the Commission in the deferred energy application filed by the utility pursuant to NAC 704.023 to 704.195, inclusive. At a minimum, the report must cover the period between the adjustment date for the most recent deferred energy application and the adjustment date for the application which includes the report of the results of the approved methodology.	The Companies are not proposing the establishment of a performance-based methodology for the recovery of costs for natural gas used as a fuel for generation
NAC 704.9486	4	As used in this section, "adjustment date" has the meaning ascribed to it in NAC 704.024.	The Companies are not proposing the establishment of a performance-based methodology for the recovery of costs for natural gas used as a fuel for generation
NAC 704.9489		**NAC 704.9489 Requirements for action plan.** (NRS 703.025, 704.210, 704.7339, 704.734, 704.741)	
NAC 704.9489	1	Each resource plan of a utility must include a detailed action plan based on an integrated analysis of the demand side plan and supply plan of the utility. In its action plan, the utility shall specify all its actions that are to take place during the 3 years commencing with the year following the year in which the resource plan is filed. The action plan must contain:	
NAC 704.9489	1(a)	An introductory section that explains how the action plan fits into the longer-term strategic plan of the utility.	Action Plan, Section I (Introduction)
NAC 704.9489	1(b)	A list of actions for which the utility is seeking the approval of the Commission.	Action Plan, Section II (List of Actions)
NAC 704.9489	1(c)	A schedule for the acquisition of data, including planned activities to update and refine the quality of the data used in forecasting.	Action Plan, Section II (Load Forecasting Data Acquisition)
NAC 704.9489	1(d)	A specific timetable for acquisition of options for the supply of electric energy and for programs for energy efficiency and conservation.	Action Plan, Section IV (Timetable and Budget for Programs)
NAC 704.9489	1(e)	If changes in the methodology are being proposed, a description fully justifying the proposed changes, including an analysis of the costs and benefits. Any changes in methodology that are approved by the Commission must be maintained for the period described in the action plan.	DSM Plan Narrative Section 1 and 3; Load Forecast Technical Appendix LF-1
NAC 704.9489	1(f)	A section describing any plans of the utility to acquire additional modeling instruments.	DSM Narrative Section 3
NAC 704.9489	1(g)	A section for the utility's program for energy efficiency and conservation, including:	
NAC 704.9489	1(g)(1)	A description of continued planning efforts;	DSM Narrative and Technical Appendices
NAC 704.9489	1(g)(2)	A plan to carry out and continue selected measures for energy efficiency and conservation that have been identified as desirable; and	DSM Narrative Section 3
NAC 704.9489	1(g)(3)	Any impacts of imputed debt calculations associated with energy efficiency contracts in the preferred plan.	DSM Narrative and Technical Appendices
NAC 704.9489	1(h)	A section for the utility's program for acquisition of resources for the supply of electric energy for the period covered by the action plan, including:	

NAC 704.9489	1(h)(1)	The immediate plans of the utility for construction of facilities or long-term purchases of power;	Renewables Narrative, Section D and Table REN-1
NAC 704.9489	1(h)(2)	The expected time for construction of facilities and acquisition of long-term purchases of power identified in subparagraph (1);	Technical Appendices: REN-3-AEC(b), REN-4-BS3(b), REN-5-CS(b), REN-6-CSB(b), REN-7-CE1(b), REN-8-DLE2(b), REN-9-FSR(b), REN-10-HPE(b), REN-11-IPE(b), REN-12-JVS(b), REN-13-LSA(b), REN-14-LSC(b), REN-15-NGP(b), REN-16-NBM(b), REN-17-NNGP(b), REN-18-SOS(b), REN-19-SBS(b), REN-20-TG(b), REN-21-WPS(b), REN-22-WS(b)
NAC 704.9489	1(h)(3)	The major milestones of construction; and	Technical Appendices: REN-3-AEC(b), REN-4-BS3(b), REN-5-CS(b), REN-6-CSB(b), REN-7-CE1(b), REN-8-DLE2(b), REN-9-FSR(b), REN-10-HPE(b), REN-11-IPE(b), REN-12-JVS(b), REN-13-LSA(b), REN-14-LSC(b), REN-15-NGP(b), REN-16-NBM(b), REN-17-NNGP(b), REN-18-SOS(b), REN-19-SBS(b), REN-20-TG(b), REN-21-WPS(b), REN-22-WS(b)
NAC 704.9489	1(h)(4)	Any impacts of imputed debt calculations associated with renewable energy contracts or energy efficiency contracts in the preferred plan.	Not Applicable
NAC 704.9489	2	The action plan must contain an energy supply plan and a distributed resources plan.	Action Plan, Section IV (Timetable and Budget for Programs)
NAC 704.9489	3	The action plan must contain a budget for planned expenditures suitable for comparing planned and achieved expenditures. Expenses must be listed in a format that is consistent with the categories and periods to be presented in subsequent filings. The budget must be organized in the following categories:	Action Plan, Section IV (Timetable and Budget for Programs)
NAC 704.9489	3(a)	Forecasting of loads;	Load Forecast Narrative and Technical Appendix LF-1
NAC 704.9489	3(b)	Energy efficiency and conservation;	DSM Narrative and Technical Appendices
NAC 704.9489	3(c)	Distributed resources;	Action Plan, Section IV (Timetable and Budget for Programs)
NAC 704.9489	3(d)	Transportation electrification;	Action Plan, Section IV (Timetable and Budget for Programs)
NAC 704.9489	3(e)	Plan for supply; and	Action Plan, Section IV (Timetable and Budget for Programs)
NAC 704.9489	4	The action plan must contain schedules suitable for comparing planned and actual activities and accomplishments. Milestones and points of decision committing major expenditures must be shown.	Action Plan, Section IV (Timetable and Budget for Programs)
NAC 704.9489	5	The action plan must contain a renewable energy zone transmission action plan for serving one or more of the renewable energy zones designated by the Commission or an explanation of why no renewable energy zone transmission action plan is contained in the action plan. In addition to the other action plan requirements set forth in this section, the renewable energy zone transmission action plan must include, with supporting data and documentation, for each action item recommended by the utility:	Transmission Plan Narrative, Section G; Technical Appendix TRAN-1
NAC 704.9489	5(a)	For permitting, routing study and right-of-way acquisition expenses, evidence addressing:	
NAC 704.9489	5(a)(1)	How such expenditures will facilitate compliance with NRS 704.7821 in a manner consistent with NAC 704.8901 to 704.8938, inclusive; and	Transmission Plan Narrative, Section G; Technical Appendix TRAN-1
NAC 704.9489	5(a)(2)	All other benefits Nevada retail ratepayers will derive from the expenses;	Transmission Plan Narrative, Section C
NAC 704.9489	5(b)	For proposed construction and expansion of transmission facilities:	
NAC 704.9489	5(b)(1)	Evidence of how the proposed construction and expansion will facilitate compliance with NRS 704.7821 in a manner consistent with NAC 704.8901 to 704.8938, inclusive;	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.9489	5(b)(2)	A listing and description, including detailed cost estimates and development schedules, of the transmission facilities recommended by the utility for construction or expansion;	Transmission Plan Narrative, Section C
NAC 704.9489	5(b)(3)	A listing and description of transmission alternatives that were considered by the utility, including transmission development partnerships;	Transmission Plan Narrative, Section C
NAC 704.9489	5(b)(4)	Data and economic analysis that supports the transmission projects recommended by the utility, including, without limitation, a comparison of the levelized cost, including transmission, of procuring renewable resources from the renewable energy zones proposed to be served by the utility's recommended transmission projects to other renewable resource options, including those that are located in and out of renewable energy zones designated by the Commission;	Transmission Plan Narrative, Section G
NAC 704.9489	5(b)(5)	Evidence of the financial commitments from developers of renewable energy projects located in the affected renewable energy zones;	Technical Appendices: TRAN

NAC 704.9489	5(b)(6)	An estimate of the level of capacity and energy that the utility expects to utilize from the affected renewable energy zones in the next 20 years, commencing with the year following the year in which the resource plan is filed; and	Transmission Plan Narrative, Section G
NAC 704.9489	5(b)(7)	The estimated time frame to fully utilize the capacity of the construction and expansion of transmission facilities recommended by the utility; and	Transmission Plan Narrative, Section B, Section C
NAC 704.9489	5(c)	In addition to the renewable energy zone transmission action plan requirements set forth in paragraph (b), for construction and expansion of transmission infrastructure that will serve both Nevada retail ratepayers and export markets outside of Nevada:	
NAC 704.9489	5(c)(1)	Evidence that any renewable energy developers wishing to export energy outside of Nevada have a buyer for their energy and that the buyer has a means of delivering the energy from the transmission system of the Nevada utility to the point of delivery;	Transmission Plan Narrative, Section B,
NAC 704.9489	5(c)(2)	A strategic plan to mitigate the potential financial risks to Nevada retail ratepayers associated with stranded investment and infrastructure that is not intended to provide service to Nevada retail ratepayers, including, without limitation, safeguards to monitor the financial risk to Nevada's retail ratepayers and criteria to trigger an amendment to the renewable energy transmission action plan should changes in circumstance occur which could expose Nevada retail ratepayers to such risks; and	Transmission Plan Narrative, Section G, Section C
NAC 704.9489	5(c)(3)	Identification of the potential resources in the renewable energy zones, including the resources under contract, resources under development, known completion dates and the known amount of capacity and energy to be produced by renewable energy projects in the affected renewable energy zones for customers outside of Nevada.	Technical Appendix TRAN-1
NAC 704.9489	6	The action plan must include the surplus asset retirement plan required by NRS 704.734, for each asset that has been classified as surplus by the utility pursuant to NRS 704.7338 or reclassified as surplus by the Commission pursuant to NRS 704.7339.	Supply Side Narrative (Generation - Other Generation Assets)
NAC 704.9492		**NAC 704.9492 Rates for long-term avoided cost: Inclusion of certain information in resource plan; estimation; specification of proposed limits concerning availability.** (NRS 703.025, 704.210, 704.741)	
NAC 704.9492	1	A utility shall file, as part of its resource plan, the methodology for estimating the rates for long-term avoided cost of the utility, including the capacity and energy components. The rates for long-term avoided cost must be based upon the utility's preferred plan and be consistent with 18 C.F.R. § 292.304(a), (b), (c) and (e).	Supply Plan Volume, Section 3.K (Long-Term Avoided Costs)
NAC 704.9492	2	The estimated rate for long-term avoided cost must be established for various sizes of megawatt blocks, except that:	Supply Plan Volume, Section 3.K (Long-Term Avoided Costs)
NAC 704.9492	2(a)	If the utility has a peak demand of at least 1,000 megawatts, the stated blocks must not exceed 100 megawatts; and	Supply Plan Volume, Section 3.K (Long-Term Avoided Costs)
NAC 704.9492	2(b)	If the utility has a peak demand of less than 1,000 megawatts, the stated blocks must not exceed 10 percent of the system peak.	Supply Plan Volume, Section 3.K (Long-Term Avoided Costs)
NAC 704.9492	3	The components for estimated long-term avoided cost capacity and energy rate must be stated on a cents per kilowatt-hour basis for daily and seasonal peak and off-peak periods and in such a manner that rates for various contract periods may be calculated. At a minimum, the utility shall provide estimated rates for long-term avoided cost for a 20-year contract and the long-term avoided cost by year for 5 years commencing in the year following the filing of the resource plan.	Supply Plan Volume, Section 3.K (Long-Term Avoided Costs)
NAC 704.9492	4	In developing the estimated rates for long-term avoided cost, the proposed rates must not be applied to renewable energy or to energy that is subject to the qualified energy recovery process as defined in NRS 704.7809.	Supply Plan Volume, Section 3.K (Long-Term Avoided Costs)
NAC 704.9492	5	The utility shall specify its proposed limits concerning the availability of the rates for long-term avoided cost.	Supply Plan Volume, Section 3.K (Long-Term Avoided Costs)
NAC 704.9492	6	The resource plan of the utility must include the analyses and calculations used to determine the proposed rates.	Supply Plan Volume, Section 3.K (Long-Term Avoided Costs)
NAC 704.9492	7	The selections of new distributed resources set forth in the distributed resources plan must be reasonable.	DRP Narrative
NAC 704.9494		**Approval or modification of action plan; determination that elements of energy supply plan and distributed resources plan are prudent; recovery of costs to carry out approved plans.** (NRS 703.025, 704.210, 704.741, 704.751, 704.785)	
NAC 704.9494	1	The Commission will issue an order:	
NAC 704.9494	1(a)	Approving the action plan of the utility as filed;	Not applicable at time of filing.
NAC 704.9494	1(b)	Modifying the action plan of the utility; or	Not applicable at time of filing.
NAC 704.9494	1(c)	If the plan is not approved as filed or modified, specifying those parts of the action plan the Commission considers inadequate.	Not applicable at time of filing.
NAC 704.9494	2	An action plan shall be deemed to be approved by the Commission only as to that portion of the plan accepted as filed or modified with the consent of the utility pursuant to subsection 1 of NRS 704.751.	Not applicable at time of filing.
NAC 704.9494	3	Approval by the Commission of an action plan constitutes a finding that the programs and projects contained in that action plan, other than the energy supply plan and distributed resources plan, are prudent, including, without limitation, construction of facilities, purchased power obligations, programs for energy efficiency and conservation and impacts of imputed debt calculations associated with renewable energy contracts or energy efficiency contracts. If the Commission subsequently determines that any information relied upon when issuing its order approving or modifying the action plan was based upon information that was known or should have been known by the utility to be untrue or false at the time the information was presented, the Commission may revoke, rescind or otherwise modify its approval of the action plan.	Not applicable at time of filing.
NAC 704.9494	4	If, at the time that the Commission approves the action plan of the utility, the Commission determines that the elements of the energy supply plan are prudent, the Commission will specifically include in the approval of the action plan its determination that the elements contained in the energy supply plan are prudent. For the Commission to make a determination that the elements of the energy supply plan are prudent:	
NAC 704.9494	4(a)	The energy supply plan must not contain any feature or mechanism that the Commission finds would impair the restoration of the creditworthiness of the utility or would lead to a deterioration of the creditworthiness of the utility.	Energy Supply Plan CACUCI Direct; Q&A 23

NAC 704.9494	4(b)	The energy supply plan must optimize the value of the overall supply portfolio for the utility for the benefit of its bundled retail customers.	Energy Supply Plan Volume, Section 8 (Determination of Prudence)
NAC 704.9494	4(c)	The utility must demonstrate that the energy supply plan balances the objectives of minimizing the cost of supply, minimizing retail price volatility and maximizing the reliability of supply over the term of the plan.	Energy Supply Plan Volume, Section 8 (Determination of Prudence)
NAC 704.9494	5	If, at the time that the Commission approves the action plan of the utility, the Commission determines that the elements of the distributed resources plan are prudent, the Commission will specifically include in the approval of the action plan its determination that the elements contained in the distributed resources plan are prudent. For the Commission to make a determination that the elements of the distributed resources plan are prudent:	Not applicable
NAC 704.9494	5(a)	The net distribution system load and distributed resource forecasts, hosting capacity analysis, grid needs assessment and non-wires alternative and locational net benefit analyses must have been prudently performed; and	DRP Narrative
NAC 704.9494	5(b)	The selections of new distributed resources set forth in the distributed resources plan must be reasonable.	DRP Narrative
NAC 704.9494	6	A utility may recover all costs that it prudently and reasonably incurs in carrying out an approved action plan in the appropriate separate rate proceeding. A utility may recover all costs it prudently and reasonably incurs in carrying out an approved distributed resources plan in an appropriate separate rate proceeding. A utility may recover all costs that are prudently and reasonably incurred in carrying out the approved energy supply plan, including deviations pursuant to subsection 1 of NAC 704.9504 approved by the Commission in the appropriate deferred energy application filed pursuant to NAC 704.023 to 704.195, inclusive.	Not applicable at time of filing.
NAC 704.9496		**Estimated rates for long-term avoided cost: General requirements; action by Commission; solicitation of proposals; report.** (NRS 703.025, 704.210, 704.741)	
NAC 704.9496	1	In conjunction with the issuance by the Commission of a final order approving or modifying the action plan, the Commission will issue an order addressing the utility's proposed estimated rates for long-term avoided cost, including the methodology and limits to be used by the utility for its filing pursuant to NAC 704.9492. The Commission will consider the factors listed in 18 C.F.R. § 292.304(a), (b), (c) and (e) in its evaluation of the utility's proposed estimated rates for long-term avoided cost.	Not applicable at time of filing.
NAC 704.9496	2	The utility shall file with the Commission the utility's estimated rates for long-term avoided cost within 60 days after the Commission issues its order pursuant to subsection 1 specifying the methodology for estimating the rates for long-term avoided cost.	Not applicable at time of filing.
NAC 704.9496	3	The estimated rates for long-term avoided cost filed by the utility with the Commission pursuant to subsection 2 must:	
NAC 704.9496	3(a)	Be consistent with the methodology for estimating the long-term avoided cost approved by the Commission and be based upon the resource plan approved by the Commission;	Not applicable at time of filing.
NAC 704.9496	3(b)	Unless otherwise ordered by the Commission, be consistent with the format set forth in subsections 2 and 3 of NAC 704.9492 and be limited to those rates proposed by the utility pursuant to subsection 5 of NAC 704.9492.	Not applicable at time of filing.
NAC 704.9496	4	If required, the Commission will hold a hearing on the estimated rates for long-term avoided cost within 90 days after the utility files the estimated rates for long-term avoided cost pursuant to subsection 2. If a hearing is held, the Commission will issue an order on the matter within 45 days after the conclusion of the hearing.	Not applicable at time of filing.
NAC 704.9496	5	Within 30 days after the date on which the Commission issues an order pursuant to subsection 4, the utility shall solicit proposals to provide the utility capacity or energy, or both, in a manner that complies with the methodology for estimating long-term avoided cost approved by the Commission.	Not applicable at time of filing.
NAC 704.9496	6	Within 90 days after issuing a solicitation of proposals pursuant to subsection 5, the utility shall file with the Commission a report concerning the results of the solicitation.	Not applicable at time of filing.
NAC 704.9496	7	The utility's rate for long-term avoided cost for each block must be the estimated rate for long-term avoided cost established pursuant to this section or the competitive rate solicited pursuant to subsection 5, whichever is lower.	Not applicable at time of filing.
NAC 704.9512		**NAC 704.9512 Submission to Commission of certain purchased power obligations; disclosure of certain affiliate relationships.** (NRS 703.025, 704.210, 704.741)	
NAC 704.9512	1	The utility shall submit to the Commission a copy of:	
NAC 704.9512	1(a)	Each long-term purchased power obligation; and	Supply Plan Volume, Section 2.B; Summary Volume, Section VI
NAC 704.9512	1(b)	Any other purchased power obligation for which the utility is seeking the approval of the Commission,	Supply Plan Volume, Section 2.D
NAC 704.9512	2	For any such contract that is not executed at the time the action plan is filed, the utility shall submit the contract, upon execution, to the Commission for review. The utility shall, for each such contract, disclose the existence of any affiliate relationship between the parties.	Not applicable at time of filing.
NAC 704.9514		**NAC 704.9514 Preapproval of certain fuel and purchased power agreements.** (NRS 703.025, 704.210, 704.741) To the extent the Commission deems appropriate, the Commission may preapprove and deem prudent fuel and purchased power agreements by a utility that are less than 3 years in duration.	Not Applicable
NAC 704.952		**NAC 704.952 Sessions for reviewing plans; procedure for resolving issues during sessions; summary of topics and conclusions; public meeting to provide overview of anticipated filing or amendment of resource plan** (NRS 703.025, 704.210, 704.741, 704.744)	
NAC 704.952	1	A utility may schedule sessions for reviewing plans and providing an opportunity for interested persons to:	
NAC 704.952	1(a)	Learn of progress by the utility in developing plans and amendments to plans;	
NAC 704.952	1(b)	Determine whether key assumptions are being applied in a consistent and acceptable manner;	
NAC 704.952	1(c)	Determine whether key results are reasonable; and	
NAC 704.952	1(d)	Offer suggestions on other matters as appropriate.	

NAC 704.952	2	If the utility, the Bureau of Consumer Protection in the Office of the Attorney General, the staff or any other person participating in the process cannot agree to schedule sessions for reviewing plans, any of those persons may petition the Commission to schedule the sessions.	Not applicable at time of filing.
NAC 704.952	3	The parties involved in the review sessions may establish, at the beginning of the sessions, a procedure to resolve any technical issues that are discussed during the sessions.	Not applicable at time of filing.
NAC 704.952	4	If review sessions are held pursuant to subsection 1, the utility shall prepare a brief summary of the major topics on the agendas and the conclusions reached by the parties during the review sessions. The summary must be provided to the Commission in conjunction with testimony supporting the utility's plan.	Technical Appendix ECON-1; Exhibit Williams-Direct-1
NAC 704.952	5	Not less than 4 months before filing a plan required by NRS 704.741, or within a reasonable period before filing an amendment to such a plan pursuant to NRS 704.751, the utility shall meet with staff, the personnel of the Bureau of Consumer Protection and any other interested persons to provide an overview of the plan or amendment.	Technical Appendix ECON-1
NAC 704.952	6	For each meeting held pursuant to subsection 5, the utility shall prepare a notice of the meeting which must include, without limitation, the date, time and location of the meeting and an explanation of the purpose of the meeting. The utility shall distribute the notice by:	Not applicable at time of filing.
NAC 704.952	6(a)	Posting the notice on the Internet website of the utility;	Not applicable at time of filing.
NAC 704.952	6(b)	Sending the notice via electronic mail to each person on the relevant service list maintained by the Commission; and	Not applicable at time of filing.
NAC 704.952	6(c)	Providing the notice to staff of the Commission for publication on the Internet website of the Commission.	Not applicable at time of filing.
NAC 704.9522		**NAC 704.9522 Measurement and verification protocol for energy efficiency and conservation measures: Duties of utility provider.** (NRS 703.025, 704.210, 704.741)	
NAC 704.9522	1	A utility provider shall propose a measurement and verification protocol for all energy efficiency and conservation measures submitted pursuant to NAC 704.9005 to 704.9525, inclusive.	DSM Narrative Sections 6-9; Technical Appendices DSM-7 and DSM-8 (M&V)
NAC 704.9522	2	The utility provider shall comply with, and shall ensure that all energy efficiency and conservation contracts entered into by the utility provider comply with, the most recent measurement and verification protocol approved by the Commission.	DSM Narrative Sections 6-9; Technical Appendices DSM-9 to DSM-19 (Program M&V Results)
NAC 704.95225		**NAC 704.95225 Recovery of certain amounts based on measurable and verifiable effects of implementation of programs for energy efficiency and conservation.** (NRS 703.025, 704.210, 704.785)	
NAC 704.95225	1	An electric utility may recover an amount based on the measurable and verifiable effects of the implementation by the electric utility of programs for energy efficiency and conservation described in the demand side plan of the electric utility and approved by the Commission pursuant to NAC 704.9494 as part of the action plan of the electric utility. The amount recovered must include:	DSM Narrative Sections 2 and 6-9 (2025 program year)
NAC 704.95225	1(a)	The costs reasonably incurred by the electric utility in implementing and administering the programs for energy efficiency and conservation, which are recovered pursuant to paragraph (a) of subsection 2 of NAC 704.9523; and	DSM Narrative Sections 2 and 6-9 (2025 program year)
NAC 704.95225	1(b)	An amount equal to the costs reasonably incurred by the electric utility in implementing and administering the programs for energy efficiency and conservation multiplied by the electric utility's authorized overall rate of return grossed up for taxes applicable to the utility's equity portion of the authorized rate of return, which is recovered pursuant to paragraph (b) of subsection 2 of NAC 704.9523	DSM Narrative Sections 2 and 6-9 (2025 program year)
NAC 704.95225	2	The Commission will consider the effect of any recovery pursuant to this section on the rates of the customers of the electric utility.	
NAC 704.9523		**NAC 704.9523 Accounting for and recovery of costs of implementing programs for energy efficiency and conservation.** (NRS 703.025, 704.210, 704.785)	
NAC 704.9523	1	All costs of implementing programs for energy efficiency and conservation calculated pursuant to paragraph (a) of subsection 2 and the amounts calculated pursuant to paragraph (b) of subsection 2 must be accounted for in the books and records of an electric utility separately from costs and amounts attributable to any other activity. All accounts must be maintained in a manner that will allow costs and amounts attributable to specific programs to be readily identified.	DSM Narrative Sections 2 and 6-9 (2025 program year)
NAC 704.9523	2	An electric utility may, pursuant to subsection 3, recover:	
NAC 704.9523	2(a)	All reasonably incurred costs of implementing programs for energy efficiency and conservation that have been described in the demand side plan of the electric utility and approved by the Commission pursuant to NAC 704.9494 as part of the action plan of the electric utility, including, without limitation, the costs for labor, overhead, materials, incentives paid to customers, advertising, marketing, monitoring and evaluation.	DSM Narrative Sections 2 and 6-9 (2025 program year)
NAC 704.9523	2(b)	An amount equal to the costs calculated pursuant to paragraph (a) multiplied by the electric utility's authorized overall rate of return grossed up for taxes applicable to the utility's equity portion of the authorized rate of return.	DSM Narrative Sections 2 and 6-9 (2025 program year)
NAC 704.9523	2(b)	An amount equal to the costs calculated pursuant to paragraph (a) multiplied by the electric utility's authorized overall rate of return grossed up for taxes applicable to the utility's equity portion of the authorized rate of return.	DSM Narrative Sections 2 and 6-9 (2025 program year)
NAC 704.9523	3	To recover the reasonably incurred costs of implementing programs for energy efficiency and conservation calculated pursuant to paragraph (a) of subsection 2 and the amounts calculated pursuant to paragraph (b) of subsection 2, an electric utility must:	
NAC 704.9523	3(a)	Establish and maintain separate subsidiary records of the subaccounts of FERC Account 182.3 (Other Regulatory Assets) for each program described in the demand side plan of the electric utility and approved by the Commission pursuant to NAC 704.9494 as part of the action plan of the electric utility. These records must clearly delineate all costs calculated pursuant to paragraph (a) of subsection 2 and amounts calculated pursuant to paragraph (b) of subsection 2 and be maintained by program by month by rate effective period.	DSM Narrative Sections 2 and 6-9 (2025 program year)

NAC 704.9523	3(b)	At the time the electric utility files an annual deferred energy accounting adjustment application pursuant to subsection 3 of NRS 704.187, apply to the Commission to establish the following period-specific rates:	Not Applicable
NAC 704.9523	3(b)(1)	A prospective base program cost rate which is determined by allocating in the manner approved by the Commission in the most recent general rate case of the electric utility the total cost of programs for energy efficiency and conservation that are described in the demand side plan approved by the Commission. The prospective base program cost rate for a customer class is an amount equal to the cost allocated to that customer class pursuant to this subparagraph divided by the projected kilowatt hour sales for that class for the relevant period.	Not Applicable
NAC 704.9523	3(b)(2)	A deferred program cost rate to clear the period-specific balance over 12 months. The deferred program cost rate is an amount equal to the period-specific balance in the subaccount of FERC Account No. 182.3 for the cost of programs for energy efficiency and conservation divided by the applicable test period kilowatt hour sales.	Not Applicable
NAC 704.9523	3(c)	At the time the electric utility files an annual deferred energy accounting adjustment application pursuant to subsection 3 of NRS 704.187, file a statement that reports the Nevada jurisdictional earned rate of return for each month of the test period for the electric utility. The Nevada jurisdictional earned rate of return must be calculated for each month of the test period on a 12-month average rate base. The statement must be accompanied by all subsidiary schedules, and any adjustments made thereto, necessary to support the calculations.	Not Applicable
NAC 704.9523	4	Except as otherwise provided in subsection 8, if the Nevada jurisdictional earned rate of return for the last month of the test period reported for an electric utility pursuant to paragraph (c) of subsection 3 exceeds the rate of return last authorized by the Commission to set rates for the electric utility, the electric utility must, at the time the electric utility files the annual deferred energy accounting adjustment application pursuant to subsection 3 of NRS 704.187:	
NAC 704.9523	4(a)	File a statement that reports calculations of:	Not Applicable
NAC 704.9523	4(a)(1)	The amount of revenue which caused the electric utility to exceed the rate of return last authorized by the Commission;	Not Applicable
NAC 704.9523	4(a)(2)	An adjustment to the amount calculated pursuant to paragraph (b) of subsection 2; and	Not Applicable
NAC 704.9523	4(a)(3)	The carrying charges at a monthly rate of 1/12 of the authorized overall rate of return on the adjustment amount calculated pursuant to subparagraph (2).	Not Applicable
NAC 704.9523	4(b)	Establish a rate of credits for adjustments calculated pursuant to subparagraph (2) of paragraph (a) attributable to each class of service and which are identifiable from the information maintained in accordance with paragraph (a) of subsection 3.	Not Applicable
NAC 704.9523	5	Except as otherwise provided in subsection 8, an electric utility must:	
NAC 704.9523	5(a)	Record any adjustment calculated pursuant to subparagraph (2) of paragraph (a) of subsection 4 in a subaccount of FERC Account No. 254.	Not Applicable
NAC 704.9523	5(b)	Transfer any balance which remains in the subaccount of FERC Account No. 254 at the end of the amortization period to the appropriate subaccount of FERC Account No. 182.3 for the current period.	Not Applicable
NAC 704.9523	5(c)	Maintain sufficiently detailed information to identify the amount of the adjustment attributable to each class of service.	Not Applicable
NAC 704.9523	6	Except as otherwise provided in subsection 8, the sum of the adjustment calculated pursuant to subparagraph (2) of paragraph (a) of subsection 4 and any adjustments for carrying charges made to subaccounts of FERC Account No. 182.3 must not exceed the amount of revenue calculated pursuant to subparagraph (1) of paragraph (a) of subsection 4.	Not Applicable
NAC 704.9523	7	An electric utility shall account for period-specific costs incurred to implement a program for energy efficiency and conservation calculated pursuant to paragraph (a) of subsection 2, amounts calculated pursuant to paragraph (b) of subsection 2 and revenues received from the period-specific prospective base program cost rate in the following manner:	
NAC 704.9523	7(a)	On a monthly basis, the electric utility shall record in a subaccount of FERC Account No. 182.3 the program costs incurred, amounts calculated pursuant to paragraph (b) of subsection 2 and the revenues received from the prospective base program cost rate for the program for energy efficiency and conservation.	Not Applicable
NAC 704.9523	7(b)	The electric utility shall apply a carrying charge at the rate of 1/12 of the authorized overall rate of return to the unamortized balance in the subaccounts of FERC Account No. 182.3. If, in any month, the balance in a subaccount of FERC Account No. 182.3 is a debit, an adjustment amount must be calculated in an amount equal to the amount which exceeds the electric utility's last authorized rate of return that was used to set rates for the electric utility or any remainder after the rate of return has been applied to the carrying charge calculation for deferred energy pursuant to NAC 704.150.	Not Applicable
NAC 704.9523	8	If the Commission authorizes a rate adjustment mechanism for an electric utility pursuant to paragraph (b) of subsection 1 of NRS 704.785, the provisions of subsections 4, 5 and 6 do not apply to the electric utility.	Not Applicable
NAC 704.9525		**NAC 704.9525 Severability.** (NRS 703.025, 704.210, 704.741) If any provision of NAC 704.9005 to 704.9525, inclusive, is held invalid, the Commission intends that such invalidity not affect the remaining provisions to the extent that they can be given effect.	
NAC 704.8885		**NAC 704.8885 Long-term portfolio energy credits contracts, long-term renewable energy contracts and energy efficiency contracts: Review by Commission; criteria for approval.** (NRS 703.025, 704.210, 704.7821, 704.7828)	

NAC 704.8885	1	If a utility provider executes a long-term portfolio energy credits contract, long-term renewable energy contract or energy efficiency contract, the utility provider shall submit the contract to the Commission for approval. The contract shall be deemed to be a long-term purchase obligation for the purposes of NAC 704.9005 to 704.9525, inclusive, and the utility provider shall submit the contract to the Commission for approval in accordance with the provisions of those sections.	REN-3-AEC(a)(1), REN-3-AEC(a)(2), REN-4-BS3(a), REN-5-CS(a), REN-6-CSB(a), REN-7-CE1(a), REN-8-DLE2(a), REN-9-FSR(a), REN-10-HPE(a), REN-11-IPE(a), REN-12-JVS(a), REN-13-LSA(a), REN-14-LSC(a), REN-15-NGP(a), REN-16-NBM(a), REN-17-NNGP(a), REN-18-SOS(a), REN-19-SBS(a)(1), REN-19-SBS(a)(2), REN-20-TG(a), REN-21-WPS(a), REN-22-WS(a)(1), REN-22-WS(a)(2)
NAC 704.8885	2	To approve a long-term portfolio energy credits contract, long-term renewable energy contract or energy efficiency contract executed by a utility provider, the Commission must determine that the terms and conditions of the contract are just and reasonable. In making its determination, the Commission will consider, as applicable and without limitation.	
NAC 704.8885	2(a)	The reasonableness of the price for the electricity based on the factors set forth in NAC 704.8887;	Supply Plan Narrative Section 5.E Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8885	2(b)	The term of the contract;	Supply Plan Narrative Section 5.E Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8885	2(c)	The location of each portfolio energy system or efficiency measure that is subject to the contract;	Supply Plan Narrative Section 5.E Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8885	2(d)	The use of natural resources by each renewable energy system that is subject to the contract;	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8885	2(e)	The firmness of the electricity to be delivered and the delivery schedule;	Supply Plan Narrative Section 5.E Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8885	2(f)	The delivery point for the electricity;	Supply Plan Narrative Section 5.E Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)

NAC 704.8885	2(g)	The characteristics of similar renewable energy systems;	Supply Plan Narrative Section 5.E Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8885	2(h)	The requirements for ancillary services;	Supply Plan Narrative Section 5.E Technical Appendices: REN-3-AEC(a)(1), REN-3-AEC(a)(2), REN-4-BS3(a), REN-5-CS(a), REN-6-CSB(a), REN-7-CE1(a), REN-8-DLE2(a), REN-9-FSR(a), REN-10-HPE(a), REN-11-IPE(a), REN-12-JVS(a), REN-13-LSA(a), REN-14-LSC(a), REN-15-NGP(a), REN-16-NBM(a), REN-17-NNGP(a), REN-18-SOS(a), REN-19-SBS(a)(1), REN-19-SBS(a)(2), REN-20-TG(a), REN-21-WPS(a), REN-22-WS(a)(1), REN-22-WS(a)(2)
NAC 704.8885	2(i)	The unit contingent provisions;	Supply Plan Narrative Section 5.E Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8885	2(j)	The system peak capacity requirements of the utility provider;	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8885	2(k)	The requirements for scheduling;	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8885	2(l)	Conditions and limitations on the transmission system;	Technical Appendices TRAN, Transmission Plan Narrative, Section B
NAC 704.8885	2(m)	Project insurance;	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8885	2(n)	The costs for procuring replacement power in the event of nondelivery;	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)

NAC 704.8885	2(o)	Information verifying that each renewable energy system which is subject to the contract transmits or distributes or will transmit or distribute the electricity that it generates from renewable energy in accordance with the requirements of NRS 704.7815;	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8885	2(p)	For each owner and for each operator of a renewable energy system that is subject to the contract, the total number of renewable energy systems that each such owner and each such operator is or has been associated with as an owner or operator, including, without limitation, all renewable energy systems that are actively being constructed by or have been constructed by the owner or operator;	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8885	2(q)	For each renewable energy system that is subject to the contract, the points of interconnection with the electric system of the utility;	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8885	2(r)	The interconnection priority which has been established for the available transmission capacity of the utility provider for all proposed renewable energy systems that will interconnect and begin commercial operation within the 3-year period immediately following the date on which the contract is submitted for approval;	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8885	2(s)	Any requests for transmission service that have been filed with the utility provider;	Transmission Plan Narrative, Section B, FIGURE TP-11.1 and FIGURE TP-11.2
NAC 704.8885	2(t)	For each renewable energy system that is subject to the contract, any evidence that an environmental assessment, an environmental impact statement or an environmental impact report is being completed or has been completed with regard to the renewable energy system, or any evidence that a contract has been executed with an environmental contractor who will prepare such an assessment, statement or report within the 3-year period immediately preceding the date on which the renewable energy system is projected to begin commercial operation;	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8885	2(u)	Whether any required permits have been acquired from or any applications for such permits have been filed with the appropriate governing agencies within the 3-year period immediately preceding the date on which the renewable energy system is projected to begin commercial operation;	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8885	2(v)	Whether any applications for developmental rights have been filed with the appropriate federal agencies, including, without limitation, the United States Bureau of Land Management, where the granting of such developmental rights is not contingent upon a competitive bidding process;	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8885	2(w)	For each renewable energy system that is subject to the contract, any evidence that establishes rights of ownership, possession or use concerning land or natural resources, including, without limitation, deeds, land patents, leases, contracts, licenses or permits concerning land, geothermal drilling rights or other rights to natural resources; and	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)

NAC 704.8885	2(x)	Whether the utility provider has any economical dispatch rights.	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8887		**NAC 704.8887 Long-term portfolio energy credits contracts, long-term renewable energy contracts and energy efficiency contracts: Determination of whether price for electricity is reasonable**. (NRS 703.025, 704.210, 704.7821, 704.7828)	
NAC 704.8887	1	For the purposes of this section, each utility provider shall calculate the price for electricity acquired or saved pursuant to a long-term portfolio energy credits contract, long-term renewable energy contract or energy efficiency contract by calculating the levelized market price for the electricity based on:	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8887	1(a)	The rates for electricity and capacity set forth in the contract;	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8887	1(b)	Any escalators or inflation indices set forth in the contract;	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8887	1(c)	Any delivery projections for electricity and capacity set forth in the contract; and	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8887	1(d)	Any other terms and conditions set forth in the contract that would affect the price paid for electricity acquired or saved pursuant to the contract.	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8887	2	After the utility provider calculates the price pursuant to subsection 1, the Commission will determine whether the price is reasonable. In making its determination, the Commission will consider, without limitation:	
NAC 704.8887	2(a)	Whether the contract comports with the utility provider's most recently approved plan to increase its supply of or decrease the demand for electricity that is submitted to the Commission pursuant to NAC 704.9005 to 704.9525, inclusive;	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)

NAC 704.8887	2(b)	The reasonableness of any price indexing provision set forth in the contract;	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8887	2(c)	As compared to competing facilities or energy systems that use one or more fossil fuels as their primary source of energy to generate electricity, whether the renewable energy systems that are subject to the contract will reduce environmental costs in this State, including, without limitation:	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8887	2(c)(1)	Air emissions;	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8887	2(c)(2)	Water consumption;	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8887	2(c)(3)	Waste disposal and other land uses; and	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8887	2(c)(4)	Impacts on wildlife;	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8887	2(d)	The net economic impact and all environmental benefits and environmental costs to this State in accordance with NAC 704.9005 to 704.9525, inclusive:	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8887	2(e)	Any economic development benefits that might inure to any sector of the economy of this State;	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)

NAC 704.8887	2(f)	The diversity of energy sources being used to generate the electricity that is consumed in this State;	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8887	2(g)	The diversity of energy suppliers generating or selling electricity in this State;	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8887	2(h)	The value of any price hedging or energy price stability associated with the contract;	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8887	2(i)	The date on which each renewable energy system that is subject to the contract is projected to begin commercial operation;	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8887	2(j)	Whether the utility provider has any flexibility concerning the quantity of electricity that the utility provider must acquire or save pursuant to the contract;	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8887	2(k)	Whether the contract will result in any benefits to the transmission system of the utility provider; and	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8887	2(l)	Whether the electricity acquired or saved pursuant to the contract is priced at or below the utility provider's long-term avoided cost rate.	Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NAC 704.8887	3	If a utility provider will be using a long-term portfolio energy credits contract, long-term renewable energy contract or energy efficiency contract to comply with the solar energy requirements of its portfolio standard, the price for electricity acquired pursuant to that contract will be evaluated separately from the price for electricity acquired or saved pursuant to other long-term portfolio energy credits contracts, long-term renewable energy contracts or energy efficiency contracts that will not be used to comply with the solar energy requirements of the portfolio standard.	

IRP List of Applicable Statutes

Code	Sub-Section	Description	2026 IRP Location
NRS 704.741		**NRS 704.741 Plan to increase supply or decrease demands: Submission not less than triennially; joint plans by certain affiliated utilities; contents prescribed by regulation; requirements.**	
NRS 704.741	1	A utility which supplies electricity in this State shall, on or before June 1 of every third year, or more often if necessary, in the manner specified by the Commission, submit a plan to increase its supply of electricity or decrease the demands made on its system by its customers to the Commission. Two or more utilities that are affiliated through common ownership and that have an interconnected system for the transmission of electricity shall submit a joint plan.	The 2026 Joint IRP presents a plan to increase the Companies' supply of electricity and decrease the demands made on the Companies' system.
NRS 704.741	2	The Commission shall, by regulation:	
NRS 704.741	2(a)	Prescribe the contents of such a plan, including, but not limited to, the methods or formulas which are used by the utility or utilities to:	
NRS 704.741	2(a)(1)	Forecast the future demands, except that a forecast of the future retail electric demands of the utility or utilities must not include the amount of energy and capacity proposed pursuant to subsection 6 as annual limits on the total amount of energy and capacity that eligible customers may be authorized to purchase from providers of new electric resources through transactions approved by the Commission pursuant to an application submitted pursuant to NRS 704B.310 on or after May 16, 2019; and	Technical Appendix LF-1, Sections IV and V
NRS 704.741	2(a)(2)	Determine the best combination of sources of supply to meet the demands or the best method to reduce them;	Supply Plan Volume, Section 3.H. (Selection of the Preferred Plan), DSM and DRP Narratives
NRS 704.741	2(b)	Designate renewable energy zones and revise the designated renewable energy zones as the Commission deems necessary; and	
NRS 704.741	2(c)	Establish requirements governing the manner in which and circumstances under which an amendment may be filed with the Commission to modify an approved plan.	Not applicable at time of this filing
NRS 704.741	3	The Commission shall require the utility or utilities to include in the plan:	
NRS 704.741	3(a)	An energy efficiency program for residential customers which reduces the consumption of electricity or any fossil fuel and which includes, without limitation, the use of new solar thermal energy sources.	DSM Narrative Section 3
NRS 704.741	3(b)	A proposal for the expenditure of not less than 10 percent of the total expenditures related to energy efficiency and conservation programs on energy efficiency measures for customers of the electric utility in low-income households and residential customers and public schools in historically underserved communities, through both targeted programs and programs directed at residential customers and public schools in general.	DSM Narrative Sections 3.D.1, and 6-9; and Technical Appendix Item DSM-21
NRS 704.741	3(c)	A comparison of a diverse set of scenarios of the best combination of sources of supply to meet the demands or the best methods to reduce the demands, which must include:	Supply Plan Volume, Section 3.E. (Plan Development)
NRS 704.741	3(c)(1)	At least one scenario of low carbon dioxide emissions that:	
NRS 704.741	3(c)(1)(I)	Uses sources of supply that result in, by 2050, an amount of energy production from zero carbon dioxide emission resources that equals the forecasted demand for electricity by customers of the utility;	Supply Plan Volume, Section 3.E (Plan Development)
NRS 704.741	3(c)(1)(II)	Includes the deployment of distributed generation; and	Supply Plan Volume, Section 3.E (Plan Development)
NRS 704.741	3(c)(1)(III)	If the plan is submitted on or before June 1, 2027, uses sources of supply that result in, by the year 2030, an 80 percent reduction in carbon dioxide emissions from the generation of electricity to meet the demands of customers of the utility as compared to the amount of such emissions in the year 2005.	Supply Plan Volume, Section 3.E (Plan Development)

NRS 704.741	3(c)(2)	At least one scenario that provides for the construction or acquisition of energy resources through contract or ownership to be placed into service to close an open position utilizing dedicated energy resources in this State and dedicated energy resources delivered through firm transmission. A significant share of the renewable energy facilities and energy storage systems included in the scenario must be owned by the utility. A requirement to include a particular scenario in the plan pursuant to this paragraph, or the compliance of a utility with such a requirement, shall not be construed as indicating a preference by the Commission or the utility for a particular scenario.	Supply Plan Volume, Section 3.E (Plan Development)
NRS 704.741	3(d)	An analysis of the effects of the requirements of NRS 704.766 to 704.776, inclusive, on the reliability of the distribution system of the utility or utilities and the costs to the utility or utilities to provide electric service to all customers. The analysis must include an evaluation of the costs and benefits of addressing issues or reliability though investment in the distribution system.	DRP Narrative, Section 2.F
NRS 704.741	3(e)	A list of the utility's or utilities' assets described in NRS 704.7338.	Supply Plan Volume, Section 2.A (Generation)
NRS 704.741	3(f)	A surplus asset retirement plan as required by NRS 704.734.	Supply Plan Volume, Section 2.A (Generation)
NRS 704.741	4	For each scenario considered pursuant to subsection 3, the plan must include, without limitation:	
NRS 704.741	4(a)	For each energy resource proposed:	
NRS 704.741	4(a)(1)	A description of each energy resource to be constructed, acquired or contracted for by the utility, including, without limitation, the location of the energy resource, the technology to be used by the energy resource to generate electricity, the anticipated capacity of the energy resource and the anticipated date by which the energy resource will be placed into service;	Supply Plan Narrative Section 5.E, Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NRS 704.741	4(a)(2)	The cost of constructing or acquiring, operating and maintaining the energy resource or, if the energy resource is contracted for by the utility, the price of the energy to be supplied by the energy resource;	Supply Plan Narrative Section 5.E, Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NRS 704.741	4(a)(3)	Whether the energy resource will be owned by the utility or utilized by the utility pursuant to a contract with a third party; and	Supply Plan Narrative Section 5.E, Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)

NRS 704.741	4(a)(4)	Any other information required by the Commission to evaluate the prudence of the scenario.	Supply Plan Narrative Section 5.E, Technical Appendices: REN-3-AEC(c), REN-4-BS3(c), REN-5-CS(c), REN-6-CSB(c), REN-7-CE1(c), REN-8-DLE2(c), REN-9-FSR(c), REN-10-HPE(c), REN-11-IPE(c), REN-12-JVS(c), REN-13-LSA(c), REN-14-LSC(c), REN-15-NGP(c), REN-16-NBM(c), REN-17-NNGP(c), REN-18-SOS(c), REN-19-SBS(c), REN-20-TG(c), REN-21-WPS(c), REN-22-WS(c)
NRS 704.741	4(b)	An evaluation of the impact that the implementation of the scenario will have on:	
NRS 704.741	4(b)(1)	The ability of the utility to decrease its reliance on market purchases to meet the utility's open energy load requirements, including, without limitation, any appropriate reserves, and the forecast of energy needs over the next 10 years;	Supply Plan Volume, Section 3.E. (Plan Development) and Load Forecast Volume
NRS 704.741	4(b)(2)	The ability of the utility to reliably integrate into its supply portfolio larger amounts of electricity from variable energy resources, including, without limitation, solar, geothermal, hydropower and wind energy resources;	Supply Plan Volume, Section 3.E (Plan Development)
NRS 704.741	4(b)(3)	The ability of the utility to access energy markets or geographic locations that have excess capacity to import into this State through firm transmission to ensure additional reliability in times of increased energy needs;	Supply Plan Volume, Section 3.E. (Plan Development)
NRS 704.741	4(b)(4)	The ability of the utility to increase access to carbon-free energy, support compliance with the renewable portfolio standard and advance the goals for the reduction of greenhouse gas emissions set forth in NRS 445B.380 and 704.7820 through a balanced portfolio of energy supply and demand-side resources;	Supply Plan Volume, Section 3.E. (Plan Development) and Section 2.D Renewable Plan
NRS 704.741	4(b)(5)	The ability of the utility to demonstrate to a regional entity that the utility has adequate resources to meet the forecast for energy needs over the next 10 years;	Supply Plan Volume, Section 3.H. (Selection of the Preferred Plan) and Section 5 (Day Ahead Markets and Regional Transmission Organization)
NRS 704.741	4(b)(6)	The ability of the utility to advance cost-effective demand-side management;	Supply Plan Volume, Section 3.E. (Plan Development)
NRS 704.741	4(b)(7)	The rates charged to the customers of the utility, provided that, in implementing the plan, the utility must endeavor to mitigate costs for the benefit of customers to the extent possible by utilizing federal funding and tax credits available to utilities or third parties for the development of electric resources; and	Supply Plan Volume, Section 4 (Financial Plan)
NRS 704.741	4(b)(8)	The benefits from high-quality jobs, job training and apprenticeships provided by the projects included in the plan, whether constructed or operated by the utility or a third-party developer.	Supply Plan Volume, Section 3.E. (Plan Development), Section 3.G. (Environmental Externalities and Net Economic Benefits) and Technical Appendix Item ECON-9 (NERA Report)
NRS 704.741	5	The Commission shall require the utility or utilities to include in the plan a distributed resources plan. The distributed resources plan must:	DRP Narrative
NRS 704.741	5(a)	Evaluate the locational benefits and costs of distributed resources. This evaluation must be based on reductions or increases in local generation capacity needs, avoided or increased investments in distribution infrastructure, safety benefits, reliability benefits and any other savings the distributed resources provide to the electricity grid for this State or costs to customers of the electric utility or utilities.	DRP Narrative, Sections 3.A.3.b, 3.A.3.c, 3.B.3.b, and 3.B.3.c
NRS 704.741	5(b)	Propose or identify standard tariffs, contracts or other mechanisms for the deployment of cost-effective distributed resources that satisfy the objectives for distribution planning.	DRP Narrative, Section 8

NRS 704.741	5(c)	Propose cost-effective methods of effectively coordinating existing programs approved by the Commission, incentives and tariffs to maximize the locational benefits and minimize the incremental costs of distributed resources.	DRP Narrative, Section 5.B
NRS 704.741	5(d)	Identify any additional spending necessary to integrate cost-effective distributed resources into distribution planning consistent with the goal of yielding a net benefit to the customers of the electric utility or utilities.	DRP Narrative, Section 7
NRS 704.741	5(e)	Identify barriers to the deployment of distributed resources, including, without limitation, safety standards related to technology or operation of the distribution system in a manner that ensures reliable service.	DRP Narrative, Section 4
NRS 704.741	5(f)	Include a transportation electrification plan as required by NRS 704.7867.	DRP Narrative, Section 10
NRS 704.741	6	The Commission shall require the utility or utilities to include in the plan a proposal for annual limits on the total amount of energy and capacity that eligible customers may be authorized to purchase from providers of new electric resources through transactions approved by the Commission pursuant to an application submitted pursuant to NRS 704B.310 on or after May 16, 2019. In developing the proposal and the forecasts in the plan, the utility or utilities must use a sensitivity analysis that, at a minimum, addresses load growth, import capacity, system constraints and the effect of eligible customers purchasing less energy and capacity than authorized by the proposed annual limit. The proposal in the plan must include, without limitation:	Technical Appendix LF-1, Sections IV and V
NRS 704.741	6(a)	A forecast of the load growth of the utility or utilities;	Technical Appendix LF-1, Section IV
NRS 704.741	6(b)	The number of eligible customers that are currently being served by or anticipated to be served by the utility or utilities;	Technical Appendix LF-1, Sections II and IV
NRS 704.741	6(c)	Information concerning the infrastructure of the utility or utilities that is available to accommodate market-based new electric resources;	Technical Appendix LF-1, Section V
NRS 704.741	6(d)	Proposals to ensure the stability of rates and the availability and reliability of electric service; and	Technical Appendix LF-1, Section V
NRS 704.741	6(e)	For each year of the plan, impact fees applicable to each megawatt or each megawatt hour to account for costs reflected in the base tariff general rate and base tariff energy rate paid by end-use customers of the electric utility.	Technical Appendix LF-1, Section V
NRS 704.741	7	The annual limits proposed pursuant to subsection 6 shall not apply to energy and capacity sales to an eligible customer if the eligible customer:	Technical Appendix LF-1, Sections IV and V
NRS 704.741	7(a)	Was not an end-use customer of the electric utility at any time before June 12, 2019; and	Technical Appendix LF-1, Sections IV and V
NRS 704.741	7(b)	Would have a peak load of 10 megawatts or more in the service territory of an electric utility within 2 years of initially taking electric service.	Technical Appendix LF-1, Sections IV and V

APPLICATION EXHIBIT D

PUBLIC UTILITIES COMMISSION OF NEVADA
DRAFT NOTICE
(Applications, Tariff Filings, Complaints, and Petitions)

Pursuant to Nevada Administrative Code ("NAC") 703.162, the Commission requires that a draft notice be included with all applications, tariff filings, complaints and petitions. Please complete and include **ONE COPY** of this form with your filing. (Completion of this form may require the use of more than one page.)

A title that generally describes the relief requested (see NAC 703.160(5)(a)):

Joint Application of Nevada Power Company d/b/a NV Energy and Sierra Pacific Power Company d/b/a NV Energy for approval of their 2027-2046 Integrated Resource Plan, 2027-2029 Action Plan and 2027-2029 Energy Supply Plan.

The name of the applicant, complainant, petitioner or the name of the agent for the applicant, complainant or petitioner (see NAC 703.160(5)(b)):

Nevada Power Company d/b/a NV Energy and Sierra Pacific Power Company d/b/a NV Energy.

A brief description of the purpose of the filing or proceeding, including, without limitation, a clear and concise introductory statement that summarizes the relief requested or the type of proceeding scheduled (see NAC 703.160(5)(c)):

Nevada Power Company and Sierra Pacific Power Company are seeking approval of the 2026 Joint Integrated Resource Plan ("IRP"). The 2026 Joint IRP presents analysis of resource options (energy efficiency and conservation, distributed energy resources, renewable generation, thermal generation and transmission) available to the Companies to meet their bundled retail or native load over 20 years. Embodied in this 2026 Joint IRP is an updated load forecast, a market fundamentals forecast including fuel and purchase power pricing, a supply plan that includes transmission, generation and renewable resources, an economic analysis and, finally, a financial plan. Embedded in the 2026 Joint IRP is a Joint Energy Supply Plan ("ESP"), as required by Nevada Administrative Code ("NAC") § 704.9482. The Joint ESP and its associated technical appendices are located in stand-alone volumes filed as part of the 2026 Joint IRP. The 2026 Joint IRP also includes a demand side management ("DSM") plan and a distributed resources plan ("DRP"). The 2026 Joint IRP addresses a step-change load growth driven by data centers by seeking approval of 23 third-party power purchase agreements, adding approximately 4,550 megawatts of renewable generation and 5,405 megawatts of battery storage, as well as 1,223 megawatts of thermal generation and related transmission facilities.

A statement indicating whether a consumer session is required to be held pursuant to Nevada Revised Statute ("NRS") 704.069(1)[1]:

No. A consumer session is not required by NRS § 704.069.

If the draft notice pertains to a tariff filing, please include the tariff number **AND** the section number(s) or schedule number(s) being revised.

Not Applicable.

[1] NRS 704.069 states in pertinent part:

1. The Commission shall conduct a consumer session to solicit comments from the public in any matter pending before the Commission pursuant to NRS 704.061 to 704.110 inclusive, in which:
(a) A public utility has filed a general rate application, an application to recover the increased cost of purchased fuel, purchased power, or natural gas purchased for resale or an application to clear its deferred accounts; and
(b) The changes proposed in the application will result in an increase in annual gross operating revenue, as certified by the applicant, in an amount that will exceed $50,000 or 10 percent of the applicant's annual gross operating revenue, whichever is less.

JANET WELLS

BEFORE THE PUBLIC UTILITIES COMMISSION OF NEVADA

Nevada Power Company d/b/a NV Energy
Sierra Pacific Power Company d/b/a NV Energy

2026 Joint Integrated Resource Plan (2027-2046)
Docket No. 26-05___

Prepared Direct Testimony of

Janet Wells

1. Q. PLEASE STATE YOUR NAME, OCCUPATION, BUSINESS ADDRESS, AND THE PARTY ON WHOSE BEHALF YOU ARE FILING TESTIMONY.

A. My name is Janet Wells. I am Vice President of Integrated Resource Planning for Nevada Power Company d/b/a NV Energy ("Nevada Power") and Sierra Pacific Power Company d/b/a NV Energy ("Sierra" and, together with Nevada Power, the "Companies" or "NV Energy"). My primary business address is 6100 Neil Road, Reno, Nevada. I am filing testimony on behalf of the Companies.

2. Q. PLEASE DESCRIBE YOUR BACKGROUND AND EXPERIENCE IN THE UTILITY INDUSTRY.

A. I hold a Bachelor of Arts degree in Geography and a Master of Science degree in Applied Economics and Statistics. I have 19 years of utility experience in Rates and Regulatory Affairs and Integrated Resource Planning. Before joining the Companies, and during a period away from the Companies, I worked in economic consulting and research. Additional details regarding my background and experience are provided in **Exhibit Wells-Direct-1**.

3. Q. WHAT ARE YOUR DUTIES AND RESPONSIBILITIES IN YOUR CURRENT POSITION?

A. As Vice President of Integrated Resource Planning, my responsibilities include leading the distribution, integrated grid, transmission, and resource planning functions, as well as the load forecasting and research, integrated energy services, and energy efficiency and conservation teams. These teams support multiple regulatory filings, including the Integrated Resource Plan, Distributed Resource Plan, and Demand Side Management Plan.

4. Q. HAVE YOU PREVIOUSLY SUBMITTED PRE-FILED TESTIMONY WITH THE PUBLIC UTILITIES COMMISSION OF NEVADA ("COMMISSION")?

A. Yes. Most recently, I provided testimony in Docket No. 25-10028, the 2024 Integrated Resource Plan First Amendment. **Exhibit Wells-Direct-1** provides a complete list of proceedings in which I have testified before the Commission.

5. Q. WHAT IS THE PURPOSE OF YOUR TESTIMONY?

A. My testimony explains how the Companies implement the overall strategy presented in the 2026 Joint Integrated Resource Plan ("2026 IRP") by policy witness Shawn Elicegui. I also introduce the Companies' witnesses and support the following topics:

- Resource planning steps to the Preferred Plan;
- Form Large Load Electric Service Agreement ("LLESA");
- Renewable outlook;
- Clean Transition Tariff ("CTT") exemplar model; and

- Distributed Resources Plan ("DRP") and Demand Side Management Plan ("DSM") overall policy.

6. Q. WHAT EXHIBITS AND APPENDICES ARE YOU SPONSORING?

A. I am sponsoring the following exhibits:

- **Exhibit Wells-Direct-1**: Statement of Qualifications
- **Exhibit Wells-Direct-2**: Form LLESA and Form Framework Agreement
- **Exhibit Wells-Direct-3**: LLESA Customer Reserve Positions from Exhibit G
- **Exhibit Wells-Direct-4**: CTT Exemplar Pricing Model for Sierra
- **Exhibit Wells-Direct-5**: CTT Exemplar Pricing Model for Nevada Power

7. Q. PLEASE IDENTIFY THE WITNESSES WHO WILL TESTIFY IN THE COMPANIES' DIRECT CASE.

A. The sponsors of each of the substantive portions of the 2026 Joint IRP are described below:

Shawn Elicegui, Senior Vice President, Regulatory and Resource Planning, provides support for the overall policy of the Companies' 2026 IRP;

Timothy Pollard, Director of Load Forecasting, Research, and Analytics, supports the load forecast used in the filing;

Zeljko Vukanovic, Market Fundamentals Lead, sponsors the Market Fundamentals and Fuel and Purchased Power Price Forecasts;

Vincent Vitiello, Gas Supply Planning Lead, sponsors the Fuel Supply portion of the Supply Plan section that addresses the natural gas transportation outlook and strategies;

Patricia Rodriguez, Director of Energy Services Optimization, sponsors the Demand Side Plan and Section 5.B of the Distributed Resources Plan;

Adam Grant, Director of Integrated Energy Services Operations, sponsors the Companies' Demand Side Plan and Transportation Electrification Plan ("TEP"), which is Section 10 of the Distributed Resources Plan;

Christopher Belcher, Integrated Energy Services Policy and Compliance Manager, supports portions of the Demand Side Plan, including aspects of the Demand Side Plan rate impacts;

Yvette Sanders, Energy Services Specialist, supports portion so the Demand Side Plan, including the Measurement and Verification reports presented as part of the Demand Side Plan;

Robert Oliver, Principal Consultant at Qualus LLC, sponsors the Measurement and Verification ("M&V") reports presented as part of the Demand Side Plan;

Joseph Sinobio, Director of Integrated Grid Planning, sponsors the Distributed Resources Plan as the key technical expert;

Michael Brown, Integrated Energy Services Director, sponsors Sections 7.A, 7.B, 8.A.2, 8.B, and 8.C of the Distributed Resources Plan;

Kurtis Giubbini, Transmission Planning Engineer, sponsors Section 3.B of the Distributed Resources Plan;

Mathew Johns, Vice President, Environmental Services and Land Management, supports the environmental regulatory discussion in the Generation section of the Supply Plan;

John Lescenski, Manager, Plant Engineering and Technical Services, sponsors the Generation section of the Supply Plan for the Companies' thermal generation;

Fady Atala, Senior Director of Major Projects, supports the Supply Plan for the Companies' thermal generation related to the proposed Fort Churchill Projects included in the Preferred Plan;

Charles Pottey, Director of Transmission Planning, sponsors the Transmission Plan section of the Supply Plan, except for transmission additions required for large customer load additions, and supports the Companies' requests to construct transmission system network upgrades;

Layne Maxfield, Manager, Transmission System Planning, supports the Companies' requests for compliance driven projects, transmission interconnection projects, projects that are required per executed Rule 9 agreements and distribution load growth projects;

Sean Spitzer, Director, Renewable Energy & Origination, sponsors the Companies' renewable energy projects to support the Renewables Section of the Supply Plan and provides an update on the Valmy geothermal resources;

Michael Holland, Vice President, Resource Optimization, describes the renewable energy landscape in Nevada, the status of the Companies' named placeholders, market design efforts, and the open position limits and provides status updates on the Companies' renewable initiatives;

Kimberly Williams, Director of Resource Planning and Analysis, sponsors the economic analysis, the evaluation of the alternative supply plans, the selection of the Preferred and Alternate Plans, and the incorporation of the Distributed Resources Plan into the integrated planning process (Section 5.A of the DRP);

Brandon Heath, Resource Planning Specialist, sponsors the economic analysis used in the evaluation of the supply plans.

Nicolai Schlag, Partner at Energy and Environmental Economics ("E3"), supports three studies conducted by E3, each completed at the request of the Companies: (1) An updated ELCC analysis; (2) A supplemental resource adequacy analysis of the Sierra subsystem; (3) A technology assessment for hydrogen and carbon capture and sequestration resources.

Dr. David Harrison, Economist and Affiliated Consultant at NERA Economic Consulting, supports the environmental cost and economic impacts analyses;

Mike Behrens, Vice President and Chief Financial Officer, sponsors the Financial Plan and the Preferred and Alternate Plans; and

Christopher Sarda, Financial Planning & Analysis Capital Services Director, sponsors the financial forecast modeling and analysis used to support the Financial Plan as well as the alternative plans rate impact analyses.

I. RESOURCE PLANNING PROCESS

7. Q. PLEASE DESCRIBE THE PREPARATION OF THE 2026 JOINT IRP.

A. Although Nevada law generally contemplates the Companies file a joint IRP every three years under NRS 704.741, the statute allows for more frequent IRP filings as necessary. The Companies are filing the 2026 Joint IRP at this time because they are at a pivotal time in planning for unprecedented, step-change load growth driven by large customer data center and artificial intelligence ("AI") related service requests. Given the scope of this filing, it is helpful to understand the analytical steps the Companies use to develop and evaluate candidate resource portfolios in the IRP process.

To aid in understanding the economic analysis performed for the 2026 Joint IRP, an overall flowchart of the process is provided in the Economic Analysis section of the Narrative. At a high level, the IRP process starts with a forecast of customer loads and assesses a range of supply alternatives to identify options for meeting Nevada's capacity and energy needs. The Resource Planning team uses PLEXOS modeling tools, along with supporting analyses, to determine a set of least-cost,

reasonable, and reliable resource portfolios that meet applicable requirements, including resource adequacy and renewable policy objectives. After performing that analysis, the results are assessed, alternative plans are selected, and ultimately a preferred plan and alternate plan are identified. As discussed in more detail in the testimony of Kimberly Williams and other expert witnesses, this filing includes updates to key inputs and assumptions, including the load forecast, market fundamentals and fuel and purchased power price forecasts, federal climate policy scenarios, and the Companies' reliability and deliverability-focused screening and evaluation considerations. Through this filing, the Companies ask the Commission to determine that the Preferred Plan the Companies have selected is reasonable and prudent and to authorize the Companies to take all actions necessary during the three-year action plan period, 2027–2029, to implement the Preferred Plan, subject to the specific approvals requested in this docket and in subsequent filings as required.

Embodied in this 2026 Joint IRP is an updated load forecast, a market fundamentals forecast including fuel and purchased power pricing, a Supply Plan that includes Transmission, Renewables, and Generation components, the Economic Analysis, and the Financial Plan. The 2026 Joint IRP is filed together with a Joint Energy Supply Plan ("ESP"), as required by Nevada Administrative Code ("NAC") § 704.9482, with its associated technical appendices filed as stand-alone volumes. The 2026 Joint IRP also includes a demand side management ("DSM") plan and a distributed resource plan ("DRP"). The 2026 Joint IRP addresses capacity and renewable portfolio standard ("RPS") challenges created by step-change load growth, evolving federal and state policy signals, and deliverability constraints, while continuing to focus on resource adequacy.

II. THE PREFERRED AND ALTERNATE PLANS

8. Q. PLEASE DESCRIBE THE PREFERRED PLAN.

A. After evaluating five alternative plans, the Companies identified the Obsidian Plan as the Preferred Plan for the 2026 Joint IRP. The Obsidian Plan reflects a deliverability- and flexibility-focused approach to addressing unprecedented, step-change load growth while maintaining reliability and continuing progress toward Nevada's clean energy objectives. Consistent with the Supply Plan, Economic Analysis and supporting testimony, the Preferred Plan includes a balanced mix of (i) renewable and battery storage resources, (ii) firm capacity resources to support resource adequacy and operational flexibility, and (iii) transmission and interconnection-related infrastructure to support reliable delivery and integration of new resources and address customer needs. The Companies' specific requests for Commission approval of near-term resources within the action plan period are described in the Supply Plan and sponsored by the Companies' subject-matter witnesses.

- **Thermal additions (Obsidian Plan)**: the Fort Churchill Additions projects, consisting of (i) Fort Churchill Additions 1 (401 MW nominal) new simple-cycle aeroderivative natural gas combustion turbines with an in-service date of June 2030; (ii) Fort Churchill Additions 2 (401 MW nominal) new simple-cycle aeroderivative natural gas combustion turbines with an in-service date of June 2031; and (iii) Fort Churchill Additions 3 (421 MW nominal) new simple-cycle frame natural gas combustion turbines with an in-service date of June 2032;

- **Renewable expansion (Obsidian Plan)**: a historic volume of new renewable and storage resources through power purchase agreements ("PPAs") and related arrangements—approximately 4,370 MW of new solar PV projects, 5,405 MW of battery energy storage system ("BESS") projects (paired and stand-alone), and 180 MW of new geothermal projects—together with associated transmission and interconnection infrastructure needed to integrate and deliver these resources.

Table Wells Direct-1 below summarizes the Obsidian Plan resource additions by year through 2033, consistent with the 2026 Joint IRP Supply Plan.

Table Wells-Direct-1: Obsidian Plan Resource Additions By Year[1]

(Nameplate Capacity, MW)

Category	Resource Type	2027	2028	2029	2030	2031	2032	2033	Totals
Fossil Projects	Aeroderivative Peaking Turbines				401	401			**802**
	Frame Peaking Turbines						421		**421**
Renewable And Storage Projects	Solar Photovoltaic	67	1,003	1,000	2,300				**4,370**
	Geothermal	30			90	20	20	20	**180**
	Four-hour Battery	292	1,303	1,000	2,300				**4,895**
	Eight-hour Battery			310					**310**

[1] The Northern Nevada Geothermal Portfolio project is modeled as 40 MW in-service in 2031 with 20 MW additional capacity in the three subsequent years. The 200 MW Libra Solar + Storage Project Third Amendment with 2047 in-service date is not shown.

9. Q. WHAT APPROVALS ARE THE COMPANIES REQUESTING RELATED TO THE BASE MINUS LOAD FORECAST RESOURCES AND THE BASE LOAD FORECAST RESOURCES IN THE PREFERRED PLAN?

A. The Companies developed the Base Minus Load Forecast and a corresponding resource expansion view, dubbed the Base Minus informational case in the Economic Analysis Narrative, to isolate the resources that would be needed absent certain new or accelerated large load requests. The Companies request approval of the Preferred Plan and the Base Load Forecast, where the Base Load Forecast has been adequately documented and justified by Large Load Electric Service Agreements ("LLESA"s) with large load customers who, during the course of this proceeding, affirm their commitment to the terms of the LLESA (as approved or modified by the Commission).

10. Q. PLEASE DESCRIBE HOW THE COMPANIES SELECTED THE PREFERRED PLAN.

A. The Companies selected the Preferred Plan after evaluating five alternative plans using the updated 2026 Joint IRP load forecast, updated fuel and purchased power price forecasts, and scenarios of high and low load, fuel pricing, and federal climate policy, consistent with NAC requirements and as described in the Economic Analysis and supporting testimony. Given the step-change load growth and a constrained regional resource adequacy environment, the Companies emphasized resource deliverability, near-term reliability, and flexibility to adjust course in future filings. The Obsidian Plan was selected because it provides a balanced, executable mix of renewable, storage, and firm capacity resources to reduce market reliance and manage cost and execution risk relative to other plans. At the same time, the Obsidian Plan maintains the flexibility to pivot as the load develops,

technology advances, the economic environment changes, and federal and state policy evolve.

11. Q. WHY DOES RESOURCE ADEQUACY REMAIN A CRITICAL FACTOR IN THE COMPANIES' PLANNING AND DECISION MAKING?

A. Resource adequacy remains critical in the 2026 Joint IRP because unprecedented load growth is occurring amid supply constraints and uncertainty regarding the availability and deliverability of market capacity and energy. As reflected in the Economic Analysis and supported by Mr. Holland, the Companies are focused on reducing the open position—the portion of capacity needs not met by company-owned resources or long-term contracts—to limit reliance on the external market and support reliable service.

The Companies also evaluated near-term Sierra subsystem resource adequacy given the concentration and timing of load growth prior to commercial operation of the Greenlink Nevada Transmission Project (modeled to be fully in service by the beginning of 2029).[2]

These considerations reinforce the Companies' emphasis on adding deliverable capacity within the Companies' balancing authority area and reducing the open position.

[2] The Companies adopted a planning assumption that Greenlink West will be in service on December 31, 2027. This assumption supports prudent reliability planning by reflecting the potential for schedule risk while the Companies continue to pursue actions intended to achieve the May 31, 2027, target in-service date. However, the May 31, 2027, in-service date remains at risk.

12. Q. DOES HAVING A LARGE OPEN POSITION PUT THE COMPANIES AT GREATER RISK?

A. Yes. As described in the 2026 Joint IRP Economic Analysis, the Companies' "open position" represents the portion of the Companies' capacity needs that are not met by resources under the Companies ownership or long-term contract. A larger open position increases exposure to the uncertain availability and deliverability of market capacity and energy—particularly during stressed system conditions—thereby increasing reliability risk. Accordingly, the Companies' planning approach emphasizes adding deliverable resources and contracts within the Companies' balancing authority area and otherwise reducing market reliance to prudently support peak capacity needs under the updated 2026 Joint IRP load outlook.

13. Q. DOES THE PREFERRED PLAN HELP THE COMPANIES REDUCE THEIR OPEN POSITION DURING THE STUDY PERIOD?

A. Yes. As shown in the Economic Analysis and the capacity-needs figures in this testimony, the Companies' open position is significant in 2027 under a portfolio limited to existing and previously approved resources. Under the Preferred Plan, the open position is reduced stepwise through the addition of deliverable resources, and remains at or below 500 MW in 2031 and subsequent years with the help of future placeholder resources as load growth continues.

14. Q. THE COMPANIES ARE REQUESTING APPROVAL OF FOSSIL GENERATION AS A PART OF THE PREFERRED PLAN. ARE THE COMPANIES DEVIATING FROM THEIR CLEAN ENERGY GOALS?

A. No. The Companies remain committed to Nevada's sustainability objectives. As described in the Renewables Section of the 2026 Joint IRP Supply Plan, the

Companies are seeking approval of 23 PPAs consisting of third-party contracted resources that would add approximately 4,550 MW of renewable generation capacity and 5,405 MW of battery energy storage system ("BESS") output capacity across the Nevada Power and Sierra systems. At the same time, as described in the 2026 Joint IRP Economic Analysis, the Preferred Plan includes additions of near-term natural gas combustion turbines and future firm dispatchable placeholder capacity (modeled as natural gas combustion turbines) to support resource adequacy and operational flexibility as load grows and as the effective load carrying capability ("ELCC") contribution of renewable and storage resources changes over time. These units are planned primarily as capacity and flexibility resources, rather than for sustained energy production, while the Preferred Plan continues to rely on significant renewable and storage additions to serve energy needs and advance carbon-reduction objectives.

15. Q. DO THE COMPANIES NEED THE RENEWABLE RESOURCES IN THE PREFERRED PLAN TO MEET THE STATE-MANDATED RPS REQUIREMENTS?

A. Yes. As discussed in the Renewables Section of the 2026 Joint IRP Supply Plan and in the Renewable Outlook section of this testimony, the Companies need substantial incremental renewable and storage resources to meet Nevada's escalating RPS requirements—42 percent in 2027 and 50 percent in 2030—and to continue progress toward the State's 2050 clean energy goal. Although the Companies have exceeded the RPS requirement to date, the Companies' RPS outlook projects potential non-compliance in 2027 through 2032 in large part due to the escalating RPS requirement coupled with projected retail load growth. At the same time, bringing new renewable resources online is challenging due to federal

policy surrounding certain renewable resource types, and resource cancellations. The Companies therefore seek approval of a large set of renewable and storage PPAs in this Docket, which would materially increase the Companies' ability to generate portfolio energy credits and address projected shortfalls. While the Companies may use banked credits and credit sharing between Nevada Power and Sierra as part of their compliance strategy, the Renewables Section of the Supply Plan shows that the existing surplus credit bank is expected to decline significantly under the updated load outlook, which limits the ability to rely on past surpluses as a long-term solution.

16. Q. IF THE COMPANIES PROJECT THAT THE RPS WILL NOT BE ACHIEVED UNTIL 2033, WHY DO THEY LIMIT RENEWABLE PLACEHOLDER RESOURCES IN 2031 AND 2032 IN THE IRP PLANS?

A. Recent federal policy developments and administrative actions have increased the risk that otherwise economic wind and solar projects may experience delayed development or reduced value due to permitting bottlenecks and uncertainty regarding approvals that require federal sign-off. The Companies limit annual placeholder renewable resources to no more than 200 MW of solar, 0 MW of wind and 50 MW of geothermal in 2031 and 2032, determined via a stepwise analysis described in the Economic Analysis Narrative, due to expectations that this federal policy would result in limited availability of implementable solar and wind resources in the near term, making reliance on these future placeholder resources, in lieu of real projects, imprudent, while at the same time geothermal resources have typically not been available in large quantities in the Companies' requests for proposals ("RFP"). These limitations were not applied in the Low Carbon Plan

which requires an unrealistically accelerated very-near-term buildout of renewable and storage resources.

17. Q. PLEASE DESCRIBE THE ALTERNATE PLAN, WILDHORSE PLAN, LOW CARBON PLAN, AND NO OPEN POSITION PLAN.

A. The 2026 Joint IRP identifies an Alternate Plan referred to as the Ward Plan. As summarized in the Economic Analysis and testimony of Kimberly Williams, the Ward Plan is substantially similar to the Preferred (Obsidian) Plan in overall resource mix and objectives, but differs in certain resource selections and timing—most notably, the amount of thermal capacity added in 2030 and the type of thermal capacity added in 2031—while still relying on significant renewable and storage additions and associated transmission to meet load growth and reliability needs. The Economic Analysis also discusses an additional alternative plan referred to as the Wildhorse Plan, in which more thermal capacity is added in 2031 relative to the Preferred Plan. Consistent with the Commission's guidance, the Economic Analysis also includes "named placeholder" projects in the alternative plans to represent reasonably known candidate projects; those placeholders are not requested for approval in this filing.

The Low Carbon Plan is a required alternative under NAC § 704.937(1) and is designed to achieve an 80 percent reduction in carbon dioxide emissions from 2005 levels by 2030. As reflected in the Economic Analysis, this constraint results in an unrealistically accelerated very-near-term buildout of renewable and storage resources relative to the Preferred Plan. While not viable, this plan illustrates the tradeoffs in portfolio cost when pursuing a more stringent near-term emissions trajectory.

Pursuant to NRS § 704.741(3)(c)(2), the No Open Position Plan is designed to close the Companies' open position by 2032 and maintain that position thereafter. Because it targets minimal reliance on market purchases for capacity, this plan requires additional firm capacity and/or storage resources relative to the Preferred Plan, and it illustrates the cost and execution implications of attempting to fully eliminate the open position under the updated 2026 Joint IRP Base Load Forecast.

All of the plans evaluated in the Economic Analysis—including the Preferred (Obsidian) Plan, the Wildhorse Plan, the Alternate (Ward) Plan, the Low Carbon Plan, and the No Open Position Plan—address the need for RPS-contributing resources to the extent possible as well as capacity additions to serve the growing load and reduce the Companies' open position. The present worth of revenue requirement ("PWRR") comparison of alternative plans is presented in the Economic Analysis, Figure EA-46 (with the PWRR differences and rank order presented in Figure EA-47).

18. Q. PLEASE SUMMARIZE YOUR SUPPORT OF THE PREFERRED PLAN.

A. I support the Preferred (Obsidian) Plan because it responds to current circumstances reflected in the 2026 Joint IRP, including step-change load growth, constrained and uncertain regional market availability and deliverability, escalating RPS requirements, and execution realities associated with permitting, interconnection, and transmission timelines. The Preferred Plan also depends on large customer load commitments under a Commission-approved LLESA framework to establish clear rules for planning for the large load requests reflected in this IRP and in future IRPs. Overall, the Obsidian Plan provides a balanced, deliverable portfolio that reduces the Companies' open position in the near term, advances significant renewable and

storage additions, and includes firm dispatchable capacity to support resource adequacy and operational flexibility as load grows and as renewable and storage contributions change over time. The Obsidian Plan adds significant new generating and storage projects to serve the growing load but also leaves room to pivot in future filings as the load develops, technology advances, the economic environment changes, and federal and state policy evolves.

III: FORM LLESA

19. Q. PLEASE PROVIDE AN OVERALL EXPLANATION OF THE FORM LARGE LOAD ELECTRIC SERVICE AGREEMENT AND ITS PURPOSE IN THIS PROCEEDING.

A. The Companies request Commission approval of a standard form Large Load Electric Service Agreement ("LLESA") for eligible large customers taking bundled service under Schedule LGS-3 / GS-3. The LLESA begins with the bundled Schedule LGS-3/GS-3 and adds rate components and contractual terms that are intended to provide clear rules for serving very large new or accelerated load requests while protecting existing customers through cost-causation-based provisions. In general, the agreement ties the customer's requested load levels and ramp schedule to defined minimum-billing and security requirements and conditions long-term supply commitments on Commission approval of the underlying resources or other approved alternatives.

20. Q. HOW DO THE KEY PROVISIONS OF THE LLESA CREATE CLEAR REQUIREMENTS FOR CUSTOMERS EXECUTING SUCH AGREEMENTS WHILE PROTECTING EXISTING CUSTOMERS?

A. The LLESA aligns responsibility with cost causation by pairing the Companies' obligation to plan for and serve significant load with customer commitments that help reduce stranded-investment risk and protect existing customers. Among other things, it establishes the customer's load commitments through Maximum Demand and a ramp schedule, minimum billing for demand and energy, termination provisions (with mitigation if a commensurate customer can assume the load), and security or objective credit standards to support the customer's obligations.

21. Q. HOW MANY CUSTOMERS ARE CURRENTLY PROCEEDING TOWARD EXECUTION OF AN LLESA, AND WHAT IS THE ANTICIPATED AGGREGATE LOAD?

A. At this time, five customers are proceeding toward execution of an LLESA. Collectively, those customers are anticipated to execute eight separate agreements, reflecting customer-specific locations and ramp schedules. Based on current information provided by those customers, the Companies anticipate that the aggregated load across these agreements will exceed 3.3 gigawatts by 2032.

One customer signed a letter of intent in the second quarter of 2025, the first form the Companies used to inform the planning process for large load customers. The framework outlines the mutual intent to incorporate the anticipated load ramp into the IRP planning process. The framework helps set expectations that serving large load customers may require new generation and related transmission or distribution facilities, subject to PUCN review and approval, and that such additions and

associated cost responsibilities are addressed through subsequent agreements. The framework is intended to establish a common starting point for the terms that would be included in a definitive agreement to protect existing customers from the potential risks of serving the large load customer. The definitive agreement is now defined as the LLESA.

22. Q. PLEASE DESCRIBE THE APPLICABILITY OF THE FORM LARGE LOAD ELECTRIC SERVICE AGREEMENT.

A. The form LLESA is intended to apply to eligible large customers with at least 25 MW taking bundled retail electric service under Schedule LGS-3 / GS-3 whose requested load size, ramp timing, or load volatility may require the Companies to develop incremental resources beyond what would otherwise be necessary to serve existing customers. The agreement is executed on a customer-specific basis to reflect the customer's ramp schedule and is expressly conditioned on Commission approvals required to implement the agreement and, where applicable, to approve or otherwise authorize related supply arrangements. The LLESA is designed to operate in coordination with other required agreements and processes, such as Rule 9 interconnection and related facilities arrangements. In this manner, the LLESA defines when and how the Companies will make long-term generation and energy commitments for large load requests, while establishing minimum billing, termination, and security provisions intended to protect existing customers from cost shifts.

23. Q. HOW DID THE COMPANIES DETERMINE WHEN THE FORM LLESA IS APPLICABLE FOR NEW AND EXISTING ACCELERATED LARGE CUSTOMER LOADS OF 25 MW OR GREATER?

A. The Companies evaluated applicability based first on the load's expected characteristics including the customer's anticipated load shape, magnitude, and timing of the requested load. The Companies then consider the point at which serving that load could reasonably require incremental procurement and/or incremental generation and transmission investments beyond what would otherwise be needed to serve existing customers. Given existing generation and related transmission constraints, large load requests will require procurement or investment.

In practice, the Companies first confirm that the customer is an eligible bundled retail customer taking service under Schedule LGS-3 / GS-3 and that the request is for a load of at least 25 MW (whether a new customer request or an increase that accelerates an existing customer's load above prior expectations). The Companies then assess the customer's requested in-service date(s), ramp schedule, and expected load characteristics to determine whether the request represents a new or accelerated large load addition, and whether the load's size, timing, and anticipated load shape with other similarly situated customers create a need for incremental resource actions or increase stranded investment risk. Where those conditions are present, the Companies apply the form LLESA to establish the customer's contractual commitments, including ramp and minimum-billing obligations and associated security, so that incremental costs driven by the new or accelerated large load are aligned with cost causation and are not shifted to existing customers.

24. Q. PLEASE PROVIDE A SECTION-BY-SECTION SUMMARY OF HOW THE LLESA IS ORGANIZED.

A. The LLESA is organized to establish foundational definitions and conditions precedent (including Commission-approval requirements), describe service and pricing constructs, and set forth protections, remedies, and standard legal provisions. The following questions summarize each major section of the agreement.

25. Q. WHAT DO THE RECITALS AND ARTICLE I (DEFINITIONS) ACCOMPLISH?

A. The recitals establish the context for the agreement, including that the customer may also require a separate Rule 9 interconnection agreement for physical connection to the Companies' system. Article I defines key terms used throughout the LLESA such as Maximum Demand, Minimum Demand, Minimum Energy, ESA Overall Rate, Customer Specific Generation Charge, and Customer Reserved Provisions so that the customer's load commitments, rate components, and remedies are applied consistently and transparently over the term.

26. Q. WHAT IS COVERED IN ARTICLE II (CONDITIONS TO EFFECTIVENESS; EFFECTIVE DATE; CERTAIN COVENANTS)?

A. Article II makes the LLESA's effectiveness expressly contingent on required Commission approvals and establishes an expectation that the parties will cooperate in pursuing those approvals. It also describes the effective date mechanics and includes certain covenants related to implementation, including a defined interim process in the event a Commission approved generating facility (or other approved alternative) is not approved or otherwise available on the contemplated schedule.

27. Q. WHAT IS COVERED IN ARTICLE III (TERM; TERMINATION; TERMINATION PAYMENT)?

A. Article III establishes the agreement term and provides a structured elective termination right that may be exercised after long-term supply begins, subject to notice requirements. It also includes a termination payment construct intended to address remaining minimum billing obligations and reduce stranded cost risk, with mitigation through potential backfill if a commensurate customer can assume the load.

28. Q. WHAT IS COVERED IN ARTICLE IV (ELECTRIC SERVICE; MAXIMUM DEMAND; RAMP DEMAND; MINIMUM DEMAND; ESA OVERALL RATE)?

A. Article IV describes the service and core pricing constructs by tying the customer's requested load and ramp schedule to defined billing obligations. It addresses Maximum Demand and Ramp Demand, includes Minimum Demand and Minimum Energy concepts used to support planning and procurement, and describes the ESA Overall Rate construct. It also provides limited, structured opportunities to request changes in Ramp Demand during the ramp period and includes a mechanism for requesting a load factor reduction where doing so is supported by cost avoidance.

29. Q. WHAT IS COVERED IN ARTICLE V (ENERGY SUPPLY; FORECAST)?

A. Article V distinguishes short-term energy supply from long-term supply tied to a Commission-approved generating facility (or other approved alternative). It describes options for short-term energy products, sets customer forecasting expectations used for planning and procurement, and addresses contingencies if a resource fails to deliver or if a procurement agreement terminates.

30. Q. WHAT IS COVERED IN ARTICLE VI (CUSTOMER SECURITY)?

A. Article VI addresses credit and security requirements that support the customer's financial obligations under the agreement. It generally requires the customer to demonstrate objective creditworthiness or provide security sized to the customer's obligations, which is intended to reduce nonpayment risk and help protect existing customers from cost shifts.

31. Q. WHAT IS COVERED IN ARTICLE VII (RAMP PERIOD; RAMP SCHEDULE; RAMP DEMAND)?

A. Article VII contains the customer specific ramp schedule that defines how the customer's load is expected to increase over time and how Ramp Demand is applied for billing and planning purposes. This schedule is a key operational component because it informs the timing of procurement and resource development actions needed to serve the customer while applying the agreement's minimum billing constructs during the ramp period. Monthly ramps are requested to increase planning transparency and facilitate alignment on the Customer's minimum billing.

32. Q. WHAT IS COVERED IN THE REMAINING ARTICLES AND EXHIBITS?

A. The remaining provisions address customary contract topics such as representations and warranties, ongoing covenants, events of default and remedies, dispute resolution and governing law, and other standard terms, including sanctions and cybersecurity-related requirements. The exhibits provide supporting details, including illustrative calculations for rate components and termination payments, and they identify Customer-Reserved Provisions for Commission consideration.

33. Q. HOW DOES THE LLESA CONNECT TO THE DIFFERENT LOAD FORECASTS PRESENTED IN THE 2026 JOINT IRP?

A. The 2026 Joint IRP presents multiple load views to support planning and policy decisions: a Base Load Forecast that includes mitigated large load ramps, a Base Plus sensitivity that removes mitigation and reflects full contracted ramps, and a Base Minus sensitivity that removes new or accelerated large-customer loads to illustrate the system outlook absent that growth. The LLESA aligns with this framework by translating the planning distinction between excluded, mitigated, and unmitigated large load outcomes into contractual commitments and customer financial responsibility. The Companies plan to serve the Base Load Forecast for system planning purposes and use comparison of the Preferred Plan to the resource buildout in the Base Minus informational case presented in the Economic Analysis to isolate the incremental resources and costs driven by large load additions; the LLESA applies minimum-billing, termination, and security provisions intended to ensure that incremental supply and capacity investments driven by large load additions are borne by the customers causing those costs rather than shifted to existing customers.

34. Q. PLEASE EXPLAIN HOW THE CONTRACT'S BILLING, TERMINATION, AND SECURITY MECHANISMS RELATE TO THE COMPANIES' RESOURCE PLANNING ANALYSIS AND COST-ALLOCATION FRAMEWORK.

A. The Companies' planning analysis uses the Base Load Forecast and related sensitivities, including the Base Minus load forecast that excludes new or accelerated large load additions, to identify incremental generation and transmission that would not otherwise be needed. The LLESA is designed to align

those incremental costs with the customers driving them and to reduce stranded-investment risk for existing customers.

The agreement uses three complementary features. First, the Customer-Specific Generation Charge ("CSGC") begins shortly after Commission approval and is intended to collect, through a Contribution In Aid of Construction ("CIAC"), the incremental costs for new thermal generation and related transmission projects that are not needed in the Base Minus informational case. CSGC thus helps align future rate base investment with the embedded cost of generation at the time resources are placed in rate base. In other words, the contributions by the large load customers during construction will result in the new thermal generation having the same cost as the existing entire generation fleet developed and depreciated over many years. Second, the Long-Term Energy Rate is intended to recover the cost of incremental long-term purchased power agreements and gas pipeline expansion that are not needed in the Base Minus informational case. Third, minimum billing requirements (Minimum Demand and Minimum Energy, with limited annual adjustment opportunities during the ramp period) provide planning and revenue stability to support procurement and deliverability of energy. Minimum energy revenue that exceeds an LLESA customer's actual usage is credited to all customers through the Base Tariff Energy Rate and Deferred Energy Accounting Adjustment mechanism, consistent with existing regulatory accounting treatment.

35. Q. PLEASE SUMMARIZE THE LLESA'S KEY CHARACTERISTICS THAT IMPLEMENT THESE "OPPORTUNITIES WITH GUARDRAILS," INCLUDING THE CUSTOMER-RESERVED PROVISIONS.

A. The LLESA is intended to enable large load opportunities under defined conditions while protecting affordability and reliability for existing customers. Key features include: (i) the CSGC to recover the incremental cost of new thermal generation and related transmission not needed in the Base Minus informational case, with payments beginning shortly after Commission approval; (ii) the Long-Term Energy Rate to recover incremental PPA costs not needed in the Base Minus informational case, beginning as each resource is in service; (iii) minimum billing (minimum demand and minimum energy), with limited opportunities to adjust ramp demand and request a load-factor reduction when supported by cost avoidance; (iv) termination provisions requiring notice and payment of remaining minimum-billing obligations, subject to mitigation if a commensurate customer can assume the load; and (v) customer security requirements designed to support the customer's obligations, subject to objective credit standards.

The agreement also includes Customer-Reserved Provisions, which allow a customer to execute the form agreement while preserving the ability to present a different position for Commission consideration on specified items. These items include the minimum demand and minimum energy percentages; the calculations of the CSGC, ESA Overall Rate, and Long-Term Energy Rate; and the calculations of the termination payment and customer security.

36. Q. PLEASE PROVIDE FURTHER DESCRIPTION OF THE CUSTOMER-SPECIFIC GENERATION CHARGE ("CSGC") AND WHAT COSTS IT IS DESIGNED TO CAPTURE.

A. The CSGC is designed to recover from LLESA large load customers the incremental cost requirement, through a CIAC, associated with new thermal generation and related transmission investments needed to serve their incremental load, consistent with cost causation. For purposes of the 2026 Joint IRP, the Companies identify those incremental needs by comparing the portfolio required with the large load additions to the portfolio required absent those additions. In this filing, the CSGC includes all thermal builds and related transmission needed to interconnect the generation to serve the incremental load. Preliminary estimate of the CSGC is approximately $18/kW and would apply to the 2032 requested peak of the customer beginning in January 2027 as a monthly rate. For example, if a customer's 2032 peak is 100 MW, the monthly charge would be $1.8 million. This charge is designed to collect sufficient funds through a CIAC, to align the cost of the incremental generation to embedded generation by the time the incremental generation is in-service.[3]

The CSGC is designed to address the incremental load anticipated by 2032 based on the customers applicable to the LLESA framework; future IRPs will evaluate whether additional incremental generation and transmission are needed for load beyond that horizon. The CSGC will be reviewed in each general rate case, with CIAC reflected in base tariff general rate revenue, to provide a transparent view of incremental large load customers paying the incremental generation and related transmission costs required to serve them.

[3] The estimate of the CSGC was incorporated into the financial analyses using updated inputs. Further updates have occurred since that analysis was done and as LLESA agreements proceed to execution, estimates will continue to evolve.

37. Q. PLEASE PROVIDE FURTHER EXPLANATION OF THE LONG-TERM ENERGY RATE.

A. The Long-Term Energy Rate is designed to collect from the LLESA large load customers the incremental costs of long-term energy supply arrangements needed to serve their load, consistent with cost causation. Specifically, the rate is intended to reflect (i) the incremental PPAs costs needed to serve the LLESA large load customers and (ii) the fixed costs associated with any gas pipeline expansion required to support the generation investments needed to serve that incremental load. Preliminary estimate of the long-term energy rate is $37/MWh. This estimate reflects the rate required to collect the necessary revenue for the fixed costs of the PPAs and gas pipeline expansion using the anticipated MWh billing determinants for 2032, and applying the same pro-rata allocation process as the CSGC. The billing determinants are calculated assuming the minimum energy proposal of the LLESA (72 percent of the monthly peak customer forecast) and therefore the estimated rate will change if there are changes to the form LLESA minimum billing proposal. Using the 100 MW by 2032 example above, assuming the customer minimum on energy, a 30 day month charge for LTER is 51,840 MWh times $37 or approximately $1.9 million. This rate is for the incremental generation and is paid in addition to the base tariff energy rate.

While the estimate is provided as one rate, in reality, the Long-Term Energy Rate will apply as the associated resources and supply arrangements come online, and each LLESA customer will pay its pro rata share based on the customer's contracted load commitments under the agreement.

38. Q. WHAT ACTION ARE THE COMPANIES REQUESTING FROM THE COMMISSION WITH RESPECT TO THE FORM LLESA?

A. As detailed in the testimony of Mr. Elicegui, the Companies respectfully request that the Commission approve the form Large Load Electric Service Agreement as presented in Exhibit-Wells Direct-2, for use with eligible large load customers, after considering the customer reserve positions that may be presented by those who execute the agreement. Exhibit Wells-Direct-3 provides a copy of each Customer's reserve positions for each pending execution version of the LLESA.

Approval of the form agreement will provide a clear and durable set of rules for the provision of generation capacity and energy to large customer requests under the applicable tariff, including defined requirements for load ramp commitments, minimum billing, termination, and customer security. The Companies believe this framework appropriately balances Nevada's continued economic development opportunities with the Commission's obligation to ensure just and reasonable rates and to protect the affordability and reliability of service for existing customers.

39. Q. ARE SIGNED AGREEMENTS INCLUDED IN THIS DOCKET?

A. No. The Companies will file each executed agreement shortly after filing the Joint 2026 IRP, through separate applications requesting Commission approval. Each executed agreement will include the customer's reserved positions for Commission consideration, which address both the LLESA's terms and its applicability. The Companies will revise each agreement to conform to the final terms approved by the Commission and the customer will determine whether they agree to the approved LLESA and will fully execute the agreement if so. Customers who have not executed an agreement could be provided an opportunity, at the Commission's

direction, to execute an agreement if a commitment is made within a specified period to facilitate inclusion in the load forecast for final planning, referenced in Mr. Elicegui's testimony as the LLESA Load Forecast. Conversely, if a customer chooses not to execute an agreement, the Companies request the Commission provide direction to the Companies regarding removing the loads from the load forecast for final planning. The LLESA provides protection for existing customers by aligning the incremental costs with the large load customers. Resolving the LLESA Load Forecast will connect the contractual commitments with the incremental resources and avoid shifting costs associated with incremental resource to existing customers. For example, the Companies will make financial commitments to PPAs required solely for the large load requests. The contractual commitments in the LLESA ensure that even if the load does not materialize, large load customers will be obligated to pay for the resources. Prepared Direct Testimony of Shawn Elicegui provides a complete discussion of the Companies' proposed timeline of requested decisions.

IV. RENEWABLE OUTLOOK

40. Q. PLEASE DESCRIBE NEVADA'S RENEWABLE PORTFOLIO STANDARD.

A. Nevada measures RPS compliance using portfolio credits ("PCs"). In simple terms, PCs are the accounting units utilities must hold to show they met the required standard for the year. PCs can come from Company-owned renewable generation, renewable power purchase agreements ("PPAs"), banked PCs from prior-year generation, eligible station-use PCs, and grandfathered solar multiplier PCs. In the most recent annual RPS compliance filing, Docket No. 26-04023, the Companies

exceeded the 2025 RPS credit requirements of 34 percent, achieving an RPS of 47.5 percent.

For calendar year 2026, the RPS requirement is 34 percent of retail sales. In practice, each Company must hold PCs equal to at least 34 percent of its retail sales for that year. The requirement increases to 42 percent for 2027 through 2029, and to 50 percent beginning in 2030.

Nevada also has an aspirational goal of creating an inventory of greenhouse gas emissions in the State and planning to reduce greenhouse gas emissions to zero or near-zero by the year 2050.

41. Q. PLEASE DESCRIBE THE RPS RENEWABLE PLAN DEVELOPED FOR THE IRP.

A. The Companies prepared an RPS renewable plan by forecasting (1) the number of PCs required each year (based largely on projected retail sales) and (2) the number of PCs expected from existing, planned, proposed, and placeholder renewable resources in each alternative plan. Comparing those forecasts indicates whether the Companies are projected to have sufficient PCs to comply and helps identify when additional actions may be needed. The IRP Narrative provides additional detail on key inputs and assumptions used in this modeling process.

42. Q. PLEASE DESCRIBE NEVADA POWER'S RPS OUTLOOK AND ANY POTENTIAL CONCERNS.

A. Nevada Power exceeded the 2025 RPS requirement of 34 percent, as reported in Docket No. 26-04023. However, the outlook for 2027 through 2040 projects

potential non-compliance in large part due to the increase in the RPS requirement coupled with projected retail load growth. As retail sales increase, the number of PCs Nevada Power must acquire likewise increases, and that requirement steps up to 42 percent in 2027 and 50 percent in 2030. At the same time, bringing new renewable resources online quickly enough to keep pace with rising load growth presents significant challenges, including limited developable land, lengthy permitting and interconnection timelines, and near-term transmission constraints (including network upgrades and procurement of long-lead equipment). Additional risks include cost escalation and permitting delays that can lead to project cancellations; for example, the Boulder Solar III project approved in Docket No. 24-05041 encountered cost and permitting delays, leading to termination of its PPA in March 2026.

43. Q. PLEASE DESCRIBE SIERRA'S RPS OUTLOOK AND ANY POTENTIAL CONCERNS.

A. Sierra exceeded the 2025 RPS requirement, as reported in Docket No. 26-04023. However, the outlook for 2027, 2031, and 2032 projects potential non-compliance in large part due to the increase in the RPS requirement coupled with projected retail load growth. [4] Combined with Nevada Power, the Companies are projected to be non-compliant in 2027 through 2032. As retail sales increase, the number of PCs Sierra must acquire likewise increases, and that requirement steps up to 42 percent in 2027 and 50 percent in 2030. Like Nevada Power, bringing new renewable resources online quickly enough to keep pace with rising load growth presents challenges, including limited developable land, lengthy permitting and interconnection timelines, and near-term transmission constraints (including

[4] Compliance in 2028 and 2029 is partly attributable to accounting for the output from Libra in Sierra's outlook as opposed to Nevada Power's outlook, absent an approved allocation.

network upgrades and procurement of long-lead equipment). Sierra's outlook is further affected uncertainty associated with planned contract extensions, and cancellations or delays of renewable PPAs due to cost pressures, supply chain constraints, and permitting delays. For example, the North Valley 2 and Gerlach PPAs were canceled, and the Luning Expansion PPA has been placed on indefinite hold.

44. Q. WHAT ACTIONS HAVE THE COMPANIES TAKEN TO ADVANCE RENEWABLE EXPANSION, AND HOW DOES THE 2026 JOINT IRP REPRESENT THE LARGEST RENEWABLE EXPANSION PLAN IN THE COMPANIES' HISTORY?

A. Although the RPS outlook projects potential non-compliance in 2027 through 2032, the Companies have continued to advance renewable resource development through the 2026 Joint IRP. As described in the Renewables Section of the Supply Plan, the Companies seek approval of 23 PPAs, representing 20 unique projects, consisting exclusively of third-party contracted resources that, if approved, would add approximately 4,550 MW of renewable generation capacity and 5,405 MW of battery energy storage system ("BESS") output capacity across the Nevada Power and Sierra systems. Included in those projects are sleeved agreements with large customers, captured in energy agreements that outline the commitment of the customer to pay for all output from those projects. In addition to supporting compliance with Nevada's RPS and progress toward longer-term clean energy objectives, certain of these resources help address near-term reliability needs, including a projected Sierra reliability concern beginning in the summer of 2027, as further described in the Supply Plan and supporting testimony. Successful implementation will depend on timely regulatory approvals and continued

coordination with stakeholders, as well as the ability to address permitting, interconnection, and transmission constraints.

V. CTT EXEMPLAR MODEL

45. Q. WHY ARE THE COMPANIES FILING EXEMPLAR CTT PRICING MODELS IN THIS DOCKET?

A. The Commission Order in Docket Nos. 24-05022 and 24-05023 directed the Companies to submit the base CTT pricing model for approval in an IRP or IRP amendment before submitting any further CTT applications beyond those pending at the time the order was issued. Additionally, the Companies stipulated to incorporating the following elements into future CTT pricing models:

- include information in the CTT pricing model that differentiates the split between Base Tariff General Rate ("BTGR") and Base Tariff Energy Rate ("BTER") in the CTT ESA rate; and
- update the base CTT pricing model to incorporate the Commission-approved modeling assumptions presented in Docket No. 24-05041 for the similar base Large Customer Market Price Energy model.

46. Q. PLEASE DESCRIBE THE PRICING MODEL, INCLUDING ANY UPDATES.

A. The models presented build upon the base CTT pricing models filed in Docket Nos. 24-05022 and 24-05023 and incorporate the Commission-ordered modeling assumptions from Docket No. 24-05041:

- Zero BTGR generation credits when the customer is served from the Companies' grid (modeled in the base CTT pricing model as Grid hours);

- Apply the planning reserve margin ("PRM") to the customer's annual consumption served by the underlying renewable resource in the ESA price calculation;
- Separate the administrative fee from the PRM cost to separately apply the administrative fee to the customer's annual consumption as an element of the ESA price calculation;
- Remove grid-hour capacity costs from the ESA price calculation; and
- Incorporate the most recently approved pricing model inputs.

In general, the base CTT pricing models begin with an hourly load profile and renewable resource information and incorporate the revisions previously discussed from Docket No. 24-05041 and Docket Nos. 24-05022 and 24-05023. The Companies utilized the following modeling assumptions in the exemplar base CTT pricing models provided with this filing:

- In the exemplar base CTT pricing models, the Companies used a representative 20 MW large transmission customer with a load shape scaled from the large transmission rate class for the hourly load profile;
- For the exemplar renewable resources, the Companies used general characteristics of recently approved solar and battery resources, along with resource prices that reflect the levelized costs for renewable resources presented by the Companies in this Docket;
- The base CTT pricing model includes the most current inputs, such as updated PRM, and active rates: BTGR, BTER, Deferred Energy Accounting Adjustment ("DEAA"), and public policy rates;
- The PRM was updated to reflect 2026 requirements;

- Demand is allocated between Grid and non-Grid based on the percentage of kWh served from the Grid and served from the Resource during the applicable time-of-use period; and
- A tab is added to the base CTT pricing model that demonstrates the assignment of BTGR and BTER of each of the cost components that sum to the total CTT ESA rate.

The models continue to provide the calculation of the ESA rate, including rate components that apply in all hours but are collected through the ESA rate, such as the PRM. The models also include other rate components applicable outside of resource hours, such as the Base Tariff Energy Rate and the DEAA. The models provide both the ESA rate and the resulting fully bundled effective rate and compare those to the customer's otherwise applicable rate class.

47. Q. ARE THE COMPANIES REQUESTING APPROVAL OF THE CTT MODELS PROVIDED WITH THIS FILING?

A. Yes. The Companies request that the Commission approve the models as filed for use as a baseline in future ESAs filed under the CTT tariff.

VI. DRP OVERALL POLICY

48. Q. WHAT EFFORTS HAS NV ENERGY MADE SINCE THE 2024 JOINT IRP TO ADVANCE THE DIRECTIVES OF THE DRP?

A. Since the 2024 Joint IRP, NV Energy has advanced the DRP through its 2026 Joint DRP filing by further integrating distribution planning and operations, refining how DER benefits are valued, and expanding the tools and processes used to plan for

distributed energy resources ("DERs"). These efforts include continued development of hosting capacity analyses ("HCA"), grid needs assessments ("GNA") with more robust non-wires alternative ("NWA") screening and locational net benefit analyses ("LNBA"), enhancements to the public DRP web portal, and continued investment in planning and operational toolsets, including the DER Analytics Toolset and Distributed Energy Resource Management System ("DERMS")-related capabilities.

49. Q. HOW HAVE THOSE EFFORTS SUPPORTED THE DEVELOPMENT OF THIS 2026 JOINT IRP?

A. The 2026 Joint DRP supports development of this 2026 Joint IRP by improving how the Companies forecast DER adoption, identify and quantify distribution system constraints, and evaluate non-wires solutions that can defer or avoid wired capital projects. This improved integration allows DER programs and investments reflected in the DRP and DSM plans to be more consistently represented in the IRP's resource planning framework, including the treatment of certain flexible load and DERs modeled as load modifiers in the Economic Analysis, as shown in Figure EA-8.

More broadly, the Companies' continued evolution of the DRP, DSM, and TEP is intended to ensure that customer programs and distributed technologies provide incremental grid value by enabling flexible load, reducing peak demand and localized constraints, and improving the Companies' ability to integrate renewables cost-effectively. This coordination is increasingly important given the pace of load growth and the operational and deliverability constraints reflected in the 2026 Joint IRP.

50. Q. HOW ARE UTILITY-OWNED COMMUNITY SOLAR ("UOCS") AND SOLAR FOR ALL ("S4A") RESOURCES ADDRESSED IN THIS FILING?

A. UOCS and S4A resources are intended to support potential use of federal funding opportunities (including EPA Solar for All funding that had been awarded to the Nevada Clean Energy Fund) and to advance community solar and low-income solar concepts. These items are discussed in the 2026 Joint DRP in Section 8.D (and the related discussion in Section 2.A), which covers pilots and demonstrations and opportunities to leverage federal funding. I support those sections of the DRP as the sponsoring witness.

51. Q. WHAT ARE THE KEY NEXT STEPS WITHIN THE ACTION PLAN PERIOD?

A. Key next steps in the DRP within the action plan period include:

- Continued integration of Commission-approved customer programs and DER solutions into the Companies' NWA solution set for forecasted distribution and transmission constraints, including applying the LNBA framework to compare wired and non-wires solutions and to identify implementable NWA opportunities (see DRP Sections 3 and 8);
- Further development and implementation of the integrated planning framework so that distribution planning outputs (including GNA constraints and NWA screening results) are more consistently coordinated with the IRP, DSM, and other Commission-approved programs and tariffs (see DRP Section 5);
- Continued integration and utilization of the DER Analytics Toolset (*i.e.*, the LoadSEER and DSMore software packages) and related DER forecasting and valuation capabilities to improve locational DER adoption forecasts and to

expand the benefit streams evaluated in NWA/LNBA analyses and program valuation, with stakeholder input on prioritization (see DRP Section 7);

- Continued deployment and refinement of operational tools and enabling technologies, including the Companies' DERMS-related capabilities and associated distribution management system enhancements, and continued participation in federal initiatives such as the DOE grid services grant project (see DRP Sections 7.A, 7.B and 8.D); and
- Continued enhancement of the public-facing DRP web portal to provide accessible HCA and NWA-related information and pursue targeted pilots and demonstrations—including opportunities to leverage federal funding—to validate DER solutions that provide verifiable, locational grid value (see DRP Sections 6 and 8).

Section 9 of the DRP also discusses the Companies' plans to move elements of the DRP forward in keeping with the walk-jog-run philosophy adopted as part of the development of the DRP and supported by the Commission.

VII. DSM PLAN OVERALL POLICY

52. Q. ARE THE EFFECTS OF THE COMPANIES' DSM/DRP PROGRAMS INCLUDED IN ALL CASES AND PLANS IN THE 2026 JOINT IRP?

A. Yes. The 2026 DSM Plan and 2026 Joint DRP narratives provide the demand-side program assumptions used in this 2026 Joint IRP. Consistent with the 2026 DSM Plan and Mr. Pollard's load forecast testimony, DSM impacts, including demand response event savings, are reflected through adjustments to the system-level load forecast, rather than modeled as separate supply-side resources.

53. Q. WHERE ARE THE ACTION PLAN PERIOD DSM AND DEMAND RESPONSE REQUESTS DESCRIBED?

A. The Companies' action plan period DSM requests are described in the 2026 DSM Plan, including the proposed DSM portfolios and budgets for the 2027–2029 action plan period and the specific demand response offerings and implementation approach. Patricia Rodriguez sponsors the DSM Plan as the policy witness, and Adam Grant sponsors the TEP and associated flexible load programs. Additional testimony addresses program measurement and verification, cost-effectiveness, and rate impacts.

54. Q. PLEASE EXPLAIN WHY DSM IMPACTS IN THE LOAD FORECAST MAY DIFFER FROM PROGRAM PORTFOLIO REQUESTS IN THE DSM PLAN.

A. As described in the 2026 DSM Plan, program designs and target levels may evolve through stakeholder engagement, market potential study inputs, and implementation experience. Accordingly, the DSM impacts reflected in the load forecast are intended to represent reasonable planning assumptions applied consistently across cases and plans, while the DSM Plan requests reflect the specific budgets, program offerings, and implementation approach proposed for the action plan period.

55. Q. DOES THIS CONCLUDE YOUR PREPARED DIRECT TESTIMONY?

A. Yes.

EXHIBIT WELLS-DIRECT-1

Janet C. Wells
Vice President of Integrated Resource Planning
NV Energy
6100 Neil Road
Reno, Nevada 89511-1137
(775) 834-4135

Mrs. Wells has been an employee of NV Energy for eighteen years and her time at the company includes her previous positions as Vice President of Regulatory, Regulatory Policy Director, Manager of Load Research, Senior Economist and Staff Economist in the Rates and Regulatory Affairs department and her current position as Vice President of Integrated Resource Planning. Her current responsibilities are focused on the analytical and strategic approaches to the planning functions of NV Energy.

Prior to joining NV Energy, Mrs. Wells had experience in economic consulting and research in both corporate and academic environments, detailed below, as well as other non-profit business experience not specifically detailed below.

Employment History NV Energy
October 2011 to Present December 2000 to August 2005

Vice President of Integrated Resource Planning
February 2025 to present

- Lead the distribution, integrated grid, transmission and resource planning teams in addition to load forecasting and research analyses, integrated energy services and energy efficiency and conservation teams.

Vice President of Regulatory
May 2022 to February 2025

- Oversee the preparation of regulatory filings before the Public Utilities Commission of Nevada and specifically the Load Research, Pricing, and Regulatory Affairs technical teams.

Regulatory Policy Director, Rates and Regulatory Affairs
March 2020 to April 2022

- Direct analytical and strategic approaches to regulatory issues and filings as well as corporate deliverables. Conduct research and analysis in support of new regulatory initiatives. Collaborate with regulatory groups in developing analysis and strategic approaches to integrating regulatory, load research, load forecasting, and pricing.
- Continue to support the management and technical production of class loads and other regulatory filings employing load data analyses.

Manager, Load Research, Rates and Regulatory Affairs
April 2017 to February 2020

Supervisor, Load Research, Rates and Regulatory Affairs
July 2012 to March 2017

- Manage all data and analysis related to producing hourly class loads for all Nevada Power and Sierra Pacific customer classes. Specifically, this process includes verification and estimation of interval data from multiple systems, population identification and validation, statistical sampling from populations, expansion of sample classes to produce class level total loads, and verification of final class loads to historical loads.
- Support all regulatory filings and data requests with load data and analysis ranging from: providing actual data, drafting responses, providing feedback to responses, and documenting completed analysis. Write and support testimony as needed.
- Provide validated load data and analysis to numerous areas within the company including Major Accounts, Load Forecasting, Energy Efficiency, Billing, Contracts, and to specific projects within the company such as the Energy Imbalance Market and Advanced Metering Infrastructure. In addition, provide validated load data where appropriate for external requests.
- Provide expertise and support to other major projects related to load data management and analysis including all work from raw data integrations and management, customer specific deliverables, original programming to produce needed calculations, and both data and statistical support of final analyses and report writing for projects such as the Nevada Dynamic Pricing Trial (NDPT)

Senior Economist, Advanced Service Delivery Project
October 2011 to July 2012

- Managed statistical sampling for U.S. Department of Energy reporting on metrics and recruitment
- Contributed to development of statistical design for analysis
- Managed data integrations needed for implementation of project

Staff Economist, Rates and Regulatory Affairs
October 2001 to August 2005

- Updated the Nevada Power Cost of Service Study as an input to rate cases
- Updated Customer Weighting Factor Study for Nevada Power and Sierra Pacific as an input to rate cases
- Supported all regulatory filings with testimony review and responses to data requests

Senior Economist, Rates and Regulatory Affairs
December 2000 to October 2001

- Developed Nevada Power Cost of Service Study as an input to rate cases
- Developed automated system for completing Customer Weighting Factor Studies

Other Related Employment

University of Nevada, Reno
May 2005 to August 2006

Research Associate

- Developed statistical programs for data management and analysis of 20 years of data to assess the Economic Value of Hiking for publication in a book chapter
- Developed survey instrument, data management from the survey, and econometric analysis related to wild horse adoption

Triangle Economic Research, Durham, NC
July 1997 to December 2000

Senior Economist, March 2000-December 2000
Economist, July 1997-March 2000

- Prepared preliminary estimate of recreational fishing damages from hazardous substance release using revealed preference data in a random utility model
- Estimated random utility models to determine expected catch using multiple methods, including non-parametric estimation and a multinomial logit estimation of catch (presented at American Agricultural Economics Association annual meeting)
- Developed and administered survey of recreational boaters; acquired survey research firm and validated data. Developed analysis plan for probit model of probability of site choice and conditional logit model of recreational benefits from restoration projects. Results were published with estimates of recreational benefits from proposed restoration projects using benefit transfer from other cases in Arizona Law Review
- Completed data collection, data management, econometric modeling and analysis, and report writing to estimate aggregate values of recreational activities using a nested price index, published in Environmental and Resource Economics

Prior Testimony Before the Public Utilities Commission of Nevada

PUCN Docket Nos.: 15-07041, 15-07042, 16-06006, 17-06003, 17-06014, 17-06015, 18-08007, 18-10034, 19-02002, 19-04002, 19-06002, 20-06003, 21-09031, 21-09032, 22-06014, 22-09002, 22-09006, 22-11032, 23-02010, 23-02011, 23-06007, 23-08019, 24-02026, 24-02027, 24-05022, 24-05023, 24-05041, 24-06011, 24-06012, 24-06014, 25-01018, 25-01019, 25-02016, 25-02033, 25-08027, 25-08029, 25-10003, and 25-10028.

Education

University of Nevada, Reno
Master of Applied Economics and Statistics, August 1996

University of Manitoba, Winnipeg, Manitoba
Bachelor of Arts in Geography, June 1992

Continuing Education

NERA Marginal Cost Methodology for Electric Utilities SAS Programming I and II
CORE Leadership Training
Six Sigma Green Belt Certification

EXHIBIT WELLS-DIRECT-2

FORM OF
[LGS-3 / GS-3]
LARGE LOAD
ELECTRIC SERVICE AGREEMENT

[<insert customer name>]

This Large Load Electric Service Agreement (this "Agreement") is made and entered into as of [<insert date>] (the "Execution Date"), by and between [Sierra Pacific Power Company / Nevada Power Company] d/b/a NV Energy, a Nevada corporation ("NV Energy"), and [<insert customer name>], a [<insert jurisdiction and entity type>] ("Customer"). Each of NV Energy and Customer also may be referred to herein as a "Party" and collectively as the "Parties".

RECITALS

WHEREAS, NV Energy provides bundled retail electric service in Nevada in accordance with Tariff Schedules (as defined below) filed with and approved by the Public Utilities Commission of Nevada (the "PUCN");

WHEREAS, [Customer is in the process of constructing a [<insert customer-specific description of project>] that will be located at [<insert address>] (the "Project"), and Customer has requested that NV Energy provide the Project with bundled retail electric service][1];

WHEREAS, [Customer and NV Energy are parties to that certain Rule 9, Section B.2. High Voltage Distribution Agreement (Large Project), dated as of [<insert date>], agreement number [<insert agreement number>] (the "HVD Agreement"), pursuant to which, among other things (a) NV Energy has agreed to design, procure, construct, maintain and own the Utility-Owned Facilities (as such term is defined in the HVD Agreement) with respect to the Project, and (b) Customer has agreed to design, procure, construct, maintain and own the Applicant-Owned Facilities (as such term is defined in the HVD Agreement) with respect to the Project, in each case, all on the terms and subject to the conditions set forth in the HVD Agreement] [2];

WHEREAS, as of the Effective Date, NV Energy will provide the Project with bundled retail electric service pursuant to this Agreement, the GS-3 Tariff (as defined below) and other applicable provisions of the Tariff Schedules;

WHEREAS, NV Energy intends to file an Integrated Resource Plan proceeding with the PUCN on or about April 30, 2026, pursuant to which NV Energy intends to seek authorization to, among other things, (a) acquire various thermal generating resources which are anticipated to achieve commercial operation and to be placed in service between calendar years 2030 and 2032, and (b) make investments in various transmission infrastructure projects that are necessary to connect such thermal generating resources, and other generating resources from which NV Energy

[1] **Note to Draft**: Recital to be conformed to applicable Rule 9 agreement.
[2] **Note to Draft**: Recital to be conformed to applicable Rule 9 agreement.

will procure or generate electric capacity and energy for customers (including Customer) pursuant to the PUCN Resource Approval (as defined below), to NV Energy's transmission system, the collective costs of which generating resources and transmission infrastructure projects will be used, in part, to determine the Customer Specific Generation Charge;

WHEREAS, as of the Effective Date and pursuant to and in accordance with this Agreement, Customer shall be obligated to pay to NV Energy (as part of the ESA Overall Rate) the Customer Specific Generation Charge, which payment obligation precedes the dates upon on which such thermal generating facilities, and such transmission infrastructure projects, are anticipated to achieve commercial operation and to be placed in service; and

WHEREAS, the Customer Specific Generation Charge to be paid by Customer to NV Energy (as part of the Overall ESA Rate) is a non-refundable payment.

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NOW, THEREFORE, in consideration of the mutual covenants and agreements set forth in this Agreement and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties hereto agree as follows.

AGREEMENT

ARTICLE I.
DEFINITIONS

1.1 Definitions. In this Agreement, each of the following terms shall have the following meanings:

"Affiliate" shall mean (a) with respect to NV Energy, Berkshire Hathaway Energy Company and its direct and indirect wholly-owned subsidiaries, and (b) with respect to Customer, any other Person who, directly or indirectly, Controls, is Controlled by, or is under common Control with, Customer. For clarity and avoidance of doubt, Berkshire Hathaway Inc. shall not be deemed an Affiliate of NV Energy and Berkshire Hathaway Energy Company for purposes of this Agreement.

"Agreement" shall have the meaning set forth in the preamble to this Agreement.

"Alternative Generating Facility" means one or more energy generating facilities from which NV Energy will procure or generate electric capacity and energy for Customer that is approved by the PUCN to serve customers pursuant to the PUCN Alternative Resource Approval.

"Alternative Option 1 Short-Term Energy Product" has the meaning set forth in Section 5.1(c).

"Alternative Option 1 Short-Term Energy Rate" means all applicable rates based on the GS-3 Tariff, as determined by the PUCN, without duplication, plus a $2/MWh administrative fee.

"Alternative Option 2 Short-Term Energy Product" has the meaning set forth in Section 5.1(c).

"Alternative Option 2 Short-Term Energy Rate" means a rate calculated by NV Energy for Short-Term Energy that includes (a) an energy charge based on NV Energy's cost to serve the Project's Connected Load in accordance with this Agreement utilizing available generation capacity from any electric generating facilities not owned by or contracted to, but otherwise available to, NV Energy, plus a $2/MWh administrative fee, provided that such energy charge shall not be less than the sum of the BTER and DEAA rates for such Short-Term Energy; and (b) all BTER and DEAA rates for such Short-Term Energy, to the extent such BTER and DEAA rates are not included within clause (a) above.

"Alternative Resource Procurement Agreement" one or more agreements entered into by NV Energy as an alternative to the Resource Procurement Agreement and pursuant to which NV Energy shall obtain the right to provide electric capacity and energy from the applicable Alternative Generating Facility to serve the Project's Connected Load up to the Maximum Demand in accordance with this Agreement.

"Applicable Law" shall mean all applicable laws of any Governmental Authority having authority over the Project or the Parties' other business, including the then effective rules and regulations promulgated by the PUCN.

"Base Tariff Energy Rate" shall have the meaning set forth in the Tariff Schedules.

"Base Tariff General Rate" shall have the meaning set forth in the Tariff Schedules.

"Billing Period" shall have the meaning set forth in Rule No. 1 of the Tariff Schedules.

"BTER" shall mean the Base Tariff Energy Rate.

"BTGR" shall mean the Base Tariff General Rate.

"Business Day" shall mean any day except Saturday, Sunday or a weekday that banks in the State of Nevada are authorized or obligated to close.

"Change in Maximum Demand" shall have the meaning set forth in Section 4.4(b).

"Change in Ramp Demand" shall have the meaning set forth in Section 4.4(a).

"Connected Load" shall have the meaning set forth in Rule No. 1 of the Tariff Schedules.

"Control" of any Person shall mean the possession, directly or indirectly, of the power either to (a) vote fifty percent (50%) or more of the securities or interests having ordinary voting power for the election of directors (or other comparable controlling body) of such Person or (b) direct or cause the direction of management or policies of such Person, whether through the ownership of voting securities or interests, by contract or otherwise, excluding in each case, any secured lender of such Person.

"Creditworthiness Requirements" shall have the meaning set forth in Section 6.1(a).

"Customer" shall have the meaning set forth in the preamble to this Agreement.

"Customer-Reserved Provisions" means the provisions of this Agreement specifically described in Exhibit G.

"Customer-Specific Generation Charge" means a charge payable by Customer to NV Energy to compensate NV Energy for investments in, and operation and maintenance of, generating resources (including, without limitation, capacity, procurement, and integration costs) that are both approved by the PUCN and are required to serve the Maximum Demand in accordance with this Agreement. The Customer-Specific Generation Charge payable by Customer shall reflect Customer's pro rata share of the costs of all such generating resources, based on the Maximum Demand of Customer relative to the aggregate maximum demand of all applicable customers (including Customer). For the avoidance of doubt, Customer's pro rata share of such costs shall not be increased as a result of any changes to the maximum demand of any other applicable customer, and NV Energy shall provide Customer with any updates to Customer's pro rata share of such costs as soon as reasonably practicable after NV Energy files (a) its Integrated Resource Plan with the PUCN in calendar year 2026, (b) any Report on the progress of the Action Plan filed pursuant to the Nevada Administrative Code § 704.9498, and (c) any general rate case or similar ratemaking proceeding that includes a generating resource included in the Customer-Specific Generation Charge.

"DEAA" shall mean the Deferred Energy Accounting Adjustment.

"Deferred Energy Accounting Adjustment" shall have the meaning set forth in the Tariff Schedules.

"Effective Date" shall have the meaning set forth in Section 2.2.

"ESA Customer Security" shall have the meaning set forth in Section 6.1(a).

"ESA Overall Rate" means an overall rate calculated by NV Energy for Short-Term Energy and Long-Term Energy based on the Minimum Demand and Minimum Energy that includes (a) any applicable Customer Specific Facilities Charge(s); (b) all applicable charges for any BTGR, BTER and DEAA rates; (c) the Customer-Specific Generation Charge; (d) with respect to Short-Term Energy, the Market-Based Energy Rate, the Alternative Option 1 Short-Term Energy Rate and/or the Alternative Option 2 Short-Term Energy Rate; (e) with respect to Long-Term Energy, the Long-Term Energy Rate; (f) a franchise fee as set by the applicable Governmental Authority; and (g) all other applicable rates, as determined by the PUCN, provided that all other applicable rates will be assessed at the realized Project load levels.

"Event of Default" shall have the meaning set forth in Section 10.1.

"Excess Energy" means, solely with respect to a Generating Facility or Alternative Generating Facility where Customer is obligated to pay for one hundred percent (100%) of the energy generated by such Generating Facility or Alternative Generating Facility, energy generated by such Generating Facility or such Alternative Generating Facility minus the energy served to the Project from such Generating Facility or such Alternative Generating Facility.

"Execution Date" shall have the meaning set forth in the preamble to this Agreement.

"Generating Facility" means one or more energy generating facilities from which NV Energy will procure or generate electric capacity and energy for Customer that is approved by the PUCN to serve customers pursuant to the PUCN Resource Approval.

"Governmental Authority" shall mean any federal, state, or local government or political subdivision thereof, or any agency or instrumentality of such government or political subdivision, or any self-regulated organization or other non-governmental regulatory authority or quasi-governmental authority (to the extent that the rules, regulations or orders of such organization or authority have the force of law), or any arbitrator, court or tribunal of competent jurisdiction.

"GS-3 Tariff" shall mean [<Schedule LGS-3 (Large General Service - 3) / Schedule GS-3 (Large General Service)>] of the Tariff Schedules.[3]

"HVD Agreement" shall have the meaning set forth in the Recitals.[4]

"Interim Period" has the meaning set forth in Section 2.3(d)(i).

"Load Factor" means the application of an eighty percent (80%) factor to convert Maximum Demand to Minimum Energy for billing purposes.

"Load Factor Reduction" has the meaning set forth in Section 4.6.

"Long-Term Energy" has the meaning set forth in Section 5.2(a).

"Long-Term Energy Rate" means (a) a fixed rate of $[<insert price>]/MWh for the hours and loads the applicable Generating Facility or Alternative Generating Facility is in production, plus (b) all BTER and DEAA rates for hours and loads during non-production hours, as described in Section 5.2(c), as it may be adjusted pursuant to Section 5.2(b).

"Long-Term Energy Supply Commencement Date" means the date that the applicable Generating Facility or Alternative Generating Facility has achieved commercial operation, as determined by NV Energy.

"Long-Term Energy Supply Period" shall have the meaning set forth in Section 5.2(a).

[3] **Note to Draft**: To be conformed based on the Project location (i.e., the northern or southern NV Energy service territory).
[4] **Note to Draft**: To be conformed to the applicable HVD Agreement.

"Market-Based Energy Product" has the meaning set forth in Section 5.1(b).

"Market-Based Energy Rate" means a rate calculated by NV Energy for Short-Term Energy based on Platts Megawatt Daily Day-Ahead, Mead On-Peak and Off-Peak or other similar indices. The Market-Based Energy Rate will include (a) an energy charge comprised of (i) fixed prices and volumes (which may include fixed price MW blocks consisting of a 24 hour by 7 day defined MW block applicable to all months with a minimum term of twelve (12) rolling months or such other products as the Parties may mutually agree) and (ii) market-based day-ahead Platts Megawatt Daily Mead index rates for residual volumes (i.e., the difference between the metered volume and any fixed price MW blocks applicable to the delivery period), calculated as the sum of (x) Platts Megawatt Daily Day-Ahead Mead On-Peak price multiplied by the metered volume during the On-Peak period and (y) the Platts Megawatt Daily Day-Ahead Off-Peak price multiplied by the metered volume during the Off-Peak period for such residual volumes[5]; (b) a $2/MWh administrative fee; (c) all BTGR rates based on the GS-3 Tariff; and (d) all BTER and DEAA rates for such Short-Term Energy, to the extent such BTER and DEAA rates are not included within clause (a) above.

"Maximum Demand" shall have the meaning set forth in Section 4.4.

"Minimum Demand" shall mean an amount equal to, collectively, (A) at least ninety percent (90%) of the Ramp Demand during each month of the Ramp Period, and (B) at least ninety percent (90%) of the Maximum Demand during each month of the Term from and after the end of the Ramp Period.

"Minimum Energy" shall mean the Maximum Demand multiplied by the Load Factor multiplied by ninety percent (90%).

"MW" means megawatt.

"MWh" means megawatt-hour.

"NV Energy" shall have the meaning set forth in the preamble to this Agreement.

"OFAC" shall have the meaning set forth in Section 12.1(a).

"OFAC Sanctions Lists" shall have the meaning set forth in Section 12.1(a).

"Party" or "Parties" shall have the meaning set forth in the preamble to this Agreement.

"Person" shall mean any individual, corporation, partnership, joint venture, association, joint stock company, trust, limited liability company, unincorporated organization, Governmental Authority or any other form of entity.

[5] On-Peak and Off-Peak are defined per the "NAESB Inadvertent Interchange On and Off Peak Period," as applicable to the Western Interconnection. See: www.naesb.org for more information on On and Off Peak Periods.

"Prohibited Country" and "Prohibited Countries" shall have the meanings set forth in Section 12.2.

"Project" shall have the meaning set forth in the recitals to this Agreement.

"PUCN" shall have the meaning set forth in the recitals to this Agreement.

"PUCN Alternative Resource Approval" means a final order issued by the PUCN that (a) approves the Alternative Resource Procurement Agreement or Alternative Generating Facility (as applicable) from which NV Energy will procure or generate electric capacity and energy for Customer, in form and substance satisfactory to NV Energy in its sole discretion, and which (b) is not the subject of (i) a petition for reconsideration or rehearing, (ii) a petition for judicial review, or (iii) a petition for a preliminary injunction.

"PUCN Approval Date" shall mean the date as of which all of the PUCN Approvals have been obtained.

"PUCN Approvals" shall mean, collectively, (a) the PUCN ESA Approval and (b) either the PUCN Resource Approval or the PUCN Alternative Resource Approval (as applicable).

"PUCN ESA Approval" shall mean a final order issued by the PUCN that (a) approves this Agreement, in form and substance satisfactory to NV Energy and Customer (including with respect to the Customer-Reserved Positions), in each Party's sole discretion, and which (b) is not the subject of (i) a petition for reconsideration or rehearing, (ii) a petition for judicial review, or (iii) a petition for a preliminary injunction.

"PUCN Replacement Resource Approval" means a final order issued by the PUCN that (a) approves the Replacement Resource Procurement Agreement or Replacement Generating Facility (as applicable) from which NV Energy will procure or generate electric capacity and energy for Customer, in form and substance satisfactory to NV Energy in its sole discretion, and which (b) is not the subject of (i) a petition for reconsideration or rehearing, (ii) a petition for judicial review, or (iii) a petition for a preliminary injunction.

"PUCN Resource Approval" means a final order issued by the PUCN that (a) approves the Resource Procurement Agreement or Generating Facility (as applicable) from which NV Energy will procure or generate electric capacity and energy for Customer, in form and substance satisfactory to NV Energy in its sole discretion, and which (b) is not the subject of (i) a petition for reconsideration or rehearing, (ii) a petition for judicial review, or (iii) a petition for a preliminary injunction.

"Ramp Demand" shall have the meaning set forth in Section 4.3.

"Ramp Period" shall have the meaning set forth in Section 3.1.

"Ramp Schedule" shall have the meaning set forth in Section 4.3.

"Refund Amount" shall have the meaning set forth in Section 3.3(b).

"Refund Period" shall have the meaning set forth in Section 3.3(b).

"Replacement Generating Facility" means one or more energy generating facilities from which NV Energy will procure or generate electric capacity and energy for Customer pursuant to a Replacement Resource Procurement Agreement that is approved by the PUCN to serve customers pursuant to the PUCN Replacement Resource Approval.

"Replacement Resource Procurement Agreement" one or more agreements entered into by NV Energy to replace a terminated Resource Procurement Agreement and pursuant to which NV Energy shall obtain the right to provide electric capacity and energy from the applicable Replacement Generating Facility to serve the Project's Connected Load up to the Maximum Demand in accordance with this Agreement.

"Resource Procurement Agreement" means one or more agreements entered into by NV Energy and pursuant to which NV Energy shall obtain the right to provide electric capacity and energy from the applicable Generating Facility to serve the Project's Connected Load up to the Maximum Demand in accordance with this Agreement.

"Security Termination Date" shall have the meaning set forth in Section 6.1(c).

"Short Term Avoided Cost" means the long term avoided costs for the applicable period filed with the PUCN pursuant to NV Energy's most recently approved Integrated Resource Plan filing minus the capacity costs.

"Short-Term Energy" shall have the meaning set forth in Section 5.1(a).

"Short-Term Energy Supply Period" shall have the meaning set forth in Section 5.1(a).

"Tariff Schedules" shall have the meaning set forth in Rule No. 1 of the NV Energy [<Tariff No. 1-B / Tariff No. Electric No. 1>][6], as amended from time to time, which Tariff Schedules are incorporated by reference into this Agreement.

"Term" shall have the meaning set forth in Section 3.1.

"Termination Date" shall have the meaning set forth in Section 3.2.

"Termination Notice" shall have the meaning set forth in Section 3.2.

"Termination Payment" shall mean an amount equal to (x) the aggregate Minimum Demand with respect to the Project *multiplied by* (y) the ESA Overall Rate, from the Termination Date through the end of the Term, excluding BTER, DEAA, and all other applicable rates, as

[6] **Note to Draft**: To be conformed based on the Project location (i.e., the northern or southern NV Energy service territory).

determined by the PUCN, provided that all other applicable rates are assessed at the realized Project load levels.

"Transferee" shall have the meaning set forth in Section 13.3.

"UFLPA" shall have the meaning set forth in Section 12.1(a).

ARTICLE II.
CONDITIONS TO EFFECTIVENESS; EFFECTIVE DATE; CERTAIN COVENANTS

2.1 Conditions to Effectiveness. Except with respect to the provisions of Article I, this Article II, Article VIII, Article XI and Article XIII, which provisions are effective as of the Execution Date, and except as provided in Section 2.3(d), the effectiveness of this Agreement is expressly subject to the satisfaction of each of the following conditions:

(a) The PUCN ESA Approval shall have been obtained and shall be in full force and effect. For the avoidance of doubt, if this Agreement is approved by the PUCN but such approval includes terms, conditions or modifications that are not satisfactory to both NV Energy and Customer in each Party's sole discretion, or if this Agreement is approved by the PUCN as filed and without additional terms, conditions or modifications but Customer does not find the Customer-Reserved Provisions contained in this Agreement to be satisfactory to Customer in its sole discretion, the PUCN ESA Approval shall be deemed not to have been obtained.

(b) Subject to Section 2.1(c), the PUCN Resource Approval shall have been obtained and shall be in full force and effect. For the avoidance of doubt, if the Resource Procurement Agreement or the Generating Facility from which NV Energy will procure or generate electric capacity and energy for Customer is approved by the PUCN but such approval includes terms, conditions or modifications that are not satisfactory to NV Energy in its sole discretion, the PUCN Resource Approval shall be deemed not to have been obtained.

(c) Solely in the event that the PUCN Resource Approval is not obtained, the PUCN Alternative Resource Approval shall have been obtained and shall be in full force and effect. For the avoidance of doubt, if the Alternative Resource Procurement Agreement or the Alternative Generating Facility from which NV Energy will procure or generate electric capacity and energy for Customer is approved by the PUCN but such approval includes terms, conditions or modifications that are not satisfactory to NV Energy in its sole discretion, the PUCN Alternative Resource Approval shall be deemed not to have been obtained.

(d) The HVD Agreement shall be in full force and effect, and there are no events or conditions existing which, with or without notice or the lapse of time, or both, have constituted or could constitute a breach or default by Customer under the terms and conditions of the HVD Agreement.

(e) [<insert such other conditions as may be necessary for a given Customer>].

Except as provided in Section 2.2 and Section 2.3(d), no aspect of this Agreement, other than the provisions of Article I, this Article II, Article VIII, Article XI and Article XIII, shall have any effect unless and until each of the foregoing conditions has been satisfied.

2.2 Effective Date. For purposes of this Agreement, the "Effective Date" is the date as of which (a)(i) each of the conditions set forth in Section 2.1 has been satisfied, or (ii) in the event that the PUCN Resource Approval is not obtained, the date as of which (A) each of the conditions set forth in Sections 2.1(a), 2.1(d) [<and 2.1(e)>] have been satisfied and (B) the Interim Period commences pursuant to Section 2.3(d), and (b) the Project has received permanent electric service from NV Energy under the GS-3 Tariff.

2.3 Certain Covenants.

(a) PUCN ESA Approval. Following the Execution Date, NV Energy shall use commercially reasonable efforts to obtain the PUCN ESA Approval; provided that if the PUCN ESA Approval is not obtained, NV Energy shall not be obligated to undertake further efforts to obtain the PUCN ESA Approval.

(b) PUCN Resource Approval. Following the Execution Date, NV Energy shall use commercially reasonable efforts to obtain the PUCN Resource Approval; provided that if the PUCN Resource Approval is not obtained, NV Energy shall not be obligated to undertake further efforts to obtain the PUCN Resource Approval

(c) Consultation with Customer; Customer Support for PUCN Approvals.

(i) NV Energy shall consult with Customer on all principal filings submitted by NV Energy to the PUCN in connection with seeking the PUCN Approvals, however, NV Energy shall not be obligated to seek any approval or preapproval from Customer with respect to the form or substance of any such filings (or any attachments thereto). Customer may, from time to time, offer input to NV Energy in connection with such filings, which NV Energy may consider but shall not be required to implement or incorporate in such filings.

(ii) Following the Execution Date, (i) Customer, at its sole cost and expense, shall reasonably cooperate with NV Energy and support NV Energy's efforts in obtaining the PUCN Approvals, which cooperation and support may include, at Customer's discretion, Customer filing a petition for leave to intervene in the applicable PUCN proceedings in support of NV Energy's filings for the PUCN Approvals, and (ii) if Customer does intervene in such PUCN proceedings, except with respect to the Customer-Reserved Provisions, Customer shall not file any documents in any such PUCN proceedings in opposition to such filings.

(d) PUCN Alternative Resource Approval; Supply of Short-Term Energy during Interim Period; Termination.

(i) If the PUCN Resource Approval is not obtained, then, commencing on the date that the PUCN Resource Approval is not obtained and continuing for a period of thirty-six (36) months thereafter (the "Interim Period"), NV Energy shall use commercially reasonable efforts to enter into an Alternative Resource Procurement Agreement or identify an Alternative

Generating Facility and to obtain the PUCN Alternative Resource Approval; provided that if the PUCN Alternative Resource Approval is not obtained, NV Energy shall not be obligated to undertake further efforts to obtain the PUCN Alternative Resource Approval.

(ii) During the Interim Period, NV Energy shall use commercially reasonable efforts to procure Short-Term Energy on behalf of Customer pursuant to and in accordance with Section 5.1, and Customer shall pay to NV Energy, as part of the ESA Overall Rate, the Market-Based Energy Rate, the Alternative Option 1 Short-Term Energy Rate or the Alternative Option 2 Short-Term Energy Rate, whichever is applicable, with respect to such Short-Term Energy. Invoices shall be provided to Customer on a monthly basis by the method or methods authorized by the Tariff Schedules and shall be paid by Customer in accordance with the payment terms set forth therein.

(iii) If NV Energy enters into an Alternative Resource Procurement Agreement, and the PUCN Alternative Resource Approval is obtained, prior to the end of the Interim Period, the Parties agree that (A) NV Energy shall continue to use commercially reasonable efforts to procure Short-Term Energy on behalf of Customer pursuant to and in accordance with Section 5.1, until the Long-Term Energy Supply Commencement Date, (B) commencing on the Long-Term Energy Supply Commencement Date, NV Energy shall use commercially reasonable efforts to procure Long-Term Energy on behalf of Customer pursuant to and in accordance with Section 5.2, and (C) the Long-Term Energy Rate shall be adjusted to reflect any increase or decrease in the cost to NV Energy of the applicable Alternative Generating Facility as compared with the cost to NV Energy of the applicable Generating Facility. NV Energy shall use commercially reasonable efforts to avoid or mitigate a significant increase in the Long-Term Energy Rate in connection with the Alternative Generating Facility; provided, however, that the foregoing covenant shall not restrict NV Energy from entering into any Alternative Resource Procurement Agreement.

(iv) If NV Energy does not enter into an Alternative Resource Procurement Agreement, or if the PUCN Alternative Resource Approval is not obtained, prior to the end of the Interim Period, then, from and after the end of the Interim Period each of the Parties shall have the right to terminate this Agreement upon written notice to the other Party, and Customer shall be liable for its payment obligations that arose prior to the date of termination. For the avoidance of doubt, if this Agreement is terminated pursuant to this Section 2.3(d)(iv), Customer shall not be liable for the payment of the Termination Payment pursuant to Section 3.3.

(e) [<insert such other covenants as may be necessary for a given Customer>].

(f) Confidentiality.

(i) Neither Party shall disclose the content of this Agreement, or disclose any information exchanged between the Parties related to this Agreement, except to its Affiliates and advisors, without the prior written consent of the other Party except as required by Applicable Law, by any court or other Governmental Authority, but only to the extent that, based upon reasonable advice of counsel, a Party is required to do so and prior to making such disclosure, the Party shall, to the extent legally permitted, provide the other Party with prompt notice of such disclosure. Notwithstanding the above, NV Energy may disclose this Agreement and information

exchanged related to the content of this Agreement to the PUCN, its regulatory operations staff, and the Office of the Attorney General, Bureau of Consumer Protection for purposes of obtaining the PUCN Approvals or to otherwise advance the purposes of this Agreement, and any such disclosures shall not constitute "public statements" or "public filings" for purposes of this Agreement.

(ii) Public Announcements. The Parties will consult with each other before issuing, and provide each other the reasonable opportunity to review, comment upon and concur with, any press release or other public statements with respect to this Agreement or the transactions contemplated hereby, and shall not issue any such press release or make any such public statement prior to such consultation, unless required by Applicable Law, pursuant to the order of a court or administrative body, or required by the rules of a national securities exchange. In the event that a Party concludes that it is required by Applicable Law or relevant securities exchange rules, or the order of a court or administrative body, to make a public statement with respect to this Agreement or the transactions contemplated hereby, or to make any public filing with respect thereto, including any filing with the Securities and Exchange Commission, such Party will promptly provide to the other Party for review a copy of any such press release, statement or filing, and will not issue any such press release, or make any such public statement or filing, prior to such consultation and review unless required by Applicable Law, pursuant to the order of a court or administrative body, or required by the rules of a national securities exchange.

ARTICLE III.
TERM; TERMINATION; TERMINATION PAYMENT

3.1 Term. The term of this Agreement shall commence on the Effective Date and shall continue for a period of [<insert number of months>][7] calendar months after the Effective Date (the "Term"), unless earlier terminated in accordance with this Agreement. The Term is comprised of (a) a transitional load period during which Customer shall add Project load prior to achieving the Maximum Demand (the "Ramp Period") of [<insert number of months>] calendar months from and after the Effective Date, and (b) a period of [<insert number of months>] calendar months from and after the end of the Ramp Period.

3.2 Elective Termination by Customer. Customer may elect to terminate this Agreement, at any time from and after the Long-Term Energy Supply Commencement Date, upon delivery of written notice of such election (a "Termination Notice") to NV Energy not less than thirty-six (36) months prior to the effective date of the termination specified in the Termination Notice (the "Termination Date"). For the avoidance of doubt, Customer shall have no right to terminate this Agreement during the Short-Term Energy Supply Period pursuant to this Section 3.2.

[7] **Note to Draft**: The Total term of this Agreement is to be a period of not less than ten (10) years after the Effective Date. The Term will be comprised of (a) the Ramp Period (which will be a time period that aligns with the anticipated Long-Term Energy Supply Commencement Date) and (b) a time period from and after the end of the Ramp Period, such that the total Term is a period of not less than ten (10) years.

3.3 Termination Payment; Mitigation and Refund of Termination Payment.

(a) Termination Payment. If Customer terminates this Agreement pursuant to Section 3.2, Customer shall pay to NV Energy the Termination Payment promptly, and in any event not more than thirty (30) days, after the Termination Date, by wire transfer of immediately available federal funds to an account located in the United States as NV Energy may specify by notice. For illustrative purposes only, an example calculation of the Termination Payment is provided in Exhibit E.

(b) Mitigation and Refund of Termination Payment. Commencing on the date of delivery of the Termination Notice and continuing for a period of thirty-six (36) months after the Termination Date (the "Refund Period"), NV Energy shall use commercially reasonable efforts to mitigate the amount of the Termination Payment, which efforts are expressly limited to NV Energy providing bundled retail electric service, up to the Minimum Demand, to one or more customers (including customers that Customer may identify), if available, pursuant to electric service agreements with such customers and the GS-3 Tariff (or other tariffs applicable to large load customers). For purposes of this Agreement, the "Refund Amount" is the aggregate net amount received by NV Energy in connection with the preceding sentence. Within thirty (30) days after December 31 of the calendar year in which Customer has paid to NV Energy the Termination Payment, NV Energy shall pay to Customer the Refund Amount received by NV Energy during the Refund Period, by wire transfer or ACH of immediately available federal funds to an account of Customer located in the United States or by check from NV Energy in good and immediately available funds; provided that in no event shall the Refund Amount exceed the Termination Payment.

ARTICLE IV.
ELECTRIC SERVICE; MAXIMUM DEMAND; RAMP DEMAND; CHANGE IN MAXIMUM DEMAND; MINIMUM DEMAND; ESA OVERALL RATE; REDUCTION IN ENERGY CHARGES

4.1 Tariff Service. During the Term, NV Energy shall provide to the Project, and Customer shall pay NV Energy for, bundled retail electric service up to the Maximum Demand pursuant to and in accordance with this Agreement, the GS-3 Tariff and other applicable provisions of the Tariff Schedules; provided that if, during the Term, NV Energy obtains all required consents and approvals, in form and substance satisfactory to NV Energy in its sole discretion, with respect to a new tariff schedule or rider under which Customer would be eligible to receive bundled retail electric service, (a) Customer shall have the right to request to receive such electric service under the applicable new tariff schedule or rider, and (b) if Customer so requests, the Parties shall use commercially reasonable efforts to either (i) amend this Agreement to reflect Customer's receipt of such electric service under the applicable new tariff schedule or rider, on terms and conditions reasonably satisfactory to the Parties, or (ii) enter into applicable new agreements with respect to each of the foregoing, in form and substance reasonably satisfactory to the Parties. For the avoidance of doubt, if the Parties do not mutually agree on such amendments or new agreements, Customer shall continue to receive bundled retail electric service pursuant to and in accordance with this Agreement, the GS-3 Tariff and other applicable provisions of the Tariff Schedules.

4.2 Maximum Demand. Customer's highest level of Connected Load to be served by NV Energy under this Agreement during the Term is [<insert load amount in MW>] (the "Maximum Demand").

4.3 Ramp Schedule and Ramp Demand. Customer's ramp schedule ("Ramp Schedule") identifying the level of Maximum Demand during each month of the Ramp Period (such monthly values, "Ramp Demand") is set forth in Article VII. NV Energy shall use commercially reasonable efforts to deliver energy to the Project up to the Ramp Demand set forth in the Ramp Schedule, subject to the terms and conditions of this Agreement.

4.4 Change in Maximum Demand.

(a) During the Ramp Period. On an annual basis during the Ramp Period, Customer shall have the right to request an increase or reduction to the then-effective Maximum Demand, with such increase or reduction to be effective as of January 1 of the following calendar year, provided that any such requested increase or reduction is not more than ten percent (10%) of the then-effective Maximum Demand (a "Change in Ramp Demand"). Any such request shall be made by Customer by providing NV Energy with written notice of same on or prior to October 1 of the calendar year preceding the calendar year for which the Change in Ramp Demand is requested. If NV Energy determines, in its sole reasonable discretion, that all or part of such Change in Ramp Demand can be accommodated (taking into account, among other things, NV Energy's then-existing system capabilities, the expected demand schedules of other customers receiving bundled retail electric service under the GS-3 Tariff and related electric service agreements, and any facilities infrastructure limitations or constraints), NV Energy shall provide written notice to Customer confirming the amount, if any, of the Change in Ramp Demand that NV Energy determines that it can accommodate. From and after the effective date of the Change in Ramp Demand, the "Maximum Demand" for purposes of this Agreement shall mean the then-effective Maximum Demand as increased or reduced, as applicable, by the amount, if any, of the Change in Ramp Demand that NV Energy has determined that it can accommodate.

(b) After the Ramp Period. At any time after the Ramp Period, Customer shall have the right to request a one-time increase or reduction to the Maximum Demand set forth in Section 4.2, provided that any such requested increase or reduction is not more than ten percent (10%) of the Maximum Demand set forth in Section 4.2 (a "Change in Maximum Demand"). Any such request shall be made by Customer by providing NV Energy with written notice of same not less than thirty-six (36) calendar months prior to the effective date of the requested Change in Maximum Demand. If NV Energy determines, in its sole reasonable discretion, that all or part of such Change in Maximum Demand can be accommodated (taking into account, among other things, NV Energy's then-existing system capabilities, the expected demand schedules of other customers receiving bundled retail electric service under the GS-3 Tariff and related electric service agreements, and any facilities infrastructure limitations or constraints), NV Energy shall provide written notice to Customer confirming the amount, if any, of the Change in Maximum Demand that NV Energy determines that it can accommodate. From and after the effective date of the Change in Maximum Demand, the "Maximum Demand" for purposes of this Agreement shall mean the Maximum Demand set forth in Section 4.2 as increased or reduced, as applicable, by the amount, if any, of the Change in Maximum Demand that NV Energy has determined that it can accommodate.

4.5 Minimum Demand; Minimum Energy; ESA Overall Rate. Irrespective of Customer's actual demand and actual quantity of electric energy (kWh) utilized in a given month, Customer is obligated to pay the ESA Overall Rate with respect to (A) the Minimum Demand and (B) the Minimum Energy. For the avoidance of doubt, with respect to the demand charge, Customer is obligated to pay the ESA Overall Rate for the greater of (x) the actual metered demand for the applicable Billing Periods and (y) the Minimum Demand. For illustrative purposes only, example calculations of the ESA Overall Rate (during both the Short-Term Energy Supply Period and the Long-Term Energy Supply Period) are provided in Exhibits B-D.

4.6 Reduction in Energy Charges. On an annual basis during the Ramp Period, Customer shall have the right to request that NV Energy reduce the then-applicable load factor used to calculate the Minimum Energy under this Agreement (a "Load Factor Reduction"). Any such request shall be made by Customer by providing NV Energy with written notice of same on or prior to October 1 of the applicable calendar year during the Ramp Period, with the requested Load Factor Reduction to be effective as of the date that is eighteen (18) months after NV Energy's receipt of such written notice. If NV Energy determines, in its sole reasonable discretion, that all or part of such requested Load Factor Reduction can be accommodated, NV Energy shall provide written notice to Customer confirming the amount, if any, of the Load Factor Reduction that NV Energy determines that it can accommodate. If the Load Factor Reduction that NV Energy determines that it can accommodate, if any, would result in a decrease in NV Energy's costs (associated with providing bundled retail electric service pursuant to and in accordance with this Agreement) commencing as of the date that is eighteen (18) months after NV Energy's receipt of the written notice described in the second sentence above, NV Energy will implement any such Load Factor Reduction as of such date solely for purposes of calculating the Minimum Energy under this Agreement.

ARTICLE V.
ENERGY SUPPLY; FORECAST

5.1 Short-Term Energy Supply.

(a) Procurement and Payment. Commencing on the Effective Date and continuing until the Long-Term Energy Supply Commencement Date (the "Short-Term Energy Supply Period"), NV Energy shall use commercially reasonable efforts to procure, on behalf of Customer, electric capacity and/or energy (as applicable) to serve the Project's Connected Load, up to (i) during the Ramp Period, the applicable Ramp Demand, and (ii) following the Ramp Period, the Maximum Demand ("Short-Term Energy"), and Customer shall pay to NV Energy, as part of the ESA Overall Rate, the Market-Based Energy Rate, the Alternative Option 1 Short-Term Energy Rate or the Alternative Option 2 Short-Term Energy Rate, whichever is applicable, with respect to Short-Term Energy. Invoices shall be provided to Customer on a monthly basis by the method or methods authorized by the Tariff Schedules and shall be paid by Customer in accordance with the payment terms set forth therein.

(b) Market-Based Energy Product. During the Short-Term Energy Supply Period, NV Energy in its sole discretion may offer, and if offered by NV Energy Customer shall be supplied with, energy pursuant to a market-based index product based on the Platts Megawatt Daily Day-Ahead, Mead On-Peak and Off-Peak or other similar indices (a "Market-Based Energy

Product"). The rate to be charged to Customer for a Market-Based Energy Product shall be the Market-Based Energy Rate. For illustrative purposes only, an example calculation of the Market-Based Energy Rate is provided in Exhibit A.

(c) Alternative Option Short-Term Energy Products. Notwithstanding Section 5.1(b) above, during the Short-Term Energy Supply Period, NV Energy in its sole discretion may offer, and if offered by NV Energy Customer may elect to be supplied with, electric capacity and energy from (i) one or more electric generating facilities owned by, or contracted to, NV Energy (the "Alternative Option 1 Short-Term Energy Product"), provided that NV Energy has determined that there is sufficient excess electric capacity and energy at such generating facilities to serve the Project's Connected Load in accordance with this Agreement, or (ii) one or more electric generating facilities not owned by or contracted to, but available to, NV Energy (the "Alternative Option 2 Short-Term Energy Product"), provided that NV Energy has determined that there is sufficient excess electric capacity and energy at such generating facilities to serve the Project's Connected Load in accordance with this Agreement. The rate to be charged to Customer for an Alternative Option 1 Short-Term Energy Product shall be the Alternative Option 1 Short-Term Energy Rate, and the rate to be charged to Customer for an Alternative Option 2 Short-Term Energy Product shall be the Alternative Option 2 Short-Term Energy Rate. For illustrative purposes only, example calculations of the Alternative Option 1 Short-Term Energy Rate and the Alternative Option 2 Short-Term Energy Rate is provided in Exhibit A.

(d) Change in Energy Products. If NV Energy, in its sole discretion, offers the Market-Based Energy Product, the Alternative Option 1 Short-Term Energy Product or the Alternative Option 2 Short-Term Energy Product (as applicable) to Customer, Customer may elect to change between the Market-Based Energy Product, the Alternative Option 1 Short-Term Energy Product and the Alternative Option 2 Short-Term Energy Product, provided that Customer may not make such a change more than once during each twelve (12) month period, and each such election shall be for a minimum period of twelve (12) months. Customer must provide written notice to NV Energy no later than sixty (60) days prior to the end of the then-current twelve (12) month period to make such an election. For the avoidance of doubt, if such written notice is not received by NV Energy by the date that is no later than sixty (60) days prior to the end of the then-current twelve (12) month period, the then-existing Market-Based Energy Product, the Alternative Option 1 Short-Term Energy Product or the Alternative Option 2 Short-Term Energy Product (as applicable) shall remain in place for the following twelve (12) month period.

(e) Curtailment during Grid Emergency. During the Short-Term Energy Supply Period, Customer acknowledges and agrees that up to one hundred percent (100%) of the Project's Connected Load may be curtailed upon the occurrence of and during the pendency of a Grid Emergency. For purposes of this Agreement, a "Grid Emergency" means (i) a declaration of an Energy Emergency Alert (as defined in the North American Electric Reliability Corporation (NERC) standards) of Level 1 or greater, (ii) identification of an event that is threatening or limiting, or could threaten or limit, NV Energy's transmission system capability, including line or transformer overloads, or (iii) the occurrence of any other event or action that NV Energy determines requires curtailment of electric service in order to maintain the reliability, integrity or safety of NV Energy's transmission system. If the Project's Connected Load is curtailed due to a Grid Emergency, Customer's obligation to pay the ESA Overall Rate with respect to the greater of (x) the actual metered demand for the applicable Billing Periods and (y) the Minimum Demand

shall be suspended during the period of the Grid Emergency and such obligation shall resume upon the cessation of the Grid Emergency. NV Energy shall cooperate in good faith with Customer in determining the maximum number of hours in a calendar year that the Project's Connect Load may be curtailed, including taking into account the air permitting requirements of the Project.

5.2 Long-Term Energy Supply.

(a) Procurement and Payment. Commencing on the Long-Term Energy Supply Commencement Date and continuing through the Term (the "Long-Term Energy Supply Period"), NV Energy shall use commercially reasonable efforts to procure, on behalf of Customer, electric capacity and energy from the applicable Generating Facility or Alternative Generating Facility (as applicable) to serve the Project's Connected Load and to meet the State of Nevada's Renewable Portfolio Standard, up to (i) during the Ramp Period, the applicable Ramp Demand, and (ii) following the Ramp Period, the Maximum Demand ("Long-Term Energy"), and Customer shall pay to NV Energy, as part of the ESA Overall Rate, the Long-Term Energy Rate (as it may be adjusted pursuant to Section 5.2(b)) with respect to the Long-Term Energy. Invoices shall be provided to Customer on a monthly basis by the method or methods authorized by the Tariff Schedules and shall be paid by Customer in accordance with the payment terms set forth therein.

(b) Long-Term Energy Rate Adjustment. Notwithstanding anything to the contrary in this Agreement, the Parties agree that the Long-Term Energy Rate shall be adjusted, subject to PUCN approval on a case-by-case basis, to reflect any increase in the cost to NV Energy of the applicable Generating Facility or Alternative Generating Facility (as applicable), which increase in cost will be reflected in the Long-Term Energy Rate beginning on the date of the next monthly invoice to be provided to Customer following such increase in cost and continuing for the remainder of the Term. NV Energy shall provide Customer with written notice of any such increase in cost, and the resulting change to the Long-Term Energy Rate, within ten (10) Business Days after any such increase in cost occurs. NV Energy shall use commercially reasonable efforts to avoid or mitigate an increase in the cost of the applicable Generating Facility or Alternative Generating Facility (as applicable) and the resulting Long-Term Energy Rate; provided, however, that the foregoing covenant shall not restrict NV Energy from entering into any amendment, modification or supplement to any Resource Procurement Agreement or Alternative Resource Procurement Agreement (as applicable) (including with respect to the cost of the applicable Generating Facility or Alternative Generating Facility (as applicable)).

(c) Long-Term Energy Rate Calculation. Notwithstanding anything to the contrary in this Agreement, the Parties agree that the Long-Term Energy Rate reflects the fixed rate for the applicable Generating Facility or Alternative Generating Facility (as applicable) for the hours and loads the applicable Generating Facility or Alternative Generating Facility (as applicable) is in production, plus all BTER and DEAA rates for the hours and loads during non-production hours. NV Energy shall provide Customer with written notice of any increase in production hours cost, and the resulting change to the Long-Term Energy Rate, within ten (10) Business Days after any such increase in cost occurs. For illustrative purposes only, an example calculation of the Long-Term Energy Rate is provided in Exhibit A.

5.3 Forecast. Within thirty (30) days after the Effective Date, Customer shall provide NV Energy with a non-binding, forward-looking, five-year monthly forecast (the "Forecast").

Customer shall update the Forecast annually and deliver such updated Forecast to NV Energy no later than October 1 of the calendar year covered by the then-existing Forecast; provided that, in the event that Customer becomes aware of any material changes to the then-existing Forecast, Customer shall update such Forecast and deliver such updated Forecast to NV Energy as soon as is reasonably practicable. If Customer fails to deliver an updated Forecast to NV Energy as provided in this Section 5.3, Customer agrees that NV Energy shall use and be entitled to rely on the last Forecast received from Customer. For the avoidance of doubt, Customer's obligation to provide the Forecast to NV Energy pursuant to this Section 5.3 shall be in addition to any other forecast that Customer is required to provide to NV Energy pursuant to any other agreement between Customer and NV Energy. All Forecasts shall be delivered to the Vice President, Integrated Resource Planning of NV Energy (or such other individual as NV Energy may designate in writing) in accordance with Section 13.1.

5.4 Effect of Termination of Resource Procurement Agreement or Failure of Generating Facility to Deliver Energy and Capacity.

(a) In the event that (x) prior to the date that the Generating Facility or the Alternative Generating Facility (as applicable) has achieved commercial operation, the Resource Procurement Agreement or the Alternative Resource Procurement Agreement (as applicable) is terminated for any reason other than a material breach or default by NV Energy, or (y) after the Generating Facility or the Alternative Generating Facility (as applicable) has achieved commercial operation, the Generating Facility or the Alternative Generating Facility (as applicable) is not delivering the expected energy and capacity, the following provisions will apply:

(i) NV Energy will be excused from its obligations under this Agreement to procure Long-Term Energy on behalf of Customer for a period of up to five (5) years, commencing on the date that (x) the Resource Procurement Agreement or the Alternative Resource Procurement Agreement (as applicable) is terminated or (y) the date that the Generating Facility or the Alternative Generating Facility (as applicable) is not delivering the expected energy and capacity, and the Parties shall mutually determine a revised Long-Term Energy Supply Commencement Date.

(ii) NV Energy will instead use commercially reasonable efforts to procure Short-Term Energy on behalf of Customer, and Customer shall pay NV Energy the Market-Based Energy Rate, the Alternative Option 1 Short-Term Energy Rate or the Alternative Option 2 Short-Term Energy Rate (as applicable) with respect to such Short-Term Energy in accordance with Section 5.1, commencing on (x) the date that the Resource Procurement Agreement or the Alternative Resource Procurement Agreement (as applicable) is terminated or (y) the date that the Generating Facility or the Alternative Generating Facility (as applicable) is not delivering the expected energy and capacity, and ending on the revised Long-Term Energy Supply Commencement Date.

(iii) Commencing on the revised Long-Term Energy Supply Commencement Date and continuing through the remaining Term, NV Energy shall use commercially reasonable efforts to procure Long-Term Energy on behalf of Customer, and Customer shall pay NV Energy the Long-Term Energy Rate (as it may be adjusted pursuant to Section 5.5(a) below) with respect to such Long-Term Energy, in accordance with Section 5.2.

5.5 Effect of Replacement Procurement Agreement or Replacement Generating Facility.

(a) In the event that (x) the Resource Procurement Agreement or the Alternative Resource Procurement Agreement (as applicable) is terminated or (y) the Generating Facility or the Alternative Generating Facility (as applicable) is not delivering the expected energy and capacity, NV Energy shall use commercially reasonable efforts to enter into a Replacement Resource Procurement Agreement or identify a Replacement Generating Facility and to obtain the PUCN Replacement Resource Approval. If NV Energy enters into a Replacement Resource Procurement Agreement and the PUCN Replacement Resource Approval is obtained, the Parties agree that the Long-Term Energy Rate shall be adjusted to reflect any increase or decrease in the cost to NV Energy of the applicable Replacement Generating Facility as compared with the cost to NV Energy of the applicable Generating Facility or Alternative Generating Facility (as applicable) (as the Long-Term Energy Rate may have been adjusted pursuant to Section 5.2(b)). NV Energy shall use commercially reasonable efforts to avoid or mitigate a significant increase in the Long-Term Energy Rate in connection with the Replacement Generating Facility; provided, however, that the foregoing covenant shall not restrict NV Energy from entering into any Replacement Resource Procurement Agreement.

(b) In the event that NV Energy does not enter into a Replacement Resource Procurement Agreement, or if the PUCN Replacement Resource Approval is not obtained:

(i) if the Resource Procurement Agreement or the Alternative Resource Procurement Agreement (as applicable) was terminated during the Short-Term Energy Supply Period, each of the Parties shall have the right to terminate this Agreement upon written notice to the other Party, and Customer shall be liable for its payment obligations that arose prior to the date of termination, and

(ii) if after achieving commercial operation the Generating Facility or the Alternative Generating Facility (as applicable) was not delivering the expected energy and capacity (and, therefore, the Long-Term Energy Supply Period commenced), Customer shall have the right to terminate this Agreement pursuant to Section 3.2 and if Customer elects to terminates this Agreement, Customer shall be liable for both (A) its payment obligations that arose prior to the date of termination and (B) the payment of the Termination Payment pursuant to Section 3.3.

5.6 Excess Energy. NV Energy will purchase Excess Energy from Customer at a rate equivalent to its Short Term Avoided Cost. Alternatively, NV Energy may, at its election, purchase from Customer Excess Energy at a rate equivalent to the higher of (a) seventy-five percent (75%) of its weighted average of the per kWh levelized cost of energy for NV Energy's most recent PUCN-approved renewable energy facilities for comparable periods, or (b) its Short Term Avoided Cost. The settlement for such Excess Energy purchase will take place monthly as part of the next regularly scheduled invoice. The Short Term Avoided Cost used for monthly settlement will be equal to the annual average of the hourly Short Term Avoided Cost. During the first billing cycle of a calendar year, an adjustment payment will be calculated to true-up the Short Term Avoided Cost reflecting the hourly granularity for each instance when the purchase of Excess Energy occurred.

ARTICLE VI.
CUSTOMER SECURITY

6.1 ESA Customer Security.

(a) Promptly, and in any event not more than fifteen (15) Business Days, after the PUCN Approval Date, Customer shall provide to NV Energy, and thereafter maintain, financial security for its obligations under this Agreement in an amount equal to the sum of the aggregate applicable Minimum Demand and Minimum Energy *multiplied by* the ESA Overall Rate for the remaining Term, as determined by NV Energy (the "ESA Customer Security"); provided, however, that Customer shall not be obligated to provide the ESA Customer Security to NV Energy on or before the PUCN Approval Date if Customer has, as of the PUCN Approval Date, both (i) a credit rating with respect to Customer's long-term, senior, unsecured, non-credit-enhanced indebtedness of (A) not lower than "A-" from S&P Global Ratings (or any successor) and (B) not lower than "A3" from Moody's Investor Services, Inc. (or any successor), and (ii) liquidity greater than ten (10) times the aggregate Minimum Demand *multiplied by* the ESA Overall Rate for the Term (collectively, the "Creditworthiness Requirements"), as reasonably determined by NV Energy. In the event that Customer was not required to provide the ESA Customer Security to NV Energy as of the PUCN Approval Date pursuant to the preceding sentence and Customer ceases to satisfy the Creditworthiness Requirements at any time during the Term, Customer shall have a period of thirty (30) days in which to comply with the Creditworthiness Requirements before Customer is obligated to provide the ESA Customer Security to NV Energy. If Customer has not achieved compliance with the Creditworthiness Requirements within such thirty (30) day period, Customer shall be obligated to provide to NV Energy, and thereafter maintain, the ESA Customer Security.

(b) The ESA Customer Security shall be in the form of either (i) a letter of credit issued by a financial institution reasonably satisfactory to NV Energy and in form and substance reasonably satisfactory to NV Energy, (ii) a cash deposit to be held by NV Energy or (iii) a guaranty from an Affiliate of Customer (so long as such Affiliate initially satisfies, and during the Term continues to satisfy, the Creditworthiness Requirements) in form and substance reasonably satisfactory to NV Energy. For the avoidance of doubt, the Parties agree that any ESA Customer Security shall be available to NV Energy to satisfy any failure by Customer to comply with its obligations under this Agreement.

(c) Any ESA Customer Security shall remain outstanding and in full force and effect until the earlier of (i) the end of the Term, or (ii) the date upon which NV Energy has received full payment by Customer for any Termination Payment in accordance with this Agreement (such earlier date, the "Security Termination Date").

(d) Upon the occurrence of the Security Termination Date, (i) in the case of a letter of credit, NV Energy shall, within thirty (30) days after the Security Termination Date, return the remaining balance of such letter of credit to Customer, (b) in the case of a cash deposit, NV Energy shall, within thirty (30) days after the Security Termination Date, refund the remaining balance of such cash deposit to Customer, by wire transfer or ACH of immediately available federal funds to an account of Customer located in the United States or by check from NV Energy in good and immediately available funds, and (c) in the case of a guaranty from an Affiliate of

Customer, NV Energy shall, within thirty (30) days after the Security Termination Date, return such guaranty to Customer.

ARTICLE VII.
RAMP PERIOD; RAMP SCHEDULE; RAMP DEMAND[8]

7.1 Ramp Period. The Ramp Period shall be [<insert number of months>] calendar months.

7.2 Ramp Schedule and Ramp Demand. The Ramp Schedule and cumulative Ramp Demand during the Ramp Period is as follows:

[Year 1]	**[Year 2]**	**[Year 3]**	**[Year 4]**
January: [____] MW	January: [____] MW	January: [____] MW	January: [____] MW
February: [____] MW	February: [____] MW	February: [____] MW	February: [____] MW
March: [____] MW	March: [____] MW	March: [____] MW	March: [____] MW
April: [____] MW	April: [____] MW	April: [____] MW	April: [____] MW
May: [____] MW	May: [____] MW	May: [____] MW	May: [____] MW
June: [____] MW	June: [____] MW	June: [____] MW	June: [____] MW
July: [____] MW	July: [____] MW	July: [____] MW	July: [____] MW
August: [____] MW	August: [____] MW	August: [____] MW	August: [____] MW
September: [____] MW	September: [____] MW	September: [____] MW	September: [____] MW
October: [____] MW	October: [____] MW	October: [____] MW	October: [____] MW
November: [____] MW	November: [____] MW	November: [____] MW	November: [____] MW
December: [____] MW	December: [____] MW	December: [____] MW	December: [____] MW

[Year 5]	**[Year 6]**	**[Year 7]**
January: [____] MW	January: [____] MW	January: [____] MW
February: [____] MW	February: [____] MW	February: [____] MW
March: [____] MW	March: [____] MW	March: [____] MW
April: [____] MW	April: [____] MW	April: [____] MW
May: [____] MW	May: [____] MW	May: [____] MW
June: [____] MW	June: [____] MW	June: [____] MW
July: [____] MW	July: [____] MW	July: [____] MW
August: [____] MW	August: [____] MW	August: [____] MW
September: [____] MW	September: [____] MW	September: [____] MW
October: [____] MW	October: [____] MW	October: [____] MW
November: [____] MW	November: [____] MW	November: [____] MW
December: [____] MW	December: [____] MW	December: [____] MW

[8] **Note to Draft**: Ramp Period, Ramp Schedule and Ramp Demand to be conformed to Customer's Project.

ARTICLE VIII.
REPRESENTATIONS AND WARRANTIES OF THE PARTIES

Each Party hereby represents and warrants to the other Party, as of the Execution Date and as of the Effective Date (except as otherwise expressly provided below), as follows:

8.1 Organization; Authority; Binding Obligation. Such Party is duly formed, validly existing and in good standing, as applicable, under the Applicable Laws of the jurisdiction of its formation. Such Party has the requisite entity power and authority to enter into this Agreement, to carry out its obligations under this Agreement, and to complete the transactions contemplated by this Agreement. The execution and delivery by such Party of this Agreement and the performance by such Party of its obligations hereunder have been duly authorized by all requisite entity action on the part of such Party. This Agreement has been duly executed and delivered by such Party and, assuming due authorization, execution, and delivery by the other Party, this Agreement constitutes a legal, valid, and binding obligation of such Party, enforceable against it in accordance with its terms, subject to applicable bankruptcy, insolvency, fraudulent conveyance, reorganization, moratorium and similar Applicable Laws affecting creditors' rights generally and subject, as to enforceability, to general principles of equity.

8.2 No Conflicts. The execution and delivery of this Agreement by such Party does not, and the performance by such Party of its obligations under this Agreement, shall not:

(a) conflict with or result in a violation or breach of any of the terms, conditions or provisions of such Party's organizational documents;

(b) result in a material default (or give rise to any right of termination, cancellation or acceleration) under any of the terms, conditions or provisions of any material agreement (with or without notice or lapse of time or both) to which such Party is a party;

(c) conflict with or result in a material violation or breach of any term or provision of any Applicable Law applicable to such Party;

(d) require the consent, authorization or approval of any Person (other than a Governmental Authority), except for such consents, authorizations and approvals as have been obtained as of the Effective Date; or

(e) require any filing with, or permit, consent, authorization or approval of, any Governmental Authority, except for the PUCN Approvals.

8.3 Legal Proceedings. There is no action, suit or proceeding that is (a) outstanding or pending to which such Party or any of its Affiliates is a party or (b) to such Party's knowledge, threatened in writing against such Party or any of its Affiliates or any of its or their respective assets and properties, in each case, which challenges or seeks to prevent, enjoin, or otherwise delay the transactions contemplated by this Agreement or the performance by such Party of its obligations under this Agreement.

8.4 Compliance with Laws. Such Party is not in violation of or in default under any Applicable Law where the effect of which to such Party, individually or in the aggregate, would reasonably be expected to have a material adverse effect on such Party.

ARTICLE IX.
CERTAIN COVENANTS OF THE PARTIES

9.1 Covenants of NV Energy.

(a) [<insert such covenants as may be necessary for a given Customer>].

9.2 Covenants of Customer.

(a) No Alternative Provider. During the Term of this Agreement, Customer agrees that NV Energy shall be the sole and exclusive provider of electric service to the Project.

(b) [<insert such other covenants as may be necessary for a given Customer>].

ARTICLE X.
DEFAULT; REMEDIES

10.1 Events of Default. Each of the following shall be an "Event of Default" under this Agreement:

(a) If, after the Effective Date, NV Energy fails to provide bundled retail electric service pursuant to and in accordance with the terms of this Agreement; provided, however, that such failure shall not be considered an Event of Default in the event of a Grid Emergency;

(b) If Customer fails to pay any amount when due in accordance with the GS-3 Tariff or this Agreement, as applicable, within the period specified in the GS-3 Tariff or this Agreement (or within forty-five (45) days after such amount is due when no other period is specified in the GS-3 Tariff or this Agreement), provided that NV Energy shall provide written notice of such non-payment to Customer and Customer shall have fifteen (15) days in which to cure such non-payment;

(c) If either Party is in material breach of any representation or warranty set forth herein or fails to perform any covenant, agreement or other material obligation set forth in this Agreement, including the covenants of the Parties set forth in Section 2.3 (other than failure to pay referenced in Section 10.1(b)), and such breach or failure is not cured within thirty (30) days after written notice of the default is provided to the defaulting Party from the non-defaulting Party; provided, however, that, unless otherwise mutually agreed upon in writing by the Parties, the cure period shall be extended by an additional thirty (30) days if (i) the defaulting Party is unable to cure such breach or failure, (ii) such breach or failure is not cured within such thirty (30) day period but the defaulting Party is diligently pursuing a cure, and (iii) such breach or failure cannot reasonably be cured within such thirty (30) day period; or

(d) If either Party files any voluntary petition in bankruptcy, or any of such Party's creditors files an involuntary petition, which involuntary petition remains undischarged for a period of thirty (30) days.

10.2 Termination. Upon the occurrence of an Event of Default, the non-defaulting Party shall provide notice of the default to the defaulting Party and shall specify in such notice the basis for the Event of Default. In addition to the cure periods specified in Section 10.1(c), unless another cure period is specified in this Agreement, the defaulting Party shall have thirty (30) days from the date the defaulting Party receives written notice of an Event of Default to cure the Event of Default. If the Event of Default is not cured within such thirty (30)-day period, or another cure period specified in this Agreement, the non-defaulting Party may provide notice to the defaulting Party that this Agreement has been terminated. The termination shall be effective in accordance with the notice provisions of this Agreement. The defaulting Party shall remain liable for any obligations that the defaulting Party had pursuant to the Agreement prior to the date of termination, in addition to any other surviving obligations specified herein or remedies available pursuant to Section 10.3.

10.3 Remedies.

(a) In General. Subject to Sections 10.1 and 10.2, upon an Event of Default by a Party, the other Party shall have, in addition to any other remedies available to such Party at law or in equity, the right, but not the obligation, to terminate or suspend this Agreement with respect to all obligations arising after the effective date of such termination or suspension (other than payment obligations relating to obligations arising prior to such termination or suspension).

(b) Termination Payment. In the event this Agreement is validly terminated by NV Energy in connection with an Event of Default of Customer pursuant to Section 10.2, in addition to Customer remaining liable for its obligations prior to the date of termination, Customer shall be liable for payment to NV Energy of the Termination Payment to mitigate any potential cost to NV Energy associated with such termination; provided that the provisions of Section 3.3(b) shall not apply in the event of such termination.

ARTICLE XI.
DISPUTE RESOLUTION; GOVERNING LAW; VENUE

11.1 Dispute Resolution. Any dispute or claim arising under this Agreement which is not resolved in the ordinary course of business shall be referred to a panel consisting of a senior executive (President or a Vice President) of NV Energy and Customer, with authority to decide or resolve the matter in dispute, for review and resolution. Such senior executives shall meet and in good faith attempt to resolve the dispute within thirty (30) days. If the Parties are unable to resolve a dispute pursuant to this Section 11.1, then each Party may exercise any right or remedy available to it under this Agreement or Applicable Law.

11.2 Governing Law. THIS AGREEMENT AND THE RIGHTS AND OBLIGATIONS OF THE PARTIES HEREUNDER AND THE TRANSACTIONS CONTEMPLATED HEREBY SHALL BE GOVERNED BY, ENFORCED AND INTERPRETED IN ACCORDANCE WITH

THE LAWS OF THE STATE OF NEVADA WITHOUT REGARD TO PRINCIPLES OF CONFLICTS OF LAW THAT WOULD APPLY THE LAWS OF ANOTHER JURISDICTION.

11.3 Venue. In the event the PUCN has jurisdiction over a civil action or remedy brought under this Agreement, the Parties agree that they will first seek to initiate such action before the PUCN. In the event the PUCN lacks jurisdiction over such a dispute, the Parties agree the dispute will be brought in the U.S. District Court for the District of Nevada. In the event the federal court lacks jurisdiction over such a dispute, the Parties agree the dispute will be brought in the state district court in [Washoe/Clark] County, Nevada. The Parties agree not to initiate any legal action against the other Party except in the jurisdictions as provided in this Section 11.3.

11.4 Waiver of Trial by Jury. TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, EACH OF THE PARTIES HERETO WAIVES ANY RIGHT IT MAY HAVE TO A TRIAL BY JURY IN RESPECT OF LITIGATION DIRECTLY OR INDIRECTLY ARISING OUT OF, UNDER OR IN CONNECTION WITH THIS AGREEMENT. EACH PARTY FURTHER WAIVES ANY RIGHT TO CONSOLIDATE ANY ACTION IN WHICH A JURY TRIAL HAS BEEN WAIVED WITH ANY OTHER ACTION IN WHICH A JURY TRIAL CANNOT BE OR HAS NOT BEEN WAIVED.

ARTICLE XII.
OFAC; PROHIBITED REGIONS; CYBERSECURITY

12.1 OFAC Restrictions.

(a) Customer represents and warrants that neither Customer, any Affiliate of Customer, nor any partner, joint venturer, or strategic alliance participant of Customer or any Affiliate of Customer, nor any officer, director, employee, agent, lobbyist or representative of Customer or any Affiliate of Customer is (i) on, or has any ownership interest in any entity on, any sanction list maintained and published by the U.S. Department of the Treasury's Office of Foreign Assets Control ("OFAC"), including the Specially Designated Nationals and Blocked Persons List and Consolidated Sanctions List maintained and published by OFAC and available at https://sanctionslist.ofac.treas.gov/Home/index.html (collectively, the "OFAC Sanctions Lists"), (ii) does business in violation of any OFAC sanctions program set forth at https://home.treasury.gov/policy-issues/financial-sanctions/sanctions-programs-and-country-information, (iii) does business in violation of any Applicable Law regarding sanctioned individuals, or (d) operating or acting under any alias or pseudonym to avoid detection as a person or entity on any OFAC Sanctions Lists or Uyghur Forced Labor Prevention Act ("UFLPA") sanctions list.

(b) Customer is prohibited from and shall not, either directly or indirectly, involve or engage in any manner any person or entity that is on any OFAC Sanctions Lists or UFLPA sanctions list, whether as a partner, joint venturer, strategic alliance participant, officer, director, employee, agent, lobbyist, representative, contractor, subcontractor, vendor, consultant, supplier, materialman or any other role or relationship of any kind. Customer shall remain up-to-date with recent actions and updates by OFAC and Uyghur Forced Labor Prevention Action Operational Guidance for Importers and shall immediately notify NV Energy at any time it learns that a representation or warranty made in Section 12.1(a) is no longer accurate or that it is in breach

of its covenants in this Section 12.1(b). Customer will fully comply and cooperate with NV Energy in any inquiry, request or investigation concerning Customer initiated by OFAC, and will defend, indemnify, and hold harmless NV Energy and its Affiliates, and each of their officers, directors, employees, attorneys, agents, successors and assigns from and against any and all judgments, amounts paid in settlement, damages, fines, penalties, deficiencies, liabilities, losses or expenses (including interest, court costs, reasonable fees and expenses of attorneys, accountants and other experts or other reasonable expenses of litigation or other proceedings or of any claim, default or assessment) arising from or related to any failure or violation of Customer's warranties, representations, or obligations under Section 12.1(a) or Section 12.1(b). For the avoidance of doubt, Customer shall not be in breach of this Section 12.1 if any Person with whom Customer engages or conducts business is subsequently placed on the OFAC Sanctions List or UFLPA sanctions list so long as Customer takes all actions required by Applicable Law promptly upon learning that such Person has been placed on the OFAC Sanctions List or UFLPA sanctions list.

12.2 State or Government-Owned Enterprises or Companies. Neither Customer nor any Affiliate of Customer shall have any of its ownership interest owned by any Person owned or controlled by the countries of Afghanistan, Angola, Yemen, Sudan, Syria, Uganda, Crimea Region of Ukraine, Russia, Iran, Chad, China, Congo, Venezuela, Somalia, Iraq, Libya or North Korea or any other country that NV Energy may identify by written notice to Customer from time to time based on reasonable concerns of doing business, directly or indirectly, with a Person having any of its ownership interest owned or controlled by such other country (each, a "Prohibited Country" and in the case of more than one Prohibited Country, the "Prohibited Countries"). Customer shall immediately notify NV Energy at any time it learns that it is in breach of its covenants in this Section 12.2. For the avoidance of doubt, Customer shall not be in breach of this Section 12.2 if NV Energy subsequently identifies a country as a Prohibited Country and at that time Customer or an Affiliate of Customer shall have any of its ownership interest owned by a Person owned or controlled by such country so long as Customer takes all actions, if any, required by Applicable Law promptly upon learning of the same.

12.3 Cybersecurity. Customer shall comply in all respects with the requirements in Exhibit F.

ARTICLE XIII.
MISCELLANEOUS

13.1 Notices.

(a) Method of Delivery; Contacts. Each notice, consent, request, or other communication required or permitted under this Agreement must be in writing and delivered personally, transmitted by electronic mail, or sent by certified mail (postage prepaid, return receipt requested) or by a recognized international courier or overnight delivery service provider, and addressed to a Party as follows:

If to NV Energy (other than with respect to delivery of Forecasts), to:

NV Energy
7155 S. Lindell Road, MS B13RE
Las Vegas, NV 89118
Attention: [_____]
Email: [_____]

with a copy to:

NV Energy
6226 W. Sahara Ave., M/S 2
Las Vegas, NV 89146
Attention: General Counsel
Email: legal@nvenergy.com

If to NV Energy (solely with respect to delivery of Forecasts), to:

NV Energy
6100 Neil Rd.
Reno, NV 89511
Attention: Janet Wells, Vice President, Integrated Resource Planning
Email: janet.wells@nvenergy.com

If to Customer, to:

[_____]
Attn: [_____]
[_____]
[_____]
Email: [_____]

with a copy to:

[_____]
Attn: [_____]
[_____]
[_____]
Email: [_____]

Each Party may change the Person or address to which notices will be sent or delivered by similar notice sent or delivered in like manner to the other Party.

(b) Receipt of Notice; Change of Information. Each notice, consent, request, or other communication is deemed to have been received by the Party to whom it was addressed (a)

when delivered if delivered personally; (b) upon acknowledgement of receipt, if delivered by telecopier or electronic mail; (c) on the third (3rd) Business Day after the date of mailing if mailed by certified mail; or (d) on the date officially recorded as delivered according to the record of delivery if delivered by courier or overnight delivery. Each Party may change its contact information for purposes of the Agreement by giving written notice to the other Party in the manner set forth above.

13.2 Limitation of Liability. NOTWITHSTANDING ANY PROVISION OF THIS AGREEMENT TO THE CONTRARY, NO PARTY SHALL, UNDER ANY CIRCUMSTANCES, BE LIABLE FOR SPECIAL, INDIRECT, CONSEQUENTIAL, INCIDENTAL, PUNITIVE OR EXEMPLARY DAMAGES, LOST PROFITS OR LOSS OF REVENUE, WHETHER BY STATUTE, IN TORT, COMMON LAW, STRICT LIABILITY OR CONTRACT OR OTHERWISE. THIS PROVISION SHALL SURVIVE ANY TERMINATION OF THIS AGREEMENT.

13.3 Assignment. Without the prior written consent of the other Party, which shall not be unreasonably withheld, delayed or conditioned, neither Party may assign, delegate or otherwise transfer to any third party (a "Transferee"), whether by contract, operation of law or otherwise, including in connection with any reorganization, merger or consolidation in which the other Party is not the surviving entity, this Agreement or any of a Party's rights or obligations under this Agreement. Any assignment, delegation or other transfer in breach of this Section 13.3 will be void and of no effect. As a condition to any granting of a Party's written consent, (a) the Transferee must agree to assume all obligations of such Party under this Agreement pursuant to a written agreement in form and substance reasonably satisfactory to the other Party and (b) if Customer is the transferor, the ESA Customer Security (if any) must remain in full force and effect in accordance with its terms and without change due to such assignment, delegation or other transfer (or new or replacement ESA Customer Security is provided by the Transferee). Notwithstanding the foregoing, either Party may assign, delegate or otherwise transfer this Agreement or any of a Party's rights or obligations under this Agreement to its Affiliate(s), so long as (x) such Affiliate(s) agree to assume all obligations of such Party under this Agreement pursuant to a written agreement in form and substance reasonably satisfactory to the other Party and (y) if Customer is the transferor, the ESA Customer Security (if any) remains in full force and effect in accordance with its terms and without change due to such assignment, delegation or other transfer (or new or replacement ESA Customer Security is provided by such Affiliate(s)).

13.4 Binding Effect. This Agreement and the rights and obligations of the Parties contained herein shall be binding upon and shall inure to the benefit of the permitted successors and assigns of the Parties.

13.5 Expenses. Except as otherwise expressly provided in this Agreement, each Party shall pay its own costs and expenses incurred in connection with the negotiation, execution, performance and enforcement of its rights and obligations under this Agreement and the transactions contemplated hereby.

13.6 No Waiver. The failure of either Party to enforce any of the provisions of this Agreement at any time, or to require performance by either Party of any of the provisions of this

Agreement at any time, will not be a waiver of any provisions, nor in any way affect the validity of the Agreement, or either Party's right to enforce each and every provision hereof.

13.7 Remedies. All rights and remedies of either Party provided for in this Agreement are cumulative and in addition to, and not in lieu of, any other remedies available to either Party at law, in equity, or otherwise, except as provided in Section 13.2.

13.8 Incorporation of Tariff Schedules; Conflict with Tariff Schedules. The Tariff Schedules are incorporated by reference into this Agreement. To the extent of any inconsistency between this Agreement and the Tariff Schedules, the terms and conditions of this Agreement shall control.

13.9 Integration. This Agreement represents the entire and integrated agreement between NV Energy and Customer and supersedes all prior and contemporaneous oral and written communications, representations, and agreements relating to the subject matter of the transaction, except as otherwise expressly stated herein.

13.10 Amendments. Any change, modification, or amendment to this Agreement is not enforceable unless consented to in writing by the Parties and executed with the same formality as this Agreement. The Parties acknowledge that any change, modification or amendment to this Agreement may require approval of the PUCN.

13.11 Severability. If any portion or provision of this Agreement is deemed invalid, illegal, or unenforceable, or any event occurs that renders any portion or provision of the Agreement void, including but not limited to a final order by the PUCN, the other portions or provisions of this Agreement will remain valid and enforceable. Any voided portion or provision will be deemed severed from this Agreement, and the balance of this Agreement will be construed and enforced as if this Agreement did not contain the particular portion or provision held to be void. The Parties further agree to amend this Agreement to replace any stricken portion or provision with a valid provision that comes as close as possible to the intent of the stricken portion or provision. Without limitation, nothing in this Section 13.11 shall be construed to waive the conditions or the provisions set forth in Section 2.1.

13.12 No Third-Party Beneficiaries. Nothing expressed or implied in this Agreement is intended, or should be construed, to confer upon or give any person or entity not a party to this Agreement any third-party beneficiary rights, interests, or remedies under or by reason of any term, provision, condition, undertaking, warranty, representation, or agreement contained in this Agreement.

13.13 Headings; Exhibits; Cross References. The headings or section titles contained in this Agreement are used solely for convenience and do not constitute a part of this Agreement, nor should they be used to aid in any manner in the construction of this Agreement. All exhibits and schedules attached to this Agreement are incorporated into this Agreement by reference. All references in this Agreement to Sections, Subsections, Exhibits, and Schedules are to Sections, Subsections, Exhibits, and Schedules of or to this Agreement, unless otherwise specified. Unless the context otherwise requires, the singular includes the plural and the plural includes the singular and the neuter includes feminine and masculine.

13.14 Performance of Acts on Business Days. Any reference in this Agreement to time of day refers to local time in Clark County, Nevada. All references to days in this Agreement refer to calendar days, unless stated otherwise. If the final date for payment of any amount or performance of any act required by this Agreement falls on a day other than a Business Day, that payment is required to be made or act is required to be performed on the next Business Day.

13.15 No Construction Against Drafting Party. The language used in this Agreement is the product of both Parties' efforts and each Party hereby irrevocably waives the benefits of any rule of contract construction that disfavors the drafter of a contract or the drafter of specific words in a contract.

13.16 Business Formation. Nothing in this Agreement creates a partnership, joint venture or other similar business construct between the Parties.

13.17 Counterparts. This Agreement may be executed in any number of counterparts, each of which will be deemed an original, but all of which together will constitute one and the same instrument.

13.18 Time of Essence. Time is of the essence with respect to all obligations of the Parties hereunder.

13.19 PUCN Jurisdiction. Customer acknowledges that certain services provided by NV Energy, including services provided under this Agreement, are subject to the terms and conditions of the Tariff Schedules on file and in effect with the PUCN and PUCN rules and regulations. Customer further acknowledges that, notwithstanding Section 13.10, the charges and rates under this Agreement will be revised by the PUCN from time to time in a NV Energy general rate case or similar ratemaking proceeding.

[Signature page follows.]

IN WITNESS WHEREOF, this Agreement has been duly executed by the Parties as of the Execution Date.

NV ENERGY:

[Sierra Pacific Power Company / Nevada Power Company] d/b/a NV Energy, a Nevada corporation

By: _____

Name: _____

Title: _____

CUSTOMER:

[<insert customer name>],
a [<insert jurisdiction and entity type>]

By: _____

Name: _____

Title: _____

[Signature Page to Large Load Electric Service Agreement]

EXHIBIT A

Example Calculations of ESA Energy Rates

Short-Term and Long-Term Energy Rate Calculation Examples

Indicative Sample of Market-Based Short-Term Energy Rate Calculation

Market Block Purchase Price	$0.05000/kWh
Day of Market Price	$0.04000/kWh
Administrative Charge	$0.00200/kWh
Total Market Rate	$0.09200/kWh

Indicative Sample of Alternative Option 2 Short Term Energy Rate Calculation

Short-Term Contract Price	$0.09000/kWh
Administrative Charge	$0.00200/kWh
Short-Term Energy Rate - Alternative Option 2	$0.09200/kWh

Indicative Sample of Long-Term Energy Rate Calculation

Incremental Price of Applicable Generation	$0.05000/kWh
Administrative Charge	$0.00200/kWh
Total Long-Term Energy Rate	$0.05200/kWh

EXHIBIT B

Example Calculation of ESA Overall Rate with Market-Based Energy Rate

Short Term Overall Rate - Market Energy Option
Representative Customer

Category	Billing Determinants		Otherwise Applicable Schedule Rate LGS-3P (7/1/2025 Rate)
Basic Service Charge, per month	Premise count	$	214.10
Additional Meter Charge per additional meter per month	AMC Count	$	93.75
Customer Specific Facilities Charge, per month			Updated each General Rate Case
Facilities Charge all kW per kW	Max(Actual kW, 30% Maximum Demand kW)	$	2.50
BTGR Consumption Charge per kWh*			
Summer On-Peak Period	Max(Actual kWh, 30% Forecasted kWh)	$	0.09759
Summer Off-Peak Period	Max(Actual kWh, 30% Forecasted kWh)	$	0.00246
Winter	Max(Actual kWh, 30% Forecasted kWh)	$	0.00706
Demand Charge per kW			
Summer On-Peak Period	Max(Actual kW, 30% Maximum Demand kW)	$	7.60
Winter	Max(Actual kW, 30% Maximum Demand kW)	$	1.25
Short Term Energy Rate*	100% Forecasted kWh for any Block Purchase		Block Price
	Max(Actual-Block kWh, 90% Forecasted-Block kWh)		Non-Block Price
	Max(Actual kWh, 90% Forecasted kWh)	$	2.00
Customer Specific Generation Charge, per month	Begins on Effective Date, updated each General Rate Case	remental cost of applicable generating facility(s), updated each General Rate Case	

*Applying an 80% load factor to the monthly Maximum Demand kW returns the Forecasted kWh, applying the Minimum Energy of 30% to the Forecasted kWh results in Minimum Energy that is 72% of the Maximum Demand.

Applicable Rate Components:			
Base Tariff Energy Rate (BTER)	kWh not applied to Market Based Energy Rate	$	0.05085
Deferred Energy Accounting Adjustment (DEAA)	kWh not applied to Market Based Energy Rate	$	0.00736
Renewable BTER (R-BTER)			Inc. in BTER
Renewable Energy Program Rate (REPR)	Actual kWh	$	(0.00020)
Temporary Renewable Energy Development (TRED)	Actual kWh	$	0.00036
Energy Efficiency (EE)	Actual kWh	$	0.00244
Universal Energy Charge (UEC)	Actual kWh	$	0.00039
Natural Disaster Protection Program (NDPP)	Actual kWh	$	0.00173
Expanded Solar Access Program (ESAP)	Actual kWh	$	0.00005
Wildfire Self-Insurance (pending filing)	Actual kWh		TBD
Franchise Fee Tax			5.0%

EXHIBIT C

Example Calculations of ESA Overall Rate with
Alternative Option 1 Short-Term Energy Rate and Alternative Option 2 Short-Term Energy Rate

Alternative Option 1 Short-Term Energy Rate:

Short Term Overall Rate - Alternative Option 1 Short Term Energy Rate
Representative Customer

Category	Billing Determinants		Otherwise Applicable Schedule Rate LGS-3P (7/1/2025 Rate)
Basic Service Charge, per month	Premise count	$	214.10
Additional Meter Charge per additional meter per month	AMC Count	$	33.75
Customer Specific Facilities Charge, per month			Updated each General Rate Case
Facilities Charge all kW per kW	Max(Actual kW, 30% Maximum Demand kW)	$	2.50
BTGR Consumption Charge per kWh*			
Summer On-Peak Period	Max(Actual kWh, 30% Forecasted kWh)	$	0.03759
Summer Off-Peak Period	Max(Actual kWh, 30% Forecasted kWh)	$	0.00246
Winter	Max(Actual kWh, 30% Forecasted kWh)	$	0.00706
Demand Charge per kW*			
Summer On-Peak Period	Max(Actual kW, 30% Maximum Demand kW)	$	7.60
Winter	Max(Actual kW, 30% Maximum Demand kW)	$	1.25
Short Term Energy Rate*	Max(Actual kWh, 30% Forecasted kWh)	$	2.00
Customer Specific Generation Charge, per month	Begins on Effective Date, updated each General Rate Case	remental cost of applicable generating facility(s), updated each General Rate Case	

*Applying an 80% load factor to the monthly Maximum Demand kW returns the Forecasted kWh, applying the Minimum Energy of 30% to the Forecasted kWh results in Minimum Energy that is 72% of the Maximum Demand.

Applicable Rate Components:			
Base Tariff Energy Rate (BTER)	Max(Actual kWh, 30% Forecasted kWh)	$	0.05085
Deferred Energy Accounting Adjustment (DEAA)	Max(Actual kWh, 30% Forecasted kWh)	$	0.00736
Renewable BTER (R-BTER)			Inc. in BTER
Renewable Energy Program Rate (REPR)	Actual kWh	$	(0.00020)
Temporary Renewable Energy Development (TRED)	Actual kWh	$	0.00036
Energy Efficiency (EE)	Actual kWh	$	0.00244
Universal Energy Charge (UEC)	Actual kWh	$	0.00038
Natural Disaster Protection Program (NDPP)	Actual kWh	$	0.00179
Expanded Solar Access Program (ESAP)	Actual kWh	$	0.00005
Wildfire Self-Insurance (pending filing)	Actual kWh		TBD
Franchise Fee Tax			5.0%

Alternative Option 2 Short-Term Energy Rate:

Short Term Overall Rate - Alternative Option 2 Short Term Energy Rate
Representative Customer

Category	Billing Determinants		Otherwise Applicable Schedule Rate LGS-3P (7/1/2025 Rate)
Basic Service Charge, per month	Premise count	$	214.10
Additional Meter Charge per additional meter per month	AMC Count	$	33.75
Customer Specific Facilities Charge, per month			Updated each General Rate Case
Facilities Charge all kW per kW	Max(Actual kW, 90% Maximum Demand kW)	$	2.50
BTGR Consumption Charge per kWh*			
Summer On-Peak Period	Max(Actual kWh, 90% Forecasted kWh)	$	0.03759
Summer Off-Peak Period	Max(Actual kWh, 90% Forecasted kWh)	$	0.00246
Winter	Max(Actual kWh, 90% Forecasted kWh)	$	0.00706
Demand Charge per kW*			
Summer On-Peak Period	Max(Actual kW, 90% Maximum Demand kW)	$	7.60
Winter	Max(Actual kW, 90% Maximum Demand kW)	$	1.25
Short Term Energy Rate*	100% Forecasted kWh output of contracted generation		fixed price contract rate
	Max(Actual kWh, 90% Forecasted kWh)	$	2.00
Customer Specific Generation Charge, per month	Begins on Effective Date, updated each General Rate Case		remental cost of applicable generating facility(s), updated each General Rate Case

*Applying an 80% load factor to the monthly Maximum Demand kW returns the Forecasted kWh, applying the Minimum Energy of 90% to the Forecasted kWh results in Minimum Energy that is 72% of the Maximum Demand.

Applicable Rate Components			
	kWh not applied to Short Term Energy Rate:		
Base Tariff Energy Rate (BTER)	Max(actual kWh, 90% Forecasted kWh)	$	0.05085
	kWh not applied to Short Term Energy Rate:		
Deferred Energy Accounting Adjustment (DEAA)	Max(actual kWh, 90% Forecasted kWh)	$	0.00736
Renewable BTER (R-BTER)			Inc. in BTER
Renewable Energy Program Rate (REPR)	Actual kWh	$	(0.00020)
Temporary Renewable Energy Development (TRED)	Actual kWh	$	0.00036
Energy Efficiency (EE)	Actual kWh	$	0.00244
Universal Energy Charge (UEC)	Actual kWh	$	0.00039
Natural Disaster Protection Program (NDPP)	Actual kWh	$	0.00179
Expanded Solar Access Program (ESAP)	Actual kWh	$	0.00005
Wildfire Self-Insurance (pending filing)	Actual kWh		TBD
Franchise Fee Tax			5.0%

EXHIBIT D

Example Calculation of ESA Overall Rate with Long-Term Energy Rate

Long Term Overall Rate
Representative Customer

Category	Billing Determinants		Otherwise Applicable Schedule Rate LGS-3P (7/1/2025 Rate)
Basic Service Charge, per month	Premise count	$	214.10
Additional Meter Charge per additional meter per month	AMC Count	$	33.75
Customer Specific Facilities Charge, per month			Updated each General Rate Case
Facilities Charge all kW per kW	Max(Actual kW, 30% Maximum Demand kW)	$	2.50
BTGR Consumption Charge per kWh*			
Summer On-Peak Period	Max(Actual kWh, 30% Forecasted kWh)	$	0.03759
Summer Off-Peak Period	Max(Actual kWh, 30% Forecasted kWh)	$	0.00246
Winter	Max(Actual kWh, 30% Forecasted kWh)	$	0.00706
Demand Charge per kW*			
Summer On-Peak Period	Max(Actual kW, 30% Maximum Demand kW)	$	7.60
Winter	Max(Actual kW, 30% Maximum Demand kW)	$	1.25
Long Term Energy Rate*	Max(Actual kWh, 30% Forecasted kWh, 100% facility output)		Incremental fixed price of applicable generating facility(s)
	Max(Actual kWh, 30% Forecasted kWh)	$	2.00
Customer Specific Generation Charge, per month	Begins on Effective Date, updated each General Rate Case		remental cost of applicable generating facility(s), updated each General Rate Case

*Applying an 80% load factor to the monthly Maximum Demand kW returns the Forecasted kWh, applying the Minimum Energy of 30% to the Forecasted kWh results in Minimum Energy that is 72% of the Maximum Demand.

Applicable Rate Components:			
Base Tariff Energy Rate (BTER)	Max(Actual kWh, 30% Forecasted kWh)	$	0.05085
Deferred Energy Accounting Adjustment (DEAA)	Max(Actual kWh, 30% Forecasted kWh)	$	0.00736
Renewable BTER (R-BTER)			Inc. in BTER
Renewable Energy Program Rate (REPR)	Actual kWh	$	(0.00020)
Temporary Renewable Energy Development (TRED)	Actual kWh	$	0.00036
Energy Efficiency (EE)	Actual kWh	$	0.00244
Universal Energy Charge (UEC)	Actual kWh	$	0.00033
Natural Disaster Protection Program (NDPP)	Actual kWh	$	0.00179
Expanded Solar Access Program (ESAP)	Actual kWh	$	0.00005
Wildfire Self-Insurance (pending filing)	Actual kWh		TBD
Franchise Fee Tax			5.0%

EXHIBIT E

Example Calculation of Termination Payment

Termination Payment = ((Minimum Demand and Minimum Energy) * ESA Overall Rate) – (Minimum Energy (in kWh) * (BTER + DEAA + other applicable rates))

EXHIBIT F

Cybersecurity Requirements

[see attached]

EXHIBIT G

Customer-Reserved Provisions

1. The specific percentages referenced in the defined term "Minimum Demand"

2. The specific percentage referenced in the defined term "Minimum Energy", and Customer's obligation to pay the ESA Overall Rate with respect to the Minimum Energy

3. The calculation of each of (a) the "Customer-Specific Generation Charge", (b) the "ESA Overall Rate", and (c) the "Long-Term Energy Rate"

4. The calculation of the "Termination Payment"

5. The calculation of the "ESA Customer Security"

Framework for Large Customer Energy Supply and Rule 9 Agreements

This Framework for Large Customer and Energy Supply and Rule 9 Agreements (the "Framework") sets forth the mutual interest of Sierra Pacific Power Company d/b/a NV Energy ("the Company" or "NV Energy") and [legal name of counter party] ("Developer" and, together with the Company, the "Parties") regarding the inclusion of Developer's requested energy and capacity forecast for Developer's pending project located in _____ County, Nevada (the "Project") in an Integrated Resource Plan for the Company that would be filed jointly with Nevada Power Company d/b/a/ NV Energy (an "IRP"). Inclusion in the IRP of Developer's requested energy and capacity forecast described in this Framework is subject to [the discretion of the Company][the mutual written agreement between the Company and Developer].

Developer has requested that the Company plan to serve the occupants of the Project ("Project Occupants") as retail customers of the Company. Given the status at this time of the Project's pending development, it is acknowledged that the Project Occupants are unknown and have yet to take possession or occupancy in the Project. The Parties agree there is a mutual interest in:

- providing the Public Utilities Commission of Nevada (the "Commission") with sufficient information about energy and generation capacity needs of the Project to ensure that the Company can procure adequate resources to serve the anticipated retail load of Project Occupants;
- an integrated resource plan that provides reliable electric service for the anticipated retail load of Project Occupants; and
- developing contract terms and conditions that safeguard the interest of the Company's existing customers by insulating such customers from the negative impact, if any, of the Company serving the anticipated retail load of the Project Occupants.

The purpose of this Framework is to document the Parties' mutual intention with respect to an IRP.

Any new generation, and associated transmission or distribution facilities needed to accommodate Developer's requested load for the Project Occupants, would need to be included in an IRP. Such resources are subject to review and approval by the Commission. Developer has expressed interest for Project Occupants to be served by the Company as retail customers, either through an otherwise applicable tariff or energy supply agreements pursuant to the Large Customer Market Price Energy tariff.

Developer acknowledges that, if Project Occupants do not reach a Definitive Agreement (defined in Section 3 below) with the Company, the Company will be unable to secure the supply side resources needed to serve the Project Load Ramp (defined below).[9] Developer further acknowledges that, if the Company is unable to secure the supply side resources needed to serve the Project Load Ramp in an IRP, the Company will be unable to meet the Project Load Ramp which may result in substantial delay in Developer's schedule or development of the Project.

1. **Non-binding**. This Framework is intended only as a reflection of the intention of the Parties. Neither this Framework, nor the acceptance of the Framework by either Party shall constitute or

[9] **Note to Developer:** Reserved.

create any legally binding or enforceable obligation on either Party, except for Sections 2(a)(i) – 2(a)(iv), 2(b), and 2(c), 4, 7, and 8, which shall be binding upon the Parties.

2. **Project Load Ramp**. For Project Occupants of the Project, Developer desires a load ramp schedule (the "Load Ramp Schedule") with short-term and long-term periods. The short-term period begins on [January 1, 20__], and ends when the long-term ramp begins (the "Short-term Period"). The Parties acknowledge that, during the Short-term Period, the Company's ability to serve Project Occupants is subject to generation and transmission system constraints. The long-term period is expected to begin in 20__, which is the first year when the Company anticipates new large-scale generation could be commercially operable and available to serve loads, assuming such loads are included in an IRP and the Commission approves generation and transmission resources required to serve such loads. Timing of the filing of an IRP is critical and having certainty as to the expected load and the resources to serve that load are cornerstone components of the filing and achieving a successful outcome with the Commission.

   a. **Short-term Period**.

      i. The Company shall include the aggregate peak energy demand anticipated for Project Occupants in the IRP load forecast as set forth in the following table (the "Base Short-term Demand Forecast"):

TABLE 1	
Year	**Aggregate Annual Peak (MW) Allocable Amongst Project Occupants**
20__	__
20__	__
20__	__
20__	__
20__	__

      ii. Within 3 business days after Developer signs this Framework, Developer will provide to the Company a forecast of monthly peak demand for the aggregate annual peak demand anticipated for Project Occupants as set forth in Table 1.

      iii. The Company will use publicly available data, information from its load research department, and the professional judgement of its employees to shape the monthly peak demand to prepare an hourly energy forecast that it will include in its IRP load forecast (the "Base Hourly Load Forecast").

      iv. The Company will provide the Base Hourly Load Forecast to Developer [for Developer's acknowledgement / for Developer's approval].[10]

[10] **Note to Developer**: Parties to discuss whether Developer will acknowledge the hourly load forecast or approve the hourly load forecast.

v. The Company acknowledges that Developer has asked the Company to deliver additional energy for Project Occupants during the Short-term Period. Developer acknowledges that the Company's ability to deliver additional energy for Project Occupants as set forth in Table 2, is constrained by available generation and transmission resources.

TABLE 2	
Year	**Aggregate Additional Short-term Period Peak Demand (MW) Allocable Amongst Project Occupants**
20__	__
20__	__
20__	__
20__	__
20__	__

vi. The Company will reasonably cooperate with Developer to identify options to deliver to Project Occupants energy above the Base Hourly Load Forecast up to the Aggregate Additional Short-term Period Peak Demand Allocable Amongst Project Occupants to the extent such additional energy can be identified, procured and transmitted to the service location.

b. **Long-term Period**. The Company shall include the aggregate peak energy demand anticipated for Project Occupants in the IRP load forecast as set forth in the following table:

TABLE 3	
Year	**Aggregate Load Ramp (MW) Allocable Amongst Project Occupants**
20__	__
20__	__
20__	__
20__	__
20__ and beyond	__

c. **Rule 9 or Engineering Studies**. Prior to the Company pursuing or entering into agreements for serving the loads forecasted herein, including any Definitive Agreement (defined in Section 3 below), the Company may require the performance of Rule 9 studies or other engineering studies showing or demonstrating results or outcomes satisfactory to the Company.

3. Key Principles. A definitive or definitive agreements ("Definitive Agreement") establishing the respective rights, duties and obligations of the Company and Project Occupants relating to the

Company meeting the retail energy needs of Project Occupants would need to be entered into between the Company and each Project Occupant.[11] Each such Definitive Agreement would include terms and conditions addressing the following key principles:

a. **Capacity Reallocation**: Provisions that address the ability of the Company to reallocate energy supply and resources committed to serve the Project Occupant's requested load in cases where the Project Occupant's actual load differs materially from Project Occupant's requested load.

b. **Contingent Project Delivery**: Provisions that appropriately condition the availability of service by NV Energy under the Definitive Agreement on the delivery of contingent distribution, transmission and generation projects.

c. **Customer Protections**: Appropriate provisions, such as minimum capacity, minimum bill, refundable advances in aid of construction related to generating resources and deposit and security provisions, designed to ensure that the Company's existing customers are not negatively affected by the Company serving the Project Occupant's load.[12]

d. **Energy Supply Mix**: Provisions identifying Project Occupant's requested energy supply mix, including the allocation of costs and renewable energy attributes associated with Project Occupant's requested energy supply mix.

e. **Integrated Resource Plan Approval**: Integrated resource plan approval of resources identified by the Company to serve Project Occupant's load will be a condition precedent to obligations to perform under the Definitive Agreements.

f. **Load Curtailment**: Appropriate provisions that address the curtailment of Project Occupant's load, recognizing the commitment of the Project Occupant to its customers.

g. **Other Company Customary Provisions**: The Definitive Agreement shall include Company's customary provisions on various matters and topics including, but not limited to, provisions for representations and warranties, limitations on damages, indemnification, and governing law, venue, and waiver of trial by jury.

4. **Developer's Responsibility for Shortfall in Load Subscribed for by Project Occupants**. If by _____, 20___, Definitive Agreements have not been entered into between Company and Project Occupants subscribing for the entire amount of Developer's requested load for Project Occupants, Developer shall be liable and responsible for all costs of additional generation and

[11] The Company may require the performance of Rule 9 studies or other engineering studies showing or demonstrating results or outcomes satisfactory to the Company prior to pursuing or entering into a Definitive Agreement with a Project Occupant.

[12] Developer acknowledges the acquisition of new generating resources may require the acquisition of real property and the development of ancillary projects, such as the procurement and delivery of fuel, ancillary transmission facilities, and any other facilities or investments needed to deliver the generation to the Project and Project Occupants. In this regard, customer protections will be designed to prevent adverse impacts to NV Energy's existing customers based on the total cost of supply side resources.

energy incurred by Company (to the extent the load requested by Developer has not been entirely subscribed for under Definitive Agreements with Project Occupants).

5. **Regulatory Proceeding Support**. Developer acknowledges that the Company bears the burden of producing evidence demonstrating that its forecasts of peak demand and annual energy consumption are (i) based on substantially accurate data, (ii) adequately demonstrated and defended, and (iii) adequately documented and justified. In this regard, Developer is committed to provide support to the Company in connection with the IRP, including intervening and participating therein.

6. **Term**. This Framework shall terminate upon the earlier of either: (a) _____, 20__, or the filing of the IRP.

7. **Governing Law and Waiver of Jury Trial**. This Framework shall be governed by the internal laws of the State of Nevada, excluding any of its conflict of law provisions that would require the application of laws of another jurisdiction. Any suit, action or proceeding arising out of this Framework, or for the interpretation, enforcement or breach of this Framework, shall be instituted in any State or Federal Court in Washoe County, Nevada (the "Acceptable Forums"). Each Party agrees that the Acceptable Forums are convenient to it, and each Party irrevocably submits to the jurisdiction of the Acceptable Forums, and waives any and all objections to jurisdiction or venue that it may have in any such suit, action or proceeding. To the fullest extent permitted by law, each of the Parties waives any right it may have to a trial by jury in respect of litigation directly or indirectly arising out of, under or in connection with this Framework. Each Party further waives any right to consolidate any action in which a jury trial has been waived with any other action in which a jury trial cannot be or has not been waived.

8. **Developer's Representations and Warranties and Indemnity**. Developer represents and warrants that: (a) Developer is duly formed, validly existing and in good standing under the laws of the jurisdiction of its formation, and has the requisite entity power and authority to enter into this Framework; (b) Developer's execution and delivery of this Framework has been duly authorized by all requisite action; and (c) Developer's execution, delivery and performance of this Framework will not violate or conflict with or cause a breach or default under any covenant, agreement, or other instrument to which Developer is a party. Developer agrees to indemnify, defend, save and hold harmless Company from any and all claims, actions, suits, proceedings, losses, liabilities, payments, penalties, damages, judgments, costs or expenses, including court costs and reasonable attorneys' fees, that Company may incur or sustain in connection with or arising from any breach of this Framework by or on the part of Developer.

9. **No Third-Party Beneficiary; Restriction on Assignment**. The terms and provisions of this Framework are intended solely for the benefit of the Parties and their respective successors and assigns, and it is not the intention of the Parties to confer third-party beneficiary rights (and no third-party beneficiary rights shall be conferred) on any other person or entity, including without limitation, Project Occupants. Neither this Framework nor any of the rights or obligations hereunder shall be assignable or transferrable or assigned or transferred by Developer, including by operation of law, without the prior written consent of the Company.

10. **Energy Supply Mix.** Developer acknowledges that the Company will use its judgement to seek approval of distribution, transmission and generating resources in the IRP intended to meet the forecasts of peak demand and annual energy consumption of its customers. The Company will consider all generation types based on the needs of its customers, and other factors such as required compliance with Nevada's renewable portfolio standard. If requested to be served by a specific resource type to meet Developer's specific goals with respect to the Project Occupants of the Project, the Company will consider fulfilling such a request if it meets or exceeds Nevada's renewable portfolio standard.

[Next page is signature page]

SIERRA PACIFIC POWER COMPANY D/B/A NV ENERGY:	**DEVELOPER:**
By: Name: Title: Date:	[LEGAL NAME OF DEVELOPER:] By: Name: Title: Date:

EXHIBIT WELLS-DIRECT-3

EXHIBIT H – Amazon Data Services ("ADS")

Customer-Reserved Provisions

1. The specific percentages referenced in the defined term "Minimum Demand"

   Customer reserves this position.

2. The specific percentage referenced in the defined term "Minimum Energy", and Customer's obligation to pay the ESA Overall Rate with respect to the Minimum Energy

   Customer reserves this position.

3. The calculation of each of (a) the "Customer-Specific Generation Charge", (b) the "ESA Overall Rate", and (c) the "Long-Term Energy Rate"

   Customer reserves this position.

4. The calculation of the "Termination Payment"

   Customer reserves this position.

5. The calculation of the "ESA Customer Security"

   Customer reserves this position.

EXHIBIT G

Customer's Execution Disclaimer and Statement of Intent. In addition to the Customer-Reserved Provisions noted below, Customer hereby informs NV Energy and the PUCN as follows:

1. There is no tariff or service condition approved by the PUCN that requires Customer to execute this Agreement in order to receive service from NV Energy. As the incumbent utility with a certificate of public convenience and necessity, NV Energy has an obligation to provide electric service to Customer under the OARS (GS-3) tariff, as currently approved by the PUCN.
2. It is Customer's understanding that NV Energy has not sought nor has been granted by the PUCN the authority to require any GS-3 customer to sign this Agreement as a prerequisite to receiving electric service from NV Energy. Further, it is Customer's understanding that the form of this Agreement has not been approved by the PUCN and was selectively tendered to certain customers on unestablished criteria.
3. Customer is committed to collaborating in good faith to develop structures that ensure new large load customers pay their fair share based on cost of service and other fundamental ratemaking principles. Customer supports open, inclusive analysis and rulemaking that ensures residential ratepayers are not subjected to increased energy bills or required to shoulder a disproportionate share of system costs, while enabling load growth and economic development in the region.

Further to this understanding, Customer is executing this Agreement expressly pursuant to and in accordance with the foregoing conditions and disclaimers:

1. Customer is not being provided a service option by NV Energy under GS-3 but for the execution of this Agreement.
2. Customer executes this Agreement solely because NV Energy has conditioned the provision of electric service upon its execution. Customer believes such a condition is unlawful and unreasonable. Execution of this agreement does not reflect a good faith commercial negotiation and shall not constitute a waiver of any of Customer's rights or legal positions.
3. If the PUCN allows Customer to take service under the GS-3 tariff without this Agreement, Customer reserves the right to accept that option, and, consequently, this Agreement will never become effective and be unenforceable.
4. Customer objects to all of the provisions identified in this Exhibit G, at a minimum, and reserves the right to object to other terms and conditions in the future.
5. Customer expressly reserves the right to request modifications to the Agreement based upon guidance from the PUCN. Further, Customer expressly reserves the right to seek relief from the PUCN to modify or void. No provision of this Agreement shall be constituted as a waiver of those rights.

Customer-Reserved Provisions

1. Recitals. Remove "WHEREAS, as of the Effective Date and pursuant to and in accordance with this Agreement, Customer shall be obligated to pay to NV Energy (as part of the ESA Overall Rate) the Customer Specific Generation Charge, which payment obligation precedes the dates upon on which such thermal generating facilities, and such transmission infrastructure projects, are anticipated to achieve commercial operation and to be placed in service; and"[1]
2. "Alternative Option 1 Short-Term Energy Rate" means all applicable rates based on the GS-3 Tariff, as determined by the PUCN, without duplication~~, plus a $2/MWh administrative fee~~.[2]
3. "Alternative Option 2 Short-Term Energy Rate" means a rate calculated by NV Energy for Short-Term Energy that includes (a) an energy charge based on NV Energy's cost to serve the Project's Connected Load in accordance with this Agreement utilizing available generation capacity from any electric generating facilities not owned by or contracted to, but otherwise available to, NV Energy, ~~plus a $2/MWh administrative fee,~~ provided that such energy charge shall not be less than the sum of the BTER and DEAA rates for such Short-Term Energy; and (b) all BTER and DEAA rates for such Short-Term Energy, to the extent such BTER and DEAA rates are not included within clause (a) above.
4. Remove definition of "Customer Specific Generation Charge." The Customer-Specific generation charge has not been approved by the PUCN. Drafting in this section is overly vague. NVE has not defined how it will determine the inputs of this charge, specifically what resources will be included in this charge. Further, this charge should not double count embedded charges already paid by customer. This is also inconsistent with understanding that Customer is responsible only for the "premium" of these resources versus embedded resources, and that premium will be added to the OARS (GS-3). As drafted in this Agreement, this charge could lead to rates 2x or more above standard tariff service. All NVE charges and rates must be clearly defined and authorized by the PUCN.
5. "ESA Overall Rate" means an overall rate calculated by NV Energy for Short-Term Energy and Long-Term Energy based on the Minimum Demand and Minimum Energy that includes (without duplication) (a) any applicable Customer Specific Facilities Charge(s); (b) all applicable charges for any BTGR, BTER and DEAA rates; (c) the Customer-Specific Generation Charge; (d) with respect to Short-Term Energy, the Market-Based Energy Rate, the Alternative Option 1 Short-Term Energy Rate and/or the Alternative Option 2 Short-Term Energy Rate; (e) with respect to Long-Term Energy, the

[1] Note to Draft: Customer should not be responsible for the payment of fees for generation resources prior to receiving energy generated by such resource. Customer should only be charged for energy produced and actually delivered to its facilities. Imposition of Customer Specific Generation Charge does not match PUCN approved tariff structures. All rates must be approved by PUCN. Customer should be entitled to GS-3 tariff pricing until another tariff structure is approved.

[2] Note to Draft: Admin fee has not been authorized by PUCN. All fees collected by NVE must be authorized by the PUCN. NVE has not provided Customer any rationale for imposition of fee. NVE has presented this ESA and the terms of it as "take-it-or-leave-it," and is not subject to an enabling Tariff.

Long-Term Energy Rate; (f) a franchise fee as set by the applicable Governmental Authority; and (g) all other applicable rates, as determined by the PUCN, provided that all other applicable rates will be assessed at the realized Project load levels.[3]

6. Definition of "Generation Facility." NVE's construct of Generation Facility and their charges could lead to drastically different prices for customers within the same class. Customers have no insight into how NVE chooses specific resources for specific customers or opportunities to negotiate directly with generators for more favorable pricing. In fact, this construct disincentivizes NVE from negotiating acceptable rates on behalf of its customers. NVE must treat all similarly situated customers equally.

7. Definition of "Load Factor." NVE has not justified an 80% load factor. Allowing an unjustified load factor could allow NVE to collect revenue for energy which is not produced or available.

8. "Long-Term Energy Rate" means (a) a fixed rate of $37.16/MWh for the hours and loads the applicable Generating Facility or Alternative Generating Facility is in production, plus (b) all BTER and DEAA rates for hours and loads during [non-production hours,][4] as described in Section 5.2(c), as it may be adjusted pursuant to Section 5.2(b).

9. "Market-Based Energy Rate" means a rate calculated by NV Energy for Short-Term Energy based on Platts Megawatt Daily Day-Ahead, Mead On-Peak and Off-Peak or other similar indices. The Market-Based Energy Rate ~~will~~ may include (a) an energy charge comprised of (i) fixed prices and volumes (which may include fixed price MW blocks consisting of a 24 hour by 7 day defined MW block applicable to all months with a minimum term of twelve (12) rolling months or such other products as the Parties may mutually agree) and (ii) market-based day-ahead Platts Megawatt Daily Mead index rates for residual volumes (i.e., the difference between the metered volume and any fixed price MW blocks applicable to the delivery period), calculated as the sum of (x) Platts Megawatt Daily Day-Ahead Mead On-Peak price multiplied by the metered volume during the On-Peak period and (y) the Platts Megawatt Daily Day-Ahead Off-Peak price multiplied by the metered volume during the Off-Peak period for such residual volumes; (b) ~~a $2/MWh administrative fee; (c)~~ all BTGR rates based on the GS-3 Tariff; and (c~~d~~) all BTER and DEAA rates for such Short-Term Energy, to the extent such BTER and DEAA rates are not included within clause (a) above.

10. "Minimum Demand" shall mean an amount equal to, collectively, (A) at least ~~ninety~~ seventy percent (7~~9~~0%) of the Ramp Demand during each month of the Ramp Period, and (B) at least ~~ninety~~ seventy percent (~~9~~70%) of the Maximum Demand during each month of the Term from and after the end of the Ramp Period.[5]

[3] Note to Draft: Pricing mechanisms in LLESA do not match PUCN approved tariff structure. All rates must be approved by PUCN. Customer should be entitled to GS-3 tariff pricing until another tariff structure is approved.
[4] Note to Draft: Fixed price of Generating Facility may not be known at execution of the LLESA. How will Long-Term Energy Rates vary among customers subject to them? These hours need to be more defined in the LLESA, as the LLESA is not limited to intermittent resources.
[5] Note to Draft: Minimum Demand charges proposed by NVE grossly exceed industry standards. Any demand charges must be approved by the PUCN and be determined based on an assessment of the revenue requirements associated with the cost of service.

11. "Minimum Energy" shall mean the Maximum Demand multiplied by the Load Factor multiplied by ~~ninety~~ seventy percent (~~9~~70%).[6]

12. "PUCN Alternative Resource Approval" means a final order issued by the PUCN that (a) approves the Alternative Resource Procurement Agreement or Alternative Generating Facility (as applicable) from which NV Energy will procure or generate electric capacity and energy for Customer, in form and substance satisfactory to NV Energy in its ~~sole~~ reasonable discretion, and which (b) is not the subject of (i) a petition for reconsideration or rehearing, (ii) a petition for judicial review, or (iii) a petition for a preliminary injunction.

13. "PUCN Replacement Resource Approval" means a final order issued by the PUCN that (a) approves the Replacement Resource Procurement Agreement or Replacement Generating Facility (as applicable) from which NV Energy will procure or generate electric capacity and energy for Customer, in form and substance satisfactory to NV Energy in its reasonable ~~sole~~ discretion, and which (b) is not the subject of (i) a petition for reconsideration or rehearing, (ii) a petition for judicial review, or (iii) a petition for a preliminary injunction.

14. "PUCN Resource Approval" means a final order issued by the PUCN that (a) approves the Resource Procurement Agreement or Generating Facility (as applicable) from which NV Energy will procure or generate electric capacity and energy for Customer, in form and substance satisfactory to NV Energy in its reasonable ~~sole~~ discretion, and which (b) is not the subject of (i) a petition for reconsideration or rehearing, (ii) a petition for judicial review, or (iii) a petition for a preliminary injunction.

15. Sections 2.1: Conditions to Effectiveness. Remove (b) – (d):[7]

16. Section 2.3(a): PUCN ESA Approval. Following the Execution Date, NV Energy shall use commercially reasonable efforts to obtain the PUCN ESA Approval~~; provided that if the PUCN ESA Approval is not obtained, NV Energy shall not be obligated to undertake further efforts to obtain the PUCN ESA Approval~~.

17. Section 2.3(b): PUCN Resource Approval. Following the Execution Date, NV Energy shall use commercially reasonable efforts to obtain the PUCN Resource Approval~~; provided that if the PUCN Resource Approval is not obtained, NV Energy shall not be obligated to undertake further efforts to obtain the PUCN Resource Approval~~.

18. Section 2.3(c): Consultation with Customer; Customer Support for PUCN Approvals. NV Energy shall consult with Customer on all principal filings submitted by NV Energy to the PUCN in connection with seeking the PUCN Approvals, however, NV Energy shall not be obligated to seek any approval or preapproval from Customer with respect to the form or substance of any such filings (or any attachments thereto). Customer may, from time to time, offer input to NV Energy in connection with such filings, which NV Energy may consider but shall not be required to implement or incorporate in such filings.

[6] Note to Draft: Minimum Energy charges proposed by NVE grossly exceed industry standards. Any demand charges must be approved by the PUCN and be determined based on an assessment of the revenue requirements associated with the cost of service.

[7] Note to Draft: LLESA effectiveness should only be conditioned on PUCN approval of the Agreement Robust language regarding interim service is sufficient to allow both parties to effectively perform.

~~Following the Execution Date, (i) Customer, at its sole cost and expense, shall reasonably cooperate with NV Energy and support NV Energy's efforts in obtaining the PUCN Approvals, which cooperation and support may include, at Customer's discretion, Customer filing a petition for leave to intervene in the applicable PUCN proceedings in support of NV Energy's filings for the PUCN Approvals, and (ii) if Customer does intervene in such PUCN proceedings, except with respect to the Customer-Reserved Provisions, Customer shall not file any documents in any such PUCN proceedings in opposition to such filings.~~

19. Section 2.3(d)(i): If the PUCN Resource Approval is not obtained, then, commencing on the date that the PUCN Resource Approval is not obtained and continuing for a period of thirty-six (36) months thereafter (the "Interim Period"), NV Energy shall use commercially reasonable efforts to enter into an Alternative Resource Procurement Agreement or identify an Alternative Generating Facility and to obtain the PUCN Alternative Resource Approval~~; provided that if the PUCN Alternative Resource Approval is not obtained, NV Energy shall not be obligated to undertake further efforts to obtain the PUCN Alternative Resource Approval~~.[8]

20. Section 2.3(d)(iv): If NV Energy does not enter into an Alternative Resource Procurement Agreement, or if the PUCN Alternative Resource Approval is not obtained, prior to the end of the Interim Period, then, from and after the end of the Interim Period ~~each of the Parties~~Customer shall have the right to terminate this Agreement upon written notice to ~~the other Party~~NV Energy, and Customer shall be liable for its payment obligations that arose prior to the date of termination. For the avoidance of doubt, if this Agreement is terminated pursuant to this Section 2.3(d)(iv), Customer shall not be liable for the payment of the Termination Payment pursuant to Section 3.3.[9]

21. Section 3.1: Term. The term of this Agreement shall commence on the Effective Date and shall continue for a period of 300[10] calendar months after the Effective Date (the "Term"), unless earlier terminated in accordance with this Agreement. The Term is comprised of (a) a transitional load period during which Customer shall add Project load prior to achieving the Maximum Demand (the "Ramp Period") of 48 calendar months from and after the Effective Date, and (b) a period of 252 calendar months from and after the end of the Ramp Period. Following the end of the Term, Customer may elect to (i) continue to take service under the terms and conditions of this Agreement, (ii) take service under another tariff or rate offered by NV Energy, or (iii) no longer receive bundled electric service from NV Energy, which may include accepting new electric resource service pursuant to NRS Chapter 704(B).

[8] Note to Draft: NVE has an obligation to serve all customers in its service territory. NVE should not have ability to terminate service agreement in this instance. Further, NVE has sole control of PUCN approvals, Customer should not bear the risk of NVE's failure to obtain resource approval and should not be penalized for its failure to do so.
[9] Note to Draft: NVE has an obligation to serve all customers in its service territory. NVE should not have ability to terminate service agreement in this instance. Further, NVE has sole control of PUCN approvals, Customer should not bear the risk of NVE's failure to obtain resource approval and should not be penalized for its failure to do so.
[10] Note to Draft: Term should be consistent across LLESA customers. Any term exceeding 10 years should include a reasonable exit period (ex. 5 years), where Customer (i) has the option to reassign the contracted capacity to another large load customer or (ii) would be responsible for minimum billing requirements during an exit period (subject to NVE mitigation efforts), then released from further obligations.

22. Section 3.2: Elective Termination by Customer. Customer may elect to terminate this Agreement~~, at any time from and after the Long-Term Energy Supply Commencement Date,~~ upon delivery of written notice of such election (a "Termination Notice") to NV Energy not less than thirty-six (36) months prior to the effective date of the termination specified in the Termination Notice (the "Termination Date"). ~~For the avoidance of doubt, Customer shall have no right to terminate this Agreement during the Short-Term Energy Supply Period pursuant to this Section 3.2.~~

23. Section 3.3(a): Termination Payment. If Customer terminates this Agreement pursuant to Section 3.2 after the commencement of the Short-Term Energy Supply Period, Customer shall pay to NV Energy the Termination Payment promptly, and in any event not more than thirty (30) days, after the Termination Date, by wire transfer of immediately available federal funds to an account located in the United States as NV Energy may specify by notice. For illustrative purposes only, an example calculation of the Termination Payment is provided in Exhibit E. If Customer terminates this Agreement pursuant to Section 3.2 on or before the Effective Date of this Agreement, Customer shall not owe NV Energy any Termination Payment.[11]

24. Section 3.3(b): Mitigation and Refund of Termination Payment. Commencing on the date of delivery of the Termination Notice~~ and continuing for a period of thirty-six (36) months after the Termination Date (the "Refund Period")~~, NV Energy shall use commercially reasonable efforts to mitigate the amount of the Termination Payment~~, which efforts are expressly limited to NV Energy providing bundled retail electric service, up to the Minimum Demand, to one or more customers (including customers that Customer may identify), if available, pursuant to electric service agreements with such customers and the GS-3 Tariff (or other tariffs applicable to large load customers)~~. For purposes of this Agreement, the "Refund Amount" is the aggregate net amount received by NV Energy in connection with the preceding sentence. Thirty (30) days prior to the Termination Payment due date, NVE shall notify Customer of the Refund Amount. Customer may offset the Refund Amount against the Termination Payment. ~~Within thirty (30) days after December 31 of the calendar year in which Customer has paid to NV Energy the Termination Payment, NV Energy shall pay to Customer the Refund Amount received by NV Energy during the Refund Period, by wire transfer or ACH of immediately available federal funds to an account of Customer located in the United States or by check from NV Energy in good and immediately available funds; provided that in no event shall the Refund Amount exceed the Termination Payment.~~[12]

25. Section 4.1: Tariff Service. During the Term, NV Energy shall provide to the Project, and Customer shall pay NV Energy for, bundled retail electric service up to the Maximum Demand pursuant to and in accordance with this Agreement, the GS-3 Tariff

[11] Note to Draft: Customer should be able to terminate the LLESA for convenience at any time. Customer should not be required to pay a Termination Fee prior to the Long-Term Energy Supply Commencement Date, as NVE does not have long-term costs or risks during either the Interim Period or Short-Term Energy Supply Term. Further, the PUCN has not approved the Termination Payment calculation. NVE is not authorized to collect charges that have not been approved by the PUCN.

[12] Note to Draft: NVE should be required to use all available mitigation measures to mitigate the Refund Amount over the course the remaining term. Given a potential of a 25-year term and mitigation options available to NVE, limited mitigation efforts to 36 months is not appropriate. Further, refund amounts should be offset against the Termination Payments.

and other applicable provisions of the Tariff Schedules; provided that if, during the Term, NV Energy obtains all required consents and approvals, in form and substance satisfactory to NV Energy in its ~~sole~~ reasonable discretion, with respect to a new tariff schedule or rider under which Customer would be eligible to receive bundled retail electric service, (a) Customer shall have the right ~~to request~~ to receive such electric service under the applicable new tariff schedule or rider, and (b) if Customer so ~~requests~~elects, the Parties shall use commercially reasonable efforts to either (i) amend this Agreement to reflect Customer's receipt of such electric service under the applicable new tariff schedule or rider, on terms and conditions reasonably satisfactory to the Parties; provided, if Customer continues to take bundled retail service from NV Energy, Customer will not be liable for any penalties (including a Termination Payment) under this Agreement, or (ii) enter into applicable new agreements with respect to each of the foregoing, in form and substance reasonably satisfactory to the Parties. For the avoidance of doubt, if the Parties do not mutually agree on such amendments or new agreements, Customer shall continue to receive bundled retail electric service pursuant to and in accordance with this Agreement, the GS-3 Tariff and other applicable provisions of the Tariff Schedules.

26. Section 4.2: Maximum Demand. Maximum Demand should be based on a monthly schedule to account for seasonality and known operating characteristics, especially if subject to abnormally high minimum billing charges.

27. Section 4.4(a): During the Ramp Period. On an annual basis during the Ramp Period, Customer shall have the right to request an increase or reduction to the then-effective Maximum Demand, with such increase or reduction to be effective as of January 1 of the following calendar year, provided that any such requested increase or reduction is not more than ~~ten~~ twenty percent (2~~1~~0%) of the then-effective Maximum Demand (a "Change in Ramp Demand").[13] Any such request shall be made by Customer by providing NV Energy with written notice of same on or prior to October 1 of the calendar year preceding the calendar year for which the Change in Ramp Demand is requested. If NV Energy determines, in its ~~sole~~ reasonable discretion, that all or part of such Change in Ramp Demand can be accommodated (taking into account, among other things, NV Energy's then-existing system capabilities, the expected demand schedules of other customers receiving bundled retail electric service ~~under the GS-3 Tariff~~ and related electric service agreements, and any facilities infrastructure limitations or constraints),[14] NV Energy shall provide written notice to Customer confirming the amount, if any, of the Change in Ramp Demand that NV Energy determines that it can accommodate. From and after the effective date of the Change in Ramp Demand, the "Maximum Demand" for purposes of this Agreement shall mean the then-effective Maximum Demand as increased or reduced, as applicable, by the amount, if any, of the Change in Ramp Demand that NV Energy has determined that it can accommodate.

28. Section 4.4(b): After the Ramp Period. At any time after the Ramp Period, Customer shall have the right to request a one-time increase or reduction to the Maximum Demand set forth in Section 4.2, provided that any such requested increase or reduction is not

[13] Note to Draft: 20% reduction in load ramp is consistent with industry standards.
[14] Note to Draft: NVE should be required to mitigate potential over procurement across its customer base.

more than ~~ten~~ twenty percent (2~~1~~0%) of the Maximum Demand set forth in Section 4.2 (a "Change in Maximum Demand"). Any such request shall be made by Customer by providing NV Energy with written notice of same not less than thirty-six (36) calendar months prior to the effective date of the requested Change in Maximum Demand. If NV Energy determines, in its ~~sole~~ reasonable discretion, that all or part of such Change in Maximum Demand can be accommodated (taking into account, among other things, NV Energy's then-existing system capabilities, the expected demand schedules of other customers receiving bundled retail electric service ~~under the GS-3 Tariff~~ and related electric service agreements, and any facilities infrastructure limitations or constraints), NV Energy shall provide written notice to Customer confirming the amount, if any, of the Change in Maximum Demand that NV Energy determines that it can accommodate. From and after the effective date of the Change in Maximum Demand, the "Maximum Demand" for purposes of this Agreement shall mean the Maximum Demand set forth in Section 4.2 as increased or reduced, as applicable, by the amount, if any, of the Change in Maximum Demand that NV Energy has determined that it can accommodate.

29. Section 4.6: Reduction in Energy Charges. On an annual basis ~~during the Ramp Period~~,[15] Customer shall have the right to request that NV Energy reduce the then-applicable load factor used to calculate the Minimum Energy under this Agreement (a "Load Factor Reduction"). Any such request shall be made by Customer by providing NV Energy with written notice of same on or prior to October 1 of the applicable calendar year ~~during the Ramp Period~~, with the requested Load Factor Reduction to be effective ~~as of the date that is~~no later than eighteen (18) months after NV Energy's receipt of such written notice. If NV Energy determines, in its ~~sole~~ reasonable discretion, that all or part of such requested Load Factor Reduction can be accommodated, NV Energy shall provide written notice to Customer confirming the amount, if any, of the Load Factor Reduction that NV Energy determines that it can accommodate. If the Load Factor Reduction that NV Energy determines that it can accommodate, if any, would result in a decrease in NV Energy's costs (associated with providing bundled retail electric service pursuant to and in accordance with this Agreement) commencing as of the date that is eighteen (18) months after NV Energy's receipt of the written notice described in the second sentence above, NV Energy will implement any such Load Factor Reduction as of such date solely for purposes of calculating the Minimum Energy under this Agreement.

30. Section 5.1(b): Market-Based Energy Product. During the Short-Term Energy Supply Period, NV Energy in its ~~sole~~ reasonable discretion may offer, and if offered by NV Energy Customer shall be supplied with, energy pursuant to a market-based index product based on the Platts Megawatt Daily Day-Ahead, Mead On-Peak and Off-Peak or other similar indices (a "Market-Based Energy Product"). The rate to be charged to Customer for a Market-Based Energy Product shall be the Market-Based Energy Rate. For illustrative purposes only, an example calculation of the Market-Based Energy Rate is provided in Exhibit A.

[15] Note to Draft: Load factor adjustments should be allowed at any time during the term, and NVE must be acting reasonably when approving any such adjustments. See previous comment regarding unjustified load factor.

31. Section 5.1(c): Alternative Option Short-Term Energy Products. Notwithstanding Section 5.1(b) above, during the Short-Term Energy Supply Period, NV Energy in its reasonable ~~sole~~ discretion may offer, and if offered by NV Energy Customer may elect to be supplied with, electric capacity and energy from (i) one or more electric generating facilities owned by, or contracted to, NV Energy (the "Alternative Option 1 Short-Term Energy Product"), provided that NV Energy has determined that there is sufficient excess electric capacity and energy at such generating facilities to serve the Project's Connected Load in accordance with this Agreement, or (ii) one or more electric generating facilities not owned by or contracted to, but available to, NV Energy (the "Alternative Option 2 Short-Term Energy Product"), provided that NV Energy has determined that there is sufficient excess electric capacity and energy at such generating facilities to serve the Project's Connected Load in accordance with this Agreement. The rate to be charged to Customer for an Alternative Option 1 Short-Term Energy Product shall be the Alternative Option 1 Short-Term Energy Rate, and the rate to be charged to Customer for an Alternative Option 2 Short-Term Energy Product shall be the Alternative Option 2 Short-Term Energy Rate. For illustrative purposes only, example calculations of the Alternative Option 1 Short-Term Energy Rate and the Alternative Option 2 Short-Term Energy Rate ~~is~~ are provided in Exhibit A.
32. Section 5.1(d): Change in Energy Products. If NV Energy, in its reasonable ~~sole~~ discretion, offers the Market-Based Energy Product, the Alternative Option 1 Short-Term Energy Product or the Alternative Option 2 Short-Term Energy Product (as applicable) to Customer, Customer may elect to change between the Market-Based Energy Product, the Alternative Option 1 Short-Term Energy Product and the Alternative Option 2 Short-Term Energy Product, provided that Customer may not make such a change more than once during each twelve (12) month period, and each such election shall be for a minimum period of twelve (12) months. Customer must provide written notice to NV Energy no later than sixty (60) days prior to the end of the then-current twelve (12) month period to make such an election. For the avoidance of doubt, if such written notice is not received by NV Energy by the date that is no later than sixty (60) days prior to the end of the then-current twelve (12) month period, the then-existing Market-Based Energy Product, the Alternative Option 1 Short-Term Energy Product or the Alternative Option 2 Short-Term Energy Product (as applicable) shall remain in place for the following twelve (12) month period.
33. Delete Section 5.1(e) Curtailment during Grid Emergency. As drafted, this allows open-ended curtailment up to 100% at EEA1 with no prior notice during the Short-Term Energy Supply Period. NV Energy does not have authority to curtail firm load before EEA3, and this is not an interruptible agreement.
34. Delete Section 5.2(b) Long-Term Energy Rate Adjustment. NVE must seek PUCN approval for all charges imposed on Customers. A blanket adjustment of the Long-Term Energy Rate essentially allows NVE to impose uncapped, non-PUCN approved charges from Customer. Customer has no opportunity to challenge or otherwise control its costs. Further, this does not allow any cost savings opportunities to be passed through to Customer. Only cost increases.
35. Section 5.4: Effect of Termination of Resource Procurement Agreement or Failure of Generating Facility to Deliver Energy and Capacity. NVE has an obligation to serve all

customers in its service territory. NVE should not be excused from that obligation for failure to obtain regulatory approval.

36. Section 5.5. Effect of Replacement Procurement Agreement or Replacement Generating Facility. Add new subsection (e): In the event that (x) the Resource Procurement Agreement or the Alternative Resource Procurement Agreement (as applicable) is terminated or (y) the Generating Facility or the Alternative Generating Facility (as applicable) is not delivering the expected energy and capacity, the Long-Term Energy Rate shall be adjusted to reflect any damages (including liquidated damages) or payments received by NV Energy pursuant to such Resource Procurement Agreement or the Alternative Resource Procurement Agreement (as applicable).

37. Section 5.5(c): if the Resource Procurement Agreement or the Alternative Resource Procurement Agreement (as applicable) was terminated during the Short-Term Energy Supply Period, ~~each of the Parties~~Customer shall have the right to terminate this Agreement upon written notice to ~~the other Party~~NV Energy, and Customer shall be liable for its payment obligations that arose prior to the date of termination; for the avoidance of doubt, if this Agreement is terminated pursuant to this Section 5.5(b)(ii), Customer shall not be liable for the payment of the Termination Payment pursuant to Section 3.3 and[16]

38. Section 5.5(d): if after achieving commercial operation the Generating Facility or the Alternative Generating Facility (as applicable) was not delivering the expected energy and capacity (and, therefore, the Long-Term Energy Supply Period commenced), Customer shall have the right to terminate this Agreement pursuant to Section 3.2 and if Customer elects to terminate~~s~~ this Agreement, Customer shall be liable for ~~both (A)~~ its payment obligations that arose prior to the date of termination ~~and (B) the payment of the Termination Payment pursuant to Section 3.3~~.

39. Section 6.1(a): ESA Customer Security. Promptly, and in any event not more than ~~fifteen~~ thirty (~~15~~30)[17] Business Days, after the PUCN Approval Date, Customer shall provide to NV Energy, and thereafter maintain, financial security for its obligations under this Agreement in an amount equal to ~~the sum of the aggregate applicable Minimum Demand and Minimum Energy *multiplied by* the ESA Overall Rate for the remaining Term~~fifty percent (50%) of the net present value of the Termination Payment,[18] as determined by NV Energy (the "ESA Customer Security"); provided, however, that Customer shall not be obligated to provide the ESA Customer Security to NV Energy on or before the PUCN Approval Date if Customer has, as of the PUCN Approval Date, ~~both~~ (i) a credit rating with respect to Customer's long-term, senior, unsecured, non-credit-enhanced indebtedness of (A) not lower than "A-" from S&P Global Ratings (or any successor) and

[16] Note to Draft: NVE has an obligation to serve all customers in its service territory. NVE should not have ability to terminate service agreement in this instance. Further, NVE has sole control of PUCN approvals, Customer should not bear the risk of NVE's failure to obtain resource approval and should not be penalized for its failure to do so.

[17] Note: Given the quantum of ESA Customer Security requested by NVE, Customers need a reasonable amount of time to post the security.

[18] Note to Draft: Proposed ESA Customer Security amount grossly exceeds NVE's risk associated with serving Customer. Such amount exceeds actual costs of building new generation and industry standards for large load customs. Security based on the Termination Payment calculation, net of expected mitigations, is consistent with industry standards.

(B) not lower than "A3" from Moody's Investor Services, Inc. (or any successor), ~~and~~ or (ii) liquidity greater than ten (10) times the aggregate Minimum Demand *multiplied by* the ESA Overall Rate for the Term (collectively, the "Creditworthiness Requirements"), as reasonably determined by NV Energy. In the event that Customer was not required to provide the ESA Customer Security to NV Energy as of the PUCN Approval Date pursuant to the preceding sentence and Customer ceases to satisfy the Creditworthiness Requirements at any time during the Term, Customer shall have a period of thirty (30) days in which to comply with the Creditworthiness Requirements before Customer is obligated to provide the ESA Customer Security to NV Energy. If Customer has not achieved compliance with the Creditworthiness Requirements within such thirty (30) day period, Customer shall be obligated to provide to NV Energy, and thereafter maintain, the ESA Customer Security.

40. Section 6.1(b): The ESA Customer Security shall be in the form of either (i) a letter of credit issued by a financial institution reasonably satisfactory to NV Energy and in form and substance reasonably satisfactory to NV Energy, (ii) a cash deposit to be held by NV Energy or (iii) a guaranty from an Affiliate of Customer (so long as such Affiliate initially satisfies, and during the Term continues to satisfy, the Creditworthiness Requirements) in form and substance reasonably satisfactory to NV Energy, (iv) a guaranty from a tenant (or tenant parent) of Customer who satisfies the Creditworthiness Requirements in form and substance reasonably satisfactory to NV Energy or (v) a surety bond in form and substance reasonably satisfactory to NV Energy. For the avoidance of doubt, the Parties agree that any ESA Customer Security shall be available to NV Energy to satisfy any failure by Customer to comply with its obligations under this Agreement. [19]
41. Section 9.2: No Alternative Provider. During the Term of this Agreement, Customer agrees that NV Energy shall be the sole and exclusive provider of electric service to the Project except as otherwise permitted by law or this Agreement.
42. Section 10.1(a): Customer has limited recourse if NVE fails to perform its obligations under this Agreement. Customers should have the right to pursue damages against NVE's upstream entities in the event of material underperformance by NVE.
43. Section 10.3: Add new subsection (c): 704B Service. From and after the expiration or earlier termination of the Term of this Agreement, NV Energy shall not pursue, recommend, support or advocate before the PUCN that Customer should be required to pay any impact fee or oppose a NRS Chapter 704B Application filed by Customer should Customer seek retail electric service from an alternative service provider under NRS Chapter 704B or any other then-applicable provision of the NRS that would allow Customer to receive retail electric service from an alternative energy provider, with respect to Customer's Project.

[19] Note to Draft: Customers should be able to post a surety bond and a guaranty from its own creditworthy customer.

Customer's Execution Disclaimer and Statement of Intent

In addition to the Customer-Reserved Provisions noted below, Customer hereby informs NV Energy and the Public Utilities Commission of Nevada ("PUCN") as follows:

1. There is no tariff or service condition approved by the PUCN that requires Customer to execute this Agreement in order to receive service from NV Energy. As the incumbent utility with a certificate of public convenience and necessity, NV Energy has an obligation to provide electric service to Customer under the OARS tariff, as currently approved by the PUCN.
2. It is Customer's understanding that NV Energy has not sought nor has been granted by the PUCN the authority to require any customer to sign this Agreement as a prerequisite to receiving electric service from NV Energy. Further, it is Customer's understanding that the form of this Agreement has not been approved by the PUCN.
3. Customer is committed to collaborating in good faith to develop structures that ensure new large load customers pay their fair share based on cost of service and other fundamental ratemaking principles. Customer supports open, inclusive analysis and rulemaking that ensures residential ratepayers are not subjected to increased energy bills or required to shoulder a disproportionate share of system costs, while enabling load growth and economic development in the region.

Further to this understanding, Customer is executing this Agreement expressly pursuant to and in accordance with the foregoing conditions and disclaimers:

1. Customer is not being provided a service option by NV Energy, but for the execution of this Agreement.
2. Customer would execute this Agreement solely because NV Energy has conditioned the provision of electric service upon its execution. Customer is relying upon the provisions of Section 2 above and reserves all rights to terminate the Agreement should PUCN approval not match Customer's expectations. Execution of this Agreement does not reflect good faith commercial negotiation and shall not constitute a waiver of any of Customer's rights or legal positions.
3. If the PUCN allows Customer to take service under OARS without this Agreement, Customer reserves the right to accept that option, and, consequently, this Agreement will never become effective and be unenforceable.
4. Customer objects to all of the provisions identified in this Exhibit G, at a minimum, and reserves the right to object to other terms and conditions in the future.

5. Customer expressly reserves the right to request modifications to the Agreement based upon guidance from the PUCN. Further, Customer expressly reserves the right to seek relief from the PUCN to modify, nullify, or void, and no provision of this Agreement shall be constituted as a waiver of those rights.

Requested Modifications to the Agreement

Customer has identified the following modifications to NV Energy's form Large Load Electric Service Agreement. These modifications are also reflected in a redline submitted concurrently with this Exhibit G and are summarized below by subject matter. Customer reserves the right to propose additional modifications in connection with the PUCN's review and approval of this Agreement.

1. Minimum Demand and Minimum Energy

Customer has revised the Minimum Demand from ninety percent (90%) to seventy percent (70%) of the applicable Ramp Demand (during the Ramp Period) and seventy percent (70%) of the Maximum Demand (following the Ramp Period). Customer has similarly revised the Minimum Energy percentage from ninety percent (90%) to seventy percent (70%). These reductions reflect the operational realities of data center load profiles, which do not consistently operate at ninety percent capacity across all billing periods. A seventy percent floor provides NV Energy with reasonable revenue assurance while giving Customer flexibility to manage its load consistent with actual operating conditions and tenant occupancy timelines.

2. Termination Payment

Customer has proposed a restructured Termination Payment definition. Under NV Energy's form, the Termination Payment equals the aggregate Minimum Demand multiplied by the ESA Overall Rate for the remaining Term, less BTER and DEAA rates. Customer's proposed formulation limits the Termination Payment to compensation that is actually "due to [NV Energy], if any," and calculates it as the per-kWh difference between the Long-Term Energy Rate and the weighted average of the per-kWh cost of energy for NV Energy's most recent PUCN-approved facilities for comparable periods, taking into account all energy reasonably expected to be produced by the Generating Facility. The payment is further limited to the period from the termination date through the earlier of (x) the expiration of the Resource Procurement Agreement term, and (y) three years after the termination date, and is converted to present value. If the weighted average cost of energy for NV Energy's most recent PUCN-approved facilities exceeds the Long-Term Energy Rate, no Termination Payment is owed. The Termination Payment is applicable only if Customer elects to terminate after the Long-Term Energy Supply Commencement Date.

Customer has also revised the mitigation provisions in Section 3.3(b). Customer's edits would change NV Energy's mitigation obligation from "commercially reasonable efforts" to "best efforts," redefine the Refund Period to run from the date of the Termination Notice through the Termination Date (rather than thirty-six months following the Termination Date), expand the scope

of mitigation to include NV Energy providing service to an Affiliate of Customer, and calculate the Refund Amount based on amounts that will be received from replacement customers for the remaining term of this Agreement. The Termination Payment is also revised to reflect any Refund Amount as an offset prior to payment.

3. Termination Rights

Customer has deleted the clarifying provision in Section 3.2 stating that "Customer shall have no right to terminate this Agreement during the Short-Term Energy Supply Period." The redline retains the operative language in Section 3.2 permitting termination "at any time from and after the Long-Term Energy Supply Commencement Date." Customer's revised Termination Payment definition separately confirms that the Termination Payment is applicable only if Customer elects to terminate after the Long-Term Energy Supply Commencement Date. In addition, Customer's redline provides that in the Event of Default of NV Energy, Customer shall not be liable for payment of the Termination Payment.

4. PUCN Approval Standards

Customer has revised the PUCN Resource Approval definition to require that the PUCN order approving the Resource Procurement Agreement or Generating Facility be in form and substance reasonably satisfactory to both NV Energy and Customer (reflecting each Party's satisfaction), rather than to NV Energy alone. Customer has also revised NV Energy's obligation from "commercially reasonable efforts" to "best efforts" with respect to obtaining both the PUCN ESA Approval and the PUCN Resource Approval.

5. Long-Term Energy Supply Commencement Date

Customer has revised the definition of "Long-Term Energy Supply Commencement Date" to mean the later of (a) the date the applicable Generating Facility or Alternative Generating Facility has achieved commercial operation, as reasonably determined by NV Energy (adding a reasonableness standard), or (b) a date to be specified by the Parties. This revision ensures that the transition to long-term energy supply is tied to a mutually understood timeline and not solely within NV Energy's discretion.

6. Conditions Precedent

Customer has deleted from Section 2.1 the conditions precedent relating to the PUCN Resource Approval (former Section 2.1(b)) and the PUCN Alternative Resource Approval (former Section 2.1(c)). Customer has also deleted the entire Interim Period framework in former Section 2.3(d), which provided for a thirty-six-month period of short-term energy supply if the PUCN Resource Approval was not obtained, followed by a secondary approval process for an alternative resource. Customer has added language to the HVD Agreement condition providing that any default must be subject to Customer's ability to cure in accordance with the HVD Agreement before it can prevent the Agreement from becoming effective.

7. Events of Default and Remedies

Customer has made several revisions to Article X (Default; Remedies). With respect to NV Energy's failure to provide service, Customer's redline adds a three-day cure period following written notice from Customer before such failure constitutes an Event of Default. With respect to Customer's payment obligations, Customer's redline limits the default trigger to "undisputed" amounts and extends the cure period from forty-five (45) days to sixty (60) days; Customer has also revised the provision to clarify that the cure period begins upon receipt of notice. Customer has deleted the extended cure provision for material breach (the additional thirty-day extension for diligent pursuit of a cure). Customer has revised the notice and termination provisions to require the non-defaulting Party to provide notice of default within three days of becoming aware of the default, and to reference the cure periods specified in Section 10.1 rather than providing an additional standalone thirty-day cure period.

8. Limitation of Liability

Customer has added a carve-out to the limitation of liability provision, providing that the exclusion of special, indirect, consequential, incidental, punitive, or exemplary damages shall not apply in the event of a breach of confidentiality, fraud, gross negligence, or willful misconduct.

9. Assignment

Customer has revised the assignment provision to permit Customer to assign, delegate, or transfer the Agreement or its rights and obligations to an entity that meets specified credit rating thresholds from S&P Global Ratings and Moody's Investor Services (a "Permitted Assignee") without requiring NV Energy's prior written consent. Customer has also revised the affiliate assignment provision to require approval only from NV Energy (rather than mutual approval) and has deleted the requirement that the ESA Customer Security remain in full force and effect through affiliate transfers.

10. Market-Based Energy Rate

Customer has deleted the $2/MWh administrative fee from the Market-Based Energy Rate definition.

11. OFAC, Prohibited Countries, and Cybersecurity

Customer has deleted Article XII in its entirety, including Section 12.1 (OFAC Restrictions), Section 12.2 (Prohibited Countries), and the cybersecurity compliance requirement referencing Exhibit F. Customer has also deleted the associated defined terms (OFAC, OFAC Sanctions Lists, Prohibited Country, Prohibited Countries, UFLPA). Customer's position is that these provisions impose obligations and representations beyond what is required for the provision of regulated electric service and are not appropriately included in an electric service agreement subject to PUCN jurisdiction.

12. Deleted Definitions and Provisions

Customer has deleted several definitions and provisions associated with the alternative and replacement resource framework, including: Alternative Generating Facility, Alternative Option 1 Short-Term Energy Product, Alternative Option 1 Short-Term Energy Rate, Alternative Option 2 Short-Term Energy Product, Alternative Option 2 Short-Term Energy Rate, Alternative Resource Procurement Agreement, Connected Load, PUCN Alternative Resource Approval, PUCN Replacement Resource Approval, Replacement Generating Facility, and Replacement Resource Procurement Agreement. Customer has also deleted Exhibit C (Example Calculations of ESA Overall Rate with Alternative Option Short-Term Energy Rates). These deletions are consistent with Customer's revisions to the conditions precedent and energy supply provisions described above.

13. Additional Revisions

Customer has also made the following revisions: (a) identified Nevada Power Company as the sole NV Energy counterparty (deleting the Sierra Pacific Power Company alternative and the Washoe County venue option); (b) deleted the placeholder for additional Customer covenants in Section 9.2; (c) removed the proviso excluding the mitigation refund provisions from the Event of Default termination payment; and (d) revised the definition of "Applicable Law" to reference NV Energy's other business rather than the Parties' business.

Additional Customer-Reserved Provisions

In addition to the foregoing, Customer identifies the following categories of provisions as Customer-Reserved Provisions within the meaning of this Agreement:

1. All requested modifications identified above (and in the redline provided) and all items noted as "reserved" in the redline noted above, including without limitation, the entirety of Articles 4, 5 and 6, all provisions relating to rates, electric service terms and conditions, termination provisions, collateral and security requirements, and any items reserved for PUCN approval. Further, Customer also reserves any edits or determinations made by the PUCN in the IRP proceeding.
2. The calculation of each of (a) the "Customer-Specific Generation Charge," (b) the "ESA Overall Rate," and (c) the "Long-Term Energy Rate."
3. The calculation of the "Termination Payment."
4. The calculation of the "ESA Customer Security."

Customer's Execution Disclaimer and Statement of Intent

In addition to the Customer-Reserved Provisions noted below, Customer hereby informs NV Energy and the Public Utilities Commission of Nevada ("PUCN") as follows:

1. There is no tariff or service condition approved by the PUCN that requires Customer to execute this Agreement in order to receive service from NV Energy. As the incumbent utility with a certificate of public convenience and necessity, NV Energy has an obligation to provide electric service to Customer under the OARS tariff, as currently approved by the PUCN.
2. It is Customer's understanding that NV Energy has not sought nor has been granted by the PUCN the authority to require any customer to sign this Agreement as a prerequisite to receiving electric service from NV Energy. Further, it is Customer's understanding that the form of this Agreement has not been approved by the PUCN.
3. Customer is committed to collaborating in good faith to develop structures that ensure new large load customers pay their fair share based on cost of service and other fundamental ratemaking principles. Customer supports open, inclusive analysis and rulemaking that ensures residential ratepayers are not subjected to increased energy bills or required to shoulder a disproportionate share of system costs, while enabling load growth and economic development in the region.

Further to this understanding, Customer is executing this Agreement expressly pursuant to and in accordance with the foregoing conditions and disclaimers:

1. Customer is not being provided a service option by NV Energy, but for the execution of this Agreement.
2. Customer would execute this Agreement solely because NV Energy has conditioned the provision of electric service upon its execution. Customer is relying upon the provisions of Section 2 above and reserves all rights to terminate the Agreement should PUCN approval not match Customer's expectations. Execution of this Agreement does not reflect good faith commercial negotiation and shall not constitute a waiver of any of Customer's rights or legal positions.
3. If the PUCN allows Customer to take service under OARS without this Agreement, Customer reserves the right to accept that option, and, consequently, this Agreement will never become effective and be unenforceable.
4. Customer objects to all of the provisions identified in this Exhibit G, at a minimum, and reserves the right to object to other terms and conditions in the future.

5. Customer expressly reserves the right to request modifications to the Agreement based upon guidance from the PUCN. Further, Customer expressly reserves the right to seek relief from the PUCN to modify, nullify, or void, and no provision of this Agreement shall be constituted as a waiver of those rights.

Requested Modifications to the Agreement

Customer has identified the following modifications to NV Energy's form Large Load Electric Service Agreement. These modifications are also reflected in a redline submitted concurrently with this Exhibit G and are summarized below by subject matter. Customer reserves the right to propose additional modifications in connection with the PUCN's review and approval of this Agreement.

1. Minimum Demand and Minimum Energy

Customer has revised the Minimum Demand from ninety percent (90%) to seventy percent (70%) of the applicable Ramp Demand (during the Ramp Period) and seventy percent (70%) of the Maximum Demand (following the Ramp Period). Customer has similarly revised the Minimum Energy percentage from ninety percent (90%) to seventy percent (70%). These reductions reflect the operational realities of data center load profiles, which do not consistently operate at ninety percent capacity across all billing periods. A seventy percent floor provides NV Energy with reasonable revenue assurance while giving Customer flexibility to manage its load consistent with actual operating conditions and tenant occupancy timelines.

2. Termination Payment

Customer has proposed a restructured Termination Payment definition. Under NV Energy's form, the Termination Payment equals the aggregate Minimum Demand multiplied by the ESA Overall Rate for the remaining Term, less BTER and DEAA rates. Customer's proposed formulation limits the Termination Payment to compensation that is actually "due to [NV Energy], if any," and calculates it as the per-kWh difference between the Long-Term Energy Rate and the weighted average of the per-kWh cost of energy for NV Energy's most recent PUCN-approved facilities for comparable periods, taking into account all energy reasonably expected to be produced by the Generating Facility. The payment is further limited to the period from the termination date through the earlier of (x) the expiration of the Resource Procurement Agreement term, and (y) three years after the termination date, and is converted to present value. If the weighted average cost of energy for NV Energy's most recent PUCN-approved facilities exceeds the Long-Term Energy Rate, no Termination Payment is owed. The Termination Payment is applicable only if Customer elects to terminate after the Long-Term Energy Supply Commencement Date.

Customer has also revised the mitigation provisions in Section 3.3(b). Customer's edits would change NV Energy's mitigation obligation from "commercially reasonable efforts" to "best efforts," redefine the Refund Period to run from the date of the Termination Notice through the Termination Date (rather than thirty-six months following the Termination Date), expand the scope

of mitigation to include NV Energy providing service to an Affiliate of Customer, and calculate the Refund Amount based on amounts that will be received from replacement customers for the remaining term of this Agreement. The Termination Payment is also revised to reflect any Refund Amount as an offset prior to payment.

3. Termination Rights

Customer has deleted the clarifying provision in Section 3.2 stating that "Customer shall have no right to terminate this Agreement during the Short-Term Energy Supply Period." The redline retains the operative language in Section 3.2 permitting termination "at any time from and after the Long-Term Energy Supply Commencement Date." Customer's revised Termination Payment definition separately confirms that the Termination Payment is applicable only if Customer elects to terminate after the Long-Term Energy Supply Commencement Date. In addition, Customer's redline provides that in the Event of Default of NV Energy, Customer shall not be liable for payment of the Termination Payment.

4. PUCN Approval Standards

Customer has revised the PUCN Resource Approval definition to require that the PUCN order approving the Resource Procurement Agreement or Generating Facility be in form and substance reasonably satisfactory to both NV Energy and Customer (reflecting each Party's satisfaction), rather than to NV Energy alone. Customer has also revised NV Energy's obligation from "commercially reasonable efforts" to "best efforts" with respect to obtaining both the PUCN ESA Approval and the PUCN Resource Approval.

5. Long-Term Energy Supply Commencement Date

Customer has revised the definition of "Long-Term Energy Supply Commencement Date" to mean the later of (a) the date the applicable Generating Facility or Alternative Generating Facility has achieved commercial operation, as reasonably determined by NV Energy (adding a reasonableness standard), or (b) a date to be specified by the Parties. This revision ensures that the transition to long-term energy supply is tied to a mutually understood timeline and not solely within NV Energy's discretion.

6. Conditions Precedent

Customer has deleted from Section 2.1 the conditions precedent relating to the PUCN Resource Approval (former Section 2.1(b)) and the PUCN Alternative Resource Approval (former Section 2.1(c)). Customer has also deleted the entire Interim Period framework in former Section 2.3(d), which provided for a thirty-six-month period of short-term energy supply if the PUCN Resource Approval was not obtained, followed by a secondary approval process for an alternative resource. Customer has added language to the HVD Agreement condition providing that any default must be subject to Customer's ability to cure in accordance with the HVD Agreement before it can prevent the Agreement from becoming effective.

7. Events of Default and Remedies

Customer has made several revisions to Article X (Default; Remedies). With respect to NV Energy's failure to provide service, Customer's redline adds a three-day cure period following written notice from Customer before such failure constitutes an Event of Default. With respect to Customer's payment obligations, Customer's redline limits the default trigger to "undisputed" amounts and extends the cure period from forty-five (45) days to sixty (60) days; Customer has also revised the provision to clarify that the cure period begins upon receipt of notice. Customer has deleted the extended cure provision for material breach (the additional thirty-day extension for diligent pursuit of a cure). Customer has revised the notice and termination provisions to require the non-defaulting Party to provide notice of default within three days of becoming aware of the default, and to reference the cure periods specified in Section 10.1 rather than providing an additional standalone thirty-day cure period.

8. Limitation of Liability

Customer has added a carve-out to the limitation of liability provision, providing that the exclusion of special, indirect, consequential, incidental, punitive, or exemplary damages shall not apply in the event of a breach of confidentiality, fraud, gross negligence, or willful misconduct.

9. Assignment

Customer has revised the assignment provision to permit Customer to assign, delegate, or transfer the Agreement or its rights and obligations to an entity that meets specified credit rating thresholds from S&P Global Ratings and Moody's Investor Services (a "Permitted Assignee") without requiring NV Energy's prior written consent. Customer has also revised the affiliate assignment provision to require approval only from NV Energy (rather than mutual approval) and has deleted the requirement that the ESA Customer Security remain in full force and effect through affiliate transfers.

10. Market-Based Energy Rate

Customer has deleted the $2/MWh administrative fee from the Market-Based Energy Rate definition.

11. OFAC, Prohibited Countries, and Cybersecurity

Customer has deleted Article XII in its entirety, including Section 12.1 (OFAC Restrictions), Section 12.2 (Prohibited Countries), and the cybersecurity compliance requirement referencing Exhibit F. Customer has also deleted the associated defined terms (OFAC, OFAC Sanctions Lists, Prohibited Country, Prohibited Countries, UFLPA). Customer's position is that these provisions impose obligations and representations beyond what is required for the provision of regulated electric service and are not appropriately included in an electric service agreement subject to PUCN jurisdiction.

12. Deleted Definitions and Provisions

Customer has deleted several definitions and provisions associated with the alternative and replacement resource framework, including: Alternative Generating Facility, Alternative Option 1 Short-Term Energy Product, Alternative Option 1 Short-Term Energy Rate, Alternative Option 2 Short-Term Energy Product, Alternative Option 2 Short-Term Energy Rate, Alternative Resource Procurement Agreement, Connected Load, PUCN Alternative Resource Approval, PUCN Replacement Resource Approval, Replacement Generating Facility, and Replacement Resource Procurement Agreement. Customer has also deleted Exhibit C (Example Calculations of ESA Overall Rate with Alternative Option Short-Term Energy Rates). These deletions are consistent with Customer's revisions to the conditions precedent and energy supply provisions described above.

13. Additional Revisions

Customer has also made the following revisions: (a) identified Nevada Power Company as the sole NV Energy counterparty (deleting the Sierra Pacific Power Company alternative and the Washoe County venue option); (b) deleted the placeholder for additional Customer covenants in Section 9.2; (c) removed the proviso excluding the mitigation refund provisions from the Event of Default termination payment; and (d) revised the definition of "Applicable Law" to reference NV Energy's other business rather than the Parties' business.

Additional Customer-Reserved Provisions

In addition to the foregoing, Customer identifies the following categories of provisions as Customer-Reserved Provisions within the meaning of this Agreement:

1. All requested modifications identified above (and in the redline provided) and all items noted as "reserved" in the redline noted above, including without limitation, the entirety of Articles 4, 5 and 6, all provisions relating to rates, electric service terms and conditions, termination provisions, collateral and security requirements, and any items reserved for PUCN approval. Further, Customer also reserves any edits or determinations made by the PUCN in the IRP proceeding.
2. The calculation of each of (a) the "Customer-Specific Generation Charge," (b) the "ESA Overall Rate," and (c) the "Long-Term Energy Rate."
3. The calculation of the "Termination Payment."
4. The calculation of the "ESA Customer Security."

Customer-Reserved Provisions

1. **Minimum Demand and Minimum Energy Obligations**
   Customer reserves the position that the minimum take-or-pay structure (including Minimum Demand and Minimum Energy) should be revised to better align payment obligations with actual load ramp and utilization, and to avoid over-commitment in early years *(Section 4.5; definitions of "Minimum Demand," "Minimum Energy," and "Load Factor"; Sections 4.5 and 4.6, and Article VII)*.

2. **PUCN Approvals**
   Customer reserves the position that all PUCN approvals should have materially consistent terms with the applicable Alternative Resource Procurement Agreement or applicable to the Alternative Generating Facility as reasonably approved by both NV Energy and Customer *(definition of PUCN ESA Approval; Sections 2.1 and 2.3)*.

3. **Pricing Structure and Rate Components**
   Customer reserves the position that the calculation of the ESA Overall Rate, Customer-Specific Generation Charge, and Long-Term Energy Rate should be transparent and reflect only the actual incremental costs attributable to serving the Customer's load *(definitions of "ESA Overall Rate," "Customer-Specific Generation Charge," and "Long-Term Energy Rate"; Sections 5.1 and 5.2)*.

4. **Termination Payment and Mitigation**
   Customer reserves the position that any termination payment must be limited to NV Energy's actual, demonstrable costs and must be subject to mitigation through resale or redeployment of capacity, with corresponding refunds to Customer to the extent such mitigation occurs *(definition of "Termination Payment"; Sections 3.2 and 3.3; Section 10.3)*.

5. **Demand Flexibility (Ramp and Maximum Demand Adjustments)**
   Customer reserves the position that it must have reasonable flexibility to increase or decrease its demand commitments over time, including during and after the ramp period, to align with actual deployment and operational requirements *(Sections 4.2, 4.3, 4.4(a)–(b), and Article VI)*..

6. **Customer Security Requirements**
   Customer reserves the position that credit support requirements should be flexible and allow for a range of commercially reasonable instruments (including guarantees and customer/tenant support), sized proportionally to actual risk exposure *(Section 6.1)*.

7. **Load Factor and Minimum Energy Adjustments**
   Customer reserves the position that it should have the ability to adjust load factor

assumptions used to determine Minimum Energy obligations over time, particularly where system conditions or project utilization differ from initial forecasts *(definitions of "Load Factor", "Minimum Demand", and "Minimum Energy", Sections 4.5 and 4.6;)*.

8. **Alternative Supply and Delivery Risk**
   Customer reserves the position that NV Energy should bear responsibility for supply availability and delivery risk, and that Customer should have appropriate rights and optionality if committed resources are delayed, unavailable, or underperform *(Sections 2.3(d), 5.1, 5.2(a), 5.4, and 5.5)*.

9. **Excess Energy Compensation**
   Customer reserves the position that any excess energy provided by Customer should be compensated at a fair and market-reflective rate, ensuring that NV Energy does not receive a windfall from resale of such energy *(definition of "Excess Energy"; Section 5.6;)*.

Proposed changes to the terms of the Agreement are set forth below.

1. **The specific percentages referenced in the defined term "Minimum Demand". Revise the first sentence of Section 4.5 as follows:**

> "Irrespective of Customer's actual demand and actual quantity of electric energy (kWh) utilized in a given month, Customer is obligated to pay, as a non-kilowatt hour charge, the ESA Overall Rate with respect to (A) the Minimum Demand and (B) the Minimum Energy."

2. **The Mitigation and Refund of the Termination Payment. Revise Section 3.3(b) as follows:**

(a) "Mitigation and Refund of Termination Payment. Commencing on the date of delivery of the Termination Notice and continuing for a period of thirty-six (36) months after the Termination Date (the "Refund Period"), NV Energy shall use commercially reasonable efforts to mitigate the amount of the Termination Payment, which efforts are expressly limited to NV Energy providing bundled retail electric service, up to the Minimum Demand, to one or more customers (including customers that Customer may identify), if available, pursuant to electric service agreements with such customers and the GS-3 Tariff (or other tariffs applicable to large load customers). For purposes of this Agreement, the "Refund Amount" is the aggregate net amount received by NV Energy in connection with the preceding sentence. Within thirty (30) days after December 31 of the calendar year in which Customer has paid to NV Energy the Termination Payment and each December 31 thereafter during the Refund Period, NV Energy shall pay to Customer the Refund Amount received by NV Energy during the Refund Period, by wire transfer or ACH of immediately available federal funds to an account of Customer located in the United States or by check from NV Energy in good and immediately available funds; provided that in no event shall the Refund Amount exceed the Termination Payment."

3. The "Conditions of Effectiveness." Revise Section 2.1 as follows:

1.2 "Conditions to Effectiveness. Except with respect to the provisions of Article I, this Article II, Article VIII, Article XI and Article XIII, which provisions are effective as of the Execution Date, and except as provided in Section 2.3(d), the effectiveness of this Agreement is expressly subject to the satisfaction of each of the following conditions:

(a) The PUCN ESA Approval shall have been obtained and shall be in full force and effect. For the avoidance of doubt, if this Agreement is approved by the PUCN but such approval includes terms, conditions or modifications materially inconsistent with the terms and conditions of the form of this Agreement initially presented to the PUCN which are not satisfactory to both NV Energy and Customer in each Party's reasonable discretion, , or if this Agreement is approved by the PUCN as filed and without additional terms, conditions or modifications but Customer does not find the Customer-Reserved Provisions contained in this Agreement to be satisfactory to Customer in its sole discretion, the PUCN ESA Approval shall be deemed not to have been obtained.

(b) Subject to Section 2.1(c), the PUCN Resource Approval shall have been obtained and shall be in full force and effect. For the avoidance of doubt, if the Resource Procurement Agreement or the Generating Facility from which NV Energy will procure or generate electric capacity and energy for Customer is approved by the PUCN but such approval includes terms, conditions or modifications materially inconsistent with the terms and conditions initially set forth in the Resource Procurement Agreement or applicable to the Generating Facility initially contemplated for use by NV Energy, as the case may be, which materially inconsistent terms and conditions are not satisfactory to both NV Energy and Customer in each Party'sreasonable discretion, the PUCN Resource Approval shall be deemed not to have been obtained.

(c) Solely in the event that the PUCN Resource Approval is not obtained, the PUCN Alternative Resource Approval shall have been obtained and shall be in full force and effect. For the avoidance of doubt, if the Alternative Resource Procurement Agreement or the Alternative Generating Facility from which NV Energy will procure or generate electric capacity and energy for Customer is approved by the PUCN but such approval includes terms, conditions or modifications materially inconsistent with the terms and conditions initially set forth in the Alternative Resource Procurement Agreement or applicable to the Alternative Generating Facility initially contemplated for use by NV Energy, as the case may be, which materially inconsistent terms and conditions are not satisfactory to both NV Energy and Customer in each Party's reasonable discretion, the PUCN Alternative Resource Approval shall be deemed not to have been obtained.

(d) The HVD Agreement shall be in full force and effect, and there are no events or conditions existing which, with or without notice or the lapse of time, or both, have constituted or could constitute a breach or default by Customer under the terms and conditions of the HVD Agreement.

(e) [<insert such other conditions as may be necessary for a given Customer>].

Except as provided in Section 2.2 and Section 2.3(d), no aspect of this Agreement, other than the provisions of Article I, this Article II, Article VIII, Article XI and Article XIII, shall have any effect unless and until each of the foregoing conditions has been satisfied."

4. The determination of PUCN approvals. Revise Sections 2.3(a), (b), and (c) as follows:

1.1 "Certain Covenants.

(a) PUCN ESA Approval. Following the Execution Date, NV Energy shall use commercially reasonable efforts to obtain the PUCN ESA Approval; provided that if the PUCN ESA Approval is not obtained, NV Energy shall not be obligated to undertake further efforts to obtain the PUCN ESA Approval, except that to the extent such PUCN ESA Approval is denied for non-substantive, clerical errors, or any similar reasons that can be cured without material change or modification to substantive terms, NVE shall be required to undertake additional efforts to obtain the PUCN ESA Approval in an expedient manner following the cure of such deficiencies or issues.[1]

(b) PUCN Resource Approval. Following the Execution Date, NV Energy shall use commercially reasonable efforts to obtain the PUCN Resource Approval; provided that if the PUCN Resource Approval is not obtained despite its commercially reasonable efforts, NV Energy shall not be obligated to undertake further efforts to obtain the PUCN Resource Approval, except that to the extent such PUCN Resource Approval is denied for non-substantive, clerical errors, or any similar reasons that can be cured without material change or modification to substantive terms, NVE shall be required to undertake additional efforts to obtain the PUCN Resource Approval in an expedient manner following the cure of such deficiencies or issues.

(c) Consultation with Customer; Customer Support for PUCN Approvals.

(i) NV Energy shall consult with Customer on and provide all principal filings submitted by NV Energy to the PUCN in connection with seeking the PUCN Approvals for Customer's approval, which approval shall not be unreasonably withheld, conditioned or delayed, it being understood that should Customer fail to provide its objection or approval within ten (10) days of its receipt of such proposed filings, Customer shall be deemed to have approved the same. . Customer may, from time to time, offer input to NV Energy in connection with such filings, which NV Energy may consider but shall not be required to implement or incorporate to the extent such input would insert commercially unreasonable terms or conditions to such filings.

(ii) Following the Execution Date, Customer, at its sole cost and expense, shall reasonably cooperate with NV Energy and support NV Energy's efforts in obtaining the PUCN Approvals, which cooperation and support may include, at Customer's discretion, Customer filing a petition for leave to intervene in the applicable

PUCN proceedings in support of NV Energy's filings for the PUCN Approvals. , and (ii) if Customer does intervene in such PUCN proceedings, except with respect to the Customer-Reserved Provisions, Customer shall not file any documents in any such PUCN proceedings in opposition to such filings."

5. The calculation of the "ESA Customer Security". Revise Section 6.1(b) as follows:

(d) "The ESA Customer Security shall be in the form of ~~either~~ a combination of the following: (i) a letter of credit issued by a financial institution reasonably satisfactory to NV Energy and in form and substance reasonably satisfactory to NV Energy, (ii) a cash deposit to be held by NV Energy ~~or~~ (iii) a guaranty or combination of guarantees from (A) an Affiliate of Customer, (B) Customer's customer or its tenant(s) (so long as such ~~Affiliate~~ guarantor(s), individually or in the aggregate with other guarantors, initially satisfies, and during the Term continues to satisfy, the Creditworthiness Requirements) in form and substance reasonably satisfactory to NV Energy, or (iv) one or more surety bonds issued by a surety satisfactory to NV Energy in its reasonable discretion and in a form substance satisfactory to NVE in its reasonable discretion. For the avoidance of doubt, the Parties agree that any ESA Customer Security shall be available to NV Energy to satisfy any failure by Customer to comply with its obligations under this Agreement."

6. "Change in Maximum Demand". Revise the first sentence of Section 4.4(a) as follows:

"On an annual basis during the Ramp Period, Customer shall have the right to request an increase or reduction to the then-effective Maximum Demand, with such increase or reduction to be effective as of January 1 of the following calendar year, provided that any such requested increase or reduction is not more than fifteen percent (15%) of the then-effective Maximum Demand (a "Change in Ramp Demand")."

7. "Change in Ramp Demand". Revise the first sentence of Section 4.4(b) as follows:

"At any time after the Ramp Period, Customer shall have the right to request ~~a one-time~~ an increase or reduction to the Maximum Demand set forth in Section 4.2, provided that any such requested increase or reduction is not more than fifteen percent (15%) of the Maximum Demand set forth in Section 4.2 (a "Change in Maximum Demand")."

8. Reduction in Energy Charges. Revise Section 4.6 as follows:

"Reduction in Energy Charges. On an annual basis, Customer shall have the right to request that NV Energy reduce the then-applicable load factor used to calculate the Minimum Energy under this Agreement (a "Load Factor Reduction"). Any such request shall be made by Customer by providing NV Energy with written notice of same on or prior to October 1 of the applicable calendar year, with the requested Load Factor

Reduction to be effective as of the date that is eighteen (18) months after NV Energy's receipt of such written notice. If NV Energy determines, in its sole reasonable discretion, that all or part of such requested Load Factor Reduction can be accommodated, NV Energy shall provide written notice to Customer confirming the amount, if any, of the Load Factor Reduction that NV Energy determines that it can accommodate. If the Load Factor Reduction that NV Energy determines that it can accommodate, if any, would result in a decrease in NV Energy's costs (associated with providing bundled retail electric service pursuant to and in accordance with this Agreement) commencing as of the date that is eighteen (18) months after NV Energy's receipt of the written notice described in the second sentence above, NV Energy will implement any such Load Factor Reduction as of such date solely for purposes of calculating the Minimum Energy under this Agreement."

9. "Alternative Option Short-Term Energy Products". Revise section 5.1(c) as follows:

""Alternative Option Short-Term Energy Products. Notwithstanding Section 5.1(b) above, during the Short-Term Energy Supply Period, NV Energy in its sole discretion may offer, and if offered by NV Energy Customer may elect to be supplied with, electric capacity and energy from (i) one or more electric generating facilities owned by, or contracted to, NV Energy (the "Alternative Option 1 Short-Term Energy Product"), provided that NV Energy has determined that there is sufficient excess electric capacity and energy at such generating facilities to serve the Project's Connected Load in accordance with this Agreement, or (ii) one or more electric generating facilities not owned by or contracted to, but available to, NV Energy (the "Alternative Option 2 Short-Term Energy Product"), provided that NV Energy has determined that there is sufficient excess electric capacity and energy at such generating facilities to serve the Project's Connected Load in accordance with this Agreement. The rate to be charged to Customer for an Alternative Option 1 Short-Term Energy Product shall be the Alternative Option 1 Short-Term Energy Rate, and the rate to be charged to Customer for an Alternative Option 2 Short-Term Energy Product shall be the Alternative Option 2 Short-Term Energy Rate; provided, however, that neither such rate shall exceed the rate charged to any other customers of NV Energy receiving electric capacity and energy from the applicable facility. For illustrative purposes only, example calculations of the Alternative Option 1 Short-Term Energy Rate and the Alternative Option 2 Short-Term Energy Rate is provided in Exhibit A."

10. "Effect of Termination of Resource Procurement Agreement or Failure of Generating Facility to Deliver Energy and Capacity". Revise Section 5.4(a)(i) as follows:

"NV Energy will be excused from its obligations under this Agreement to procure Long-Term Energy on behalf of Customer for a period of up to two (2) years, commencing on the date that (x) the Resource Procurement Agreement or the Alternative Resource Procurement Agreement (as applicable) is terminated or (y) the date that the Generating Facility or the Alternative Generating Facility (as applicable) is not delivering the

expected energy and capacity, and the Parties shall mutually determine a revised Long-Term Energy Supply Commencement Date."

11. **"Effect of Replacement Procurement Agreement or Replacement Generating Facility". Revise Section 5.5(b)(ii) as follows:**

"if after achieving commercial operation the Generating Facility or the Alternative Generating Facility (as applicable) was not delivering the expected energy and capacity (and, therefore, the Long-Term Energy Supply Period commenced), Customer shall have the right to terminate this Agreement pursuant to Section 3.2 and if Customer elects to terminates this Agreement, Customer shall be liable for its payment obligations that arose prior to the date of termination.."

12. **"Excess Energy". Revise Section 5.6 as follows:**

"Excess Energy. NV Energy shall, purchase from Customer Excess Energy at a rate equivalent to the higher of (a) ninety-five percent (95%) of its weighted average of the per kWh levelized cost of energy for NV Energy's most recent PUCN-approved renewable energy facilities for comparable periods, or (b) its Short Term Avoided Cost. The settlement for such Excess Energy purchase will take place monthly as part of the next regularly scheduled invoice. The Short Term Avoided Cost used for monthly settlement will be equal to the annual average of the hourly Short Term Avoided Cost. During the first billing cycle of a calendar year, an adjustment payment will be calculated to true-up the Short Term Avoided Cost reflecting the hourly granularity for each instance when the purchase of Excess Energy occurred."

13. **"Termination Payment". Revise Section 10.3(b) as follows:**

"Termination Payment. In the event this Agreement is validly terminated by NV Energy in connection with an Event of Default of Customer pursuant to Section 10.2, in addition to Customer remaining liable for its obligations prior to the date of termination, Customer shall be liable for payment to NV Energy of the Termination Payment to mitigate any potential cost to NV Energy associated with such termination; provided that the provisions of Section 3.3(b) shall still apply in the event of such termination."

EXHIBIT WELLS-DIRECT-4

SIERRA PACIFIC POWER COMPANY - d/b/a NV ENERGY

ESA PRICING MODEL FOR CUSTOMER X

Energy Supply Agreement Pricing Model

Docket No. XX-XXXXX Filing

PREPARED BY THE

REGULATORY PRICING AND ECONOMIC ANALYSIS DEPARTMENT

Month Year

THIS ESA PRICING MODEL WAS PREPARED TO SERVE AS THE
THE BASIS OF THE FIXED ENERGY RATE PROVIDED AT PHASE Y IN DOCKET NO. XX-XXXXX

Table 1: ESA Pricing

Line No.	Cost Components	Costs ($)	Line No.
1			1
2	PV Cost	$3,367,343	2
3	Battery Cost	$2,947,797	3
4	Administrative Charge Cost	$314,762	4
5	Planning Reserve Margin Cost	$257,549	5
6	Capacity Protection Cost	$0	6
7	**Total Annual Cost**	**$6,887,450**	7
8			8
9	**Forecast Annual Energy (MWh)**	89,165	9
10			10
11	Cost Components	Costs ($/MWh)	11
12	PV Cost	$37.77	12
13	Battery Cost	$33.06	13
14	Administrative Charge Cost	$3.53	14
15	Planning Reserve Margin Cost	$2.89	15
16	Capacity Protection Cost	$0.00	16
17	**ESA Offer Price >>**	$77.24	17
18			18
19			19
20			20

Table 2: ESA Pricing Cost Components

Line No.		Rate Component Calculation	Costs ($)	Line No.
1	Component 1 PV Cost	Total PV + BESS (MWh)	93,537	1
2		PV Price ($/MWh)	$36.00	2
3		**Annual PV + BESS Energy Cost**	$3,367,343	3
4				4
5	Component 2 Battery Cost	Annual Storage Demand (MW)	26,097	5
6		Battery Capacity Price ($/MW)	$113	6
7		**Annual Storage Capacity Cost**	$2,947,797	7
8				8
9	Component 3 Administrative Charge	Administrative Charge (MWh)	157,381	9
10		Administrative Charge Price ($/MWh)	$2.00	10
11		**Annual Administrative Charge Cost**	$314,762	11
12				12
13	Component 4 Planning Reserve Margin	Planning Reserve Margin Energy (MWh)	89,165	13
14		Planning Reserve Margin Price ($/MWh)	$2.89	14
15		**Annual Planning Reserve Margin Cost**	$257,549	15
16				16
17	Component 5 Capacity Protection	Capacity Protection Energy (MWh)	89,165	17
18		Capacity Protection Price ($/MWh)	$0.00	18
19		**Total Capacity Protection Cost**	$0	19
20				20
21		**Total Annual Cost**	$6,887,450	21
22				22
23				23
24				24

Table 3: Billing Determinants and Pricing

Line No.			Line No.
1			1
2	**Customer Profile**	MWh	2
3	Energy Served by Dedicated Resource - Includes Battery Charging w/ Losses	93,537	3
4	Round Trip Battery Charging Losses	-4,372	4
5	Planning Reserve Margin Energy	89,165	5
6			6
7	**BESS Facility Characteristics**	MW	7
8	Annual Storage Demand	26,097	8
9			9
10	**Pricing**		10
11	PV Price ($/MWh)	$36.00	11
12	Battery Capacity Price ($/MW)	$112.96	12
13	Administrative Charge Price ($/MWh)	$2.00	13
14	Planning Reserve Margin Price ($/MWh)	$2.89	14
15	Capacity Protection Price ($/MWh)	$0.00	15
16			16
17	**Battery Capacity Price Calculation**		17
18	Monthly Battery Capacity Cost ($/MW-Month)	$13,743.00	18
19			19
20	Annual Battery Capacity Cost ($/MW-Year)	$164,916.00	20
21	Annual Charging Hours (Hours)	1,460	21
22	Hourly Battery Capacity Cost ($/MW-Hour)	$112.96	22
23			23
24			24

EXHIBIT WELLS-DIRECT-5

NEVADA POWER COMPANY - d/b/a NV ENERGY

ESA PRICING MODEL FOR CUSTOMER X

Energy Supply Agreement Pricing Model

Docket No. XX-XXXXX Filing

PREPARED BY THE

REGULATORY PRICING AND ECONOMIC ANALYSIS DEPARTMENT

Month Year

THIS ESA PRICING MODEL WAS PREPARED TO SERVE AS THE
THE BASIS OF THE FIXED ENERGY RATE PROVIDED AT PHASE Y IN DOCKET NO. XX-XXXXX

Table 1: ESA Pricing

Line No.	Cost Components	Costs ($)	Line No.
1			1
2	PV Cost	$2,691,770	2
3	Battery Cost	$2,416,594	3
4	Administrative Charge Cost	$235,686	4
5	Planning Reserve Margin Cost	$192,463	5
6	Capacity Protection Cost	$696,244	6
7	**Total Annual Cost**	**$6,232,756**	7
8			8
9	**Forecast Annual Energy (MWh)**	71,187	9
10			10
11	Cost Components	Costs ($/MWh)	11
12	PV Cost	$37.81	12
13	Battery Cost	$33.95	13
14	Administrative Charge Cost	$3.31	14
15	Planning Reserve Margin Cost	$2.70	15
16	Capacity Protection Cost	$9.78	16
17	**ESA Offer Price >>**	$87.55	17
18			18
19			19
20			20

Table 2: ESA Pricing Cost Components

Line No.		Rate Component Calculation		Costs ($)	Line No.
1	Component 1 PV Cost	Total PV + BESS (MWh)		74,771	1
2		PV Price ($/MWh)		$36.00	2
3		**Annual PV + BESS Energy Cost**		$2,691,770	3
4					4
5	Component 2 Battery Cost	Annual Storage Demand (MW)		21,394	5
6		Battery Capacity Price ($/MW)		$113	6
7		**Annual Storage Capacity Cost**		$2,416,594	7
8					8
9	Component 3 Administrative Charge	Administrative Charge (MWh)		117,843	9
10		Administrative Charge Price ($/MWh)		$2.00	10
11		**Annual Administrative Charge Cost**		$235,686	11
12					12
13	Component 4 Planning Reserve Margin	Planning Reserve Margin Energy (MWh)		71,187	13
14		Planning Reserve Margin Price ($/MWh)		$2.70	14
15		**Annual Planning Reserve Margin Cost**		$192,463	15
16					16
17	Component 5 Capacity Protection	Capacity Protection Energy (MWh)		71,187	17
18		Capacity Protection Price ($/MWh)		$9.78	18
19		**Total Capacity Protection Cost**		$696,244	19
20					20
21			**Total Annual Cost**	$6,232,756	21
22					22
23					23
24					24

Table 3: Billing Determinants and Pricing

Line No.			Line No.
1			1
2	**Customer Profile**	MWh	2
3	Energy Served by Dedicated Resource - Includes Battery Charging w/ Losses	74,771	3
4	Round Trip Battery Charging Losses	-3,584	4
5	Planning Reserve Margin Energy	71,187	5
6			6
7	**BESS Facility Characteristics**	MW	7
8	Annual Storage Demand	21,394	8
9			9
10	**Pricing**		10
11	PV Price ($/MWh)	$36.00	11
12	Battery Capacity Price ($/MW)	$112.96	12
13	Administrative Charge Price ($/MWh)	$2.00	13
14	Planning Reserve Margin Price ($/MWh)	$2.70	14
15	Capacity Protection Price ($/MWh)	$9.78	15
16			16
17	**Battery Capacity Price Calculation**		17
18	Monthly Battery Capacity Cost ($/MW-Month)	$13,743.00	18
19			19
20	Annual Battery Capacity Cost ($/MW-Year)	$164,916.00	20
21	Annual Charging Hours (Hours)	1,460	21
22	Hourly Battery Capacity Cost ($/MW-Hour)	$112.96	22
23			23
24			24

AFFIRMATION

Pursuant to the requirements of NRS 53.045 and NAC 703.710, JANET WELLS, states that she is the person identified in the foregoing prepared testimony and/or exhibits; that such testimony and/or exhibits were prepared by or under the direction of said person; that the answers and/or information appearing therein are true to the best of her knowledge and belief; and that if asked the questions appearing therein, her answers thereto would, under oath, be the same.

I declare under penalty of perjury that the foregoing is true and correct.

Date: May 4, 2026

Janet Wells

SHAWN ELICEGUI

BEFORE THE PUBLIC UTILITIES COMMISSION OF NEVADA

Nevada Power Company d/b/a NV Energy
Sierra Pacific Power Company d/b/a NV Energy

2026 Joint Integrated Resource Plan (2027-2046)
Docket No. 26-05___

Prepared Direct Testimony of

Shawn M. Elicegui

SECTION I.
INTRODUCTION

1. Q. PLEASE STATE YOUR NAME, OCCUPATION, BUSINESS ADDRESS AND PARTIES FOR WHOM YOU ARE FILING TESTIMONY.

A. My name is Shawn Elicegui. I am a business executive for Nevada Power Company d/b/a NV Energy ("Nevada Power") and Sierra Pacific Power Company d/b/a NV Energy ("Sierra" and, together with Nevada Power, the "Companies"). My business address is 6100 Neil Road, Reno, Nevada. I am filing testimony on behalf of the Companies in support of the Companies' 2026 Joint Integrated Resource Plan (2027-2046) (the "2026 Joint IRP").

2. Q. PLEASE DESCRIBE YOUR BACKGROUND AND EXPERIENCE IN THE UTILITY INDUSTRY.

A. I held various positions for NV Energy, Inc. between 2009 and 2019. Between 2019 and 2025, I was an Executive Vice President, Risk Management, and subsequently became the Chief Legal Officer for Corix Utilities, Inc. ("Corix"). Corix merged its water and wastewater business with Southwest Water Company in 2024, creating

Nexus Water Group, Inc. ("Nexus"). I became the Chief Legal Officer of Nexus following the merger and served in that position until May 2025, when I rejoined the Companies.

My statement of qualifications is attached as **Exhibit Elicegui-Direct-1**.

3. Q. WHAT ARE YOUR DUTIES AND RESPONSIBILITIES IN YOUR CURRENT POSITION?

A. My current position is the Senior Vice President, Regulatory and Resource Planning, for the Companies. I supervise the Companies' integrated resource planning function. The integrated resource planning function consists of the integrated grid planning, transmission planning, distribution planning, resources planning and analysis, and load forecasting and analysis teams. I also supervise the Companies' regulatory function, which consists of the regulatory analysis, regulatory services, regulatory legal, and regulatory pricing and economic analysis teams.

4. Q. HAVE YOU PREVIOUSLY SUBMITTED PREPARED TESTIMONY WITH THE PUBLIC UTILITIES COMMISSION OF NEVADA ("COMMISSION")?

A. Yes. I have submitted prepared testimony to the Commission, as well as utility regulatory jurisdictions in several other states and the Federal Energy Regulatory Commission. **Exhibit Elicegui-Direct-1** lists selected cases in which I have submitted prepared testimony. I have also testified before this Commission and several other state utility regulatory commissions such as the Florida Public Service Commission, the Kentucky Public Service Commission, and the South Carolina Public Service Commission.

5. Q. WHAT IS THE PURPOSE OF YOUR TESTIMONY?

A. I provide policy testimony in support of the 2026 Joint IRP. I explain why the Companies have isolated the resource needs and costs associated with serving data centers, data center developers, and hyperscalers with loads exceeding 25 megawatts ("MW"). In this testimony, I refer to these as "large load customers" and the associated "large load service requests." I also support a procedural proposal advanced by the Companies. Specifically, I explain why the Commission should accelerate a decision on the applicability of the Companies' proposed Large Load Electric Service Agreement (the "LLESA" or "Large Load ESA"), and the terms and conditions that the LLESA should include to protect Nevada households, small businesses, and existing commercial and industrial customers from risks posed by step-change load growth. Finally, I describe the Companies' policy position on large load service requests.

6. Q. WHAT EXHIBITS AND APPENDICES ARE YOU SPONSORING?

A. I am sponsoring or co-sponsoring the following Exhibits:

Exhibit Elicegui-Direct-1: Statement of Qualifications

Exhibit Elicegui-Direct-2: Long-term Power Purchase Agreements to Serve Test Expansion Plan

7. Q. HOW IS YOUR TESTIMONY ORGANIZED?

A. Section II of my testimony describes federal policy and market conditions in consideration of which the Companies make this 2026 Joint IRP filing. In Section III of my testimony, I provide the Companies' policy position on large load service requests. Section IV of my testimony explains why the Companies have isolated the costs and resources needed to meet requests for service made by large load

customers and how the Companies' risk-conscious approach to planning is consistent with the policy position on serving large load customers.

SECTION II.
FEDERAL POLICY AND MARKET CONDITIONS

8. Q. WHY ARE THE COMPANIES FILING THE 2026 JOINT IRP AT THIS TIME, AND HOW DO FEDERAL AI-RELATED POLICIES FACTOR INTO THE COMPANIES' LOAD OUTLOOK AND PLANNING FRAMEWORK?

A. The Companies make this 2026 Joint IRP filing at a pivotal time in the electric industry because they have received large load service requests that drive a step-change in Nevada's electric system. The scale of potential growth of both the electric and technology sectors due to artificial intelligence ("AI") is extraordinary and represents the leading edge of electricity demand. Advancements in hardware and software have enabled the development of large language models aligned with federal policy to drive potential load growth.[1] Federal policy plays a central role in the equation:

- In January 2025, Executive Order 14179: Removing Barriers to Leadership in Artificial Intelligence called for the creation of a "National AI Action Plan."
- Executive Order 14318: Accelerating Federal Permitting of Data Center Infrastructure, issued in July 2025 streamlines environmental reviews and

[1] In February 2026, a report titled AI, Data Centers, and the U.S. Electric Grid: A Watershed Moment, published by the Belfer Center for Science and International Affairs at the Harvard Kennedy School notes that some predict data center demand will grow from 176 terawatt hours in 2023 (or about 4.4 percent of total U.S. electric consumption) to between 325 to 580 TWh (or 6.7 percent to 12 percent of U.S. consumption) by 2028. Others project that data center load will double again to 25 percent of U.S. electric consumption by 2030.

directed the Commerce Department to launch federal programs for data centers in need of 100 plus MW of new energy generation.

- At the same time, America's AI Action Plan proposes a strategic framework designed to accelerate AI innovation, build AI infrastructure and drive the global adoption of American AI systems, hardware, and standards, while countering adverse foreign influence in the field.

The Companies' Joint 2026 IRP advances a framework for addressing potentially unprecedented load growth while mitigating the risk such growth poses to Nevada households, small businesses and industrial customers.

9. Q. PLEASE DESCRIBE LARGE LOAD SERVICE REQUESTS IN NEVADA.

A. Consistent with this national trend, the Companies have experienced an uptick in large load service requests. Nevada's expanse of developable land, a favorable climate for efficient cooling, and robust fiber connectivity have contributed to strong interest in locating data centers in Nevada. The Companies have received approximately 22,000 MW or 22 gigawatts ("GW") of interest inquiries from data centers and have executed approximately 6 GW of signed Rule 9 agreements (generally consisting of master planned community ("MPC") umbrella agreements, substation high voltage distribution ("SHVD") agreements, and high voltage distribution ("HVD") agreements) to facilitate the transmission, substation, and high voltage distribution infrastructure needed to interconnect these large loads.

Putting this in perspective, Nevada Power's peak load for 2025 was 6,168 MW and Sierra's peak load for 2025 was 2,073 MW. Approximately 84 percent (almost 5

GW) of the signed agreements are with large load customers in northern Nevada—Sierra's load forecast projects kilowatt-hour sales will double by 2029.

SECTION III.
THE COMPANIES' POLICY POSITION
ON LARGE LOAD SERVICE REQUESTS

10. Q. WHAT IS THE COMPANIES' POSITION ON LARGE LOAD SERVICE REQUESTS?

A. The Companies are obligated to plan for requests for service, regardless of the characteristic of the type of load. While the Companies must identify the resources needed to meet large load service requests, the Companies believe that such requests must be managed responsibly and cannot come at the expense of affordability and reliability for Nevada households, small businesses, and existing commercial and industrial customers. Large load service requests present a step-change in demand that is fundamentally different from organic growth and therefore must be planned for and priced with appropriate guardrails.

Consistent with sound cost-causation principles, the Companies support serving qualified large load customers under terms and conditions the Commission determines are in the public interest, including contractual requirements that ensure growth pays for growth. The Companies recognize that high-load-factor customers can improve system utilization and help spread fixed costs once they are in operation. However, due to the scale, timing, and concentration of these requests, large loads also create distinct reliability, infrastructure, and affordability risks. Large load customers and data center developers should be responsible for the

incremental generation, transmission, substation, fuel supply and distribution infrastructure needed to serve their loads, and for bearing the risks associated with rapid load ramps and potential changes in long-term demand. Infrastructure built to serve large load customers, in short, must be paid for by those customers, not socialized across existing ratepayers.

11. Q. IN LIGHT OF THE COMPANIES' POLICY POSITION, WHAT IS A KEY OUTCOME THE COMPANIES SEEK FROM THE 2026 JOINT IRP?

A. Consistent with the Companies' policy position that step-change load growth must be managed responsibly and not at the expense of existing customers, a core objective—and key outcome—of the 2026 Joint IRP filing is to establish clear and durable planning and service rules for responding to large load service requests. A Commission-established framework that is just, reasonable, and consistent with the public interest, including rules that preserve affordability and reliability, will provide all stakeholders greater certainty regarding when and how large loads are reflected in planning assumptions, and ensure that the costs and risks of serving large load customers are appropriately assigned to those customers under sound cost-causation principles. As explained in Section IV below, this objective is why the Companies propose to accelerate the timeline for the Commission to decide the applicability of the Companies' proposed Large Load ESA, determine the terms the LLESA should include, and consider whether other agreements—such as certain agreements with land developers that do not take retail electric service from the Companies—should contain similar provisions. This is also why Rule 9 agreements, which primarily address transmission, substation, and high-voltage distribution facilities, are not sufficient—standing alone—to address the

generation, electric supply, and long-term demand risks associated with step-change load growth.

SECTION IV.
THE PLANNING IMPLICATIONS OF LARGE LOAD SERVICE REQUESTS AND THE EVOLUTION OF THE COMPANIES' PLANNING PROCESSES

12. Q. DO THE CHARACTERISTICS OF LARGE LOAD REQUESTS FOR SERVICE NECESSITATE THE NEED FOR CHANGES IN THE COMPANIES' APPROACH TO INTEGRATED RESOURCE PLANNING?

A. Yes. Projected load growth represents a step-change with unique risks and opportunities. On the risk side of the scale, growth is concentrated in large loads, with individual load interconnection requests commonly in the hundreds of megawatts. Utilities responding to this step-change in load need to make significant investment in generation and transmission infrastructure to meet rapidly evolving energy needs. Investment at the scale needed to serve large load customers poses risks to the Companies and, more importantly, the customers.

On the opportunity side of the scale, large load additions have exhibited high load factors. Once data centers and hyperscalers reach full operation, they use energy consistently from hour-to-hour, with minimal variation between low-load and high-load hours. This "flatter" load improves system utilization, potentially allowing fixed costs to be spread across more sales.

13. Q. HAVE THE COMPANIES MODIFIED THEIR APPROACH TO INTEGRATED RESOURCE PLANNING IN RESPONSE TO LARGE LOAD SERVICE REQUESTS?

A. Yes. Historically, large load requests for service have been discounted in IRP load forecasts. While the Companies mitigated large load service requests included in the Base Load Forecast using an approach very similar to the approach they used in the 2024 IRP, the Companies responded to the planning challenges presented by large load requests for service by adopting a deliberate, risk-conscious planning approach designed to preserve flexibility and minimize risk. This risk-conscious and flexible approach to planning incorporates several new elements that enhance the Companies' prudence-based integrated resource planning. These tools include:

- A "letter of intent" that provided a pathway for large load customers to include 100 percent of their projected load ramp in the Base Load Forecast.
- The Base Minus Load Forecast, which removes the mitigated load ramps associated with specified large load service requests from the Base Load Forecast.
- The Large Load ESA.
- A revised approach to resource selection, which places more weight on deliverability and the near-term present worth of capital costs to preserve flexibility while avoiding difficult-to-reverse decisions.

I will describe each of these modifications in the following questions and answers.

14. Q. PLEASE DESCRIBE THE "LETTER OF INTENT" THAT THE COMPANIES DEVELOPED IN THE SECOND QUARTER OF 2025.

A. As mentioned above, the Companies have MPC, SHVD and HVD agreements with approximately 6 GW of large-load customers. These "Rule 9" agreements address the transmission, substation and high voltage distribution infrastructure needed to

interconnect large load customers. However, the agreements do not address generation and electric supply, leading to the mitigation of large load service requests in the Companies' load forecasts presented in IRP filings. While this approach—the mitigation of large load service requests—worked well historically, as the magnitude and volume of large load service requests increased (now such requests often exceed several hundred MW each and some reach more than a GW), it creates a risk of both over- and under-procurement. To afford more certainty to load forecasting and resource planning, the Companies developed a "framework" document which became a partially binding letter of intent.

In early 2025, the Companies provided a partially binding letter of intent to certain large load customers. Under the letter of intent, the Companies committed to include load in the Base Load Forecast at mitigated levels, review opportunities to serve additional load in the near-term, and at unmitigated levels requested by the large load customer in the long-term.[2] Likewise, the letter of intent binds the large load customer to negotiate in good faith and enter into a Large Load ESA with provisions designed to ensure that the large load customer is responsible for full cost of serving the large load customer.

[2] As witness Janet Wells explains, one customer signed a letter of intent and its full load is included in the Base Load Forecast beginning in 2031.

15. Q. WHY DID THE COMPANIES DEVELOP THE BASE MINUS LOAD FORECAST AND HOW DOES THE BASE MINUS LOAD FORECAST AND THE RELATED EXPANSION PLAN SUPPORT THE COMMISSION'S ABILITY TO MAKE INFORMED DECISIONS IN THIS DOCKET?

A. The Companies developed the Base Load Forecast using established historical mitigation practices. To better understand the impact of large load additions, we created a "base-minus" case—the Base Minus Load Forecast—that keeps all key forecast drivers constant—such as macroeconomic factors, end-use, and energy efficiency—but removes specified large load service requests. Witness Timothy Pollard identifies the large load service requests that were included at a mitigated amount in the Base Load Forecast and removed entirely from the Base Minus Load Forecast. Witness Janet Wells explains how the Companies identified the large load service requests that were removed from the Base Load Forecast to create the Base Minus Load Forecast. Witness Brandon Heath describes the Base Minus informational case which presents the renewable, storage, and thermal resources necessary to serve the Base Minus Load Forecast. This approach allows the Companies, the Commission and stakeholders to clearly isolate both the resources and costs associated with serving large load customers.

16. Q. ARE THERE OTHER BENEFITS OF PREPARING THE BASE MINUS LOAD FORECAST?

A. Yes. With the Base Minus Load Forecast prepared, the Companies can add load associated with large load service requests, either as directed by the Commission or when such addition is justified and documented by an agreement such as the LLESA. Then, the Companies can use PLEXOS LT to identify resources needed

to serve the large service request. For example, Tim Pollard created a load forecast scenario (the "Test Scenario") by adding to the Base Minus Load Forecast the load associated with just three of the customers who specified that they intend to sign LLESAs. Witness Kimberly Williams led a team that used PLEXOS LT to model a supply-side expansion plan (the "Test Expansion Plan") to serve the Test Scenario. While the Companies are completing quality checking and quality control, the preliminary results of the Test Expansion Plan indicate that all the renewable and storage projects from the Preferred Plan except two are needed to serve the Test Scenario.[3] See **Exhibit Elicegui-Direct-2**.

17. Q. DID THE COMPANIES DEVELOP ANY ADDITIONAL LOAD FORECAST SCENARIOS TO EVALUATE OTHER LARGE-LOAD ADDITIONS, INCLUDING LOAD ASSOCIATED WITH MASTER PLANNED COMMUNITY DEVELOPMENT?

A. Yes. The Companies created a second scenario, which includes load associated with two entities engaged in developing land under two MPC agreements within the Tahoe Reno Industrial Center. This scenario adds a certain amount of large load additions within the master planned communities represented in the MPC agreements (the "Second Test Load Addition") from 2029 and beyond. Similar to the Test Scenario, Ms. Williams' team used PLEXOS LT to construct an expansion plan (the "Second Test Expansion Plan") for the Second Test Load Addition scenario. Again, the Companies are engaged in quality control and quality checking of the results. However, the preliminary observations from the Second Test

[3] Note that the long duration storage project available in either a 6-hour of 8-hour version is selected as the 8-hour version in the Preferred Plan, but as the 6-hour version in the Test Expansion Plan. The Test Expansion Plan accelerates the addition of thermal generation from 2039 in the Base Minus informational case to 2036. Under the Test Expansion Plan, only limited steps need to be taken during the action plan period to advance design of a 2036 thermal addition. I would also note that it might be prudent under this scenario for the Companies to request approval of all renewable and storage contracts give the fact that not all projects reach commercial operation.

Expansion Plan are informative: under the Second Test Load Expansion Plan, the same long-term renewable power purchase agreements included in the Test Scenario are needed to serve load ***and*** a thermal addition accelerates from 2036 (in the Test Expansion Plan) to ***2032***.

18. Q. WHY ARE THESE OBSERVATIONS IMPORTANT?

A. These observations are important for several reasons. First, the observations show the power of using PLEXOS LT to choose expansion plans to meet load scenario alternatives. This is an important component of the Companies' risk-conscious approach to integrated resource planning in this filing. Second, the scenario analysis reveals that the prevailing conditions within Sierra's service territory—generation and transmission constraints—are sensitive to large load additions. To meet the service requests added in the Second Test Load Addition scenario, the Companies ***need*** to take action during the action plan period well beyond advancing an engineering design for a thermal generating station. Instead, the Companies would need to place orders for long-lead-time equipment and significantly advance engineering designs to meet a 2032 in-service date.

As Ms. Wells explains, the Companies will be filing separate applications requesting approval of LLESAs with several customers substantially contemporaneously with this 2026 Joint IRP.[4] After those applications are filed, the Companies will create a third load forecast scenario (the "LLESA Load Forecast") and will run that scenario through PLEXOS LT to create an expansion plan (the "LLESA Expansion Plan"). The Companies will supplement the 2026 Joint IRP with a copy of the results of the LLESA Expansion Plan. The LLESA Expansion

[4] Note that this scenario will include more load additions that the Test Scenario.

Plan will provide additional information to inform the Commission's decision in this proceeding.

19. Q. WHY SHOULD THE COMMISSION SEPARATE AND ACCELERATE DECISIONS REGARDING THE LARGE LOAD ESA IN THIS DOCKET?

A. The Companies propose that the Commission separate and accelerate decisions on (i) the terms and conditions of the LLESA, (ii) the applicability of the LLESA to certain large load service requests, and (iii) whether an agreement with similar terms and conditions is needed for land developers that will not take retail electric service from the Companies. Certain entities have made large load service requests to the Companies but have not executed LLESAs—either because they contend the LLESA is not applicable to them, because they contend not all of the Companies' proposed LLESA provisions are necessary to protect customers, or because they believe other service avenues (such as the Clean Transition Tariff) provide adequate protections.

By resolving these threshold questions on an accelerated track, the Commission can establish clear and durable rules and then set a deadline for large load customers to state whether they intend to proceed in this 2026 Joint IRP under Commission-approved terms. This, in turn, allows the Companies to reflect in planning scenarios and associated resource portfolios ***only*** those large load additions documented in and justified by enforceable commitments, reducing the risk of over-procurement if load does not materialize and under-procurement if load materializes faster than anticipated.

In the Companies' view, separating and accelerating these determinations will materially improve the transparency, predictability, and prudence of planning for step-change load growth in the 2026 Joint IRP. This is why the Companies have asked the Commission to make a determination on the three issues—the applicability of the LLESA to certain customers, the appropriate terms and conditions of the LLESA, and whether an agreement containing similar key terms is necessary with developers that will not be customers—within the time frame for reviewing and approving the ESP.

20. Q. WHAT STEP DO YOU ANTICIPATE WOULD BE THE NEXT STEP IF THE COMMISSION MAKES A DETERMINATION ON THOSE ISSUES?

A. The Commission could then set a deadline for large load customers, including all of the customers included within the LLESA Load Forecast, to indicate whether they will accept those terms and proceed by conforming the terms of the LLESA submitted on their behalf to the terms approved by the Commission,[5] solidifying the Companies' load forecast and the resources needed to meet the load forecast.

21. Q. WHAT IS THE LLESA AND WHY IS INCORPORATING THE LLESA INTO THE COMPANIES' PLANNING PROCESS NECESSARY?

A. As summarized by Ms. Wells, the LLESA includes several interlocking provisions that support prudent planning and customer protection. Incremental generation costs associated with new thermal resources that are not required in the Base Minus Load Forecast are recovered through a customer-specific generation charge that reflects each customer's pro-rata share of planned capacity additions, with payments beginning in advance of in-service dates to align investment decisions

[5] The same deadline would apply to the Companies, which would also need to acknowledge that they would proceed under the terms of a revised LLESA.

with embedded costs at the time those resources enter rate base. Incremental long-term energy costs of resources not needed in the Base Minus informational case are recovered through a Long-Term Energy Rate that reflects the cost of new incremental purchased power agreements and gas pipeline expansion costs.

The LLESA also includes minimum demand and energy billing commitments designed to mitigate the risk of under-utilization and stranded costs, while providing structured opportunities for customers to adjust ramp profiles over time. Termination provisions require advance notice and payment of remaining minimum billing obligations, subject to mitigation if a replacement customer can assume the load, reducing the risk that existing customers are left carrying unrecovered investment costs. Finally, customer security requirements—satisfied through creditworthiness standards or financial assurances—ensure that the Companies are protected for the full contractual obligation approved by the Commission.

In the Companies' view, the LLESA is therefore a necessary planning tool—not simply a contract—because it allows the Commission and stakeholders to evaluate large load growth in a manner that is transparent, disciplined, and consistent with sound cost-causation principles.

22. Q. HOW DID THE COMPANIES RESPOND IN THIS 2026 JOINT IRP TO INCREASED PLANNING AND EXECUTION RISK ASSOCIATED WITH RECENT FEDERAL POLICY DEVELOPMENTS AND DISPATCHABLE CAPACITY SUPPLY CONSTRAINTS?

A. The Companies responded by emphasizing a deliberate, risk-conscious planning approach that prioritizes executability and preserves flexibility in the face of material uncertainty affecting both renewable and thermal resource timing. On the renewable side, recent federal policy developments and administrative actions have increased the risk that otherwise economic wind and solar projects may experience delayed development or reduced value due to permitting bottlenecks and uncertainty regarding approvals that require federal sign-off. In addition, the potential for accelerated phase-down of federal tax incentives creates a "tax credit cliff" that can materially affect project economics depending on when a project begins construction and when it is placed in service.

On the dispatchable side, current market conditions reflect significant constraints in the supply chain for new gas turbine capacity, with longer lead times and higher execution risk for large-frame combined-cycle units. While recent federal policy changes have, in some respects, expanded near-term portfolio flexibility, practical limitations on the availability and delivery timelines for certain thermal technologies remain. Accordingly, the Companies have placed greater weight on resource options that can be delivered on a shorter timeline and deployed in a modular manner—such as aeroderivative units—while recognizing that these procurement windows are also tightening. These considerations are reflected in the Companies' proposed framework in this filing, including the emphasis on deliverability in resource selection, the use of scenario-based planning to avoid

over- or under-procurement, and the pursuit of Commission guidance on clear service rules that allow the Companies to align resource commitments with enforceable large-load commitments.

23. Q. DOES THIS CONCLUDE YOUR PREPARED DIRECT TESTIMONY?

A. Yes.

EXHIBIT ELICEGUI-DIRECT-1

SHAWN M. ELICEGUI

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EDUCATION

University of California – Davis, King Hall School of Law
J.D., Order of the Coif – 1996
Honors: Teacher's Aide, *Constitutional Law I*, Professor Allen Brownstein
Trial Practice Honors Board
Am. Jur., Legal Research & Writing
Am. Jur., Business Associations

University of Nevada – Reno
B.A., Political Science and International Affairs, With Distinction – 1993
Honors: Pi Sigma Alpha, National Political Science Honors Society

PROFESSIONAL EXPERIENCE

NV Energy, Inc.
SVP, Resource Planning and Regulatory — May 2025 – Present

- Responsibilities include supervision of integrated resource planning and regulatory pricing, regulatory services, and regulatory legal functions.

Nexus Water Group, Inc.
Chief Legal Officer — April 2024 – May 2025

- Responsibilities included supervision of compliance, health, safety and environmental function, internal audit, legal, regulatory, and risk management functions

Corix Utilities, Inc.
EVP, Risk Management — September 2020 – January 2022
EVP, Risk Management & Chief Legal Officer — January 2022 – March 2024

- Responsibilities included supervision of compliance, health, safety and environmental, internal audit, legal, regulatory, and risk management functions

SR 431 Consulting, LLC & Elicegui PLLC
Managing Member — April 2019 – January 2020

- Provided consulting and legal services to a single client

NV Energy, Inc.
SVP, Regulatory and Business Planning — November 2017 – April 2019
SVP, Customer Operations — January 2017 – November 2017

SVP, Regulation & Strategic Planning	February 2015 – December 2016
VP, Regulation	December 2013 – February 2015
Associate General Counsel	February 2009 – December 2013

- Senior Vice President, Regulatory and Business Planning, responsibilities included supervision of regulatory pricing, regulatory policy, and resource planning functions. Responsibilities also include load research and forecasting
- Senior Vice President, Customer Operations, responsibilities included overseeing the operation of several business units, including customer energy solutions, customer service, major accounts, customer programs and services, and meter services
- Senior Vice President, Regulation and Strategic Planning, responsibilities included overseeing the rates and regulatory team, the resource planning team and strategic planning activities; responsibilities also included development and execution of legislative strategy in conjunction with Senior Vice President of Government Relations and Community Affairs
- Vice President, Regulation, responsibilities included overseeing the rates and regulatory team and the resource planning team; providing policy testimony in administrative proceedings
- Associate General Counsel, responsibilities included providing legal and regulatory advice to operating subsidiaries of NV Energy, representing the operating subsidiaries in contested proceedings before the Public Utilities Commission of Nevada; proceedings included independent regulatory rate review proceedings, fuel and purchased power review proceedings, rulemaking proceedings and investigations

Lionel, Sawyer & Collins

Shareholder	January 2005 – February 2009
Associate	August 1997 – December 2004

- Practice included representation of corporate and individual clients in a variety of regulatory matters before local, state and federal agencies and the Nevada legislature. Practice areas primarily included the representation of utilities and customers in the energy, telecommunications and water and wastewater industries. Practice areas also included financial institutions, and representation of professional licensees and individuals and juridical entities engaged in the gaming and hospitality industry. Civil litigation experience includes representation of clients in general commercial litigation, as well as appellate and judicial review proceedings.

Hon. Procter R. Hug, Jr., Chief Judge, United States Court of Appeals for the 9th Circuit

Judicial Clerk	August 1996 – July 1997

SELECTED TESTIMONY

PUCN Docket No. 16-06006, Sierra Pacific Power Company General Rate Review (2016)
PUCN Docket Nos. 16-03003, 16-03004 & 16-03005, Nevada Power Company, Sierra Pacific Power Company Electric, and Sierra Pacific Power Company Gas Deferred Energy Accounting Adjustment (2016)
PUCN Docket No. 15-11029, Sierra Pacific Power Company's Third Amendment to its Integrated Resource Plan (2015)
PUCN Docket No. 15-11028, Nevada Power Company's Request for Approval of Renewable Energy Agreement with Switch, Ltd. (2015)
PUCN Docket No. 15-11027, Nevada Power Company's First Amendment to its Integrated Resource Plan (2015)
PUCN Docket No. 15-11026, Nevada Power Company's Request for Approval of Renewable Energy Agreement with the City of Las Vegas (2015)
PUCN Docket No. 15-11025, Sierra Pacific Power Company's Request for Approval of Renewable Energy Agreements with Switch, Ltd. and Apple, Inc. (2015)
PUCN Docket Nos. 15-07041 & 15-07042, Nevada Power Company's and Sierra Pacific Power Company's Requests for Approval of Net Energy Metering Tariffs (2015)
PUCN Docket No. 15-07003, Nevada Power Company's First Amendment to its 2014 Emissions Reduction and Capacity Replacement Plan (2015)
PUCN Docket No. 15-06019, Nevada Power Company's and Sierra Pacific Power Company's Application to Amendment Action Plans to Approve an Amended and Restated Transmission Usage Agreement for the One-Nevada Transmission Line (2015)
PUCN Docket No. 14-11007, Application of Switch, Ltd. for Authorization to Purchase Energy, Capacity and Ancillary Services from an Alternative Supplier (2014)
PUCN Docket Nos. 14-05004, Nevada Power Company's General Rate Review (2014)
PUCN Docket No. 14-05003, Nevada Power Company's First Amendment to its Integrated Resource Plan and its Emissions Reduction and Capacity Replacement Plan (2014)
PUCN Docket No. 14-04024, Nevada Power Company's and Sierra Pacific Power Company's Request for Approval of Plan to Participate in Energy Imbalance Market (2014)

EXHIBIT ELICEGUI-DIRECT-2

Source	Project Name	Asset Type	Paired or Standalone	In-Service Date	Asset Life (Years)	Nameplate Capacity (MW)	Storage Duration (Hours)	Project Region
All Source RFP	Commerce Station Energy Storage	BESS	Standalone	5/29/2028	20	100	4	South
	White Pine Solar	PV	Paired	12/31/2028	25	350	N/A	North
		BESS		12/31/2028	20	350	4	
	Southern Bighorn 1 & 2	PV	Paired	7/15/2028	25	400	N/A	South
		BESS		7/15/2028	20	400	4	
	Trego Grid	BESS	Standalone	6/30/2028	20	200	4	North
	NGP Blue Mountain Third Amendment	Geo	Standalone	3/31/2027	20	30	N/A	North
	Winston Solar	PV	Paired	10/1/2029	25	400	N/A	North
		BESS		10/1/2029	20	400	4	
	Amargosa Energy Center	PV	Paired	12/31/2030	25	1200	N/A	South
		BESS		12/31/2030	20	1200	4	
	Boulder Solar III	PV	Paired	6/1/2028	25	128	N/A	South
		BESS[1]		6/1/2028	25	128	4	
	Dry Lake East Energy Storage II	BESS	Standalone	12/31/2027	20	150	4	South
	Jersey Valley Solar and Storage	PV	Paired	11/29/2027	25	67	N/A	North
		BESS		11/29/2027	20	67	4	
	Lux Solar Center	PV	Paired	7/1/2028	25	125	N/A	North
		BESS		7/1/2028	20	125	4	
	Sleepy Orange	PV	Paired	5/31/2030	25	500	N/A	North
		BESS		5/31/2030	20	500	4	
	Castor Storage	BESS	Paired-Existing	5/31/2029	20	310	6	South
Existing Contract	Stillwater	Geo	Standalone	1/1/2030	5	47	N/A	North
Sleeved Projects Associated with Customer Energy Agreements	Nevada Geothermal Portfolio	Geo	Standalone	12/31/2030	15	50	N/A	North
	North Nevada Geothermal Portfolio	Geo	Standalone	12/31/2030	20	100	N/A	North
	Iron Point Energy Center	PV	Paired	12/31/2029	20	250	N/A	North
		BESS		12/31/2029	20	250	4	
	Hot Pot Energy Center	PV	Paired	10/31/2029	20	350	N/A	North
		BESS		10/31/2029	20	350	4	

[1] Boulder Solar III BESS capacity is reduced to 32 MW in contract years 21-25

AFFIRMATION

Pursuant to the requirements of NRS 53.045 and NAC 703.710, SHAWN ELICEGUI, states that he is the person identified in the foregoing prepared testimony and/or exhibits; that such testimony and/or exhibits were prepared by or under the direction of said person; that the answers and/or information appearing therein are true to the best of his knowledge and belief; and that if asked the questions appearing therein, his answers thereto would, under oath, be the same.

I declare under penalty of perjury that the foregoing is true and correct.

Date: May 4, 2026

Shawn M. Elicegui

Shawn Elicegui

TIMOTHY POLLARD

BEFORE THE PUBLIC UTILITIES COMMISSION OF NEVADA

Nevada Power Company d/b/a NV Energy
Sierra Pacific Power Company d/b/a NV Energy

2026 Joint Triennial Integrated Resource Plan (2027–2046)
Docket No. 26-05___

Prepared Direct Testimony of

Timothy Pollard

I. INTRODUCTION

1. Q. PLEASE STATE YOUR NAME, OCCUPATION, BUSINESS ADDRESS AND PARTY FOR WHOM YOU ARE FILING TESTIMONY.

A. My name is Tim Pollard. My current position is Director of Load Forecasting, Research and Analytics in the Resource Planning and Analysis department for Nevada Power Company d/b/a NV Energy ("Nevada Power") and Sierra Pacific Power Company d/b/a NV Energy ("Sierra" and, together with Nevada Power, the "Companies"). My business address is 6100 Neil Road in Reno, Nevada. I am filing testimony on behalf of the Companies.

2. Q. PLEASE DESCRIBE YOUR BACKGROUND AND EXPERIENCE IN THE UTILITY INDUSTRY.

A. I have been employed by NV Energy since 2007. Until 2022, I worked as a Technical Lead in the Rates and Regulatory Affairs department where my main focus was related to regulatory cost of service and rate design items. In my current position, my primary focus is on long-term load forecasting and load research issues for the Companies. I was also previously employed by the Companies in 2004 as a Load Forecasting Economist within the Resource Planning department.

I have previously provided expert witness testimony before the Public Utilities Commission of Nevada ("Commission") regarding load forecasts, cost of service, and regulatory pricing issues in support of various Rate & Regulatory Affairs department proceedings. My educational background, previous positions and professional experience are summarized in the statement of qualifications attached as **Exhibit Pollard-Direct-1**.

3. Q. WHAT ARE YOUR DUTIES AND RESPONSIBILITIES IN YOUR CURRENT POSITION?

A. My current responsibilities include leading and overseeing the Companies' long-term load forecasts and load research activities. This includes all technical aspects of their historical and forecast class load data used for integrated resource plan ("IRP") and other filings with the Commission.

4. Q. HAVE YOU PREVIOUSLY SUBMITTED PRE-FILED TESTIMONY WITH THE COMMISSION?

A. Yes. Most recently, I provided testimony to the Commission in the Companies' First Amendment to the Triennial 2024 Joint Integrated Resource Plan (Docket No. 25-10028) ("2024 Joint IRP 1A"). A full list of cases in which I have provided testimony before the Commission can be found in **Exhibit Pollard-Direct-1**.

5. Q. WHAT IS THE PURPOSE OF YOUR TESTIMONY?

A. For this Triennial 2026 Joint Integrated Resource Plan ("2026 Joint IRP") the purpose of my testimony is to support and sponsor the Companies' updated long-term load forecast ("2026 Joint IRP Load Forecast"), along with the corresponding Technical Appendices. I also support updates to the rates to be paid by those

customers who choose to elect service from another energy provider through the 704B exit process for the 2026 Joint IRP's three-year action plan ("Action Plan") covering the period January 2027 through December 2029 ("Action Plan Period") in this proceeding.

6. Q. WHAT EXHIBITS AND APPENDICES ARE YOU SPONSORING?

A. I am sponsoring the following Exhibits:

- **Exhibit Pollard-Direct-1** – Summary of Qualifications
- **Exhibit Pollard-Direct-2** – Confidential - Major Project Information
- **Exhibit Pollard-Direct-3** – 2026 IRP 704B Rates

I am also sponsoring the Load Forecast Narrative and Load Forecast Technical Appendices provided with the filing. Because this material is identical for both the Energy Supply Plan ("ESP") and 2026 Joint IRP Load Forecast, these materials are physically located in the Technical Appendices accompanying the load forecast narrative for the 2026 Joint IRP. These include:

- IRP LF-1 2026 Joint IRP Load Forecast Technical Appendix (portions of which are confidential);
- IRP LF-2 State Demographer Long-Term Population Projections, 2024-2043;
- IRP LF-3 State Demographer Annual Report on Estimated Population through July 1, 2024, Including 2023 Governor Certified Series – Population Estimates of Nevada's Counties;
- IRP LF-4 Las Vegas Convention and Visitors Year to Date Available Room Count 2024-2025;
- IRP LF-5 2025 CBER Clark County Population Forecast, May 2025;
- IRP LF-6 S&P Global IHS Economics 2025 (confidential); and

- IRP LF-7 Itron, Inc. Statistically Adjusted End-Use ("SAE") Model Overview.

7. Q. ARE YOU FILING WORKPAPERS WITH THE 2026 JOINT IRP LOAD FORECAST?

A. Yes, as a general practice before the Commission, a comprehensive set of executable files demonstrating the calculations for the load forecasting data I am providing will be supplied on electronic media for this filing. In accordance with the stipulation accepted by the Commission in the Third Amendment to the Companies' Triennial 2021 Joint IRP (Docket No. 22-09006), a workpaper index is provided to interested parties as part of the filing in order to assist with detailing the steps used to develop the forecast.

8. Q. ARE ANY OF THE MATERIALS YOU ARE SPONSORING CONFIDENTIAL?

A. Yes. The customer-specific information included in **Exhibit Pollard-Direct-2** and the Technical Appendix LF-1 workpapers, and third-party proprietary information presented in Technical Appendix LF-6, constitute confidential information.

9. Q. FOR HOW LONG DO THE COMPANIES REQUEST CONFIDENTIAL TREATMENT OF THIS INFORMATION?

A. The requested period for confidential treatment is five years.

10. Q. WILL CONFIDENTIAL TREATMENT IMPAIR THE ABILITY OF THE COMMISSION'S REGULATORY OPERATIONS STAFF ("STAFF") OR THE NEVADA ATTORNEY GENERAL'S BUREAU OF CONSUMER PROTECTION ("BCP") TO FULLY INVESTIGATE THE INFORMATION SET FORTH IN THIS FILING?

A. No, in accordance with the accepted practice in Commission proceedings, the confidential material will be provided to Staff and the BCP under standardized protective agreements.

11. Q. HOW IS YOUR TESTIMONY ORGANIZED?

A. My testimony is separated into three sections. They are:

- Section I – Introduction
- Section II – 2026 Joint IRP Load Forecast
- Section III – 704B Rate Calculations

II. 2026 JOINT IRP LOAD FORECAST

12. Q. PLEASE SUMMARIZE THE COMPANIES' REQUESTS REGARDING THE 2026 JOINT IRP LOAD FORECAST.

A. The 2026 Joint IRP Load Forecast provides the foundation for all other load forecasts included in this filing. The Companies request the following regarding the 2026 Joint IRP Load Forecast covering the 2027 to 2046 period:

- A finding, consistent with NAC § 704.9321, that the 2026 Joint IRP Load Forecast is based on substantially accurate data, adequately demonstrated and defended, and adequately documented and justified.
- A finding that the 2026 Joint IRP Load Forecast, as described in the Narrative and the Technical Appendices, as well as in my testimony,

contains all of the items required by NAC § 704.925 and other applicable regulations.

- A finding that the 2026 Joint IRP Load Forecast is suitable for making long-term planning decisions over the 2027 to 2046 period.

13. Q. PLEASE SUMMARIZE THE COMPANIES' PROPOSED 2026 JOINT IRP LOAD FORECAST.

A. The 2026 Joint IRP Load Forecast relies on the same foundational methodology approved by the Commission in the Companies' Triennial 2024 Joint Integrated Resource Plan (Docket No. 24-05041) ("2024 Joint IRP") to develop the base load forecast ("Base Load Forecast"), which provides the foundation for all other load forecasts included in this 2026 Joint IRP filing[1]. This 2026 Joint IRP Load Forecast includes the following updates:

- An updated economic outlook issued in July 2025;
- Updates to Net-Energy Metering ("NEM") customer adoption rates and resulting projected loads for these customers;
- Projected adoption rates of electric vehicles ("EV") reflecting recent trends in vehicle registrations in Nevada for this filing;
- Refinements to weather normalization adjustments to consider changes in trended normal temperatures for individual months, rather than an annual linear regression;
- Refinements to the SAE model used to develop load forecasts for residential and small/medium commercial customer groups;
- Energy Efficiency ("EE") program savings levels reflecting the Commission Order from the 2024 Joint IRP;

[1] Docket No. 24-05041, December 27, 2024, Order at 190-94.

- Reincorporation of Demand Response ("DR") program event savings as a load modifier into the load forecast; and
- Expected updates in large customer business activity, which are discussed below.

14. Q. WHAT IS THE RESULT OF THESE UPDATES TO THE 2026 JOINT IRP LOAD FORECAST?

A. Table Pollard-Direct-1 below summarizes the forecasted annual energy gigawatt-hour ("GWh") sales and peak megawatts ("MW") over the 2027–2046 period for the updated forecast.

TABLE POLLARD-DIRECT-1
COMPANIES' ENERGY AND PEAK FORECAST SUMMARY

	Native Energy (GWh)			Peak (MW)		
Year	NVE	NPC	Sierra	NVE	NPC	Sierra
2027	39,896	25,038	14,858	9,114	6,705	2,598
2028	44,329	26,620	17,709	9,629	6,865	2,951
2029	49,402	28,859	20,543	10,511	7,369	3,242
2030	54,676	31,408	23,268	11,192	7,751	3,606
2031	62,196	32,542	29,654	12,183	7,993	4,375
2032	65,436	33,335	32,102	12,607	8,102	4,614
2033	68,221	34,000	34,221	12,798	8,227	4,951
2034	70,878	34,717	36,160	13,466	8,509	5,130
2035	73,644	35,438	38,205	13,897	8,628	5,355
2036	76,971	36,422	40,549	14,314	8,835	5,672
2037	79,268	37,440	41,828	14,790	9,052	5,829
2038	81,493	38,518	42,975	15,051	9,283	6,014
2039	83,720	39,535	44,184	15,237	9,389	6,218
2040	86,188	40,657	45,531	15,941	9,800	6,317
2041	88,347	41,713	46,634	16,253	9,968	6,480
2042	90,421	42,558	47,863	16,740	10,280	6,680
2043	92,497	43,356	49,141	17,049	10,344	6,786
2044	94,910	44,363	50,547	17,285	10,487	6,998
2045	96,850	45,113	51,736	17,782	10,820	7,145
2046	99,053	45,952	53,101	18,148	10,964	7,275
CAGR						
2027-2029	11.3%	7.4%	17.6%	7.4%	4.8%	11.7%
2027-2036	7.6%	4.3%	11.8%	5.1%	3.1%	9.1%
2027-2046	4.9%	3.2%	6.9%	3.7%	2.6%	5.6%

For the three-year Action Plan Period 2027 through 2029, the Compound Annual Growth Rate ("CAGR") of the annual retail energy for the Companies is 11.3 percent (7.4 percent at Nevada Power and 17.6 percent at Sierra). Annual energy consumption during this period increases approximately 9,500 GWh for the combined NV Energy system, with approximately 3,800 GWh at Nevada Power and 5,700 GWh at Sierra. The CAGR of the Companies' combined coincident system peak is 7.4 percent (non-coincident peak CAGR is 4.8 percent at Nevada Power and 11.7 percent at Sierra). Combined System Coincident Peak Demand is

expected to increase 1,397 MW for the combined system during the three-year Action Plan Period, with non-coincident peak at 664 MW at Nevada Power and 644 MW at Sierra.

For the twenty-year forecast period 2027 through 2046, the CAGR of the annual retail energy for the Companies is 4.9 percent (3.2 percent at Nevada Power and 6.9 percent at Sierra). Annual energy consumption increases approximately 59,200 GWh for the combined NV Energy system, with approximately 20,900 GWh at Nevada Power and 38,200 GWh at Sierra. The CAGR of the Companies' combined coincident system peak is 3.7 percent (non-coincident peak of 2.6 percent at Nevada Power and 5.6 percent at Sierra). Combined Coincident System Peak Demand is expected to increase approximately 9,000 MW for the combined system during this period, with non-coincident peak increases for the same period at approximately 4,300 MW at Nevada Power and 4,700 MW at Sierra.

15. Q. WHAT ARE IMPORTANT KEY HIGHLIGHTS ONE SHOULD CONSIDER IN THIS LOAD FORECAST?

A. Below are several key highlights of the 2026 Joint IRP Load Forecast providing context for understanding their influence on the load forecast results. They include:

- The primary driver of growth in the 2026 Joint IRP Load Forecast is the continued unprecedented policy-driven load growth from the number and size of requests from large customer data center projects. The twenty-year 2027-2046 period CAGR in the 2026 Joint IRP Load Forecast, reflecting these projects, is 2.6 percent at Nevada Power and 5.6 percent at Sierra. Without these projects, as detailed later in the alternate Base Minus scenario, the twenty-year 2027-2046 period CAGR is 1.7 percent at Nevada Power and 1.3 percent at Sierra.

- Data center projects have higher load factors, with relatively consistent energy use across all hours relative to peak demand. This load profile enables more efficient use of grid facilities, as data centers place greater pressure on overall energy requirements than on peak demand and increase utilization of fixed system resources. As a result, annual energy requirements are growing faster than peak demand, improving overall grid efficiency. The magnitude of this growth is significant, however, effectively requiring the company to serve loads roughly 2.5 times current levels by 2046.
- Data centers accounted for five percent of total NV Energy sales in 2025 - three percent of total Nevada Power sales and 10 percent of total Sierra sales. By 2046, it is projected that data centers will account for 64 percent of total NV Energy sales - 42 percent at Nevada Power and 82 percent at Sierra.
- Projected EV adoption increases from 96,171 vehicles in 2025 to 703,577 vehicles by 2046. This equates to an increase from 3 percent of all vehicles in 2025 to 12 percent being EVs by 2046.
- In this 2026 Joint IRP Load Forecast, an average 1,177 Nevada Power and 170 Sierra Pacific residential customers become new solar NEM customers per month until the forecast reaches 15 percent of total residential customers regionally, at which point an annual reduction factor is applied to projected adoption rates. This equates to 395,136 total residential solar NEM customers in Nevada by 2046 with 3,000 MW of installed on-site generation.

16. Q. HOW DOES THE 2026 JOINT IRP LOAD FORECAST COMPARE TO THE LOAD FORECAST APPROVED IN THE 2024 IRP PROCEEDING (DOCKET NO. 24-05041)?

A. Table Pollard-Direct-2 below summarizes the change in forecasted annual energy GWh sales and peak MW over the 2027–2046 period for the updated forecast from that previously approved by Commission.

TABLE POLLARD-DIRECT-2
COMPANIES' ENERGY AND PEAK FORECAST COMPARISON

	2026 IRP		2024 Joint IRP 1A		Difference	
Year	GWh	Peak MW	GWh	Peak MW	GWh	Peak MW
2027	39,896	9,114	37,087	8,895	2,809	219
2028	44,329	9,629	38,371	9,145	5,958	484
2029	49,402	10,511	39,742	9,405	9,660	1,106
2030	54,676	11,192	41,981	9,899	12,695	1,293
2031	62,196	12,183	44,243	10,199	17,953	1,984
2032	65,436	12,607	46,516	10,630	18,920	1,977
2033	68,221	12,798	47,391	10,671	20,830	2,127
2034	70,878	13,466	48,335	11,070	22,543	2,396
2035	73,644	13,897	49,380	11,181	24,263	2,716
2036	76,971	14,314	50,615	11,485	26,356	2,829
2037	79,268	14,790	51,796	11,748	27,472	3,042
2038	81,493	15,051	53,171	11,910	28,322	3,141
2039	83,720	15,237	54,642	12,134	29,078	3,103
2040	86,188	15,941	56,350	12,681	29,838	3,260
2041	88,347	16,253	57,903	12,931	30,444	3,322
2042	90,421	16,740	59,634	13,155	30,787	3,585
2043	92,497	17,049	61,108	13,496	31,388	3,553
2044	94,910	17,285	63,061	13,750	31,849	3,535
2045	96,850	17,782	64,702	14,240	32,148	3,542
2046	99,053	18,148	66,646	14,434	32,407	3,714
CAGR						
2027-2029	11.3%	7.4%	3.5%	2.8%	---	---
2027-2036	7.6%	5.1%	3.5%	2.9%	---	---
2027-2046	4.9%	3.7%	3.1%	2.6%	---	---

For the twenty-year forecast period 2027 through 2046, the CAGR of the annual retail energy for the Companies rose from 3.1 percent to 4.9 percent while the CAGR of the Companies' combined coincident system peak rose from 2.6 percent to 3.7 percent.

17. Q. DOES THE 2026 JOINT IRP LOAD FORECAST CONSIDER THE IMPACT OF APPLICABLE NEW TECHNOLOGIES AND THE IMPACT OF APPLICABLE NEW GOVERNMENTAL PROGRAMS OR REGULATIONS (SEE NAC § 704.925(4))?

A. Yes. The customer class sales regression modeling for the 2026 Joint IRP Load Forecast includes variables constructed from estimated historical and forecasted appliance saturations and efficiencies, building characteristics and square footage. These estimates and forecasts include the effects of new technologies and government programs. Further, the 2026 Joint IRP Load Forecast continues to separately forecast NEM customer growth over the 2027–2046 period as customers continue installing rooftop PV generation at their premises.

18. Q. DOES THE 2026 JOINT IRP LOAD FORECAST CONSIDER THE IMPACT OF CUSTOMERS WHO ACQUIRE ENERGY PURSUANT TO NRS § 704.787 OR NRS CHAPTER 704B (SEE NAC § 704.925(5))?

A. Yes. Zero customers are expected to exit bundled service in this load forecast. Further, customers who procure energy from an alternative supplier and move to distribution only service ("DOS") are excluded from the retail load forecast. Additionally, an incremental load forecast scenario was developed to define the 704B eligible load limits over the 2027-2029 Action Plan Period, which is discussed further in Section III of my testimony.

19. Q. HOW DOES THE 2026 JOINT IRP LOAD FORECAST INCORPORATE CUSTOMER IMPACTS FROM RETAIL PRICES OVER THE FORECAST PERIOD?

A. Following the same approach as presented in the 2024 Joint IRP, the aspect of the SAE model incorporating the customer response to price was specifically excluded from the SAE modelling efforts in the 2026 Joint IRP Load Forecast so that the results could be individually presented. This is an ongoing effort to respond to the Commission requirement for more detailed rate impact analyses in recent proceedings. The 2026 Joint IRP Load Forecast calculates the estimated load impact stemming from changes in price separately. The forecasted rates, detailed in the Financial Plan, are used to estimate the potential impacts on the load forecast. The steps for this analysis and resulting impacts are further detailed in Technical Appendix LF-1.

20. Q. HAVE THE COMPANIES MADE ANY CHANGES TO THEIR FORECAST METHODOLOGY SINCE THE FORECAST APPROVED BY THE COMMISSION IN THE COMPANIES' 2024 JOINT IRP PROCEEDING?

A. Yes, while the forecast relies on the overall methodology approved by the Commission in the 2024 Joint IRP proceeding, there are several revisions to the methodology included in the development of the 2026 Joint IRP Load Forecast.

First, the determination of normal weather trends has been refined to reflect expected changes in normal weather by month, rather than on an annual basis. This allows for different trended-normal weather considerations across the year. For example, the annual average daily temperature change is modelled as 1.06 degrees per decade at Nevada Power and 1.33 degrees per decade at Sierra. Compared to

individual months, the average change per degree per decade ranges from 0.4 degrees in February for both companies to increases in the hottest month of the year, July, with changes of 1.44 degrees per decade at Nevada Power and 2.57 degrees per decade at Sierra.

Next, in this filing, the SAE modeling approach has been updated to increase the resolution of the data used to develop the model and, as a consequence, the resolution of the forecast this component provides. In the 2024 Joint IRP's approved load forecast, this modeling was performed using meter data summed by calendar month, for each forecast group. In the 2026 Joint IRP Load Forecast, that approach has changed, with the meter data now being summed by calendar day, rather than calendar month. Temperature data is also broken down by day, rather than using degree-day sums by calendar month. By increasing the data resolution, this affords an opportunity to partition the dataset into summer versus non-summer seasonal regimes for modeling, without losing accuracy in the resulting models. The result is a regression model with two sets of coefficients, one for summer and the other for all other months. More detail is provided in Technical Appendix LF-1.

21. Q. BRIEFLY SUMMARIZE THE UPDATES MADE FOR THE JULY 2025 ECONOMIC OUTLOOK.

A. The 2026 Joint IRP Load Forecast uses an extrapolation of population series using the average of the annual growth rates obtained from S&P Global's IHS Markit forecast (released July 2025), the State Demographer's 20-year population projections (2024–2043), the State Demographer's 2023 Governor Certified Series, the University of Nevada, and Las Vegas's Center for Business and Economic

Research's ("CBER") long-term forecast (released May 2025), with minor adjustments to smooth forecasted growth. Additionally, hotel room projections based on the Las Vegas Convention and Visitors Authority ("LVCVA") executive summary are provided. See Technical Appendix LF-1 for further details on the model sales adjustments and development of the economic data provided in Technical Appendices LF-2 through LF-7. Table Pollard-Direct-3 summarizes the population forecast used to develop the 2026 Joint IRP Load Forecast.

TABLE POLLARD-DIRECT-3
POPULATION USED IN FORECAST

	Population		
Year	NVE	Nevada Power	Sierra
2027	3,439,426	2,527,889	911,537
2028	3,480,247	2,563,650	916,598
2029	3,517,868	2,596,568	921,300
2030	3,553,407	2,627,542	925,865
2031	3,586,537	2,656,401	930,136
2032	3,617,697	2,683,602	934,095
2033	3,647,221	2,709,390	937,831
2034	3,675,230	2,733,942	941,288
2035	3,701,956	2,757,500	944,455
2036	3,727,457	2,780,120	947,337
2037	3,752,126	2,802,128	949,998
2038	3,775,881	2,823,396	952,485
2039	3,798,845	2,843,919	954,926
2040	3,821,024	2,863,778	957,246
2041	3,842,530	2,883,087	959,444
2042	3,863,500	2,901,926	961,574
2043	3,883,720	2,920,113	963,607
2044	3,904,208	2,938,580	965,628
2045	3,924,817	2,957,163	967,654
2046	3,945,548	2,975,864	969,684
CAGR			
2027-2029	1.1%	1.3%	0.5%
2027-2036	0.9%	1.1%	0.4%
2027-2046	0.7%	0.9%	0.3%

22. Q. HOW HAS THE FORECAST BEEN UPDATED FOR GROWTH IN NEM CUSTOMERS WHO CHOOSE TO INSTALL ROOFTOP SOLAR GENERATION?

A. For this 2026 Joint IRP Load Forecast, NEM customers continue to be separately considered from the full-requirements classes. As of July 2025, approximately 136,850 individual residential customers had installed behind-the-meter on-site solar and wind facilities across NV Energy's service territories and are considered net-metering systems. Non-solar behind-the-meter accounted for a small fraction of total customer-generated energy, at approximately 0.11 percent of total Nevada NEM customers as of July 2025. Additionally, growth in non-solar NEM customers has decreased, with no new customers added after 2016 based on July 2025 information.

For the 2026 Joint IRP Load Forecast, the forecasting methodology has remained the same, with a linear regression model used to help forecast growth and average capacity used to model future capacity growth. Forecast NEM customer counts continue historical growth rate trends until the counts achieve 15 percent of the total residential customer population. At this point the customer growth rate coefficient is reduced by five percent per year, adjusted for population growth. At Nevada Power, the modelling results estimate approximately 1,177 residential customers install private generation per month until December 2026 when the growth rates begin to decrease. At Sierra, an additional 170 customers per month install generation until July 2044, when growth rates begin to decrease. While monthly growth increased since the last forecast, average monthly growth appears to be in decline, starting in mid-2024. The average monthly number of new residential solar installs went from 1,411 for Nevada Power and 304 for Sierra in 2023, to 1,280 and

258, respectively, in 2024, and 690 and 80, respectively, in 2025 (average counts based on Jan-Jul).

In order to forecast the overall sales growth of solar customers, the average kilowatt ("kW") capacity of installed systems was used across all NEM customer classes. The average is approximately 7.9 kW for Nevada Power and 6.3 kW for Sierra residential customers. The NEM customer sales are derived by multiplying the forecasted counts by average use per NEM customer for monthly information, which is then refined for the weather normalization and SAE model adjustments. Projected incremental peak reductions of 12 MW at Nevada Power and 9 MW at Sierra by 2027 are based on the expected installed solar capacity of 1,246 MW and 129 MW for NEM rate class customers at each respective company.

Table Pollard-Direct-4 below details the customer growth and installed capacity for these customers included in the 2026 Joint IRP Load Forecast. Further detail is provided in the Technical Appendix LF-1.

TABLE POLLARD-DIRECT-4
NEM CUSTOMER AND INSTALLED CAPACITY (MW)

	Nevada Power		Sierra	
Year	Customers	Capacity (MW)	Customers	Capacity (MW)
2027	156,419	1,246	20,055	129
2028	169,796	1,352	22,106	142
2029	182,694	1,455	24,158	155
2030	195,117	1,555	26,209	169
2031	207,071	1,650	28,261	182
2032	218,566	1,742	30,312	195
2033	229,611	1,831	32,364	208
2034	240,219	1,916	34,415	221
2035	250,401	1,997	36,467	234
2036	260,170	2,076	38,518	247
2037	269,541	2,151	40,570	260
2038	278,527	2,223	42,621	273
2039	287,141	2,293	44,672	287
2040	295,395	2,359	46,724	300
2041	303,303	2,423	48,775	313
2042	310,878	2,484	50,827	326
2043	318,132	2,543	52,878	339
2044	325,078	2,599	54,916	352
2045	331,731	2,653	56,868	364
2046	338,101	2,704	58,730	376

23. Q. HOW HAS THE 2026 JOINT IRP FORECAST BEEN UPDATED FOR CHANGES IN FORECASTED ELECTRIC VEHICLE GROWTH?

A. The 2026 Joint IRP Load Forecast includes an electric vehicle forecast developed using the historical trend of State of Nevada Department of Motor Vehicle ("DMV") registration data for residential customers and a 2025 Energy Information Administration (EIA) forecast for the commercial customers.[2]

During the 2024 Joint IRP, the Companies reviewed prepared direct testimony from BCP, after which the Companies shifted to an approach that applied a flat

[2] U.S. Energy Information Administration, Annual Energy Outlook 2025, Table 35 (Transportation Sector Energy Use by Mode and Type), available at https://www.eia.gov/outlooks/aeo/tables_ref.php.

percentage derived from historical data to shape annual EV adoption in the compliance filing. For the 2026 Joint IRP, the Companies continued refining the methodology by applying a recent-trend analysis of DMV EV registrations to project residential EV counts. Table Pollard Direct-5 provides a comparison across each iteration of the EV forecast. In the table, Sierra forecasted EV adoption decreases relative to the 2024 Joint IRP due to updated DMV registration data indicating lower realized EV penetration than previously projected. Conversely, Nevada Power exhibits an increase in forecasted EV adoption due to the updated DMV registrations exceeding the levels assumed in the 2024 IRP in earlier years.

TABLE POLLARD-DIRECT-5
CUMULATIVE EV CAR COUNTS

	NPC			SPPC		
Year	2026 Joint IRP	2024 Joint IRP	Difference	2026 Joint IRP	2024 Joint IRP	Difference
2027	126,187	94,050	32,138	27,832	45,133	(17,301)
2028	150,086	104,865	45,221	32,857	50,323	(17,467)
2029	173,986	116,925	57,061	37,882	56,111	(18,229)
2030	197,885	130,371	67,513	42,907	62,563	(19,657)
2031	221,784	145,364	76,420	47,932	69,758	(21,826)
2032	245,683	162,081	83,602	52,957	77,780	(24,824)
2033	269,582	180,720	88,862	57,982	86,725	(28,743)
2034	293,481	201,503	91,978	63,007	96,698	(33,692)
2035	317,380	224,676	92,704	68,032	107,819	(39,787)
2036	341,279	250,514	90,766	73,057	120,218	(47,161)
2037	365,179	279,323	85,856	78,082	134,043	(55,961)
2038	389,078	311,445	77,633	83,106	149,458	(66,351)
2039	412,977	347,261	65,716	88,131	166,646	(78,514)
2040	436,876	387,196	49,680	93,156	185,810	(92,653)
2041	460,775	431,724	29,051	98,181	207,178	(108,997)
2042	484,674	481,372	3,302	103,206	231,003	(127,797)
2043	508,573	536,730	(28,156)	108,231	257,569	(149,337)
2044	532,472	598,454	(65,981)	113,256	287,189	(173,933)
2045	556,372	667,276	(110,904)	118,281	320,216	(201,935)
2046	580,271	744,012	(163,742)	123,306	357,041	(233,735)

The EV forecast assumes that EV adoption grows to account for 9 percent of total vehicles in Nevada by 2036. By 2046, the percentage of total vehicles increases to 12 percent. This represents an EV adoption continuous growth rate of 12 percent over the next 10 years. Incorporated into the sales growth are assumptions that the average residential EV is driven 12,876 miles annually and the "rated" efficiency for the average vehicle on the road today is 3.86 miles per kilowatt-hour ("kWh") while the average commercial EV is driven 37,178 miles annually and the "rated" efficiency for the average vehicle on the road today is 9.15 miles per kWh. This results in an average annual electric use per EV of 3,389 kWh for residential and 9,147 kWh for commercial customers.

Further, this forecast assumes that battery efficiency will increase by 1.5 percent per year and vehicle miles traveled will increase by 1 percent per year. The forecasted incremental loads are added to both the residential and commercial customer group forecasts. Further details are provided in Technical Appendix LF-1. Table Pollard-Direct-6 below details the change to the forecast from this input.

As a result, the updated statewide EV energy sales by 2034 are approximately 1,409 GWh annually, or an hourly average of 465 MW (combined for both Companies).

TABLE POLLARD DIRECT-6
CUMULATIVE EV GWH CHANGES

	2026 IRP			2024 IRP			Change		
Year	Nevada Power	Sierra	Total	Nevada Power	Sierra	Total	Nevada Power	Sierra	Total
2027	471	110	581	408	196	603	64	(86)	(22)
2028	568	131	699	451	217	668	117	(85)	31
2029	662	152	814	497	238	735	165	(86)	78
2030	758	174	932	549	263	812	210	(89)	120
2031	856	196	1,052	609	292	901	247	(96)	151
2032	958	219	1,177	678	325	1,003	280	(107)	173
2033	1,053	241	1,293	750	360	1,110	302	(119)	183
2034	1,147	262	1,409	833	400	1,232	315	(137)	177
2035	1,238	283	1,521	924	444	1,368	313	(160)	153
2036	1,334	304	1,638	1,029	494	1,523	305	(189)	115
2037	1,419	323	1,742	1,139	547	1,686	280	(223)	57
2038	1,507	343	1,850	1,264	607	1,871	243	(263)	(20)
2039	1,591	363	1,954	1,403	673	2,076	189	(310)	(122)
2040	1,675	382	2,057	1,561	749	2,310	114	(368)	(254)
2041	1,749	398	2,148	1,729	830	2,558	21	(431)	(411)
2042	1,827	416	2,243	1,919	921	2,840	(91)	(505)	(597)
2043	1,903	432	2,334	2,130	1,022	3,152	(227)	(590)	(818)
2044	1,980	449	2,429	2,370	1,137	3,507	(390)	(689)	(1,078)
2045	2,041	463	2,504	2,623	1,259	3,882	(583)	(796)	(1,378)
2046	2,106	477	2,584	2,912	1,398	4,310	(806)	(920)	(1,726)

24. Q. WHAT UPDATES TO DSM PROGRAM SAVINGS ARE INCLUDED IN THE 2026 JOINT IRP LOAD FORECAST?

A. This 2026 Joint IRP Load Forecast incorporates the Demand Side Management ("DSM") program savings approved by the Commission in the 2024 Joint IRP proceeding as provided by the Companies' Integrated Energy Services team. Savings from DR events were also incorporated back into the Base Load Forecast as a load modifier, rather than the approach proposed in the 2024 Joint IRP that treated these programs as a separate resource. The Companies' witness Kimberly Williams describes this change in this proceeding. The energy efficiency-related kWh savings were also updated from the Base Load Forecast for an incremental load forecast scenario created to present the load forecast impacts from the proposed DSM Plan savings scenario identified in the 2026 Joint IRP's proposed

DSM Plan. Further detail is provided in Technical Appendix LF-1 regarding the DSM savings reductions for the Base Load Forecast, and this additional scenario. Table Pollard Direct-7 below details the impact from the DSM savings included in both the Base Load Forecast (identified as 2026 IRP Base) and incremental proposed 2026 IRP DSM Plan savings scenario (identified as 2026 IRP Preferred).

TABLE POLLARD-DIRECT-7
DSM SALES (GWH) REDUCTION COMPARISON

	2026 IRP Base			2026 IRP Preferred			Change		
Year	Nevada Power	Sierra	Total	Nevada Power	Sierra	Total	Nevada Power	Sierra	Total
2027	675	181	856	216	62	279	459	118	577
2028	851	230	1,081	335	96	430	517	134	651
2029	985	275	1,260	451	128	578	534	148	682
2030	1,122	321	1,443	552	158	710	571	162	733
2031	1,258	366	1,624	647	189	836	611	177	788
2032	1,393	410	1,803	738	219	957	655	191	846
2033	1,522	452	1,974	828	250	1,078	694	202	896
2034	1,654	493	2,148	919	281	1,199	735	213	948
2035	1,786	531	2,318	1,009	311	1,321	777	220	997
2036	1,887	571	2,459	1,100	340	1,440	787	231	1,018
2037	1,890	608	2,498	1,191	367	1,558	699	240	940
2038	1,897	634	2,531	1,251	394	1,646	646	240	886
2039	1,903	634	2,537	1,254	410	1,664	649	224	873
2040	1,908	637	2,545	1,256	411	1,668	652	226	877
2041	1,906	635	2,541	1,259	412	1,671	647	223	870
2042	1,908	635	2,543	1,262	412	1,674	646	223	869
2043	1,909	636	2,545	1,264	413	1,677	645	222	867
2044	1,915	638	2,553	1,267	414	1,681	648	224	872
2045	1,912	636	2,548	1,269	414	1,684	643	222	865
2046	1,914	636	2,550	1,272	415	1,687	642	221	863

25. Q. WHAT UPDATES WERE MADE TO FORECAST LARGE CUSTOMER ACTIVITY FOR THE 2026 JOINT IRP LOAD FORECAST?

Information developed for new or expanding individual Large Commercial and Industrial ("Large C&I") customers—who continue to be the primary driver of load growth at both Nevada Power and Sierra in this proceeding—is provided in detail in **Exhibit Pollard-Direct-2** (Major Project Information). These projects are required to serve new or expanding large load customer requests and are generally

referred to as Major Projects. Continued requests for new data center projects at both Companies exceed the levels considered in the 2024 Joint IRP load forecast. In the 2024 Joint IRP, the load forecast included a total of 39 Major Projects, consisting of 14 projects with executed Rule 9 agreements and 25 projects in the earlier study phase. As of August 2025, the 2026 Joint IRP Load Forecast reflects an increase to 50 bundled-service Major Projects across multiple customer categories, including data centers as well as mining, manufacturing, and other industrial uses. In total, these projects have requested approximately 16,930 MW of capacity additions, with 11,710 MW at Sierra and 5,220 MW at Nevada Power, by 2036.

Of these projects, 22 have executed agreements and request approximately 5,725 MW of capacity – 4,665 MW at Sierra and 1,060 MW at Nevada Power by 2036. The remaining 28 projects are in the study phase and collectively request approximately 11,200 MW of capacity by 2036, including 7,050 MW at Sierra and 4,150 MW at Nevada Power. Data center projects comprise the majority of the Major Project load. Of the 50 Major Projects, 39 are bundled-service, high load-factor data center projects, which alone request approximately 16,530 MW by 2036.

26. Q. DOES THIS LOAD FORECAST INCLUDE ANY METHODOLOGICAL CHANGES REGARDING THE MAJOR PROJECTS COMPONENT?

A. No, it does not. This forecast update follows the Commission's approved methodology from the 2024 Joint IRP. Each major project, both signed Rule 9 and study phase projects, are addressed using the mitigation approach used in the last forecast. Mitigation steps take into consideration agreement status, whether the

project is currently in service, current peak for in-service customers and risk assessment.

27. Q. DOES THE 2026 JOINT IRP LOAD FORECAST IMPLEMENT MITIGATION CONSIDERATIONS AT A SIMILAR PERCENTAGE TO THE PREVIOUS IRP?

A. Yes. In the 2024 Joint IRP, signed contract projects were reduced by an average of 48 percent while study phase projects were reduced by an average of 85 percent. In this IRP, signed contract projects were reduced by an average of 38 percent and study phase projects were reduced by 83 percent. From these base reduction percentages, the percentage applied for mitigation is diminished annually and, as a result, the adjusted incremental peak load amounts are increased annually until they meet the total peak MW as stated in signed Rule 9 agreements or as designated in study agreement contracts. Table Pollard-Direct-8 summarizes the customer requested and adjusted peak load MW levels included in the load forecast by company and project status.

TABLE POLLARD-DIRECT-8
LARGE CUSTOMER MAJOR PROJECT SUMMARY

	Nevada Power		Sierra		NV Energy	
Year	Signed Agreement	Study Phase	Signed Agreement	Study Phase	Signed Agreement	Study Phase
Requested Peak MW						
2027	325	1,648	1,408	854	1,733	2,502
2028	490	2,160	1,850	1,719	2,340	3,879
2029	875	2,820	2,245	2,714	3,120	5,534
2030	1,060	3,539	2,591	3,850	3,651	7,389
2031	1,060	3,773	2,968	5,111	4,028	8,884
2032	1,060	3,874	3,320	5,620	4,380	9,494
2033	1,060	3,950	3,710	5,923	4,770	9,873
2034	1,060	4,021	3,938	6,303	4,998	10,324
2035	1,060	4,097	4,317	6,681	5,377	10,778
2036	1,060	4,155	4,665	7,049	5,725	11,204
Adjusted Incremental Peak MW						
2027	224	244	758	104	982	348
2028	318	316	1,027	212	1,345	528
2029	540	404	1,208	340	1,748	744
2030	643	523	1,404	484	2,047	1,007
2031	671	577	1,884	662	2,555	1,239
2032	700	612	2,084	739	2,784	1,351
2033	730	646	2,251	822	2,981	1,468
2034	761	679	2,384	918	3,145	1,597
2035	794	717	2,542	1,017	3,336	1,734
2036	829	755	2,710	1,117	3,539	1,872
Adjustment	78.3%	18.2%	58.1%	15.8%	61.8%	16.7%
Reduction	21.7%	81.8%	41.9%	84.2%	38.2%	83.3%

28. Q. WHAT ADDITIONAL KEY UPDATES ARE OF NOTE IN THE 2026 JOINT IRP LOAD FORECAST?

A. The 2026 Joint IRP Load Forecast considers a significant increase in the number of fully-bundled, signed Major Projects at Nevada Power. While in the 2024 Joint IRP, Nevada Power showed one signed major project, the 2026 Joint IRP Load Forecast includes four signed projects. These additional projects increased the total peak load MW by 150 MW to 1,065 MW by 2030. It is worth noting that all new signed fully-bundled, Major Projects are data center projects.

At Sierra, the number of signed fully-bundled, Major Projects also increased from thirteen to eighteen, with four new projects being data centers with significant potential load. The projects with signed agreements have requested 5,800 MW of capacity by 2037 while those in the earlier study phase have requested 8,500 MW over the same period.

29. Q. HOW HAVE THESE PROJECTS PROGRESSED SINCE THE LOAD FORECAST WAS DEVELOPED?

A. The load forecast is one of the earlier inputs required for preparation of this filing. Once provided and used in the next steps of an IRP, the load forecast must remain the same and cannot reflect ongoing updates to these projects. Since the completion of the 2026 Joint IRP Load Forecast, four projects have signed Rule 9 agreements, zero projects have been cancelled or put on hold, and 12 additional projects have been put forth for study. The combined impact of these updates is an increase of more than 5,500 MW in total requested capacity: 3,000 MW at Sierra and 2,500 MW at Nevada Power.

30. Q. HOW WOULD THE MAJOR PROJECTS FORECAST BE EXPECTED TO CHANGE IF THIS UPDATED INFORMATION WAS CONSIDERED?

A. If the same mitigation approach of these large load customer major projects was used, as was used in developing the base load forecast, the total impact from these changes would be an increase of approximately 1,450 MW by 2046: consisting of 690 MW at Sierra and 760 MW at Nevada Power.

While the status of these projects will continue to change over time, the Companies' incorporation of the expected loads for upcoming Major Projects included in the

Base Load Forecast continues to represent a reasonable result that the Commission should find suitable for making long-term planning decisions within this proceeding.

31. Q. DID THE COMPANIES CONSIDER DIFFERENT SCENARIOS OF HOW THE LOAD FOR THESE MAJOR PROJECTS MIGHT DEVELOP?

A. Yes. There are several additional forecast scenarios that modify these components of the system load forecast. The Base Minus scenario modifies the Base Load Forecast to remove all new or expanding large load customer projects, where data center projects are continuing to quickly increase in frequency and size. This presents a scenario in which a business-as-usual case is presented prior to the upsurge in data center projects. Next is the Base Plus scenario, in which the large customer Major Projects with signed agreements are considered at the fully unmitigated levels that have been requested by the customer, although no changes were made to the study phase projects. This provides a higher load forecast demonstrating the potential incremental load that could be placed on to the system if the load for these projects followed the ramp schedule included in the customer Rule 9 agreements.

Further, high and low load forecasts were produced from these additional Base Minus and Base Plus scenarios, incorporating, respectively, the corresponding pessimistic and optimistic economic and demographic growth assumptions, and are referred to as the Low and High forecast scenarios, respectively. These scenarios provide complete Low and High scenarios in order to comply with NAC 704.9225 requirements regarding the range of future peak demand and energy consumption in the utility's service territory over the next 20 years. See Technical Appendix LF-

1 for more details regarding the development of these high- and low-load forecast scenarios.

32. Q. WHAT ARE THE RESULTING DIFFERENCES IN THESE LOAD FORECAST SCENARIOS WHEN COMPARED TO THE BASE LOAD FORECAST?

A. Table Pollard Direct-9 compares the annual peak values under the Low, Base Minus, Base Plus, and High scenarios to the Base Load Forecast.

TABLE POLLARD-DIRECT-9
LOAD FORECAST SCENARIO PEAK COMPARISON

	NV Energy				
Year	Low	Base Minus	Base	Base Plus	High
2027	8,640	8,572	9,114	9,958	10,188
2028	8,798	8,591	9,629	10,552	10,727
2029	8,960	9,179	10,511	11,729	11,961
2030	9,045	9,413	11,192	12,584	12,814
2031	8,987	9,598	12,183	13,667	13,907
2032	9,339	9,710	12,607	14,213	14,491
2033	9,460	9,671	12,798	14,502	14,767
2034	9,568	10,069	13,466	15,210	15,520
2035	9,757	10,223	13,897	15,844	16,165
2036	9,824	10,388	14,314	16,392	16,745
2037	9,864	10,622	14,790	16,809	17,166
2038	10,271	10,762	15,051	17,015	17,466
2039	10,362	10,805	15,237	17,093	17,502
2040	10,635	11,325	15,941	17,728	18,154
2041	10,732	11,497	16,253	17,967	18,444
2042	10,783	11,801	16,740	18,405	18,884
2043	11,065	11,907	17,049	18,666	19,166
2044	11,184	12,006	17,285	18,843	19,432
2045	11,276	12,308	17,782	19,255	19,797
2046	11,551	12,451	18,148	19,574	20,161
CAGR					
2027-2029	1.8%	3.5%	7.4%	8.5%	8.4%
2027-2036	1.4%	2.2%	5.1%	5.7%	5.7%
2027-2046	1.5%	2.0%	3.7%	3.6%	3.7%

33. Q. DID THE COMPANY DEVELOP ANY ADDITIONAL LOAD FORECAST SCENARIOS?

A. Yes. Two additional scenarios were developed as incremental steps to the Base Minus scenario providing information regarding the impact of the Companies' Large Load Energy Service Agreement ("LLESA") proposal. The Companies' witnesses Shawn Elicegui and Janet Wells support the implementation of the LLESA proposal in their direct testimonies. The first incremental scenario, the "Test Scenario," which was developed by adding to the Base Minus Load Forecast

the load associated with just three of the large load customers who have specified that they intend to sign an LLESA. The second incremental load forecast scenario, the "Second Test Load Addition," adds a specified amount of large load additions from two subsidiaries engaged in developing land under two Master Planned Community agreements within the Tahoe Reno Industrial Center area. This information is used by the Resource Planning group for two additional expansion plans for consideration as discussed in Shawn Elicegui's testimony.

34. Q. WHAT IS YOUR OVERALL VIEW OF THESE UPDATES TO THE 2026 JOINT IRP LOAD FORECAST?

A. Overall, the Companies' 2026 Joint IRP Load Forecast provides reasonable updates to the approved 2024 Joint IRP load forecast. Therefore, I recommend the Commission approve this updated forecast as it is based on substantially accurate data, is documented appropriately, and has been adequately explained and defended. The updates to the overall forecast are thus a reasonable basis upon which to make long-term planning decisions for the 2027–2046 planning horizon.

III. 704B RATE CALCULATIONS

35. Q. PLEASE BRIEFLY SUMMARIZE SENATE BILL 547 ("SB547") AND THE IMPLEMENTING REGULATION.

A. The adopted regulation in Docket No. 19-06029 establishes a regulatory framework for current bundled service customers of the Companies, with annual loads over an average of 1 MW, to exit bundled service and purchase energy from an alternate provider.[3] In an effort to support a long-term approach to customers who may choose to exit bundled service, while limiting negative impacts on system costs and ensuring remaining customers are not harmed, SB547 (2019) and the implementing

[3] Docket No. 19-06029, May 17, 2024, Order at 12.

regulation adopt a number of mechanisms. Key among these mechanisms are limitations on the amount of annual load that can leave bundled service during an IRP's three-year Action Plan Period and an obligation to pay bundled charges during the three-year period following an eligible customer's departure or exit from bundled service. The three-year period is known as the "transition period."[4]

Subsection 6 of NRS 704.741 lists the factors that must be considered in determining the annual limits eligible to leave bundled service; however, per the regulation, these annual limits are not to exceed 50 percent of the large commercial and industrial ("Large C&I") forecasted load growth during the IRP's three-year Action Plan Period. In accordance with subsections 6 and 7 of NRS 704B.310, as part of limiting any negative impacts on the system or to remaining customers, eligible customers must pay their fully-bundled general rates and any applicable rates and charges, as approved by the Commission, for the three-year transition period following the date of the customer exiting bundled service.[5]

After the three-year transition period, these customers will pay the applicable Open Access Transmission Tariff ("OATT"), DOS, and any additional rates from NV Energy, as ordered by the Commission, in addition to those charged by their new provider.

[4] *Id*. at Att. A (LCB File No. R195-22), at 22.

[5] *Id.* at Att. at 20. These customers will pay FERC transmission and OATT charges once they leave bundled service but will receive a credit for these charges on their bundled rate bill during their three-year exit period.

36. Q. HOW ARE THE ANNUAL LIMITS FOR THE ACTION PLAN PERIOD DETERMINED?

A. Following the methodology approved in the 2021 Joint IRP, in this proceeding the Large C&I year-end sales growth over the three-year Action Plan Period, January 1, 2027, through December 31, 2029, is calculated as the difference in the year-end sales for 2029 minus the three-year average of actual annual Large C&I loads during the 2023–2025 period. Thus, the difference between the load at the end of 2029 yields the Action Plan Period load growth under normal economic conditions.

Similar to previous IRP calculations, in addition to this base year load calculation, loads for individual customers on tariff schedules with non-standard, fully-bundled price options (e.g. GS-4 New Generation – GS-4-NG, Large Customer Market Price Energy – LCMPE, Market Price Energy – MPE, or the Economic Development Rate Rider – EDRR tariffs) were excluded from the load growth calculations for both utilities. This adjusted difference in load is then reduced by 50 percent to reflect the requirement that the eligible loads are offset by future expected growth in Large C&I customer sales.

37. Q. WHAT ARE THE RESULTING LOAD LEVELS ELIGIBLE TO LEAVE BUNDLED SERVICE UNDER 704B FOR THE CURRENT THREE-YEAR ACTION PLAN PERIOD?

A. As detailed in Section 6 of the Load Forecast Narrative and Section IV of Technical Appendix LF-1, the proposed eligible loads, which represent annual limits for the entire Action Plan Period as summarized below in Table Pollard-Direct-10, are 58,133 MWh for Nevada Power. Due to the lack of import capacity at Sierra, the limit for Sierra has been set to zero MWh in this proceeding. The required non-load

growth factors that determine the eligible annual limits, as identified in both NRS 704.741(6) (i.e., "import capacity, system constraints, and the effect of eligible customers purchasing less energy and capacity than authorized by the proposed annual limit") and applicable regulations, were considered for both utilities, but only have an impact on the proposed limits for Sierra (due to lack of import capacity).[6],[7]

TABLE POLLARD-DIRECT-10
704B ELIGIBLE LOADS

	2027	2028	2029
Nevada Power			
Total Annual MWh Sales	24,363,758	25,921,380	28,127,362
Eligible Annual Limit MWh Loads	19,378	19,378	19,378
Modified Sales	24,344,380	25,902,002	28,107,984
Annual MW Peak	6,705	6,865	7,369
Coincident MW Peak of Eligible Loads	6.6	6.6	6.6
Modified MW Peak	6,698	6,858	7,362
Sierra			
Total Annual MWh Sales	13,307,068	16,743,505	19,529,589
Eligible Annual Limit MWh Loads	-	-	-
Modified Sales	13,307,068	16,743,505	19,529,589
Annual MW Peak	2,598	2,951	3,242
Coincident MW Peak of Eligible Loads	-	-	-
Modified MW Peak	2,598	2,951	3,242

[6] NRS 704.741(6) ("The Commission shall require the utility or utilities to include in the plan a proposal for annual limits…. In developing the proposal and the forecasts in the plan, the utility or utilities must use a sensitivity analysis that, at a minimum, addresses load growth, import capacity, system constraints and the effect of eligible customers purchasing less energy and capacity than authorized by the proposed annual limit…."

[7] NAC does not specifically address NRS 704.741(6) nor set the specific 704B exit limits, but NAC 704.9061 on the Energy Supply Plan (ESP) and NAC 704.9156 on the Resource Plan (IRP), among other sections pertinent to ESP and IRP, address how action plans identify planned resources and transmission needs, which inform 704B implementation. NRS 704B.310(2) (Commission must find no adverse effect on reliability) and NRS 704B.325 (approval criteria and conditions) support NRS 704.741(6).

38. Q. WHY ARE CUSTOMERS UNDER SPECIAL TARIFFS NOT INCLUDED IN THE CALCULATIONS OF THE MAXIMUM ANNUAL LIMITS?

A. The customers on these various tariffs with different pricing options do not contribute the same revenue per kWh as other bundled customers. For example, a large casino and data center customer who pay contracted rates pursuant to the MPE and LCMPE tariffs, do not pay the standard bundled-service costs of generation but rather pay costs pursuant to an energy service agreement; therefore, these customers are excluded from the calculations of the maximum annual limits at Nevada Power. These customers contribute zero towards the generation costs of the system, as they are not relying on the Companies' internal generation embedded in revenue requirement. Consequently, to ensure that the revenue associated with any exiting loads is offset only by the revenue from any load growth paying traditional bundled rates, it is appropriate to exclude these customers from the calculations.

39. Q. WHAT ADDITIONAL CONSIDERATIONS ARE INCLUDED IN THE DETERMINATION OF LOADS ELIGIBLE TO EXIT BUNDLED SERVICE?

A. In addition to considerations of loads to be included in the calculations of sales eligible to leave bundled service, several additional items identified in NRS 704.741(6) and other applicable regulations are included, such as "import capacity, system constraints, and the effect of eligible customers purchasing less energy and capacity than authorized by the proposed annual limit." [8],[9]

[8] *See supra* notes 6-7.
[9] NRS 704.741(6).

40. Q. WERE ANY OF THESE ADDITIONAL CONSIDERATIONS INCORPORATED IN THIS PROCEEDING?

A. Yes, as required by NRS 704.741(6) and applicable regulations, all of these determinants were considered, as reflected in the Companies' 2026 Joint IRP's Load Forecast narrative.[10] The primary limiting adjustment is that there are currently import capacity constraints at Sierra. The Companies are currently evaluating potential capacity availability at Sierra following the planned in-service date of the SWIP-North transmission line in mid-2028, as there continues to be zero available capacity even after the Greenlink transmission project goes into service in 2027. While the study may ultimately identify available NV Energy capacity for Sierra, no such capacity has been confirmed at this time. As a result, an existing bundled customer at Sierra cannot exit bundled service during the current 2027–2029 Action Plan Period due to existing transmission capacity requests already in the queue. Thus, due to the current import capacity constraints, analysis of this factor places the annual limits for Sierra, for the Action Plan Period at zero MW. Nevada Power's available import capacity is 3,214 MW.[11] In light of this ample open import capacity, NV Energy does not propose to impose any limits on the amount of energy and capacity available to eligible 704B applicants on account of import capacity restrictions for Nevada Power.

41. Q. WHAT FEES WILL EXITING CUSTOMERS PAY TO ENSURE THAT OTHER CUSTOMERS ARE HELD HARMLESS?

A. To meet NRS 704B.310 public interest requirement, the regulation includes the provisions that these customers will continue to pay the equivalent of the fully-bundled Base Tariff General Rates ("BTGR") for a three-year transition period, and

[10] *See supra* notes 6-7.
[11] Transmission Plan Narrative, Table TP-18.

a rate for the Base Tariff Energy Rate net of out-of-the-money power purchase agreements costs ("Net Differential Energy Rate") for a three-year transition period. In addition, the incremental Renewable BTER ("R-BTER") rate and other public policy program rates shall be included on an ongoing basis for these customers' bills. Further, any applicable additional costs related to decommissioning and remediation costs and regulatory asset charges must be imposed by the Commission on customers choosing to exit bundled service to begin taking service from a third-party energy provider.

42. Q. WHAT ARE THE PROPOSED ENERGY RELATED CHARGES PROPOSED IN THIS PROCEEDING?

A. **Exhibit Pollard-Direct-3** presents the proposed 704B rates for the 2026 Joint IRP three-year action plan period. Pursuant to subsection 1 of Section 2 of the implementing regulation, the Net Differential Energy Rate and the credit/charge for variable operations and maintenance ("O&M") costs is determined in a triennial resource plan and is held constant for the duration of the corresponding three-year transition period. [12]

The results of the calculations demonstrate that Nevada Power customers choosing to exit the system will pay the Net Differential Energy Rate of $0.03711 per kWh during their applicable three-year transition period which will be partially offset by the $-0.00001 per kWh variable O&M costs credit. In addition, such customers will pay other costs required by law including the Base Tariff Energy Rate for the transmission period and the then-current R-BTER rate (which currently stands at $0.00463 as filed in Docket No. 26-02013) and will be updated quarterly. The total effective BTER neutrality charge will be $0.04173 per kWh.

[12] LCB File No. R195-22.

43. Q. DOES THIS CONCLUDE YOUR PREPARED DIRECT TESTIMONY?

A. Yes.

EXHIBIT POLLARD-DIRECT-1

TIM POLLARD
DIRECTOR-LOAD FORECASTING, RESEARCH & ANALYTICS
RESOURCE PLANNING & ANALYSIS
NV Energy
6100 Neil Road
Reno, Nevada 89511-1137
(775) 834-4006

Mr. Pollard has been a current employee of NV Energy since 2007 and is currently the Director of Load Forecasting, Research and Analytics. His responsibilities are focused upon leading the load research and forecasting teams for regulatory filings and special assignments in support of the Resource Planning & Analysis department's responsibilities.

Prior to joining the company in his current position, Mr. Pollard had experience across different industries and was most recently employed at Covance Cardiac Safety Services, a clinical research organization for the pharmaceutical industry, as a Senior Clinical Data Manager.

Employment History
NV Energy

Director-Load Forecasting, Research & Analytics
Technical Lead, Regulatory Policy, Strategy & Analysis
Pricing Specialist, Regulatory Pricing & Economic Analysis
Staff Economist, Regulatory Pricing & Economic Analysis
Senior Economist, Regulatory Pricing & Economic Analysis
January 2007 to Present

- Leads load forecasting and load research teams for required strategy and regulatory activities
- Supports load research and forecasting results as necessary in regulatory filings
- Guides technical aspects of cost of service and rate design filings and special assignments
- Conducts research and prepares studies for internal and external presentation
- Provides technical support and analyzes data necessary to resolve the complex set of pricing, financial, economic, and regulatory issues for filings in Nevada and California, Gas and Electric case filings
- Applies extensive experience and understanding of the principles and theories of cost of service and rate design as well as the technical mechanics and applications necessary to successfully develop pricing of electric and gas service
- Provides direction and technical assistance to less experienced team members
- Develops educational materials and actively instructs other team members on various technical, economic and cost of service related subjects

Economist, Resource Planning & Analysis
June 2004 to December 2004

- Conduct research and prepare studies for internal and external presentation
- Prepare and assist in preparation of load forecasts
- Assist in technical aspects of market analysis projects as requested

Non-Sierra Employment

Covance Cardiac Safety Services
January 2005 to January 2007

Senior Clinical Data Manager (10/06 to 1/07)**; Clinical Data Manager** (2/06 to 10/06)**; Data Analyst** (1/05 to 2/06)**, Data Management & Statistics**

- Technical Lead for all department activities within business unit for the development/validation of new systems and processes
- Acted as primary liaison and escalation contact for clients assigned within team to ensure that data presented met or exceeded the agreed upon expectations for accuracy and timeliness
- Developed and implemented internal and external reports, processes and metrics to add value to company through data analysis, management and quality control activities
- Accountable for all department personnel and activities within Clinical Trial Operations Team

Nevada State Health Division
December 2000 to June 2004

Health Resource Analyst II (7/02 to 6/04)**; Health Resource Analyst I** (12/00 to 7/02)**, Center for Health Data and Research, Bureau of Health Planning & Statistics**

- Development, linkage, management, and analysis of Public Health Data Warehouse (Cancer Registry, HIV/AIDS, Vital Statistics) for program policy and reporting issues relating to public health arena
- Prepared statistical and special topic reports, performed quality assurance measures and evaluated other health related program data
- Management, quality assurance and analysis of Vital Statistics databases for various Division programs, state agencies and requests from the public for health statistics

Education
University of Nevada, Reno
Bachelor of Arts in Economics, August 2000

Certifications
SAS Certified Advanced Programmer
SAS Certified Basic Programmer

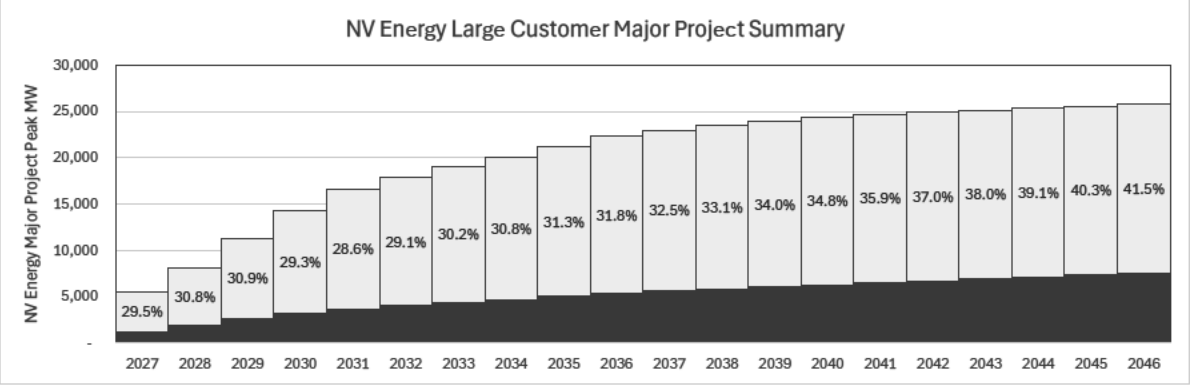
Prior Testimony before Public Utilities Commissions
PUCN Dockets: 07-12001, 08-12002, 08-10043, 09-06029, 10-06001, 10-07003, 11-06006, 13-06002, 15-07041, 15-07042, 16-06006, 16-06007, 18-11039, 19-06002, 20-06003, 21-10012, 22-06014, 22-09006, 23-06007, 23-08015, 24-02026, 24-02027, 25-02016, 25-08027, and 25-10028.
CPUC Applications: 08-08-004.

EXHIBIT POLLARD-DIRECT-2

2026 Joint IRP Large Customer Major Project Summary

The following chart and table present the total peak MW of capacity requested at NV Energy out to 2046 (18,320 MW), with 5,500 MW at Nevada Power and 12,730 MW at Sierra. Following the load forecast methodology, the result are incremental projected large customer major project loads of 7,620 MW added to the system by 2046, with 2,320 MW at Nevada Power and 5,300 MW at Sierra.

The average percent of the customer requested amounts included in the 2026 Joint IRP load forecast over the 2027-2046 period is 33.4 percent.



	NV Energy			Nevada Power			Sierra		
Year	Requested	Included	Percent	Requested	Included	Percent	Requested	Included	Percent
2027	4,235	1,249	29.5%	1,973	468	23.7%	2,262	782	34.6%
2028	6,218	1,912	30.8%	2,650	634	23.9%	3,567	1,278	35.8%
2029	8,654	2,674	30.9%	3,695	944	25.5%	4,958	1,730	34.9%
2030	11,040	3,233	29.3%	4,599	1,166	25.4%	6,441	2,067	32.1%
2031	12,912	3,698	28.6%	4,833	1,248	25.8%	8,079	2,450	30.3%
2032	13,874	4,035	29.1%	4,934	1,312	26.6%	8,940	2,723	30.5%
2033	14,644	4,425	30.2%	5,010	1,375	27.4%	9,633	3,050	31.7%
2034	15,321	4,722	30.8%	5,081	1,440	28.3%	10,240	3,282	32.1%
2035	16,155	5,050	31.3%	5,157	1,511	29.3%	10,998	3,539	32.2%
2036	16,928	5,391	31.8%	5,215	1,584	30.4%	11,713	3,806	32.5%
2037	17,344	5,630	32.5%	5,336	1,671	31.3%	12,007	3,960	33.0%
2038	17,661	5,849	33.1%	5,426	1,753	32.3%	12,235	4,096	33.5%
2039	17,870	6,069	34.0%	5,466	1,831	33.5%	12,404	4,238	34.2%
2040	18,067	6,290	34.8%	5,496	1,909	34.7%	12,571	4,381	34.8%
2041	18,199	6,532	35.9%	5,496	2,008	36.5%	12,702	4,524	35.6%
2042	18,214	6,733	37.0%	5,496	2,065	37.6%	12,717	4,668	36.7%
2043	18,229	6,932	38.0%	5,496	2,113	38.5%	12,733	4,818	37.8%
2044	18,234	7,135	39.1%	5,501	2,168	39.4%	12,733	4,967	39.0%
2045	18,234	7,347	40.3%	5,501	2,225	40.5%	12,733	5,122	40.2%
2046	18,234	7,566	41.5%	5,501	2,285	41.5%	12,733	5,280	41.5%

2026 Joint IRP Large Customer Major Project Summary by Type

# of projects	NVE	SPPCo	NVPWR
Data Center	47	26	21
Gov't	2	1	1
Industrial	2	0	2
Irrigation	2	0	2
Manufacturing	4	4	0
Mining	6	6	0
In service	18	15	3
Signed	29	21	8
Study	34	16	18
Total Projects	**63**	**37**	**26**

Bundled # of projects	NVE	SPPCo	NVPWR
Data Center	39	23	16
Gov't	2	1	1
Industrial	1	0	1
Irrigation	0	0	0
Manufacturing	4	4	0
Mining	4	4	0
In service	13	12	1
Signed	22	18	4
Study	28	14	14
Total Projects	**50**	**32**	**18**

DOS # of projects	NVE	SPPCo	NVPWR
Data Center	8	3	5
Gov't	0	0	0
Industrial	1	0	1
Irrigation	2	0	2
Manufacturing	0	0	0
Mining	2	2	0
In service	5	3	2
Signed	7	3	4
Study	6	2	4
Total Projects	**13**	**5**	**8**

Bundled MW Contract Capacity	NVE	SPPCo	NVPWR
Data Center	18,214	12,632	5,582
Gov't	53	3	50
Industrial	15	-	15
Irrigation	-	-	-
Manufacturing	324	324	-
Mining	102	102	-
In service	1,596	1,446	150
Signed	6,237	5,172	1,065
Study	12,472	7,890	4,582
Total Projects	**18,708**	**13,061**	**5,647**

Bundled MW Req 2036	NVE	SPPCo	NVPWR
Data Center	16,531	11,330	5,201
Gov't	3	3	-
Industrial	14	-	14
Irrigation	-	-	-
Manufacturing	324	324	-
Mining	57	57	-
In service	2,125	1,735	390
Signed	5,725	4,665	1,060
Study	11,204	7,049	4,155
Total Projects	**16,928**	**11,713**	**5,215**

Bundled MW Mitigated 2036	NVE	SPPCo	NVPWR
Data Center	5,304	3,722	1,582
Gov't	-	-	-
Industrial	3	-	3
Irrigation	-	-	-
Manufacturing	162	162	-
Mining	53	53	-
In service	1,086	963	123
Signed	3,649	2,819	829
Study	1,873	1,118	755
Total Projects	**5,522**	**3,937**	**1,585**

DOS MW Contract Capacity	NVE	SPPCo	NVPWR
Data Center	4,242	1,820	2,422
Gov't	-	-	-
Industrial	15	-	15
Irrigation	19	-	19
Manufacturing	-	-	-
Mining	53	53	-
In service	615	373	242
Signed	634	373	261
Study	3,695	1,500	2,195
Total Projects	**4,329**	**1,873**	**2,456**

DOS MW Req 2036	NVE	SPPCo	NVPWR
Data Center	4,616	1,689	2,927
Gov't	-	-	-
Industrial	18	-	18
Irrigation	12	-	12
Manufacturing	-	-	-
Mining	40	40	-
In service	605	360	245
Signed	617	360	257
Study	4,069	1,369	2,700
Total Projects	**4,686**	**1,729**	**2,957**

DOS MW Mitigated 2036	NVE	SPPCo	NVPWR
Data Center	1,088	443	645
Gov't	-	-	-
Industrial	18	-	18
Irrigation	9	-	9
Manufacturing	-	-	-
Mining	29	29	-
In service	480	243	237
Signed	489	243	246
Study	655	229	425
Total Projects	**1,143**	**472**	**671**

2026 Joint IRP Individual Major Projects

Line No.	Project	Company	Bundled / DOS	Contract Capacity	Signed /Study	In-Service	General Category	Start Date (Signed only)	Contract #	Project Included in Base Minus	2025 Observed Peak	Requested MW					Mitigated MW					Line No.
												2027	2028	2029	2036	2046	2027	2028	2029	2036	2046	
8	[redacted]																					8
9																						9
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REDACTED PUBLIC VERSION

EXHIBIT POLLARD-DIRECT-3

Line No.	Rate	Value	Notes	Source	Line No.
8	Fuel & Purchased Power (BTER) Charges				8
9	R-BTER	$ 0.00463	Current R-BTER	Docket No. 26-02013	9
10	Net BTER	$ 0.03711	Calculations on pg. 2	PLEXOS Output	10
11	Variable O&M Credit	$ (0.00001)	Calculations on pg. 3	PLEXOS Output	11
12					12
13	Public Policy Rates	(1)	As applicable	Statement of Rates	13
14	Decommissioning and Remediation Charges	As applicable	As applicable		14
15	Regulatory Asset Charges	As applicable	As applicable		15
16	1) Eligible customers will pay public policy program rates of the applicable schedule as detailed on the current Statement of Rates.				16
17					17
18					18
19	Action Period MWh Eligible for 704B Process	116,399			19
20	Revenue Neutrality BTER Charges	$ 4,857,838			20
21	Effective BTER neutrality charge per MWh	$ 41.73			21
22					22

NEVADA POWER COMPANY
Action Period Net-BTER Calculations

2025-2027 period average

Line No.	Step	Description	January	February	March	April	May	June	July	August	September	October	November	December	Total	Line No.
9		BTER Impact														9
10		Base Case System Information														10
11		Base Case System Requirements	5,394,699	4,747,664	5,092,627	5,028,195	6,653,171	8,841,992	10,344,128	9,684,165	8,026,136	5,835,770	5,138,152	5,729,595	80,516,296	11
12		System Fuel & Purchased Power Cost	$ 258,545	$ 208,353	$ 168,422	$ 152,439	$ 203,455	$ 309,600	$ 411,772	$ 387,868	$ 281,739	$ 188,196	$ 180,293	$ 256,511	$ 3,007,193	12
13		Average System Cost ($/MWh)	$ 47.93	$ 43.89	$ 33.07	$ 30.32	$ 30.58	$ 35.01	$ 39.81	$ 40.05	$ 35.10	$ 32.25	$ 35.09	$ 44.77	$ 37.35	13
14																14
15		Change Case System Information														15
16		Change Case System Requirements	5,385,621	4,739,354	5,083,084	5,019,525	6,643,282	8,831,322	10,332,610	9,672,600	8,015,417	5,826,473	5,129,721	5,720,887	80,399,897	16
17		System Fuel & Purchased Power Cost	$ 258,579	$ 208,765	$ 168,464	$ 152,305	$ 203,358	$ 309,231	$ 411,040	$ 387,118	$ 281,172	$ 188,849	$ 180,393	$ 257,056	$ 3,006,330	17
18		Average System Cost ($/MWh)	$ 48.01	$ 44.05	$ 33.14	$ 30.34	$ 30.61	$ 35.02	$ 39.78	$ 40.02	$ 35.08	$ 32.41	$ 35.17	$ 44.93	$ 37.39	18
19																19
20		Fuel & Purchased Power Cost Changes	$ 34	$ 411	$ 42	$ (134)	$ (97)	$ (370)	$ (732)	$ (750)	$ (567)	$ 653	$ 100	$ 545	$ (863)	20
21		$/MWh Change in Cost	$ 0.01	$ 0.09	$ 0.01	$ (0.03)	$ (0.01)	$ (0.04)	$ (0.07)	$ (0.08)	$ (0.07)	$ 0.11	$ 0.02	$ 0.10	$ (0.01)	21
22																22
23		Eligible MWh Load	9,078	8,310	9,543	8,671	9,890	10,670	11,518	11,565	10,719	9,297	8,432	8,708	116,399	23
24	1	Eligible MWh Load BTER Impact Fee[1]	$ 433	$ 364	$ 314	$ 262	$ 301	$ 372	$ 456	$ 460	$ 374	$ 300	$ 295	$ 389	$ 4,320	24
25																25
26		R-BTER Adjustment														26
27		Renewable Energy														27
28		Renewable Energy Generation (MWh)	590	547	649	652	655	602	552	565	542	569	548	587	7,058	28
29	2a	Renewable Contract Energy Cost	$ 55	$ 51	$ 60	$ 60	$ 60	$ 55	$ 50	$ 52	$ 49	$ 53	$ 51	$ 56	$ 653	29
30		Average Renewables Cost	$ 93.94	$ 93.34	$ 92.31	$ 92.77	$ 91.51	$ 90.67	$ 91.18	$ 91.85	$ 91.17	$ 92.42	$ 93.76	$ 94.87	$ 92.47	30
31																31
32		Non-Renewables System Information														32
33		System Requirements	5,394,109	4,747,117	5,091,978	5,027,544	6,652,516	8,841,390	10,343,576	9,683,600	8,025,594	5,835,201	5,137,605	5,729,007	80,509,237	33
34		Total System Cost (exc. Renewables)	$ 258,489	$ 208,302	$ 168,362	$ 152,378	$ 203,395	$ 309,546	$ 411,721	$ 387,816	$ 281,689	$ 188,143	$ 180,242	$ 256,455	$ 3,006,540	34
35		Average Non-Renewable System Cost	$ 47.92	$ 43.88	$ 33.06	$ 30.31	$ 30.57	$ 35.01	$ 39.80	$ 40.05	$ 35.10	$ 32.24	$ 35.08	$ 44.76	$ 37.34	35
36																36
37	2b-c	Renewable Energy @ Ave. System Cost	$ 28	$ 24	$ 21	$ 20	$ 20	$ 21	$ 22	$ 23	$ 19	$ 18	$ 19	$ 26	262	37
38	2d	R-BTER Cost	$ 27	$ 27	$ 38	$ 41	$ 40	$ 33	$ 28	$ 29	$ 30	$ 34	$ 32	$ 29	$ 391	38
39																39
40		Eligible Exiting Load	9,078	8,310	9,543	8,671	9,890	10,670	11,518	11,565	10,719	9,297	8,432	8,708	116,399	40
41		Percent of System Loads	0.168%	0.175%	0.187%	0.172%	0.149%	0.121%	0.111%	0.119%	0.134%	0.159%	0.164%	0.152%	0.145%	41
42																42
43	3	R-BTER costs allocated to Eligible Load	$ 0	$ 0	$ 0	$ 0	$ 0	$ 0	$ 0	$ 0	$ 0	$ 0	$ 0	$ 0	1	43
44																44
45		Net BTER Rate Impact														45
46	4	Cost Difference w/ R-BTER Adjustment	$ 433	$ 364	$ 314	$ 262	$ 301	$ 372	$ 456	$ 460	$ 374	$ 300	$ 295	$ 389	$ 4,320	46
47	5	Net-BTER rate	$ 0.04774	$ 0.04380	$ 0.03294	$ 0.03016	$ 0.03044	$ 0.03483	$ 0.03958	$ 0.03982	$ 0.03489	$ 0.03223	$ 0.03497	$ 0.04469	$ 0.03711	47
48																48
49		Notes:												**Net-BTER Rate**	**$ 0.03711**	49
50		1) Adjusted for Mill Tax (0.3891035%)														50

Line No.		Base Case			Change Case			Difference			Line No.
		MWh	Costs ($000)	$/MWh	MWh	Costs ($000)	$/MWh	MWh	Costs ($000)	$/MWh	
9											9
10	2027										10
11	Jan	1,673,534	$ 3,878	$ 2.32	1,673,534	$ 3,867	$ 2.31	0	$ (11)	$ (0.01)	11
12	Feb	1,449,711	$ 3,386	$ 2.34	1,449,711	$ 3,392	2.34	0	6	0.00	12
13	Mar	1,563,972	$ 3,394	$ 2.17	1,563,972	$ 3,391	2.17	0	(3)	(0.00)	13
14	Apr	1,537,462	$ 2,450	$ 1.59	1,537,462	$ 2,453	1.60	0	3	0.00	14
15	May	2,062,063	$ 3,395	$ 1.65	2,062,063	$ 3,384	1.64	0	(11)	(0.01)	15
16	Jun	2,778,168	$ 7,799	$ 2.81	2,778,168	$ 7,846	2.82	0	47	0.02	16
17	Jul	3,278,823	$ 10,756	$ 3.28	3,278,823	$ 10,775	3.29	0	19	0.01	17
18	Aug	3,061,252	$ 10,120	$ 3.31	3,061,252	$ 10,016	3.27	0	(104)	(0.03)	18
19	Sep	2,517,256	$ 6,914	$ 2.75	2,517,256	$ 6,841	2.72	0	(72)	(0.03)	19
20	Oct	1,789,913	$ 3,912	$ 2.19	1,789,913	$ 3,922	2.19	0	10	0.01	20
21	Nov	1,563,974	$ 3,751	$ 2.40	1,563,974	$ 3,765	2.41	0	14	0.01	21
22	Dec	1,761,405	$ 4,079	$ 2.32	1,761,405	$ 4,078	2.32	0	(1)	(0.00)	22
23											23
24	Total	25,037,533	$ 63,833	$ 2.55	25,037,533	$ 63,730	$ 2.55	0	$ (104)	$ (0.00)	24
25											25
26											26
27	2028										27
28	Jan	1,786,819	$ 4,408	$ 2.47	1,782,284	$ 4,346	$ 2.44	(4,535)	$ (62)	$ (0.03)	28
29	Feb	1,608,775	$ 3,824	2.38	1,604,547	$ 3,885	2.42	(4,228)	61	0.04	29
30	Mar	1,681,506	$ 3,647	2.17	1,676,734	$ 3,645	2.17	(4,771)	(2)	0.01	30
31	Apr	1,667,718	$ 2,884	1.73	1,663,382	$ 2,907	1.75	(4,336)	23	0.02	31
32	May	2,213,642	$ 3,610	1.63	2,208,701	$ 3,619	1.64	(4,942)	9	0.01	32
33	Jun	2,942,663	$ 7,343	2.50	2,937,327	$ 7,357	2.50	(5,336)	14	0.01	33
34	Jul	3,423,447	$ 9,160	2.68	3,417,690	$ 9,036	2.64	(5,757)	(124)	(0.03)	34
35	Aug	3,200,837	$ 8,086	2.53	3,195,055	$ 7,958	2.49	(5,782)	(129)	(0.04)	35
36	Sep	2,636,473	$ 6,072	2.30	2,631,109	$ 6,060	2.30	(5,364)	(12)	0.00	36
37	Oct	1,900,758	$ 4,329	2.28	1,896,112	$ 4,320	2.28	(4,646)	(9)	0.00	37
38	Nov	1,682,278	$ 3,938	2.34	1,678,058	$ 3,925	2.34	(4,220)	(13)	(0.00)	38
39	Dec	1,874,614	$ 4,501	2.40	1,870,260	$ 4,522	2.42	(4,354)	21	0.02	39
40											40
41	Total	26,619,531	$ 61,802	$ 2.32	26,561,259	$ 61,579	$ 2.32	(58,271)	$ (224)	$ (0.00)	41
42											42
43											43
44	2029										44
45	Jan	1,934,346	$ 5,425	$ 2.80	1,929,803	$ 5,511	$ 2.86	(4,543)	$ 85	$ 0.05	45
46	Feb	1,689,179	$ 4,241	2.51	1,685,096	$ 4,249	2.52	(4,082)	8	0.01	46
47	Mar	1,847,149	$ 4,120	2.23	1,842,378	$ 4,133	2.24	(4,771)	14	0.01	47
48	Apr	1,823,015	$ 3,298	1.81	1,818,680	$ 3,295	1.81	(4,335)	(3)	0.00	48
49	May	2,377,466	$ 4,121	1.73	2,372,518	$ 4,104	1.73	(4,948)	(17)	(0.00)	49
50	Jun	3,121,162	$ 7,310	2.34	3,115,828	$ 7,203	2.31	(5,334)	(107)	(0.03)	50
51	Jul	3,641,857	$ 9,004	2.47	3,636,096	$ 8,932	2.46	(5,761)	(72)	(0.02)	51
52	Aug	3,422,076	$ 8,734	2.55	3,416,294	$ 8,637	2.53	(5,782)	(97)	(0.02)	52
53	Sep	2,872,407	$ 6,602	2.30	2,867,052	$ 6,389	2.23	(5,355)	(213)	(0.07)	53
54	Oct	2,145,099	$ 5,548	2.59	2,140,448	$ 5,644	2.64	(4,651)	97	0.05	54
55	Nov	1,891,900	$ 4,400	2.33	1,887,689	$ 4,478	2.37	(4,211)	78	0.05	55
56	Dec	2,093,576	$ 6,406	3.06	2,089,222	$ 6,557	3.14	(4,354)	151	0.08	56
57											57
58	Total	28,859,232	$ 69,209	$ 2.40	28,801,105	$ 69,133	$ 2.40	(58,128)	$ (76)	$ 0.00	58
59											59
60	3-year Total	80,516,296	$ 194,844	$ 2.42	80,399,897	$ 194,441	$ 2.42	(116,399)	$ (403)	$ 0.00	60
61	Percent of System Loads								0.145%		61
62	Load ratio share of Variable O&M reduction								$ (1)		62
63											63
64							**Variable O&M credit ($/kWh)**		**$ (0.00001)**		64
65											65

AFFIRMATION

Pursuant to the requirements of NRS 53.045 and NAC 703.710, TIMOTHY POLLARD, states that he is the person identified in the foregoing prepared testimony and/or exhibits; that such testimony and/or exhibits were prepared by or under the direction of said person; that the answers and/or information appearing therein are true to the best of his knowledge and belief; and that if asked the questions appearing therein, his answers thereto would, under oath, be the same.

I declare under penalty of perjury that the foregoing is true and correct.

Date: May 4, 2026

Timothy Pollard